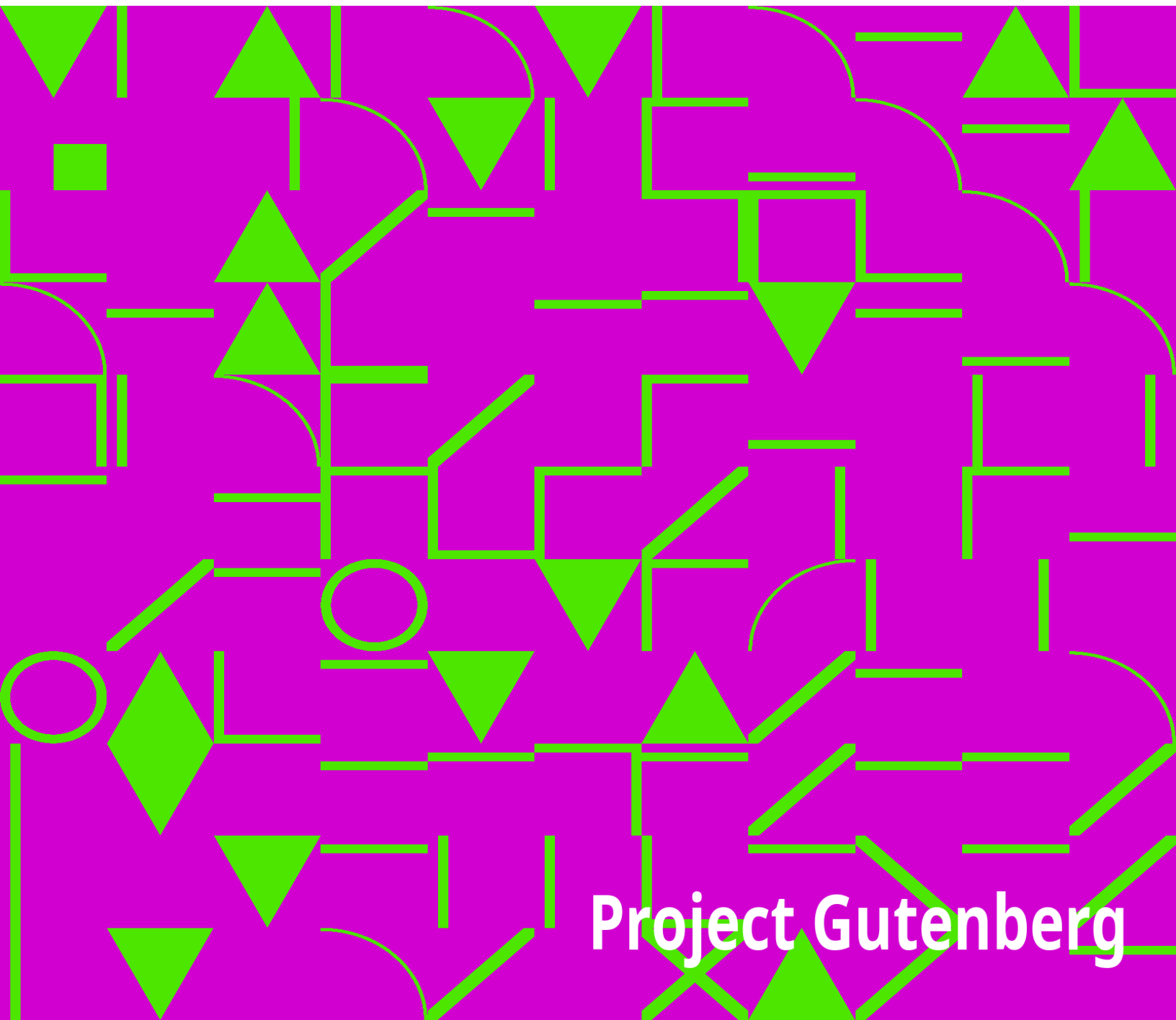


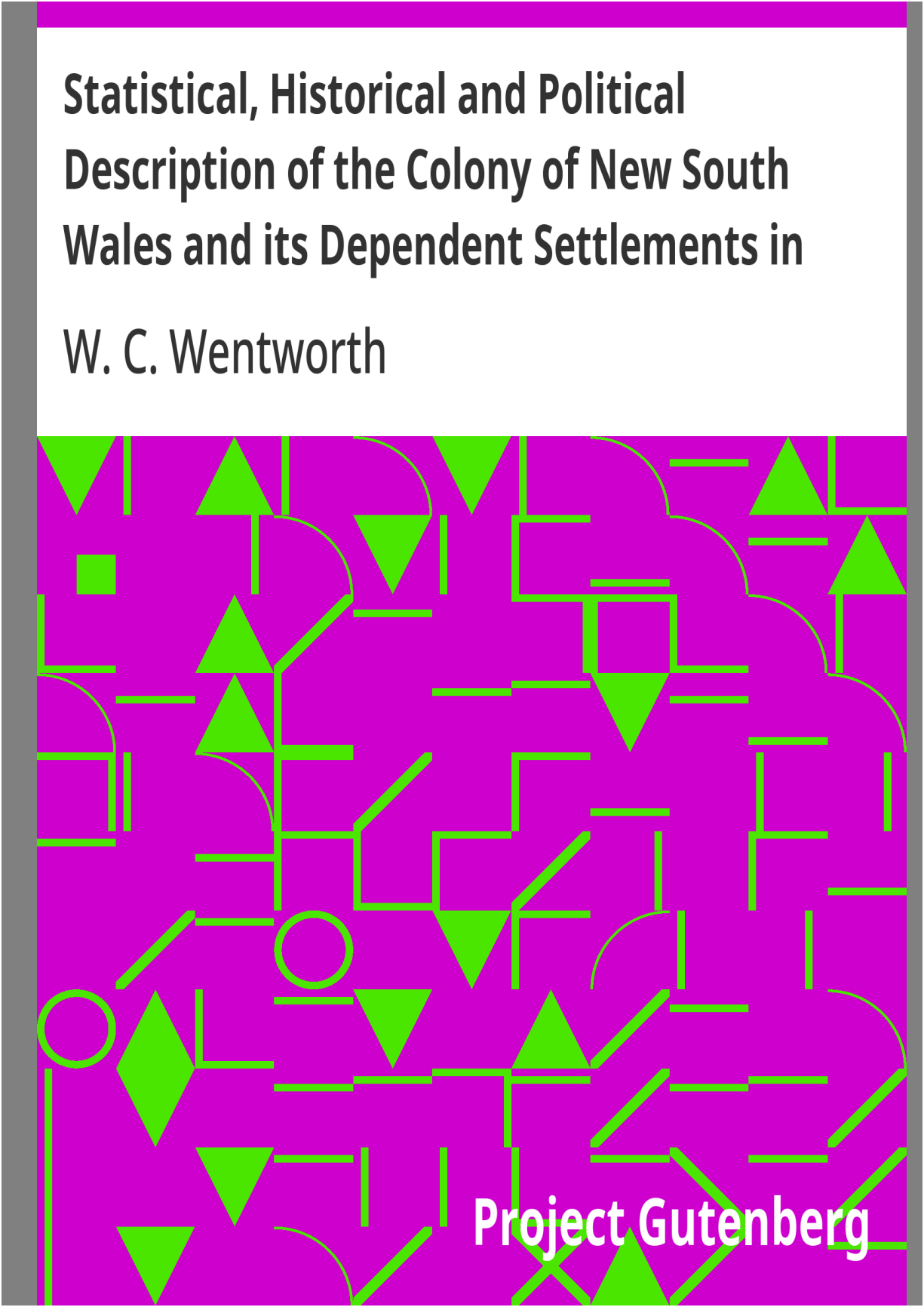
**Statistical, Historical and Political
Description of the Colony of New South
Wales and its Dependent Settlements in**
W. C. Wentworth

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NEW SOUTH WALES AND ITS DEPENDENT SETTLEMENTS IN VAN
DIEMEN'S LAND ***

**STATISTICAL, HISTORICAL, AND
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OF**

THE COLONY
OF

NEW SOUTH WALES,

AND

ITS DEPENDENT SETTLEMENTS

IN

VAN DIEMEN'S LAND:
WITH
A PARTICULAR ENUMERATION OF THE ADVANTAGES
WHICH THESE
COLONIES OFFER FOR EMIGRATION, AND THEIR
SUPERIORITY
IN MANY RESPECTS OVER THOSE POSSESSED BY
THE UNITED STATES OF AMERICA

BY WILLIAM CHARLES WENTWORTH, ESQ.

A NATIVE OF THE COLONY

**LONDON:
PRINTED FOR G. AND W. B. WHITTAKER**

1819

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CONTENTS

FOREWORD.

PREFACE.

PART I. STATISTICAL ACCOUNT OF THE SETTLEMENTS IN NEW HOLLAND.

PART II. OPERATION OF THE EXISTING SYSTEM OF GOVERNMENT IN THE COLONY FOR THE LAST FIFTEEN YEARS.

PART III. VARIOUS ALTERATIONS SUGGESTED IN THE PRESENT POLICY OF THIS COLONY.

PART IV. VARIOUS CHANGES PROPOSED IN THE SYSTEM OF GOVERNMENT.

APPENDIX.

FOREWORD

There can be little doubt that when my great-grandfather began to write this book, his thoughts were centred on the objective which he describes in his own Preface--the diversion to Australia of some part of the stream of emigration then running from the British Isles to North America. Perhaps, even more urgently, he may have wanted to forestall any British tendency to withdraw from the colony and abandon New South Wales altogether.

But as he wrote, he found that he had to make some explanation for the defects which he saw in the current life of the colony, and naturally he was led into propounding some way in which these defects could be overcome. Contemporary reviewers, then, were not so far wrong when they commented that the book looked almost like two books written by separate hands.

The secondary theme became the most important part of the book, because the remedies he then proposed for his country's ills became the guidelines for his own policies when he returned to Australia. Through the influences which he and his friends exerted over the next thirty years, these policies determined much of the course of Australian history in those times. Most of his proposals were eventually accepted, though in some cases much later than he wanted, and in some cases with modifications which he himself made or which were forced on him by the pressure of events.

At the time he wrote this book he was in his middle twenties, having returned to England to complete his education soon after participating in the first crossing of the Blue Mountains. Waterloo had just been won; Europe was settling down and trying to forget Napoleon. The wounds of the American Revolution were closing; British merchants and industrialists were preparing to change the face of the world in accordance with the precepts of Adam Smith.

In his attempt to divert the migration stream he was no enemy of America, (indeed he had chosen the name "Vermont" for his own farm on the Nepean) but he was perhaps the first Australian really to support

Macquarie's drive for Australian expansion and Australian independence from London administration. He did this at a time when some influential Englishmen were urging the abandonment of the whole Botany Bay venture, which, after thirty years, was still not self-supporting and which seemed doomed to suffer from recurrent crises.

Apparently Macquarie had dreamed of a great transcontinental river, which was to flow 2,000 miles westwards from the Dividing Range, through fertile and well-watered fields, until it reached the sea somewhere on the north-west coast. The Lachlan had been found to peter out into swamps, but Oxley believed that the Macquarie River would have a happier issue, and at the time of the first Edition of this book (1819) that theory was still tenable. It was not long, of course, before these hopes were to perish in the Macquarie Marshes, to be succeeded by prospects of a mythical Inland Sea, though it was decades before the enthusiasts realised that they would have to be satisfied with Lake Eyre.

This first edition accepts as fact the phantom of that transcontinental stream and expatiates on the blessings which it would bring, patterning its concept of the Heart of the Australian Continent upon what was known of the Great Plains of America, then just being opened up. Any child with an Atlas in hand can now decry the mistake of having given to this concept more credence than did Oxley or Macquarie: does not hindsight make history so simple?

Abandonment of simple optimism on this physical fact must have been quick and uncomfortable: but abandonment of some other precepts must have been slow and more painful. At the time of this first edition, the influence of the Enlightenment was completing its penetration into politics and economics. Man had only to be given freedom, and he would enter into a political Paradise: the forces of the free market had only to be left untrammelled, and they would create of themselves an economic Eden!

These are the enthusiasms of the first edition, where Bligh represents the forces of repression and darkness, while Macquarie and Macarthur are both to be numbered among the angels. By the time of the third edition (1824, nearly contemporary with the author's return to Australia) the winds of change had blown through the Australian scene. Bigge had presented his

Report, which destroyed so much of Macquarie's work, and the Exclusives, in the author's view, were leagued with enemies of Australian identity.

For the next thirty years the politics of New South Wales were vigorous and variegated. Nobody who was at their centre could have maintained all his illusions as to the essential goodness of human nature, if only it could be freed from the unnatural chains with which society had bound it. Nor could anyone who participated in the commercial life of those times, who had lived, for example, through the depression of the forties, have preserved untarnished the precepts of Ricardo--published only a few years before 1819, and accepted as gospel in that first edition.

So some of those 1819 enthusiasms had to be abandoned: but the objectives were not. Most of them were eventually to be translated into action and actuality. It was in their modification, perhaps, that the author was to display most of all his foresight and acumen. From 1848 onwards he recognised the true nature of "the spectre which haunted Europe"--and which still haunts the world. From then onwards he was not to write in the way which he wrote here.

W. C. Wentworth

24th February, 1978

PREFACE

It may prevent those inquiries that would be naturally made by the public, respecting the manner in which the author acquired the information contained in this work, when he states that he was born in the colony of New South Wales, and that he resided there for about five years since his arrival at the age of maturity. This is a period which will, at least, be allowed to have been sufficient for acquiring a correct knowledge of its state and government, and for enabling him to observe the destructive tendency of those measures, of which it has been his endeavour to demonstrate the injustice and impolicy, and to procure the speedy repeal. He would not, however, have it concluded that the present work has been the result of mature and systematic reflection; it is, on the contrary, a hasty production, which originated in the casual suggestions of an acquaintance, and which was never contemplated by him, during his long residence in the colony. He has consequently been obliged not only to omit giving a detail of many interesting facts, with which he might have become acquainted previously to his departure, but has also been under the necessity of relying in a great measure on the fidelity of his memory for the accuracy of many of those circumstances which he has stated: still he is not without hope, that five years attentive observation will have enabled him to communicate many particulars, of which, in the absence of abler works on the same subject, most of the inhabitants of this country cannot but be ignorant, and many must wish to be apprized.

His only aim in obtruding this hasty production on the public, is to promote the welfare and prosperity of the country which gave him birth; and he has judged that he could in no way so effectually contribute his mite towards the accomplishment of this end, as by attempting to divert from the United States of America to its shores, some part of that vast tide of emigration, which is at present flowing thither from all parts of Europe. In furtherance, therefore, of this design, he has described the superior advantages of climate and soil possessed by this colony; he has explained the causes why these natural superiorities have not yet been productive of those beneficial

consequences which might have been expected from them; he has pointed out the arguments which offer for the abandonment of the present system, and the substitution of another in its place; and by adducing, in fine, what he considers to be irrefragable proofs of the expediency, merely as it regards the parent country, of adopting the measures which he has proposed, he hopes that he shall eventually occasion an alteration of polity, by which both the parties concerned will be equally benefited. He has not, however, presumed on a contingency which it is thus reasonable to believe cannot be either doubtful or remote; but has restricted himself to an enumeration of the inducements to emigration which exist under actual circumstances; and, by comparing them with the advantages which those writers, who have given the most favourable accounts of the United States, have represented them as possessing, he has proved that this colony, labouring as it is under all the discouragements of an arbitrary and impolitic government, has still a great and decided preponderancy in the balance. How much this preponderancy will be increased, whenever the changes and modifications which he has ventured to suggest, shall be in whole, or in part carried into effect, he has left to all such as are desirous of emigrating, to form their own estimate; and to decide also how much longer a system so highly burdensome to the parent country, and so radically defective in its principles and operation, is likely to be tolerated. To all those, who are of opinion with him that it cannot be of much longer duration, the inducements for giving this colony the preference will become so weighty, as scarcely to admit of the possibility that they should hesitate for a moment in their choice between the two countries.

If, in the course of this work, he has spoken in terms of unqualified reprobation of the baneful system to which the unhappy place of his nativity has been the victim, he would have it distinctly understood, that it has been furthest from his thoughts to connect the censure which he has bestowed on it, with those who have permitted its continuance. He is too deeply impressed with a sense of the arduous and momentous nature of the contest which they have had to conduct, not to allow that it was justly entitled to their first and chief attention. Our whole colonial system, in fact, he considers to have been but a mere under plot in the great drama that was acting. It could not, therefore, be reasonably expected that the grievances of any one colony should become the subject of minute and particular

investigation; and still less could it be imagined that the government should convert their attention to the relief of one, which has comparatively excited but a small share of public interest, and has hitherto been considered more in the light of a prison, than of what he has endeavoured to prove it might be rendered,--one of the most useful and valuable appendages of the empire. This apology, however, for the neglect which the colony has experienced during the war, cannot be pleaded in vindication of a perseverance in the same impolitic and oppressive course in time of peace. Nor is it to be wondered at, as upwards of three years have now elapsed since the consolidation of the tranquillity of the world, that the colonists should begin to feel indignant at the continuance of disabilities, for the abrogation of which the most powerful considerations of justice and expediency have been urged in vain. To remove such just grounds for dissatisfaction and complaint, and to allow them, at length, the enjoyment of those rights and privileges, of which they ought never to have been debarred, would, at best, be but a poor compensation for an impeded agriculture and languishing commerce; but it is the only one that can now be offered; and, although it cannot repair the wide ravages which so many years of unmerited and absurd restrictions have occasioned, it may arrest the progress of desolation, and prevent any further increase to the numbers who have already sunk beneath the pressure of an overwhelming system. It is, therefore, to be hoped that the cause of humanity will no longer be outraged by unnecessary delay, and that the only atonement, which can be made the colonists for their past and present sufferings, will no longer be withheld.

The author is fully aware that, in the course of this work, he has developed no new principle of political economy, and that he has only travelled in the broad beaten path in which hundreds have journeyed before him. For troubling, therefore, the public with a repetition of principles, of which the truth is so generally known and acknowledged, the only plea he can urge in his justification is a hope that the reiteration of them will not be deemed unnecessary and obtrusive, so long as their application is incomplete; so long as vice and misery prevail in any part of the world, from the want of their adoption and enforcement.

PART I

NEW SOUTH WALES.

STATISTICAL ACCOUNT OF THE SETTLEMENTS IN NEW HOLLAND.

The colony of New South Wales is situated on the eastern coast of New Holland. This island, which was first discovered by the Dutch in 1616, lies between the 9 degrees and 39 degrees of south latitude, and the 108 degrees and 153 degrees of east longitude; and from its immense size, seems rather to merit the appellation of continent, which many geographers have bestowed on it. Since that period it has been visited and examined by a galaxy of celebrated navigators, among whom Cook and Flinders rank the most conspicuous. Still the survey of this large portion of the world cannot, by any means, be deemed complete; since not one of all the navigators who have laid down the various parts of its coasts, has discovered the mouth of any considerable river; and it is hardly within the scope of possible belief, that a country of such vast extent does not possess at least one river, which may deserve to be ranked in the class of "rivers of the first magnitude."

If a judgment were formed of this island from the general aspect of the country bordering the sea, it would be pronounced one of the most barren spots on the face of the globe. Experience, however, has proved that such an opinion would be exactly the reverse of truth; since, as far as the interior has been explored, its general fertility amply compensates for the extreme sterility of the coast.

The greater part of this country is covered with timber of a gigantic growth, but of an entirely different description from the timber of Europe. It is, however, very durable, and well adapted to all the purposes of human industry.

The only metal yet discovered is iron. It abounds in every part of the country, and is in some places purer than in any other part of the world. Coals are found in many places of the best quality. There is also abundance of slate, limestone and granite, though not in the immediate vicinity of Port Jackson. Sand-stone, quartz, and freestone are found every where.

The rivers and seas teem with excellent fish; but the eel and smelt, the mullet, whiting, mackarel, sole, skate, and John Dory are, I believe, the only sorts known in this country.

The animals are, the kangaroo, native dog, (which is a smaller species of the wolf,) the wombat, bandicoot, kangaroo rat, opossum, flying squirrel, flying fox, etc. etc. There are none of those animals or birds which go by the name of "game" in this country, except the heron. The hare, pheasant and partridge are quite unknown; but there are wild ducks, widgeon, teal, quail, pigeons, plovers, snipes, etc. etc., with emus, black swans, cockatoos, parrots, parroquets, and an infinite variety of smaller birds, which are not found in any other country. In fact, both its animal and vegetable kingdoms are in a great measure peculiar to itself.

There are many poisonous reptiles in this country, but few accidents happen either to the aborigines, or the colonists from their bite. Of these the centipede, tarantula, scorpion, slow-worm, and the snake, are the most to be dreaded; particularly the latter, since there are, I believe, at least thirty varieties of them, of which all but one are venomous in the highest degree.

The aborigines of this country occupy the lowest place in the gradatory scale of the human species. They have neither houses nor clothing; they are entirely unacquainted with the arts of agriculture; and even the arms which the several tribes have, to protect themselves from the aggressions of their neighbours, and the hunting and fishing implements with which they administer to their support, are of the rudest contrivance and workmanship.

Thirty years intercourse with Europeans has not effected the slightest change in their habits; and even those who have most intermixed with the colonists, have never been prevailed upon to practise one of the arts of civilized life. Disdaining all restraint, their happiness is still centered in their original pursuits; and they seem to consider the superior enjoyments to be derived from civilization, (for they are very far from being insensible to them) but a poor compensation for the sacrifice of any portion of their natural liberty. The colour of these people is a dark chocolate; their features bear a strong resemblance to the African negro; they have the same flat nose, large nostrils, wide mouth and thick lips; but their hair is not woolly,

except in Van Dieman's Land, where they have this further characteristic of the negro.

These people bear no resemblance to any of the inhabitants of the surrounding islands, except to those of New Guinea, which is only separated from New Holland by a narrow strait. One of these islands, therefore, has evidently been peopled by the other; but from whence the original stock was derived is one of those geographical problems, which in all probability will never be satisfactorily solved.

Rude and barbarous as are the aborigines of this country, they have still some confused notions of a Supreme Being and of a future state. It would, however, be foreign to the purposes to which I have limited myself, to enter into a detail of their customs and manners; nor would it, indeed, be the means of increasing the fund of public knowledge: since, whoever may be anxious to be informed on these topics, will find a faithful and minute account of them in the work of Mr. Collins.

Sydney, the capital of New South Wales, is situated in 33 degrees 55' of south latitude, and 151 degrees 25' of east longitude. It is about seven miles distant from the heads of Port Jackson, and stands principally on two hilly necks of land and the intervening valley, which together form Sydney Cove. The western side of the town extends to the water's edge, and occupies with the exception of the small space reserved around Dawe's Battery, the whole of the neck of land which separates Sydney Cove from Lane Cove, and extends a considerable distance back into the country besides.

This part of the town, it may therefore be perceived, forms a little peninsula; and what is of still greater importance the water is in general of sufficient depth in both these coves, to allow the approach of vessels of the largest burden to the very sides of the rocks.

On the eastern neck of land, the extension of the town has been stopped by the Government House, and the adjoining domain, which occupies the whole of Bennilong's Point, a circumstance the more to be regretted, as the water all along this point is of still greater depth than on the western side of the Cove, and consequently affords still greater facilities for the erection of warehouses and the various important purposes of commerce.

The appearance of the town is rude and irregular. Until the administration of Governor Macquarie, little or no attention had been paid to the laying out of the streets, and each proprietor was left to build on his lease, where and how his caprice inclined him. He, however, has at length succeeded in establishing a perfect regularity in most of the streets, and has reduced to a degree of uniformity, that would have been deemed absolutely impracticable, even the most confused portion of that chaos of building, which is still known by the name of "the rocks;" and which, from the ruggedness of its surface, the difficulty of access to it, and the total absence of order in its houses, was for many years more like the abode of a horde of savages than the residence of a civilized community. The town upon the whole may be now pronounced to be tolerably regular; and, as in all future additions that may be made to it, the proprietors of leases will not be allowed to deviate from the lines marked out by the surveyor general, the new part will of course be free from the faults and inconveniences of the old.

This town covers a considerable extent of ground, and would at first sight induce the belief of a much greater population than it actually contains. This is attributable to two circumstances, the largeness of the leases, which in most instances possess sufficient space for a garden, and the smallness of the houses erected in them, which in general do not exceed one story. From these two causes it happens, that this town does not contain above seven thousand souls, whereas one that covered the same extent of ground in this country would possess a population of at least twenty thousand. But although the houses are for the most part small, and of mean appearance, there are many public buildings, as well as houses of individuals, which would not disgrace the best parts of this great metropolis. Of the former class, the public stores, the general hospital, and the barracks, are perhaps the most conspicuous; of the latter the houses of Messrs. Lord, Riley, Howe, Underwood and Nichols.

The value of land in this town is in many places half as great as in the best situations in London, and is daily increasing. Rents are in consequence exorbitantly high. It is very far from a commodious house that can be had for a hundred a year, unfurnished.

Here is a very good market, although it is of very recent date. It was established by Governor Macquarie, in the year 1813, and is very well supplied with grain, vegetables, poultry, butter, eggs and fruit. It is, however, only held three times a week; viz. on Mondays, Wednesdays and Fridays. It is a large oblong enclosure, and there are stores erected in it by the Governor, for the reception of all such provisions as remain unsold at the close of the market, which lasts from six o'clock in the morning in summer, and seven o'clock in winter, until three o'clock in the evening. The vender pays in return a small duty to the clerk of the market, who accounts quarterly for the amount to the treasurer of the police fund. The annual amount of these duties is about £130.*

[* Vide Market Duties in the Appendix.]

Here also is a Bank, called "The Bank of New South Wales," which was established in the year 1817, and promises to be of great and permanent benefit to the colony in general. Its capital is £20,000, divided into two hundred shares. It has a regular charter of incorporation, and is under the controul of a president* and six directors, who are annually chosen by the proprietors. The paper of this bank is now the principal circulating medium of this colony. They discount bills of a short date, and also advance money on mortgage securities. They are allowed to receive in return an interest of 10 per cent. per annum.

[* See Appendix.]

This town also contains two very good public schools, for the education of children of both sexes. One is a day school for boys, and is of course only intended to impart gratuitous instruction:--the other is designed both for the education and support of poor and helpless female orphans. This institution was founded by Governor King, as long back as the year 1800, and contains about sixty children, who are taught reading, writing, arithmetic, sewing, and the various arts of domestic economy. When their education is complete, they are either married to free persons of good character, or are assigned as servants to such respectable families as may apply for them. At the time of the establishment of this school there was a large tract of land (15,000 acres,) attached to it; and a considerable stock of horses, cattle, and sheep, were also transferred to it from the government herds. The profits of

these stock go towards defraying the expences of this school, and a certain portion, fifty or a hundred acres of this land, with a proportionate number of them, are given in dower with each female who marries with the consent of the committee intrusted with the management of this institution.

Besides these two public schools in the town of Sydney, which together contained, by the last accounts received from the colony, two hundred and twenty-four children, there are establishments for the gratuitous diffusion of education in every populous district throughout the colony. The masters of these schools are allowed stipulated salaries from the Orphan Fund. Formerly particular duties, those on coals and timber, which still go by the name of "The Orphan Dues," were allotted for the support of these schools; but they were found to be insufficient, and afterwards one-fourth, and more recently one-eighth, of the whole revenue of the colony was appropriated to this purpose. This latter portion of the colonial revenue may be estimated at about £2500, which it must be admitted could not be devoted to the promotion of any object of equal public utility.

Independent of these laudable institutions thus supported at the expence of the government, there are two private ones intended for the dissemination of religious knowledge, which are wholly maintained by voluntary contribution. One is termed "The Auxiliary Bible Society of New South Wales," and its object is to cooperate with the British and Foreign Bible Society, and to distribute the holy Scriptures either at prime cost, or gratis, to needy and deserving applicants.

The other is called "The New South Wales Sunday School Institution," and was established with a view to teach well disposed persons of all ages how to read the sacred volume. These societies were instituted in the year 1817, and are under the direction of a general committee, aided by a secretary and treasurer.

There are in this town and other parts of the colony, several good private seminaries for the board and education of the children of opulent parents. The best is in the district of Castlereagh, which is about forty miles distant, and is kept by the clergyman of that district, the Rev. Henry Fulton, a gentleman peculiarly qualified both from his character and acquirements for conducting so responsible and important an undertaking. The boys in this

seminary receive a regular classical education, and the terms are as reasonable as those of similar establishments in this country.

The harbour of Port Jackson is perhaps exceeded by none in the world except the Derwent in point of size and safety; and in this latter particular, I rather think it has the advantage. It is navigable for vessels of any burden for about seven miles above the town, i.e. about fifteen from the entrance. It possesses the best anchorage the whole way, and is perfectly sheltered from every wind that can blow. It is said, and I believe with truth, to have a hundred coves, and is capable of containing all the shipping in the world. There can be no doubt, therefore, that in the course of a few years, the town of Sydney, from the excellence of its situation alone, must become a place of considerable importance.

The views from the heights of the town are bold, varied and beautiful. The strange irregular appearance of the town itself, the numerous coves and islets both above and below it, the towering forests and projecting rocks, combined with the infinite diversity of hill and dale on each side of the harbour, form altogether a coup d'oeil, of which it may be safely asserted that few towns can boast a parallel.

The neighbouring scenery is still more diversified and romantic, particularly the different prospects which open upon you from the hills on the south head road, immediately contiguous to the town. Looking towards the coast you behold at one glance the greater part of the numerous bays and islands which lie between the town and the heads, with the succession of barren, but bold and commanding hills, that bound the harbour, and are abruptly terminated by the water. Further north, the eye ranges over the long chain of lofty rugged cliffs that stretch away in the direction of the coal river, and distinctly mark the bearing of the coast, until they are lost in the dimness of vision. Wheeling round to the south you behold at the distance of seven or eight miles, that spacious though less eligible harbour, called "Botany Bay," from the prodigious variety of new plants which Sir Joseph Banks found in its vicinity, when it was first discovered and surveyed by Captain Cook. To the southward again of this magnificent sheet of water, where it will be recollected it was the original intention, though afterwards judiciously abandoned, to found the capital of this colony, you behold the

high bluff range of hills that stretch away towards the five islands, and likewise indicate the trending of the coast in that direction.

If you afterwards suddenly face about to the westward, you see before you one vast forest, uninterrupted except by the cultivated openings which have been made by the axe on the summits of some of the loftiest hills, and which tend considerably to diminish those melancholy sensations its gloomy monotony would otherwise inspire. The innumerable undulations in this vast expanse of forest, forcibly remind you of the ocean when convulsed by tempests; save that the billows of the one slumber in a fixed and leaden stillness, and want that motion which constitutes the diversity, beauty, and sublimity of the other. Continuing the view, you arrive at that majestic and commanding chain of mountains called "the Blue Mountains," whose stately and o'ertopping grandeur forms a most imposing boundary to the prospective.

If you proceed on the south head road, until you arrive at the eminence called "Belle Vue," the scenery is still more picturesque and grand; since, in addition to the striking objects already described, you behold, as it were at your feet, although still more than a mile distant from you, the vast and foaming Pacific. In boisterous weather the surges that break in mountains on the shore beneath you, form a sublime contrast to the still, placid waters of the harbour, which in this spot is only separated from the sea by a low sandy neck of land not more than half a mile in breadth; yet is so completely sheltered, that no tempests can ruffle its tranquil surface.

The town of Parramatta is situated at the head of Port Jackson Harbour, at the distance of about eighteen miles by water, and fifteen by land, from Sydney. The river for the last seven or eight miles, is only navigable for boats of twelve or fifteen tons burden. This town is built along a small fresh water stream, which falls into the river. It consists principally of one street about a mile in length. It is surrounded on the south side by a chain of moderately high hills; and as you approach it by the Sydney road, it breaks suddenly on the view when you have reached the summit of them, and produces a very pleasing effect. The adjacent country has been a good deal cleared; and the gay mimosas, which have sprung up in the openings, form

a very agreeable contrast to the dismal gloom of the forest that surrounds and o'ertops them.

The town itself is far behind Sydney in respect of its buildings; but it nevertheless contains many of a good and substantial construction. These, with the church, the government house, the new Orphan House, and some gentlemen's seats, which are situated on the surrounding eminences, give it, upon the whole, a very respectable appearance. There are two very good inns, where a traveller may meet with all the comfort and accommodation that are to be found in similar establishments in the country towns of this kingdom. The charges too are by no means unreasonable.

The population is principally composed of inferior traders, publicans, artificers, and labourers, and may be estimated, inclusive of a company which is always stationed there, on a rough calculation, at about twelve hundred souls.

There are two fairs held half yearly, one in March and the other in September; they were instituted about five years since by the present governor, and already begin to be very numerous and respectably attended. They are chiefly intended for the sale of stock, for which there are stalls, pens, and every other convenience, erected at the expence of the government; for the use of these pens, etc. and to keep them in repair, a moderate scale of duties* is paid by the vender.

This town has for many years past made but a very inconsiderable progress compared with Sydney. The value of land has consequently not kept pace in the two places, and is at least £200 per cent. less in the one than in the other. As the former, however, is in a central situation between the rapidly increasing settlements on the banks of the Hawkesbury and Nepean rivers, and the latter the great mart for colonial produce, landed property there and in the neighbourhood, will, without doubt, experience a gradual rise.

The public institutions are an Hospital, a Female Orphan House, into which it is intended to remove the orphans from Sydney, and a factory, in which such of the female convicts as misconduct themselves, and those also who upon their arrival in the colony are not immediately assigned as servants to families, are employed in manufacturing coarse cloth. There are upon an

average about one hundred and sixty women employed in this institution, which is placed under the direction of a superintendant, who receives wool from the settlers, and gives them a certain portion of the manufactured article in exchange: what is reserved is only a fair equivalent for the expence of making it, and is used in clothing the gaol gang, the reconvicted culprits who are sent to the coal river, and I believe the inmates of the factory itself.

There is also another public institution in this town, well worthy the notice of the philanthropist. It is a school for the education and civilization of the aborigines of the country. It was founded by the present governor three years since, and by the last accounts from the colony, it contained eighteen native children, who had been voluntarily placed there by their parents, and were making equal progress in their studies with European children of the same age. The following extract from the Sydney Gazette, of January 4, 1817, may enable the reader to form some opinion of the beneficial consequences that are likely to result from this institution, and how far they may realize the benevolent intentions which actuated its philanthropic founder.

"On Saturday last, the 28th ult. the town of Parramatta exhibited a novel and very interesting spectacle, by the assembling of the native tribes there, pursuant to the governor's gracious invitation. At ten in the morning the market place was thrown open, and some gentlemen who were appointed on the occasion, took the management of the ceremonials. The natives having seated themselves on the ground in a large circle, the chiefs were placed on chairs a little advanced in front, and to the right of their respective tribes. In the centre of the circle thus formed, were placed large tables groaning under the weight of roast beef, potatoes, bread, etc. and a large cask of grog lent its exhilarating aid to promote the general festivity and good humour which so conspicuously shone through the sable visages of this delighted congress. The governor, attended by all the members* of the native institution, and by several of the magistrates and gentlemen in the neighbourhood, proceeded at half past ten to the meeting, and having entered the circle, passed round the whole of them, inquiring after, and making himself acquainted with the several tribes, their respective leaders and residences. His Excellency then assembled the chiefs by themselves,

and confirmed them in the ranks of chieftains, to which their own tribes had exalted them, and conferred upon them badges of distinction; whereon were engraved their names as chiefs, and those of their tribes. He afterwards conferred badges of merit on some individuals, in acknowledgment of their steady and loyal conduct in the assistance they rendered the military party, when lately sent out in pursuit of the refractory natives to the west and south of the Nepean river. By the time this ceremony was over, Mrs. Macquarie arrived, and the children belonging to, and under the care of the native institution, fifteen in number, preceded by their teacher, entered the circle, and walked round it; the children appearing very clean, well clothed and happy. The chiefs were then again called together to observe the examination of the children as to their progress in learning and the civilized habits of life. Several of the little ones read; and it was grateful to the bosom of sensibility to trace the degrees of pleasure which the chiefs manifested on this occasion. Some clapped the children on the head; and one in particular turning round towards the governor with extraordinary emotion, exclaimed, Governor, that will make a good settler,--that's my Pickaninny! (meaning his child). And some of the females were observed to shed tears of sympathetic affection, at seeing the infant and helpless offspring of their deceased friends, so happily sheltered and protected by British benevolence. The examinations being finished, the children returned to the institution, under the guidance of their venerable tutor; whose assiduity and attention to them, merit every commendation".

[* Appendix]

"The feasting then commenced, and the governor retired amidst the long and reiterated acclamations and shouts of his sable and grateful congress. The number of the visitants, (exclusive of the fifteen children) amounted to one hundred and seventy-nine, viz. one hundred and five men, fifty-three women, and twenty-one children. It is worthy of observation that three of the latter mentioned number of children, (and the son of the memorable Bemni-long, was one of them) were placed in the native institution, immediately after the breaking up of the congress, on Saturday last, making the number of children now in that establishment, altogether eighteen; and we may reasonably trust that in a few years this benevolent institution will amply reward the hopes and expectations of its liberal patrons and supporters, and answer the grand object intended, by providing a seminary

for the helpless off-spring of the natives of this country, and opening the path to their future civilization and improvement."

WINDSOR.

The town of Windsor, (or as it was formerly called, the Green Hills), is thirty-five miles distant from Sydney, and is situated near the confluence of the South Creek with the river Hawkesbury. It stands on a hill, whose elevation is about one hundred feet above the level of the river, at low water. The buildings here are much of the same cast as at Parramatta, being in general weather boarded without, and lathed and plastered within.

The public buildings are a church, government house, hospital, barracks, court-house, store-house, and gaol, none of which are worthy of notice. The inn lately established by Mr. Fitzgerald, is by far the best building in the town, and may be pronounced upon the whole, the most splendid establishment of the kind in the colony.

The bulk of the population is composed of settlers, who have farms in the neighbourhood, and of their servants. There are besides a few inferior traders, publicans and artificers. The town contains in the whole about six hundred souls.

The Hawkesbury here is of considerable size, and navigable for vessels of one hundred tons burden, for about four miles above the town. A little higher up, it is joined by, or rather is called the Nepean river, and has several shallows; but with the help of two or three ferries, it might still be rendered navigable for boats of twelve or fifteen tons burden, for about twenty miles further. This substitution of water for land carriage, would be of great advantage to the numerous settlers who inhabit its highly fertile banks, and would also considerably promote the extension of agriculture throughout the adjacent districts.

Following the sinuosities of the river the distance of Windsor from the sea is about one hundred and forty miles; whereas in a straight line it is not more than thirty-five. The rise of the tide is about four feet, and the water is fresh for forty miles below the town.

Land is about ten per cent. higher than at Parramatta, and is advancing rapidly in price. This circumstance is chiefly attributable to the small quantity of land that is to be had perfectly free from the reach of the inundations, to which the Hawkesbury is so frequently subject. These inundations often rise seventy or eighty feet above low water mark; and in the instance of what is still emphatically termed "the great flood," attained an elevation of ninety-three feet. The chaos of confusion and distress that presents itself on these occasions, cannot be easily conceived by any one who has not been a witness of its horrors. An immense expanse of water, of which the eye cannot in many directions discover the limits, every where interspersed with growing timber, and crowded with poultry, pigs, horses, cattle, stacks and houses, having frequently men, women, and children, clinging to them for protection, and shrieking out in an agony of despair for assistance:--such are the principal objects by which these scenes of death and devastation are characterized.

These inundations are not periodical, but they most generally happen in the month of March. Within the last two years there have been no fewer than four of them, one of which was nearly as high as the great flood. In the six years precedings there had not been one. Since the establishment of the colony they have happened upon an average, about once in three years.

The principal cause of them is the contiguity of this river to the Blue Mountains. The Grose and Warraganbia rivers, from which two sources it derives its principal supply, issue direct from these mountains; and the Nepean river, the other principal branch of it, runs along the base of them for fifty or sixty miles; and receives in its progress, from the innumerable mountain torrents connected with it, the whole of the rain which these mountains collect in that great extent. That this is the principal cause of these calamitous inundations has been fully proved; for shortly after the plantation of this colony, the Hawkesbury overflowed its banks, (which are in general about thirty feet in height), in the midst of harvest, when not a single drop of rain had fallen on the Port Jackson side of the mountains. Another great cause of the inundations, which take place in this and the other rivers in the colony, is the small fall that is in them, and the consequent slowness of their currents. The current in the Hawkesbury, even when the tide is in full ebb, does not exceed two miles an hour. The water,

therefore, which during the rains, rushes in torrents from the mountains cannot escape with sufficient rapidity; and from its immense accumulation, soon overtops the banks of the river, and covers the whole of the low country.

LIVERPOOL.

The town of Liverpool is situated on the banks of George's river, at the distance of eighteen miles from Sydney. It was founded by Governor Macquarie, and is now of about six years standing. Its population may amount to about two hundred souls, and is composed of a small detachment of military, of cultivators, and a few artificers, traders, publicans, and labourers.

The public buildings are a church (not yet I believe completed) a school house and stores for the reception and issue of provisions to such of the settlers in the adjacent districts as are victualled at the expense of the government. These buildings, however, as might naturally be expected from the very recent establishment of this town, are but little superior in their appearance to the rude dwellings of its inhabitants.

The river is about half the size of the Hawkesbury, and is navigable for boats of twenty tons burden as high up as the town. It empties itself into Botany Bay, which is about fourteen miles to the southward of the heads of Port Jackson. It is subject to the same sort of inundations as the Hawkesbury; but they are not in general of so violent and destructive a nature. The tide rises about the same height as in that river, and the current is, I believe, nearly of the same velocity.

The position of this town is all that can be urged in support of the probability of its future progress; the land in its vicinity being in general of a very indifferent quality. It is in a central situation, between Sydney and the fertile districts of Bringelly, Arids, Appin, Bunnury Curran, Cabramatta, and the Seven Islands, to which last place the tide of colonization is at present principally directing itself. There can be no doubt, therefore, that the town of Liverpool will, in a few years, become a place of considerable size and importance. Land there is as yet of very trifling value; and a lease may

be obtained by any free person from the government, on the simple condition of erecting a house on it.

Society is upon a much better footing throughout the colony, in general than might naturally be imagined, considering the ingredients of which it is composed. In Sydney the civil and military officers with their families form a circle at once select and extended, without including the numerous highly respectable families of merchants and settlers who reside there. Unfortunately, however, this town is not free from those divisions which are so prevalent in all small communities. Scandal appears to be the favourite amusement to which idlers resort to kill time and prevent ennui; and consequently, the same families are eternally changing from friendship to hostility, and from hostility back again to friendship.

In the other towns these dissensions are not so common, because the circle of society is more circumscribed; and in the districts where there are no towns at all, they are still more rare; because in such situations people have too much need of one another's intercourse and assistance to propagate reports injurious to their neighbour's character, unless on grave occasions, and where their assertions are founded on truth.

Generally speaking, the state of society in these settlements is much the same, as among an equal population in the country parts of this kingdom. Of the number of respectable persons that they contain, some estimate may be formed if we refer to the parties which are given on particular days at the Government House. It appears from the Sydney Gazette of the 24th January, 1818, that one hundred and sixty ladies and gentlemen were present at a ball and supper which was given there on the 18th of that month, in celebration of her late majesty's birth-day.

There are at present no public amusements in this colony. Many years since, there was a theatre, and more latterly, annual races; but it was found that the society was not sufficiently mature for such establishments. Dinner and supper parties are very frequent in Sydney; and it generally happens that a few subscription balls take place in the course of the year. Upon the whole it may be safely asserted, that the natural disposition of the people to sociality has not only been in no wise impaired by their change of scene,

but that all classes of the colonists are more hospitable than persons of similar means in this country.

There are four courts in this colony, established by charter, viz. the Court of Admiralty, the Court of Criminal Judicature, the Governor's Court, the Supreme Court, and the High Court of Appeals.

The Court of Vice Admiralty consists of the Judge Advocate, and takes cognizance of captures, salvages, and such other matters of dispute as arise on the high seas; but it has no criminal jurisdiction.

The Court of Criminal Judicature, consists of the Judge Advocate and six officers of His Majesty's sea and land forces, or of either, appointed by the governor. This court takes cognizance of all treasons, felonies, misdemeanors, and in fact of all criminal offences whatsoever; and afterwards adjudges death or such other punishment as the law of England may have affixed to the respective crimes of which the prisoners may be found guilty.

The Governor's Court consists of the Judge Advocate and two inhabitants of the colony, appointed by precept from the governor, and takes cognizance of all pleas where the amount sued for does not exceed £50 sterling, (except such pleas as may arise between party and party at Van Dieman's Land) and from its decisions there is no appeal.

The Supreme Court is composed of the judge of this court and two magistrates, appointed by precept from the governor; and its jurisdiction extends to all pleas where the matter in dispute exceeds £50 sterling. From its judgments, however, appeals lie to the High Court of Appeals.

This latter court is presided by the governor himself, assisted by the Judge Advocate; and its decisions are final in all cases where the amount sued for does not exceed three thousand pounds; but where the sum at issue exceeds this amount, an appeal lies in the last instance to the king in council.

These courts regulate their decisions by the law of England, and take no notice whatever of the laws and regulations which have been made at various times by the local government. The enforcement of these is left

entirely to the magistracy, who assemble weekly in the different towns throughout the colony, and take cognizance of all infractions, as well of the colonial as of the criminal code. The courts thus formed by the magistrates, go by the name of "Benches of Magistrates," and answer pretty nearly to the "courts of general quarter sessions for the peace," held in the respective counties of this kingdom; and, generally speaking, they exercise a jurisdiction perfectly similar.

The roads and bridges which have been made to every part of the colony, are truly surprising, considering the short period that has elapsed since its foundation. All these are either the work of, or have been improved by, the present governor; who has even caused a road to be constructed over the western mountains, as far as the depot at Bathurst Plains, which is upwards of 180 miles from Sydney. The colonists, therefore, are now provided with every facility for the conveyance of their produce to market; a circumstance which cannot fail to have the most beneficial influence in the progress of agriculture. In return for these great public accommodations, and to help to keep them in repair, the Governor has established toll-gates* in all the principal roads. These are farmed out to the highest bidder, and were let during the year 1817, for the sum of £257.

[* For a list of tolls, see the Appendix]

The military force stationed in the colony consists of seven companies of the forty-eighth regiment, and the Royal Veteran Company; which, form an effective body of about seven hundred firelocks. These have to garrison the two principal settlements at Van Diemen's Land, to provide a company for the establishment at the Coal River, and to furnish parties for the various towns and outposts of the extended territory of Port Jackson: so that very few troops remain at head quarters. The colony is consequently considered to be greatly in need of a further accession of military strength. Much anxiety is felt on this subject by the generality of the inhabitants, who have not yet forgotten the insurrection which took place when the whole population was not nearly so great as the present amount of the convicts, although the military force was of equal magnitude. That insurrection indeed was easily quelled; but the result of another, under existing circumstances, would in all probability, be very different.

An equal degree of anxiety is felt, and more particularly by the mercantile part of the community, that a sloop of war, or a king's vessel of some description, should be stationed in the harbour, both as a protection against the easy possibility of outward assault, and to frustrate the numerous combinations which the convicts are constantly forming, and often too successfully, to carry away the colonial craft, to the certain destruction of their own and the crew's lives, and to the ruin of the unfortunate owners. Not fewer than three piratical seizures of this nature have been effected within the last three years. On all of these occasions the vessels so seized were run ashore on the uninhabited parts of the coast, and all hands on board, the innocent crews, as well as the abandoned pirates, either perished from hunger, or were immolated by the spears and waddies of the ferocious savages.

When Governor Macquarie assumed the command in 1810, the population was only half its present number; and yet a sloop of war was stationed at Port Jackson, and the military force also was on a much more extended scale. Why a diminution has thus been made in the means of protection and defence, when there appear to be such strong grounds for their augmentation, merely with reference to the internal state of the colony, it is no easy matter to conjecture.

The expediency also of putting the colony in a better posture to repel outward attack, is not less obvious; for although we are now at peace with the whole world, it would be absurd to overlook the possibility of future wars. The only battery of any strength is called, "Dawe's Battery;" and is, as I have already casually noticed, situated in the extremity of that neck of land, on which the western part of the town of Sydney is built. This battery, if I remember right, mounts fourteen long eighteen-pounders, but the carriages of the guns are in a bad state of repair, and the embrasures are so low, that a single broadside of grape would sweep off all who had the courage or temerity to defend it.

Fort Philip stands on the highest part of the same neck of land, and nearly in the centre of that part of the town which goes by the name of "the Rocks." This fort was erected by Governor King, immediately after the insurrection, to which I have alluded. It is a regular hexagon, but it never was quite

finished, and there are no guns yet mounted on it. The glacis, in fact, is not sufficiently levelled to allow a proper range for artillery, and the circumjacent ground is so irregular and rocky, that an enemy might at once erect batteries at fifty yards distance. Besides, this fort is so completely hemmed in with houses, that a great part of the town would be inevitably destroyed by the fire from it. Its situation, therefore, is in every point of view objectionable, and succeeding governors have evinced their good sense, in not perfecting a work which would be attended with a very considerable expense, and could never become of any utility.

A new battery has lately been commenced on Bennilong's Point; but this and Dawe's Battery are both too near the town to protect it from the most insignificant naval force. It is indeed a matter of surprise, that during the last American war, not one of the numberless privateers of that nation, attempted to lay the town of Sydney under contribution, or to plunder it. A vessel of ten guns might have effected this enterprise with the greatest ease and safety; and that the inhabitants were not subjected to such an insulting humiliation, could only have arisen from the enemy's ignorance of the insufficiency of their means of defence.

The climate of the colony, particularly in the inland districts, is highly salubrious, although the heats in summer are sometimes excessive, the thermometer frequently rising in the shade to ninety, and even to a hundred degrees and upwards of Fahrenheit. This, however, happens only during the hot winds; and these do not prevail upon an average, more than eight or ten days in the year. The mean heat during the three summer months, December, January, and February, is about 80 degrees at noon. This, it must be admitted, is a degree of heat that would be highly oppressive to Europeans, were it not that the sea breeze sets in regularly about nine o'clock in the morning, and blows with considerable force from the N. E. till about six or seven o'clock in the evening. It is succeeded during the night by the land breeze from the mountains, which varies from W. S. W. to W. In very hot days the sea breeze often veers round to the North and blows a gale. In this case it continues with great violence, frequently for a day or two, and is then succeeded not by the regular land breeze, but by a cold southerly squall. The hot winds blow from the N. W. and doubtless imbibe their heat from the immense tract of country which they traverse. While

they prevail the sea and land breezes entirely cease. They seldom, however, continue for more than two days at a time, and are always superseded by a cold southerly gale, generally accompanied with rain. The thermometer then sinks sometimes as low as 60 degrees, and a variation of temperature of from 30 degrees to 40 degrees takes place in half an hour. These southerly gales usually last at this season from twelve to twenty-four hours, and then give way to the regular sea and land breezes.

During these three months violent storms of thunder and lightning are very frequent, and the heavy falls of rain which take place on these occasions, tend considerably to refresh the country, of which the verdure in all but low moist situations entirely disappears. At this season the most unpleasant part of the day is the interval which elapses between the cessation of the land breeze and the setting in of the sea. This happens generally between six and eight o'clock in the morning, when the thermometer is upon an average at about 72 degrees. During this interval the sea is as smooth as glass, and not a zephyr is found to disport even among the topmost boughs of the loftiest trees.

The three autumn months are March, April, and May. The weather in March is generally very unsettled. This month, in fact, may be considered the rainy season, and has been more fertile in floods than any other of the year. The thermometer varies during the day about 15 degrees, being at day-light as low as from 55 degrees to 60 degrees, and at noon as high as from 70 degrees to 75 degrees. The sea and land breezes at this time become very feeble, although they occasionally prevail during the whole year. The usual winds from the end of March to the beginning of September, are from S. to S. W.

The weather in the commencement of April is frequently showery, but towards the middle it gradually becomes more settled, and towards the conclusion perfectly clear and serene. The thermometer at the beginning of the month varies from 72 degrees to 74 degrees at noon, and from the middle to the end gradually declines to 66 degrees and sometimes to 60 degrees. In the mornings it is as low as 52 degrees, and fires become in consequence general throughout the colony.

The weather in the month of May is truly delightful. The atmosphere is perfectly cloudless, and the mornings and evenings become with the advance of the month more chilly, and render a good fire a highly comfortable and cheering guest. Even during the middle of the day the most violent exercise may be taken without inconvenience. The thermometer at sun-rise is under 50 degrees, and seldom above 60 degrees at noon.

The three winter months are June, July, and August. During this interval the mornings and evenings are very chilly, and the nights excessively cold. Hoar frosts are frequent, and become more severe the further you advance into the interior. Ice half an inch thick is found at the distance of twenty miles from the coast. Very little rain falls at this season, but the dews are very heavy when it does not freeze, and tend considerably to preserve the young crops from the effects of drought. Fogs too are frequent and dense in low damp situations, and on the banks of the rivers. The mean temperature at day-light is from 40 degrees to 45 degrees, and at noon from 55 degrees to 60 degrees.

The spring months are September, October, and November. In the beginning of September the fogs still continue; the nights are cold, but the days clear and pleasant. Towards the close of this month the cold begins very sensibly to moderate. Light showers occasionally prevail, accompanied with thunder and lightning. The thermometer at the beginning of the month is seldom above 60 degrees at noon, but towards the end frequently rises to 70 degrees.

In October there are also occasional showers, but the weather upon the whole is clear and pleasant. The days gradually become warmer, and the blighting north-west winds are to be apprehended. The sea and land breezes again resume their full sway. The thermometer at sun-rise varies from 60 degrees to 65 degrees, and at noon is frequently up to 80 degrees.

In November the weather may be again called hot. Dry parching winds prevail as the month advances, and squalls of thunder and lightning with rain or hail. The thermometer at day-light is seldom under 65 degrees, and frequently at noon rises to 80 degrees, 84 degrees, and even 90 degrees.

Such is the temperature throughout the year at Port Jackson. In the inland districts to the eastward of the mountains, the thermometer is upon an average 5 degrees lower in the morning, and the same number of degrees higher at noon throughout the winter season, but during the summer months it is 5 degrees higher at all hours of the day. On the mountains themselves, and in the country to the westward of them, the climate, in consequence of their superior elevation, is much more temperate. Heavy falls of snow take place during the winter, and remain sometimes for many days on the summits of the loftiest hills; but in the valleys the snow immediately dissolves. The frosts too are much more severe, and the winters are of longer duration. All the seasons indeed are more distinctly marked to the westward of the mountains, and bear a much stronger resemblance to the corresponding ones in this country.

From the foregoing account of the state of the weather and temperature during the various seasons of the year, it will be seen that the climate of the colony is upon the whole highly salubrious and delightful. If the summers are occasionally a little too hot for the European constitution, it will be remembered that the extreme heats which I have noticed as happening during the north-west winds, are of but short continuance; and that the sea and land breezes, which prevail at this season in an almost uninterrupted succession, moderate the temperature so effectually, that even new comers are but little incommoded by it, and the old residents experience no inconvenience from it whatever. The sea breeze indeed is not so sensibly felt in the interior as on the coast, by reason of the great extent of forest which it has to traverse before the inhabitants of the inland districts can receive the benefit of it. This circumstance not only diminishes its force, but also deprives it in a great measure of that refreshing coolness which it imparts when inhaled fresh from the bosom of the ocean. The heat consequently in the interior, particularly in low situations, is much more intense than on the coast; but by way of compensation for the advantage which in this respect the districts in the vicinity of the sea possess over the inland ones, these latter are from the same causes that impede the approach of the sea breeze, exempt from the sudden and violent variations of temperature, which are occasioned by the southerly winds, and are without doubt the reason why pulmonic affections are so much more prevalent in Sydney than in the interior. The hot season, however, which is undoubtedly

the most unhealthy part of the year, does not, as will have been perceived, continue above four months. The remaining eight possess a temperature so highly moderate and congenial to the human constitution, that the climate of this colony would upon the whole, appear to justify the glowing enthusiasm of those who have ventured to call it the Montpellier of the world.

Abdominal and pulmonic complaints are the two prevalent diseases. The abdominal complaints are confined principally to dysentery. This disorder is most common among the poorer classes and new comers. In these it is generally intimately connected with scurvy, and in both cases it is for the most part greatly aggravated by the excessive use of spirituous liquors, to which the mass of the colonists are unfortunately addicted.

The pulmonic affections are generally contracted at an early period by the youth of both sexes, and are occasioned by the great and sudden variations of temperature already noticed. They are not, however, accompanied with that violent inflammatory action which distinguishes them in this country; but proceed slowly and gradually, till from neglect they terminate in phthisis. They are said to bear a strong affinity to the complaint of the same nature which prevails at the Island of Madeira; and it is remarkable, that in both these colonies a change of air affords the only chance of restoration to the natives; whereas foreigners labouring under phthisis upon their arrival in either of these places, find almost instantaneous relief.

There are no infantile diseases whatever. The measles, hooping cough, and small pox, are entirely unknown. Some few years, indeed, before the foundation of this colony, the small pox committed the most dreadful ravages among the aborigines. This exterminating scourge is said to have been introduced by Captain Cook, and many of the contemporaries of those who fell victims to it, are still living; and the deep furrows which remain in some of their countenances, shew how narrowly they escaped the same premature destiny. The recollection of this dreadful malady will long survive in the traditionary songs of this simple people. The consternation which it excited is still as fresh in their minds as if it had been but an occurrence of yesterday, although the generation which witnessed its horrors, has almost past away. The moment one of them was seized with it,

it was the signal for abandoning him to his fate. Brothers deserted their brothers, children their parents, and parents their children; and in some of the caves on the coast, heaps of decayed bones still indicate the spots where the helpless sufferers were left to expire, not so much perhaps from the violence of the disease as from the want of sustenance.

This fatal instance of the inveteracy of this disorder, when once introduced into the colony, has not been without its counterpoising benefit. It has induced the local government to adopt proper measures for avoiding the propagation of a similar contagion among the colonists. The vaccine matter was introduced with this view many years back; but as all the children in the colony were immediately inoculated, it was again lost from the want of a sufficient number of subjects to afford a supply of fresh virus; and for many years afterwards, every effort that was made for its re-introduction proved abortive. Through the indefatigable exertions, however, of Doctor Burke, of the Mauritius, the colonists are again in possession of this inestimable blessing; and there can be no doubt that proper precautions will be taken to prevent them from being again deprived of it.

The colony of New South Wales possesses every variety of soil, from the sandy heath, and the cold hungry clay, to the fertile loam and the deep vegetable mould. For the distance of five or six miles from the coast, the land is in general extremely barren, being a poor hungry sand, thickly studded with rocks. A few miserable stunted gums, and a dwarf underwood, are the richest productions of the best part of it; while the rest never gives birth to a tree at all, and is only covered with low flowering shrubs, whose infinite diversity, however, and extraordinary beauty, render this wild heath the most interesting part of the country for the botanist, and make even the less scientific beholder forget the nakedness and sterility of the scene.

Beyond this barren waste, which thus forms a girdle to the coast, the country suddenly begins to improve. The soil changes to a thin layer of vegetable mould, resting on a stratum of yellow clay, which is again supported by a deep bed of schistus. The trees of the forest are here of the most stately dimensions. Full sized gums and iron barks, along side of which the loftiest trees in this country would appear as pigmies, with the beefwood tree, or as it is generally termed, the forest oak, which is of much

humbler growth, are the usual timber. The forest is extremely thick, but there is little or no underwood. A poor sour grass, which is too effectually sheltered from the rays of the sun, to be possessed of any nutritive and fattening properties, shoots up in the intervals. This description of country, with a few exceptions, however, which deserve not to be particularly noticed, forms another girdle of about ten miles in breadth: so that, generally speaking, the colony for about sixteen miles into the interior, may be said to possess a soil, which has naturally no claim to fertility, and will require all the skill and industry of its owners to render it even tolerably productive.

At this distance, however, the aspect of the country begins rapidly to improve. The forest is less thick, and the trees in general are of another description; the iron barks, yellow gums, and forest oaks disappearing, and the stringy barks, blue gums, and box trees, generally usurping their stead. When you have advanced about four miles further into the interior, you are at length gratified with the appearance of a country truly beautiful. An endless variety of hill and dale, clothed in the most luxuriant herbage, and covered with bleating flocks and lowing herds, at length indicate that you are in regions fit to be inhabited by civilized man. The soil has no longer the stamp of barrenness. A rich loam resting on a substratum of fat red clay, several feet in depth, is found even on the tops of the highest hills, which in general do not yield in fertility to the vallies. The timber, strange as it may appear, is of inferior size, though still of the same nature, i. e. blue gum, box, and stringy bark. There is no underwood, and the number of trees upon an acre do not upon an average exceed thirty. They are, in fact, so thin, that a person may gallop without difficulty in every direction. Coursing the kangaroo is the favourite amusement of the colonists, who generally pursue this animal at full speed on horseback, and frequently manage, notwithstanding its extraordinary swiftness, to be up at the death; so trifling are the impediments occasioned by the forest.

The above general description may be applied with tolerable accuracy, to the whole tract of country which lies between this space and the Nepean River. The plains, however, on the banks of this river, which are in many places of considerable extent, are of far greater fertility, being a rich vegetable mould, many feet in depth, and have without doubt, been

gradually formed by depositions from it during the periods of its inundations. These plains gradually enlarge themselves until you arrive at the junction of the Nepean with the Hawkesbury, on each side of which they are commonly from a mile to a mile and a half in breadth. The banks of this latter river are of still greater fertility than the banks of the former, and may vie in this respect with the far-famed banks of the Nile. The same acre of land there has been known to produce in the course of one year, fifty bushels of wheat and a hundred of maize. The settlers have never any occasion for manure, since the slimy depositions from the river, effectually counteract the exhaustion that would otherwise be produced by incessant crops. The timber on the banks of these rivers is for the most part apple tree, which is very beautiful, and bears in its foliage and shape a striking resemblance to the oak of this country. Its wood, however, is of no value except for firing, and for the immense quantity of pot-ash which might be made from it. The blue gum and stringy bark are also very common on these flooded lands, and of the best description. The banks of the Hawkesbury formerly produced cedar, but it has long since entirely disappeared.

The banks of these rivers, and indeed the whole tract of country, (generally speaking) which I have described, with the exception of the barren waste in the vicinity of the coast, are, to use the colonial term, located, i. e. either granted away to individuals, or attached as commons to the cultivated districts. It may not, therefore, be unacceptable to many of my readers, to learn the particulars of those unappropriated tracts of land within the immediate precincts of Port Jackson, which are best adapted to the purposes of colonization.

COW PASTURES.

Of these "the cow pastures" rank first in point of proximity. This tract of land has hitherto been reserved for the use of the wild cattle; although these animals have for some time past disappeared, either from having found an outlet into the interior, through the surrounding mountains, or what is a still more probable conjecture, from the exterminating incursions of the numerous poor settlers, who have farms in the neighbourhood, and who, considering their general poverty, it is easy to believe, would not suffer the

want of animal food, so long as they could take their dogs and guns, and kill a cow or calf at their option. These wild cattle were the progeny of a few tame ones, which strayed away from the settlement shortly after the period of its foundation, and were not discovered till about fifteen years afterwards, when they had multiplied to several thousands. On their discovery they immediately attracted the attention of his majesty's ministers, and orders were dispatched from this country, prohibiting the governor and his successors from granting away the land, on which they had fixed themselves. This they soon overspread, and on the occasion of the severe droughts that were experienced in the colony in the years 1813, 1814, and 1815, great numbers of them perished from the want of water and pasturage. Where thousands then existed, there are scarcely hundreds to be found at present, and these chiefly consist of bulls. A cow or calf can very rarely be met with. There can consequently be very little doubt that they have disappeared in the manner I have conjectured, and that their numbers have been thus considerably reduced by the depredations of the poorer settlers, which it was for a long time thought beyond the power of the colonial courts to restrain; since, although it was notorious that these wild cattle were originally purchased by the crown, still the cattle of individuals had subsequently, at various times, intermixed with them, and prevented that identification of property, which the late judge advocate considered essential to the conviction of the offenders. His opinion, however, has been overruled by his successor, and several persons have been lately tried for and found guilty of this offence; and although they were not punished capitally for it, there can be no doubt that their conviction will greatly diminish such depredations for the future. Not that I consider the preservation of these wild herds will be attended with any advantages to the colony. On the contrary, it is my belief, that their total destruction ought to be effected; since the increase of them is of mere negative importance, compared with the positive disadvantage that attends their occupation of one of the most fertile districts in the colony, which it is to be hoped will be soon covered with numerous flocks of fine wooled sheep, for the pasture of which the greater part of it is so admirably adapted. This tract of land is about thirty miles distant from Sydney: it is bounded on the east by the river Nepean, on the west by the Blue Mountains, of which this river, on the north side of the cow pastures washes the base, so that they together form the northern boundary, and on the south by a thick barren brush of about ten

miles in breadth, which these cattle have never been able to penetrate. This fine tract of country is thus surrounded by natural boundaries, which form it into an enclosure somewhat in the shape of an oblong spheroid. It contains about one hundred thousand acres of good land, a considerable portion of which is flooded, and equal to any on the banks of the Hawkesbury.

FIVE ISLANDS.

The next considerable tract of unappropriated land is the district called the Five Islands. It commences at the distance of about forty miles to the southward of Sydney, and extends to Shoal Haven river. This tract of land lies between the coast and a high range of hills which terminate at the north side abruptly in the sea, and form its northern and western boundary: the ocean is its eastern boundary, and Shoal Haven river its southern. The range that surrounds this district on the north and west is a branch of the Blue Mountains; and the only road at present known to it, is down a pass so remarkably steep, that unless a better be discovered, the communication between it and the capital by land, will always be difficult and dangerous for waggons. This circumstance is a material counterpoise to its extraordinary fertility, and is the reason why it is at present unoccupied by any but large stockholders. Those parts, however, which are situated near Shoal Haven river, are highly eligible for agricultural purposes; since this river is navigable for about twenty miles into the country for vessels of seventy or eighty tons burden; a circumstance which holds out to future colonists the greatest facilities for the cheap and expeditious conveyance of their produce to market. The land on the banks of this river is of the same nature, and possesses equal fertility with the banks of the Hawkesbury. There are several streams in different parts of this district, which issue from the mountain behind, and afford an abundant supply of pure water. In many places there are large prairies of unparalleled richness, entirely free from timber, and consequently prepared by the hand of nature for the immediate reception of the ploughshare. These advantages, combined with its proximity to Sydney, have already begun to attract the tide of colonization to it, and will no doubt render it in a few years one of the most populous, productive, and valuable of all the districts. The soil is in general a deep fat vegetable mould. The surface of the country is thinly timbered, with the exception of the mountain which bounds it to the Northward and Westward.

This is covered with a thick brush, but is nevertheless extremely fertile up to the very summit, and peculiarly adapted both from its eastern aspect and mild climate for the cultivation of the vine. This large tract of country was only discovered about four years since, and has not yet been accurately surveyed. Its extent, therefore, is not precisely known; but it without doubt contains several hundred thousand acres, including the banks of the Shoal Haven river. These produce a great abundance of fine cedar, and other highly valuable timber, for which there is an extensive and increasing demand at Port Jackson.

COAL RIVER.

The next tract of unappropriated country which I shall describe, is the district of the Coal River. The town of Newcastle is situated at the mouth of this river, and is about sixty miles to the northward of Port Jackson. Its population by the last census forwarded to this country, was five hundred and fifty souls. These, with the exception of a few free settlers, established on the upper banks of this river, amounting with their families perhaps to thirty souls, and about fifty troops, are all incorrigible offenders, who have been convicted either before a bench of magistrates, or the Court of Criminal Judicature, and afterwards re-transported to this place, where they are worked in chains from sunrise to sunset, and profitably employed in burning lime and procuring coals and timber, as well for carrying on the public works at Port Jackson, as for the private purposes of individuals, who pay the government stipulated prices for these different articles. This settlement was, in fact, established with the two-fold view of supplying the public works with these necessary articles, and providing a separate place of punishment for all who might be convicted of crimes in the colonial courts.

The coal mines here are considerably elevated above the level of the sea, and are of the richest description. The veins are visible on the abrupt face of the cliff, which borders the harbour, and are worked by adits or openings, which serve both to carry off the water and to wheel away the coals. The quantity procured in this easy manner is very great, and might be increased to any extent. So much more coals indeed are thus obtained than are required for the purposes of the government, that they are glad to dispose of

them to all persons who are willing to purchase, requiring in return a duty of two shillings and six pence per ton, for such as are intended for home consumption, and five shillings for such as are for exportation.

The lime procured at this settlement is made from oyster shells, which are found in prodigious abundance. These shells lie close to the banks of the river, in beds of amazing size and depth. How they came there has long been a matter of surprise and speculation to the colonists. Some are of opinion that they have been gradually deposited by the natives in those periodical feasts of shell fish, for the celebration of which they still assemble at stated seasons in large bodies: others have contended, and I think with more probability, that they were originally large natural beds of oysters, and that the river has on some occasion or other, either changed its course or contracted its limits, and thus deserted them.

These beds are generally five or six feet above high-water mark. The process of making lime from them is extremely simple and expeditious. They are first dug up and sifted, and then piled over large heaps of dry wood, which are set fire to, and speedily convert the superincumbent mass into excellent lime. When thus made it is shipped for Sydney, and sold at one shilling per bushel.

The timber procured on the banks of this river is chiefly cedar and rose wood. The cedar, however, is becoming scarce in consequence of the immense quantities that have been already cut down, and cannot be any longer obtained without going at least a hundred and fifty miles up the river. At this distance, however, it is still to be had in considerable abundance, and is easily floated down to the town in rafts. The government dispose of this wood in the same manner as the coals, at the price of £3 for each thousand square feet, intended for home consumption, and £6 for the same quantity if exported.

This settlement is placed under the direction of a commandant, who is selected out of the officers of the regiment stationed in the colony, and is allowed, as has been noticed, about fifty fire-locks to maintain his authority. He is always appointed to the magistracy previously to his obtaining this command, and is entrusted with the entire controul of the prisoners, whom he punishes or rewards as their conduct may appear to him to merit.

The harbour at the mouth of this river is tolerably secure and spacious, and contains sufficient depth of water for vessels of three hundred tons burden. The river itself, however, is only navigable for small craft of thirty or forty tons burden, and this only for about fifty miles above the town. Just beyond this distance there are numerous flats and shallows, which only admit of the passage of boats over them. This river has three branches; they are called the upper, the lower, and the middle branch: the two former are navigable for boats for about a hundred and twenty miles, the latter for upwards of two hundred miles. The banks of all these branches are liable to inundations equally terrific with those at the Hawkesbury, and from the same causes; because they are receptacles for the rain that is collected by the Blue Mountains, which form the western boundary of this district, and divide it as well as the districts of Port Jackson, from the great western wilderness. The low lands within the reach of these inundations is if possible of still greater exuberancy than the banks of the Hawkesbury and Nepean, and of four times the extent. The high-land, or to give it the colonial appellation, the forest land, is very thinly studded with timber, and equal for all the purposes of agriculture and grazing to the best districts of Port Jackson. The climate too is equally salubrious, and on the upper banks of the middle branch, it is generally believed, that the summer heats are sufficient for the production of cotton; the cultivation of which would become an inexhaustible source of wealth to the growers, and would afford a valuable article of export to the colony.

In fact, under every point of view this district contains the strongest inducements to colonization. It possesses a navigable river, by which its produce may be conveyed to market at a trifling expence, and the inhabitants of its most remote parts may receive such articles of foreign or domestic growth and manufacture as they may need, at a moderate advance: it surpasses Port Jackson in the general fertility of its soil, and at least rivals it in the salubrity of its climate: it contains in the greatest abundance coal, lime, and many varieties of valuable timber which are not found elsewhere, and promise to become articles of considerable export: it has already established in an eligible position, a small nucleus of settlers to which others may adhere, and thus both communicate and receive the advantages of society and protection; and it has a town which affords a considerable

market for agricultural produce, and of which the commanding localities must rapidly increase the extent and population.

COUNTRY WEST OF THE BLUE MOUNTAINS.

The country to the westward of the Blue Mountains ranks next in contiguity to Sydney, and claims pre-eminence not so much from any superiority of soil in those parts of it which have been explored, as from its amazing extent, and great diversity of climate. These mountains, where the road has been made over them, are fifty-eight miles in breadth; and as the distance from Sydney to Emu Ford, at which place this road may be said to commence, is about forty miles, the beginning of the vast tract of country to the westward of them, it will be seen, is ninety-eight miles distant from the capital.

The road which thus traverses these mountains is by no means difficult for waggons, until you arrive at the pass which forms the descent into the low country. There it is excessively steep and dangerous; yet carts and waggons go up and down it continually: nor do I believe that any serious accident has yet occurred in performing this very formidable undertaking.

Still the discovery of a safer and more practicable pass would certainly be attended with a very beneficial influence on the future progress of colonization in this great western wilderness. Every attempt, however, to find such a one has hitherto proved abortive; and should the future efforts which may be made with this view prove equally so, there can be little doubt, that the communication between the eastern and western country will be principally maintained by means of horses and mules with packs and panniers.

The elevation of these mountains above the level of the sea, has not yet been determined; but I should imagine that it cannot exceed four thousand feet. For the first ten or twelve miles they are tolerably well clothed with timber, and produce occasionally some middling pasture; but beyond this they are excessively barren, and are covered generally with a thick brush, interspersed here and there with a few miserable stunted gums. They bear, in fact, a striking similarity, both in respect to their soil and productions, to

the barren wastes on the coast of Port Jackson. They are very rocky, but they want granite, the distinguishing characteristic of primitive mountains. Sandstone thickly studded with quartz and a little freestone, are the only varieties which they offer; a circumstance the more singular, as the moment you descend into the low country beyond them, granite is the only sort of stone that is to be met with for upwards of two hundred miles.

For the whole of this distance to the westward of these mountains, the country abounds with the richest herbage, and is upon the whole tolerably well supplied with running water. In the immediate vicinity of them there is a profusion of rivulets, which discharge themselves into the western river; or, as it is termed by the natives, the Warragambia, the main branch, as I have before observed, of the Hawkesbury. From the moment, however, that the streams begin to take a western course, the want of water becomes more perceptible, and increases as you proceed into the interior, particularly in a south-west direction.

This large and fertile tract of country, is in general perfectly free from underwood; and in many places, is without any timber at all. Bathurst Plains, for instance, where there is a commandant, a military depot, and some few settlers established, have been found by actual admeasurement, to contain upwards of sixty thousand acres, upon which there is scarcely a tree. The whole of this western country, indeed, is much more open and free from timber than the best districts to the eastward of the Blue Mountains.

The depot at Bathurst Plains, is 180 miles distant from Sydney; and the road to it presents no impediment to waggons, but the descent from the mountains into the low country; and even this does not prevent the inhabitants from maintaining a regular intercourse with that town, and receiving from it all the supplies which they require. The difficulty, however, of thus communicating with the capital, is such as to preclude this vast tract of country from assuming an agricultural character; except in as far as the raising of grain for a scanty population of shepherds and herdsmen, may entitle it to this denomination; since there are no navigable rivers, at all events for many hundred miles into the interior, and the difficulty and expence of a land-carriage across the Blue Mountains, will always prevent the inhabitants of that part of this vast western wilderness,

which is at present explored, from entering into a competition with the colonists in the immediate vicinity of Port Jackson. By way, however, of set-off against the anifest superiority, which the districts to the eastward of the mountains possess in this respect over the country to the westward of them; this latter is certainly much better adapted for all the purposes of grazing and rearing cattle. The herbage is sweeter and more nutritive, and there is an unlimited range for stock, without any danger of their committing trespass. There is besides, for the first two hundred miles, a constant succession of hill and dale, admirably suited for the pasture of sheep, the wool of which will without doubt eventually become the principal export of this colony, and may be conveyed across these mountains at an inconsiderable expense.

The discovery of this vast and as yet imperfectly known tract of country, was made in the year 1814, and will doubtless be hereafter productive of the most important results. It has indeed already given a new aspect to the colony, and will form at some future day, a memorable era in its history. Nothing is now wanting to render this great western wilderness the seat of a powerful community, but the discovery of a navigable river communicating with the western coast. That such exists, although the search for it has hitherto proved ineffectual, there can be no doubt, if we may be allowed to judge from analogy; since in the whole compass of the earth, there is no single instance of so large a country as New Holland, not possessing at least one great navigable river. To ascertain this point has been one of the leading objects of Governor Macquarie's administration, ever since the discovery of the pass across the mountains. Several unsuccessful expeditions have been fitted out with this view from Sydney, both by sea and land. The last of which we have learned the result, was conducted by Mr. Oxley, the surveyor-general, and is most worthy of notice, as well from the extent of country which he traversed, as from the probability that the river which he discovered, discharges itself into the ocean on some part of the western coast. The summary of this journey is contained in the following letter, addressed by him to the governor on his return from this expedition to Bathurst Plains.

Bathurst, 30th August, 1817.

SIR,

I have the honour to acquaint your Excellency with my arrival at this place last evening, with the persons comprising the expedition to the westward, which your Excellency was pleased to place under my direction.

Your Excellency is already informed of my proceedings up to the 30th of April. The limits of a letter will not permit me to enter at large into the occurrences of nineteen weeks; and as I shall have the honour of waiting on your Excellency in a few days, I trust you will have the goodness to excuse the summary account I now offer to your Excellency.

I proceeded down the Lachlan in company with the boats until the 12th of May, the country rapidly descending until the waters of the river rose to a level with it, and dividing into numerous branches, inundated the country to the west and north-west, and prevented any further progress in that direction, the river itself being lost among marshes: up to this point it had received no accession of waters from either side, but on the contrary was constantly dissipating in lagoons and swamps.

The impossibility of proceeding further in conjunction with the boats being evident, I determined upon maturer deliberation, to haul them up, and divesting ourselves of everything, that could possibly be spared, proceed with the horses loaded with the additional provisions from the boats, in such a course towards the coast as would intersect any stream that might arise from the divided waters of the Lachlan.

In pursuance of this plan, I quitted the river on the 11th May, taking a south-west course towards Cape Northumberland, as the best one to answer my intended purpose. I will not here detail the difficulties and privations we experienced in passing through a barren and desolate country, without any water but such rain water as was found remaining in holes and the crevices of rocks. I continued this course until the 9th of June, when having lost two horses through fatigue and want, and the others in a deplorable condition, I changed our course to north, along a range of lofty hills, running in that direction, as they afforded the only means of procuring water until we should fall in with some running stream. On this course I continued until the 23d of June, when we again fell in with a stream, which we had at first some difficulty to recognise as the Lachlan, it being little larger than one of the marshes of it, where it was quitted on the 17th of May.

I did not hesitate a moment to pursue this course; not that the nature of the country, or its own appearance in any manner indicated that it would become navigable, or was even permanent; but I was unwilling that the smallest doubt should remain of any navigable waters falling westward into the sea, between the limits pointed out in my instructions.

I continued along the banks of the stream until the 8th of July, it having taken during this period a westerly direction, and passing through a perfectly level country, barren in the extreme, and being evidently at periods entirely under water. To this point it had been gradually diminishing, and spreading its waters over stagnated lagoons and morasses, without receiving any stream that we knew of during the whole extent of its course. The banks were not more than three feet high, and the marks of flood in the shrubs and bushes, shewed that at times it rose between two and three feet higher, causing the whole country to become a marsh, and altogether uninhabitable.

Further progress westward, had it been possible, was now useless, as there was neither hill nor rising ground of any kind within the compass of our view, which was only bounded by the horizon in every quarter, entirely devoid of timber except a few diminutive gums on the very edge of the stream, might be so termed. The water in the bed of the lagoon, as it might now be

properly denominated, was stagnant; its breadth about twenty feet, and the heads of grass growing in it, shewed it to be about three feet deep.

This originally unlooked for and truly singular termination of a river, which we had anxiously hoped and reasonably expected would have led to a far different conclusion, filled us with the most painful sensations. We were full five hundred miles west of Sydney, and nearly in its latitude; and it had taken us ten weeks of unremitted exertion to proceed so far. The nearest part of the coast about Cape Bernouilli, had it been accessible, was distant about a hundred and fifty miles. We had demonstrated beyond the shadow of a doubt, that no river whatever could fall into the sea, between Cape Otway and Spencer's Gulph; at least none deriving their waters from the eastern coast, and that the country south of the parallel of 34 degrees, and west of the meridian of 147 degrees 30' East, was uninhabitable and useless for all the purposes of civilized man.

It now became my duty to make our remaining resources as extensively useful to the colony as our circumstances would allow: these were much diminished: an accident to one of the boats, in the outset of the expedition, had deprived us of one-third of our dry provisions, of which we had originally but eighteen weeks; and we had been in consequence for some time on a reduced ration of two quarts of flour per man, per week. To return to the depot by the route we had come, would have been as useless as impossible; and seriously considering the spirit of your Excellency's instructions, I determined upon the most mature deliberation, to take such a route on our return, as would, I hope, best comport with your Excellency's views, had our present situation ever been contemplated.

Returning down the Lachlan, I re-commenced the survey of it from the point in which it was made, the 23d of June; intending to continue up its banks until its connection with the marshes, where we quitted it on the 17th May, was satisfactorily established, as also to ascertain if any streams might have escaped our research. The connection with all the points of the survey previously ascertained, was completed between the 19th of July and the 3d of August. In the space passed over within that period, the river had divided into various branches, and formed three fine lakes, which, with one near the determination of our journey westward, were the only considerable pieces of water we had yet seen; and I now estimated that the river, from the place where first made by Mr. Evans, had run a course, taking all its windings, of upwards of twelve hundred miles; a length of course altogether unprecedented, when the *single* nature of the river is considered, and that its *original* is its *only* supply of water during that distance.

Crossing at this point it was my intention to take a north-east course, to intersect the country, and if possible ascertain what had become of the Macquarie river, which it was clear had never joined the Lachlan. This course led us through a country to the full as bad as any we had yet seen, and equally devoid of water, the want of which again much distressed us. On the 7th of August the scene began to change, and the country to assume a very different aspect: we were now quitting the neighbourhood of the Lachlan, and had passed to the north-east of the high range of hills, which on this parallel bounds the low country to the north of that river. To the north-west and north, the country was high and open, with good forest land; and on the 10th we had the satisfaction to fall in with the first stream running northerly. This renewed our hopes of soon falling in with the Macquarie, and we continued upon the same course, occasionally inclining to the eastward, until the 19th passing through a fine luxuriant country, well watered, crossing in that space of time *nine* streams, having a northerly course through rich vallies; the country in every direction being moderately high and open, and generally as fine as can be imagined.

No doubt remained upon our minds that those streams fell into the Macquarie, and to view it before it received such an accession, was our first wish. On the 19th we were gratified by falling in with a river running through a most beautiful country, and which I would have been well contented to have believed the river we were in search of. Accident led us down this stream about a mile, when we were surprised by its junction with a river coming from the south, of such width and magnitude, as to dispel all doubts as to this last being the river we had so long anxiously looked for. Short as our resources were, we could not resist the temptation this beautiful country offered us, to remain two days on the junction of the river, for the purpose of examining the vicinity to as great an extent as possible.

Our examination increased the satisfaction we had previously felt: as far as the eye could reach in every direction, a rich and picturesque country extended, abounding in limestone, slate, good timber, and every other requisite that could render an *uncultivated* country desirable. The soil cannot be excelled, whilst a noble river of *the first magnitude* affords the means of conveying its productions from one part to the other. Where I quitted it its course was northerly, and we were then north of the parallel of Port Stevens, being in latitude 32 degrees 45' South, and 148 degrees 58' East longitude.

It appeared to me that the Macquarie had taken a north north-west course from Bathurst, and that it must have received immense accessions of water in its course from that place. We viewed it at a period best calculated to form an accurate judgment of its importance, when it was neither swelled by floods beyond its natural and usual height, nor contracted within its limits by summer droughts: of its magnitude when it should have received the streams we had crossed, independent of any it may receive from the east, which from the boldness and height of the country, I presume, must be at least as many, some idea may be formed, when at this point it exceeded in breadth and apparent depth, the Hawkesbury at Windsor. Many of the branches were of grander and more extended proportion than the admired one on the Nepean River from the Warragambia to Emu Plains.

Resolving to keep as near the river as possible during the remainder of our course to Bathurst, and endeavour to ascertain at least on the west side, what waters fell into it, on the 22d we proceeded up the river, and between the point quitted and Bathurst, crossed the sources of numberless streams, all running into the Macquarie; two of them were nearly as large as that river itself at Bathurst. The country from whence all these streams derive their source, was mountainous and irregular, and appeared equally so on the east side of the Macquarie. This description of country extended to the immediate vicinity of Bathurst; but to the west of those lofty ranges, the country was broken into low grassy hills, and fine valleys watered by rivulets rising on the west side of the mountains, which on their eastern side pour their waters directly into the Macquarie.

These westerly streams appeared to me to join that which I had at first sight taken for the Macquarie; and when united fall into it at the point at which it was first discovered, on the 19th inst.

We reached this place last evening, without a single accident having occurred during the whole progress of the expedition, which from this point has encircled within the parallels of 34 degrees 30' South, and 32 degrees South, and between the meridians of 149 degrees 43' and 143 degrees 40' East, a space of nearly one thousand miles.

I shall hasten to lay before your Excellency the journals, charts, and drawings, explanatory of the various occurrences of our diversified route; infinitely gratified if our exertions should

appear to your Excellency commensurate with your expectations, and the ample means which your care and liberality placed at my disposal.

I feel the most particular pleasure in informing your Excellency of the obligations I am under to Mr. Evans, the Deputy Surveyor, for his able advice and cordial co-operation throughout the expedition, and as far as his previous researches had extended, the accuracy and fidelity of his narration was fully exemplified.

It would perhaps appear presuming in me to hazard an opinion upon the merits of persons engaged in a pursuit of which I have little knowledge; the extensive and valuable collection of plants formed by Mr. A. Cunningham, the king's botanist, and Mr. C. Frazer, the colonial botanist, will best evince to your Excellency the unwearied industry and zeal bestowed on the collection and preservation of them: in every other respect they also merit the highest praise.

From the nature of the greater part of the country passed over, our mineralogical collection is but small. Mr. S. Parr did as much as could be done in that branch, and throughout endeavoured to render himself as useful as possible.

Of the men on whom the chief care of the horses and baggage devolved, it is impossible to speak in too high terms. Their conduct in periods of considerable privation, was such as must redound to their credit; and their orderly, regular, and obedient behaviour, could not be exceeded. It may be principally attributed to their care and attention that we lost only three horses; and that, with the exception of the loss of the dry provisions already mentioned, no other accident happened during the course of it. I most respectfully beg leave to recommend them to your Excellency's favourable notice.

I trust your Excellency will have the goodness to excuse any omissions or inaccuracies that may appear in this letter; the messenger setting out immediately will not allow me to revise or correct it.

I have the honour, etc.

J. OXLEY, Surveyor-Gen.

To his Excellency Lachlan Macquarie, Esq.

The course and direction of this river is the object of two expeditions, of which we may shortly expect to learn the result. One is by land, and conducted by the same gentleman; the other by sea, and under the command of Lieutenant King, R.N.; whose father, Captain King, was formerly Lieutenant Governor of Norfolk Island, and afterwards Governor in Chief of New South Wales.

If the sanguine hopes to which the discovery of this river has given birth, should be realized, and it should be found to empty itself into the ocean, on the north-west coast, which is the only part of this vast island that has not been accurately surveyed, in what mighty conceptions of the future

greatness and power of this colony, may we not reasonably indulge? The nearest distance from the point at which Mr. Oxley left off, to any part of the western coast, is very little short of two thousand miles. If this river, therefore, be already of the size of the Hawkesbury at Windsor, which is not less than two hundred and fifty yards in breadth, and of sufficient depth to float a seventy-four gun-ship, it is not difficult to imagine what must be its magnitude at its confluence with the ocean; before it can arrive at which it has to traverse a country nearly two thousand miles in extent. If it possess the usual sinuosities of rivers, its course to the sea cannot be less than from five to six thousand miles, and the endless accession of tributary streams which it must receive in its passage through so great an extent of country, will without doubt enable it to vie in point of magnitude with any river in the world. In this event its influence in promoting the progress of population in this fifth continent, will be prodigious, and in all probability before the expiration of many years, give an entirely new impulse to the tide of population: and here it may not be altogether irrelevant, to enter into a short disquisition on the natural superiority possessed by those countries which are most abundantly intersected with navigable rivers. That such are most favourable for all the purposes of civilized man, the history of the world affords the most satisfactory proof There is not, in fact, a single instance on record of any remarkable degree of wealth and power having been attained by any nation which has not possessed facilities for commerce, either in the number or size of its rivers, or in the spaciousness of its harbours, and the general contiguity of its provinces to the sea. The Mediterranean has given rise to so many great and powerful nations, only from the superior advantages which it afforded for commerce during the long infancy of navigation. The number and fertility of its islands, the serenity of its climate, the smoothness of its waters, the smallness of its entrance, which although of itself sufficient to indicate to the skilful pilot the proximity of the ocean, is still more clearly defined by the Pillars of Hercules, towering on each side of it, and forming land-marks not to be mistaken by the timid, the inexperienced, or the bewildered. Such are the main causes why the Mediterranean continued until the discovery and application of the properties of the magnet, the seat of successive empires so superior to the rest of the world in affluence and power. It is indeed almost impossible to conceive, how any considerable degree of wealth and civilization can be acquired without the aid of navigation. From the moment

savages abandon the hunter state, and resign themselves to the settled pursuits of agriculture, the march of population must inevitably follow the direction of navigable waters; since in the infancy of societies these furnish the only means of indulging that spirit of barter which is co-existent with association, is the main spring of industry, and the ultimate cause of all civilization and refinement. In such situations the rude canoe abundantly suffices to maintain the first necessary interchanges of the superfluities of one individual for those of another. Roads, waggons, etc. are refinements entirely unknown in the incipient stages of society. They are the gradual results of civilization, and consequent only on the accumulation of wealth and the attainment of a certain point of maturity. Canals are a still later result of civilization, and are undoubtedly the greatest efforts for the encouragement of barter, and the developement of industry, to which human power and ingenuity have yet given birth. But after all, what are these artificial channels of communication, these *ne plus ultras* of human contrivance, compared with those natural mediums of intercourse, those mighty rivers which pervade every quarter of the globe? What are they to the Danube, the Nile, the Ganges, the Mississippi, or the Amazon? What are they, in fact, compared even with those infinite minor navigable streams, of which scarcely any country, however circumscribed, is entirely destitute? What! but mere pigmy imitations of nature, which wherever there is a sufficient number of rivers, will never be resorted to, unless it be for the purpose of connecting them together, or of avoiding those long and tedious sinuosities to which they are *all* more or less subject.

Viewing therefore this newly discovered river only in the light of a river of the first magnitude, it must be evident that this important discovery will have an incalculable influence on the future progress of colonization; but to be enabled fully to estimate the beneficial consequences of which it will be productive; it is essential to take into the estimate, the probable direction of its course, and the point of its confluence with the ocean. This I have already stated is with good reason imagined to be on the north-west coast; since every other part of this vast island has been so accurately surveyed, as scarcely to admit of the possibility of so large a river falling into the sea in any other position. Assuming, therefore, that the source of this river is in the direction thus generally supposed, it will be seen that it will surpass all the rivers in the world in variety of climate; since reckoning merely from the

spot where Mr. Oxley discovered it to its conjectural embouchure, there will be a difference of latitude of twenty degrees. Even omitting, then, to take into computation the probable length of its course from the place where it first becomes navigable, to the point where that gentleman fell in with it, (and it was there running from the south, and must have already been navigable for a considerable distance, if we may judge from its size,) the world does not afford any parallel of a river traversing so great a diversity of climate. The majority indeed of the rivers, which may be termed "rivers of the first magnitude," run from west to east, or from east to west, and consequently vary their climate only in proportion to their distance from the sea, to the elevation of their beds, and to the extent of country traversed by such of their branches as run at right angles with them. Of this sort are the St. Lawrence, in North America, the Orinoko and Amazon, in South America; the Niger, Senegal and Gambia, in Africa; the Danube and Elbe, in Europe; and the Hoang Ho, and Kiang Keou in Asia. It must indeed be admitted, that every quarter of the globe furnishes some striking exceptions to this rule, such as the Mississippi and River Plate in America; the Nile, in Africa; the Rhine, the Dniester, the Don, and the Volga, in Europe; and the Indus and Ganges, in Asia; all of which certainly run from north to south, or south to north, and consequently command a great variety of climate.

In this respect, however, none of them will be worthy of comparison with this newly discovered river, if the point of its confluence with the ocean should happily be where it is conjectured. And yet we find that all the countries through which the above-named rivers pass, either have been, or promise to be, the seats of much more wealthy and powerful nations than the countries through which those rivers pass whose course is east or west. The cause of this superiority of one over the other, is to be traced to the greater diversity of productions, which will necessarily be raised on the banks and in the vicinity of those rivers whose course is north or south, a circumstance that is alone sufficient to ensure the possessors of them, under Governments equally favourable to the extension of industry, a much greater share of commerce and wealth than can possibly belong to the inhabitants of these rivers whose course is in a contrary direction: and this for the simplest reason; because rivers of the former description contain within themselves, many of those productions which the latter can only obtain from abroad. In the one, therefore, there is not only a necessity for

having recourse to foreign supply, which does not exist in the other, but also a great prevention to internal navigation, arising from the sameness of produce, and the consequent impediment to barter, which must prevail in a country where all have the same commodities to dispose of, where all wish to sell and none to buy. To this manifest superiority which rivers running on a meridian claim over those running on a parallel, there is no counterpoise, since they both contain equal facilities for exporting their surplus productions, and receiving in exchange the superfluities of other countries. It may, indeed, here be urged, that there is, upon the whole, no surplus produce in the world; and that, as the surplus, whatever may be its extent, of one country, may be always exchanged for that of another, as great a variety of luxuries may be thus obtained by the inhabitants of rivers that run in an eastern or western direction as can possibly be raised by the inhabitants of rivers that run in a northern or southern; and that consequently the same stimulus to an inland navigation will be created by the eventual distribution of the various commodities procured by foreign commerce, as if they had been the products of the country itself. To this it may be replied, that although a much greater variety of products may undoubtedly be imported from foreign countries, than can possibly be raised within the compass of any one navigable river, such products cannot afterwards be sold at so cheap a rate. In all countries, therefore, where such products are imported from abroad, the increase in their price must occasion a proportionate diminution in their consumption, and in so far inevitably operate as a check to internal navigation.

This variety of production, and the additional encouragement thus afforded by it, to what is well known to be one of the main sources of national wealth, is sufficient to account for the superior degree of civilization, affluence, and power, which have in general characterized those countries whose rivers take a northern or southern course. Some few nations, indeed, which do not possess such great natural advantages, have supplied the want of them by their own skill and industry, and have in the end triumphed over the efforts of nature to check their progress. Of a people who have thus overstepped these natural barriers opposed to their advancement, and in spite of them attained the summit of wealth and civilization, China perhaps furnishes the most remarkable example. The two principal rivers of that country, the Hoang Ho, or Yellow River, and the Kiang Keou, or Great

River, runs from west to east; yet by means of what is termed by way of eminence, "The Great Canal," the Chinese have not only joined these two mighty streams together, but have also extended the communication to the northward, as far as the main branch of the Pei Ho, and to the southward as far as the mouth of the Ningapo: thus establishing by the intervention of this stupendous monument of human industry and perseverance, and the various branches of the four rivers which it connects, an inland navigation between the great cities of Peking and Nanking, and affording every facility for the transport of the infinite products raised within the compass of a country containing from twelve to fifteen degrees difference of latitude, and about the same difference of longitude; or, in other words, a surface of about five hundred and eighteen thousand four hundred square miles.

This instance, however, of equal or superior civilization thus attained by a nation, notwithstanding the principal rivers of their country run from west to east, does not at all militate against the natural superiority which has been conceded to those countries whose rivers run in a contrary direction: it only shews what may be effected by a wise and politic government averse to the miseries of war, and steadily bent on the arts of peace. The very attempts, indeed, of this enlightened people to supply the natural deficiencies of their country by canals, are the strongest commendations that can be urged in favour of a country where no such artificial substitutes are necessary; where nature, of her own lavish bounty has created facilities for the progress of industry and civilization, which it would require the labour and maturity of ages imperfectly to imitate.

How far, indeed, these mighty contrivances of the all-bounteous Creator, for the promotion and developement of industry, outstrip all human imitation, the occurrences of the passing hour furnish the most satisfactory and conclusive evidence. The vast tide of emigration which is incessantly rolling along the banks of the Mississippi, and of its tributary streams, and the numberless cities, towns, and settlements, that have sprung up as if it were by the agency of magic, in what but a few years back was one boundless and uninterrupted wilderness, speak a language not to be mistaken by the most ignorant or prejudiced. The western territory, which though a province but of yesterday, soon promises to rival the richest and most powerful members of the American union, affords an instance of rapid

colonization, of which, the history of the world cannot produce a parallel, and offers an incontestable proof of the natural superiority which countries, whose rivers run in a northern or southern course, possess over all others.

But this fact is not merely established by the experience of the present day, it is equally authenticated by the testimony of past ages. What was the reason why Egypt was for so many centuries the seat of affluence and power, but the Nile? that India is still rich and populous, but the Indus and Ganges? These countries, indeed, are no longer the great and powerful empires they were, although the natural advantages of their situations are still unchanged. But what mighty ravages will not a blood-thirsty and overwhelming despotism effect? What health and vigor can belong to that body politic which is forced to inhale the nauseous effluvia of tyranny? Prosperity is a plant that can only flourish in an atmosphere fauned by the wholesome breath of freedom. The highest fertility of soil, the greatest benignity of climate, the most commanding superiority of position, will otherwise be unavailing. Freedom may in the end convert the most barren and inhospitable waste into a paradise; but the inevitable result of tyranny is desolation.

The probable course of this newly discovered river, being thus in every respect so decidedly favourable for the foundation of a rich and powerful community, there can be little doubt that the government of this country will immediately avail itself of the advantages which it presents, and establish a settlement at its mouth. What a sublime spectacle will it then be for the philosopher to mark the gradual progress of population from the two extremities of this river; to behold the two tides of colonization flowing in opposite directions, and constantly hastening to that junction, of which the combined waters shall overspread the whole of this fifth continent!

What a cheering prospect for the philanthropist to behold what is now one vast and mournful wilderness, becoming the smiling seat of industry and the social arts; to see its hills and dales covered with bleating flocks, lowing herds, and waving corn; to hear the joyful notes of the shepherd, and the enlivening cries of the husbandman, instead of the appalling yell of the savage, and the plaintive howl of the wolf; and to witness a country which nature seems to have designed as her master-piece, at length fulfilling the

gracious intentions of its all-bounteous Author, by administering to the wants and contributing to the happiness of millions.

What a proud sight for the Briton to view his country pouring forth her teeming millions to people new hives, to see her forming in the most remote parts of the earth new establishments which may hereafter rival her old; and to behold thousands who would perish from want within her immediate limits, procuring an easy and comfortable subsistence in those which are more remote; and instead of weakening her power and diminishing her resources, effectually contributing to the augmentation of both, and forming monuments which may descend to the latest posterity, indestructible records of her greatness and glory.

SYSTEM OF AGRICULTURE.

The system of agriculture pursued in this colony, does not materially differ from that which prevails in this country. During the earlier stages of these settlements, the hoe-husbandry was a necessary evil; but the great increase in the stock of horses and cattle, has at last almost completely superseded it; and the plough-husbandry is now, and has been for many years past, in general practice. In new lands, indeed, the hoe is still unavoidably used during the first year of their cultivation, on account of the numerous roots and other impediments to the plough, with which lands in a state of nature invariably abound; but excepting these occasions, and the instances of settlers who are unable to purchase horses or oxen, and consequently adhere to the original mode of cultivation from necessity, the hoe-husbandry is completely exploded. Until the year 1803, eighteen years after the foundation of this colony, the plough-husbandry was confined to a few of the richest cultivators, from the exorbitant price of cattle. At that period, however, the government herds had so considerably multiplied, that the then governor (King) recommended the adoption of the plough-husbandry in general orders, and tendered oxen at £28 per head, to be paid either in produce or money, at the end of three years, to all such settlers as were inclined to purchase them. This custom has been followed by all his successors; but as no abatement has been made in the price of them, and as they can be obtained at one-third the amount elsewhere, such only of the

colonists now avail themselves of this indulgence, as have no ready means of purchase, and are allured by the length of the credit.

Wheat, maize, barley, oats, and rye, are all grown in this colony; but the two former are most cultivated. The climate appears to be rather too warm for the common species of barley and oats; but the poorer soils produce them of a tolerably good quality. The skinless barley, or as it is termed by some, the Siberian wheat, arrives at very great perfection, and is in every respect much superior to the common species of barley; but the culture of this grain is limited to the demand which is created for it by the colonial breweries; the Indian corn, or maize, being much better adapted for the food of horses, oxen, pigs, and poultry. The produce too is much more abundant than that of barley and oats; and the season for planting it being two months later than for any other sort of grain, the settler has every motive for giving it the preference. Wheat may be sown any time from February to July, and even as late as August, if that month happens to be moist; but the best months are April, May, and June. The creeping wheat, however, may be sown in the commencement of February; as should it become too rank, it can easily be kept down by sheep, which are found to do this sort of wheat no manner of injury. To the farmer, therefore, who keeps large flocks of sheep, the cultivation of the creeping wheat is highly advantageous; since in addition to its yielding as great a crop as any other species of wheat, it supersedes the necessity of growing turnips or other artificial food for the support of his stock during the severity of the winter, when the natural grasses become scanty and parched up by the frost. The red and white lammas, and the Cape or bearded wheat, are the species generally cultivated. June is the best month for sowing barley and oats, but they may be sown till the middle of August with a fair prospect of a good crop. Indian corn or maize may be planted from the end of September to the middle of December; but October is the best month. It is, however, a very common practice among the settlers on the fertile banks of the Hawkesbury and Nepean, to plant what is called stubble corn; that is, to plant it among the wheat, barley, and oat stubbles, as soon as the harvest is over, without ploughing or breaking up the ground. Maize is frequently planted in this way until the middle of January, and if the season proves sufficiently moist, yields a very abundant crop. The usual manner of planting it is in holes about six feet apart: five grains are generally put in each of these holes. The average produce of this grain on

rich flooded lands, is from eighty to a hundred bushels per acre. Wheat in the same situations yields from thirty to forty bushels; and barley and oats, about fifty bushels an acre. On forest lands, however, the crops are not so productive, unless the ground be well manured; but the wheat, barley and oats, grown on this land, are much heavier and superior in quality. The difference of the weight of wheat grown in forest and flooded lands, is upon an average not less than 8 lbs. per bushel. The former sort weighing 64 lbs. and the latter only 56 lbs.

The wheat harvest commences partially about the middle of November, and is generally over by Christmas. The maize, however, is not ripe until the end of March, and the gathering is not complete throughout the colony before the middle of May.

Potatoes*, cabbages, carrots, parsnips, turnips, pease, beans, cauliflowers, brocoli, asparagus, lettuces, onions, and in fact every species of vegetables known in this country, are produced in this colony; many of them attain a much superior degree of perfection, but a few also degenerate. To the former class belong the cauliflower and brocoli, and the different varieties of the pea; to the latter the bean and potatoe. For the bean, in particular, the climate appears too hot, and it is only to be obtained in the stiffest clays and the dampest situations. The potatoe, however, is produced on all soils in the greatest abundance, but the quality is not nearly as good as in this country. In this respect, however, much depends on the nature of the soil. In stiff clays the potatoes are invariably watery and waxy, but in light sands and loams, they are tolerably dry and mealy. Manure also deteriorates their quality, and in general they are best when grown on new lands. Potatoes are in consequence very commonly planted in the fields, as a first crop, and are found to pulverize land just brought from a state of nature into cultivation more than other root. An abundant crop of wheat, barley, or oats, may be safely calculated to succeed them; more particularly if a light covering of manure be applied at the time of their planting.

[* For the Colonial Garden, see Appendix.]

The colony is justly famed for the goodness and variety of its fruits: Peaches, apricots, nectarines, oranges, grapes, pears, plums, figs, pomegranates, raspberries, strawberries, and melons of all sorts, attain the

highest degree of maturity in the open air; and even the pineapple may be produced merely by the aid of the common forcing glass. The climate, however, of Port Jackson, is not altogether congenial to the growth of the apple, currant, and gooseberry; although the whole of these fruits are produced there, and the apple, in particular, in very great abundance; but it is decidedly inferior in quality to the apple of this country. These fruits, however, arrive at the greatest perfection in every part of Van Diemen's Land; and as the climate of the country to the westward of the Blue Mountains, is equally cold, they will without doubt attain there an equal degree of perfection; but the short period which has elapsed since the establishment of a settlement beyond these mountains, has not allowed the nltramontanians to make the experiment.

Of all the fruits which I have thus enumerated as being produced in this colony, the peach is the most abundant and the most useful. The different varieties which have been already introduced, succeed one another in uninterrupted succession from the middle of November to the latter end of March: thus filling up an interval of more than four months, and affording a wholesome and nutritious article of food during one-third of the year. This fruit grows spontaneously in every situation, on the richest soils, as on the most barren; and its growth is so rapid that if you plant a stone, it will in three years afterwards bear an abundant crop of fruit. Peaches are, in consequence, so plentiful throughout the colony, that they are every where given as food to hogs; and when thrown into heaps, and allowed to undergo a proper degree of fermentation, are found to fatten them very rapidly. Cider also is made in great quantities from this fruit, and when of sufficient age, affords a very pleasant and wholesome beverage. The lees, too, after the extraction of the juice, possess the same fattening properties, and are equally calculated as food for hogs.

REARING OF CATTLE, ETC.

The system of rearing and fattening stock in this colony is simple and economical. Horses, in consequence of their rambling nature, are almost invariably kept in enclosures. In the districts immediately contiguous to Port Jackson, horned cattle are followed by a herdsman during the day, in order to prevent them from trespassing on the numerous uninclosed tracts of

land that are in a state of tillage, and they are confined during the night in yards or paddocks. In the remoter districts, however, which are altogether devoid of cultivation, horned cattle are subjected to no such restraints, but are permitted to range about the country at all times. The herds too are generally larger; and although a herdsman is still required as well to prevent them from separating into straggling parties, as to protect them from depredation, the expence of keeping them in this manner is comparatively trifling, and the advantages of allowing them this uncontrouled liberty to range, very great; since they are found during the heat of summer to feed more in the night than in the day. This, therefore, is the system which the great stockholders almost invariably pursue. Few of them possess sufficient land for the support of their cattle; and as their estates too, however remote the situation in which they may have been selected, have for the most part become surrounded by small cultivators, who seldom or ever inclose their crops, they generally recede with their herds from the approach of colonization, and form new establishments, where the liability to trespass does not exist. They thus become the gradual explorers of the country, and it is to their efforts to avoid the contact of agriculture, that the discovery of the best districts yet known in the colony is ascribable.

The management of sheep is in some respects different. They are never permitted to roam during the night, on account of the native dog, which is a great enemy to them, and sometimes during the day, makes great ravages among them, even under the eye of the shepherd. In every part of the country, therefore, they are kept by night either in folds or yards. In the former case the shepherd sleeps in a small moveable box, which is shifted with the folds, and with his faithful dog, affords a sufficient protection for his flock, against the attempts of these midnight depredators. In the latter the paling of the yards is always made so high, that the native dog cannot surmount it; and the safety of the flock is still further ensured by the contiguity of the shepherd's house, and the numerous dogs with which he is always provided.

The natural grasses of the colony are sufficiently good and nutritious at all seasons of the year, for the support of every description of stock, where there is an adequate tract of country for them to range over. But in consequence of the complete occupation of the districts which are in the

more immediate vicinity of Port Jackson, and from the settlers in general possessing more stock than their lands are capable of maintaining, the raising of artificial food for the winter months, has of late years become very general among such of them as are unwilling to send their flocks and herds into the uninhabited parts in the interior. This is a practice which must necessarily gain ground; since it has been observed, that the coldness of the climate keeps pace with the progress of agriculture. In the more contiguous and cultivated districts, the natural grass becomes consequently every year more affected by the influence of frost, and the necessity of raising some artificial substitute for the support of stock, during the suspension of vegetation, more pressing and incumbent. It is from this increase in the severity of the winters, that the custom of making hay has begun to be adopted; and should the future augmentation of cold be, as there is every reason to believe, proportionate to the past, this custom will, before the expiration of many years, become generally prevalent. It is indeed, rather a matter of surprise than otherwise, that so salutary a precaution has been so long in disuse; since such is the luxuriance of the natural grass during the summer, that it is the general practice after the seeds wither away, to set fire to it, and thus improvidently consume what, if mown and made into hay, would afford the farmer a sufficiency of nutritious food for his stock during the winter, and altogether supersede the subsequent necessity for his having recourse to artificial means of remedying so palpable a neglect of the bounteous gifts of nature.

This custom of setting fire to the grass, is most prevalent during the months of August and January, i.e. just before the commencement of spring and autumn, when vegetation is on the eve of starting from the slumber which it experiences alike during the extremes of the winter's cold as of the summer's heat. If a fall of rain happily succeed these fires, the country soon presents the appearance of a field of young wheat; and however repugnant this practice may appear to the English farmer, it is absolutely unavoidable in those districts which are not sufficiently stocked; since cattle of every description refuse to taste the grass the moment it becomes withered.

The artificial food principally cultivated in the colony are turnips, tares, and Cape barley; and for those settlers in particular who have flocks of breeding sheep, the cultivation of them is highly necessary, and contributes

materially to the growth and strength of the lambs. On those also who keep dairies, this practice of raising artificial food, is equally incumbent; the natural grasses being quite insufficient to keep milch cows in good heart during the winter, when there is the greatest demand for butter. Good meat, too, is then only to be had with difficulty, and this difficulty is increasing every year. There cannot, therefore, be any doubt that it would answer the purposes even of the grazier to have recourse to artificial means of fattening his stock at that season; since it is then that he would be enabled to obtain the readiest and highest price for his fat cattle.

PRICE OF CATTLE, ETC.

The price of all manner of stock is almost incredibly moderate, considering the short period which has elapsed since the foundation of the colony. A very good horse for the cart or plough may be had from £10 to £15, and a better saddle or gig horse, from £20 to £30, than could be obtained in this country for double the money. Very good milch-cows may be bought from £5 to £10; working oxen for about the same price; and fine young breeding ewes from £1 to £3, according to the quality of their fleece. Low as these prices may appear they are in a great measure fictitious; since there is confessedly more stock of all sorts in the colony, than is necessary for its population. It accordingly frequently happens, particularly at sales by public auction, that stock are to be bought for one-half, and even one-third of the above prices; and there is every probability that before the expiration of ten years, their value will be still more considerably diminished. To be convinced of the truth of this conjecture, we have only to look back a little into the annals of the colony, and see how prodigiously cattle of every description have multiplied. By a census taken at the end of the year 1800, (twelve years after the institution of the colony) the number of horses and mares was only 163; of horned cattle, 1024; and of sheep, 6124. At the end of 1813, the horses and mares had increased to 1891; the horned cattle to 21,513, and the sheep to 65,121: and in the month of November, 1817, the last year of which we have received the census, the numbers were as follow: horses and mares, 3072; horned cattle, 44,753; sheep, 170,420. Thus it will be perceived, that in the space of seventeen years, the stock of horses and mares has increased from 163, their highest number for the first twelve years, to 3072; the stock of horned cattle, from 1044 to 44,753; and the

stock of sheep from 6124 to 170,920. This is of itself an increase great beyond all ordinary computation; and it would appear still more surprising if we could add to it the immense numbers of cattle and sheep that have been slaughtered in the same period, for the supply of the king's stores, and for general consumption.

From the foregoing statement it will be evident, that the future increase in the stock will be still more prodigious, and still more considerably outstrip the advance of population. The price therefore of cattle, great and rapid as has been its past declension, must annually experience a still further diminution. Of what will be their probable value in ten years more, it may enable us to form no very inaccurate estimate, by referring to what it was ten years back. In 1808, a cow and calf were sold by public auction for £105, and the price of middling cattle was from £80 to £100. A breeding mare was at the same period worth from 150 to 200 guineas, and ewes from £10 to £20.

These immense prices, however, were the result of monopoly, and consequently in a great measure fictitious; for in 1810, two years after this, a herd of fine cattle were sold for £13 per head. This almost incredible reduction in the value of cattle in so short a period, was occasioned by the supercession of this monopoly by the governor, who in the year 1808, was induced, from the considerable increase that had taken place in the public herds, to issue cows at £28 per head, payable in agricultural produce, to all indiscriminately who chose to purchase them. Hundreds of them, therefore, at this epoch, were distributed among the settlers, and their extreme value insured that degree of care and attention from their owners, which was naturally followed by a rapid increase, and produced in the short lapse of two years, that declension of price which would at first sight appear so astonishing.

Thus it may be perceived, that within the last ten years, stock of all sorts have decreased in price, from £700 to £1,000 per cent. and it is not unreasonable to conclude, that in ten years hence, they will have experienced at least a similar reduction. Should this conjecture be verified, they will be of as little value in the remote parts of the colony, as the horses

and cattle on the plains of Buenos Ayres, where any person may make what use he pleases of the carcase, provided he leaves behind him the hide.

PRICE OF LABOUR.

The price of labour is at present very low, and is still further declining in consequence of the demand for it not equalling the supply. Upon the establishment of the Colonial Bank, and the consequent suppression of that vile medium of circulation, termed the colonial currency, between which and British sterling there used to be a difference of value of from £50 to £100 per cent. the price of labour was fixed at the rates contained in the following general order, dated the 7th of December, 1816:

"In consequence of the recent abolition of all colonial currency, and the introduction and establishment of a sterling circulation and consideration in all payments, dealings, transactions, contracts, and agreements, within this territory and its dependencies, his Excellency the Governor having deemed it expedient to take into consideration the general rates and prices of labour and wages within the same, as affected by the alteration of the mode of payments at a sterling rate, or value, and of the degree, measure, and sterling amount of the same, upon a fair and equitable proportion and modus; and having also adopted such measures in that respect as seemed best calculated to fix and make known the same, is pleased hereby to declare, order, and direct, that in addition to the rations according to and equal with the government allowance, the sum of ten pounds sterling per annum to a man convict, and seven pounds sterling to a woman convict, as including the value of the slops allowed, and the sum of seven pounds or five pounds ten shillings exclusive of such slops; computed at three pounds per man, and one pound ten shillings per woman, shall be allowed, claimed, or demandable, or such part or proportion of such sum or sums as shall be equal and according to the period and continuance of actual service, and no more in respect of yearly wages, and in the same manner as yearly wages for the extra work and service of any such male or female convict respectively, duly assigned to any person or persons, by or upon the authority of Government.

"His Excellency is also pleased further to declare, order and direct, that in consideration of the premises, the undermentioned sums, amounts, and charges, and no more with regard to and upon the various denominations of work, labour and services, described and set forth, shall be allowed, claimed, or demandable within this territory and its dependencies in respect thereof".

	£
s. d.	
For falling forest timber, per acre,	0
8 0	
Burning off ditto, per ditto,	1
0 0	
Rooting out, and burning stumps on forest ground, per ditto,	1
10 0	
Falling timber on brush ground, per ditto,	0
12 0	
Burning off ditto, per ditto,	1
10 0	
Rooting out and burning stumps on ditto, per ditto,	1
17 6	
Breaking up new ground, per ditto,	1
0 0	
Breaking up stubble in corn ground, per ditto,	0
10 0	
Chipping in wheat, per ditto,	0
6 0	
Reaping ditto, per ditto,	0
10 0	
Threshing and cleaning wheat, per bushel,	0
0 8	
Holeing and planting corn, per acre,	0
5 0	
Chipping and shelling corn, per ditto,	0
6 8	
Pulling and husking ditto, per bushel,	0
0 4	
Splitting pales, (six feet long) per hundred,	0
3 0	
Ditto, (five feet long) per ditto,	0
2 6	
Shingle splitting, per thousand,	0
7 6	
Preparing and putting up morticed railing, five bars, with two pannels to a rod, and posts sunk two feet in the ground,	0

3	0		
Ditto,	ditto,	ditto, four bars,	0
2	6		
Ditto,	ditto,	ditto, three bars,	0
2	0		
Ditto,	ditto,	ditto, two bars,	0
1	9		

The rates limited in this order are pretty well proportioned to the present state of the colony; but the attempt to reduce the value of labour to a permanent standard, further than regards the convicts, must evidently be abortive; since labour, like merchandize, will rise and fall with the demand which may exist for it in the market where it is disposable;--and although the above order might prevent the labourer from recovering in the colonial courts, a greater price for his labour than is stipulated in the foregoing schedule, still the moment it becomes the interest of the employer to give higher wages, he will do so, and the discredit attached to the non-performance of a deliberate contract will always prevent him from having recourse to the courts for avoiding the fulfilment of it. The above rates, it will be seen, only refer to the various species of labour immediately attached to agriculture. The wages of artificers, particularly of such as are most useful in infant societies, are considerably higher: a circumstance which is principally to be attributed to the practice of selecting from among the convicts all the best mechanics for the government works. Carpenters, stone-masons, brick-layers, wheel and plough-wrights, black-smiths, coopers, harness-makers, sawyers, shoe-makers, cabinet-makers; and in fact all the most useful descriptions of handicrafts, are consequently in very great demand, and can easily earn from eight to ten shillings per day.

The price of land is entirely regulated by its situation and quality. So long as four years back, a hundred and fifty acres of very indifferent ground, about thre equarters of a mile from Sydney, were sold by virtue of an execution, in lots of twelve acres each, and averaged £14 per acre. This, however, is the highest price that has yet been given for land not situated in a town. The general value of unimproved forest land, when it is not heightened by some advantageous locality, as proximity to a town or navigable river, cannot be estimated at more than five shillings per acre. Flooded land will fetch double that sum. But on the banks of the Hawkesbury, as far as that river is

navigable, the value of land is considerably greater; that which is in a state of nature being worth from £3 to £5 per acre, and that which is in a state of cultivation, from £8 to £10. The latter description rents for twenty and thirty shillings an acre.

The price of provisions, particularly of agricultural produce, is subject to great fluctuations, and will unavoidably continue so until proper measures are taken to counteract the calamitous scarcities at present consequent on the inundations of the Hawkesbury and Nepean. In the year 1806, the epoch of the great flood, the old and new stacks on the banks of those rivers were all swept away; and before the commencement of the following harvest, wheat and maize attained an equal value, and were sold at £5 and £6 per bushel. Even after the last overflow of these rivers, in the month of March, 1817, wheat rose towards the close of the year, to 31s. per bushel, and maize to 20s., and potatoes to 32s. 6d. per cwt. although a very considerable supply (about 20,000 bushels) was immediately furnished by the Derwent and Port Dalrymple. But for this speedy and salutary succour, the price of grain would have been very little short of what it was in the year 1806; since the whole stock on hand appears, from the muster taken between the 6th of October and the 25th of November, to have only been as follows: wheat, 2405 bushels; maize, 1506. This was all the grain that remained in the various settlements of New South Wales and its dependencies, about a month before any part of the produce of the harvest could be brought to market; and when it is considered that this was to administer to the support of 20,379 souls during that period, it will appear truly astonishing that the prices continued so moderate.

By way, however, of counterpoise to these lamentable scarcities, which in general follow the inundations of the principal agricultural settlements, provisions are very abundant and cheap in years when the crops have not suffered from flood or drought. In such seasons, wheat upon an average sells for 9s. per bushel; maize for 3s. 6d.; barley for 5s.; oats for 4s. 6d. and potatoes for 6s. per cwt.

The price of meat is not influenced by the same causes, but is on the contrary experiencing a gradual and certain diminution. By the last accounts received from the colony, good mutton and beef were to be had for 6d. per

pound, veal for 8d. and pork for 9d. Wheat was selling in the market at 8s. 8d. per bushel; oats at 4s.; barley at 5s.; maize at 5s. 6d.; potatoes at 8s. per cwt.; fowls at 4s. 6d. per couple; ducks at 6s. per ditto; geese at 5s. each; turkies at 7s. 6d. each; eggs at 2s. 6d. per dozen; and butter at 2s. 6d. per pound. The price of the best wheaten bread was fixed by the assize at 5¹/₄d. for the loaf, weighing 2 lbs.

The progress which this colony has made in manufactures has perhaps never been equalled by any community of such recent origin. It already contains extensive manufactories of coarse woollen cloths, hats, earthenware and pipes, salt, candles, and soap. There are also extensive breweries, and tanneries, wheel and plough-wrights, gig-makers, blacksmiths, nail-makers, tinmen, rope-makers, saddle and harness-makers, cabinet-makers, and indeed all sorts of mechanics and artificers that could be required in an infant society, where objects of utility are naturally in greater demand than articles of luxury. Many of these have considerable capitals embarked in their several departments, and manufacture to a considerable extent. Of the precise amount, however, of capital invested in the whole of the colonial manufactories, I can give no authentic account; but I should imagine it cannot be far short of £50,000.

The colonists carry on a considerable commerce with this country, the East Indies, and China; but they have scarcely any article of export to offer in return for the various commodities supplied by those countries. The money expended by the government for the support of the convicts, and the pay and subsistence of the civil and military establishments, are the main sources from which they derive the means of procuring those articles of foreign growth and manufacture which are indispensable to civilized life. They have, however, at last a staple export, which is rapidly increasing, and promises in a few years to suffice for all their wants, and to render them quite independent of the miserable pittance which is thus afforded them by the expenditure of the government: I mean the fleeces of their flocks, the best of which are found to combine all the qualities that constitute the excellence of the Saxon and Spanish wools. The sheep-holders in general have at length become sensible of the advantage of directing their attention to the improvement of their flocks; and if their exertions be properly seconded by the countenance and encouragement of the local government,

there can be no doubt that the supply of fine wool, which the parent country will before long receive from the colony, will amply repay her for the care and expence she has bestowed on it during the protracted period of its helpless infancy. The exportation of this highly valuable raw material, is as yet but very limited: last year it only amounted to about £8000; but when it is considered that in the year 1817, there were 170,420 sheep in the colony and its dependent settlements on Van Diemen's Land, and that the majority of the sheep-holders are actively employed in crossing their flocks with tups of the best Merino breed, it may easily be conceived what an extensive exportation of fine wool may be effected in a few years.

The whole annual income of the colonists inhabiting the various settlements in New Holland, cannot be estimated at more than £125,000, and the following sub-divisions of it may be taken as a very close approximation to the truth:

Money expended by the government for the pay and subsistence of the civil and military establishments, and for the support of such of the convicts as are victualled from the king's stores,	£ 80,000
Money expended by shipping not belonging to the colonial merchants,	£ 12,000
Various articles of export collected from the adjacent seas and islands, by the colonial craft, consisting principally of seal skins, right whale, and elephant oils, and sandal wood,	£ 15,000
Wool grown in the colony,	£ 8,000
Sundries,	£ 20,000

Total	£125,000

The imports levied by the authority of the local government form two distinct funds, one of which, as has been already casually mentioned, is called the "Orphan Fund," and the other "the Police Fund." The former, it has been seen, contains one-eighth of the colonial revenue, and is devoted solely to the promotion of education among the youth of the colony; the latter contains the other seven-eighths, and is appropriated to various purposes of internal economy; such as the construction and repair of roads and bridges, the erection of public edifices, the maintenance of the police,

the cost of criminal prosecutions, and the pay of various officers, principally in subordinate capacities, who are not borne on the parliamentary estimate of the civil establishment. These two funds amounted in the year 1817 to the sum of £20,272 6s. 2½d. which was derived from the following sources:

*Duties collected by the naval officer,	17,240	0	7¼
Market, toll, and slaughtering duties,	872	5	7¼
67 Spirit Licences,	2,010	0	0
10 Beer ditto,	50	0	0
4 Brewing ditto,	100	0	0
Total	£20,272	6	2½

[* For a list of these Duties, see the Appendix.]

If we add to this £907 6s. 9¼d. which is the amount of the naval officer's commission on the duties collected by him, we have a grand total of £21,179 12s. 11¾d.; or, in other words, about one-sixth of the whole income of the colony, absorbed by an illegal taxation. This is an enormous sum to be levied in such an infant community; and it will appear the more so if it be recollected that nineteen-twentieths of it are collected from the duty which has been imposed on spirituous liquors, and from licences to keep public-houses for the retail of them.

STATISTICAL ACCOUNT OF THE SETTLEMENTS IN VAN DIEMEN'S LAND.

Van Diemen's Land is situated between 40 degrees 42', and 43 degrees 43' of south latitude, and between 145 degrees 31' and 148 degrees 22' of east longitude. The honour of the discovery of this island also belongs to the Dutch; but the survey of it has been principally effected by the English.

The aborigines of this country are, if possible, still more barbarous and uncivilised than those of New Holland. They subsist entirely by hunting, and have no knowledge whatever of the art of fishing. Even the rude bark canoe which their neighbours possess, is quite unknown to them; and whenever they want to pass any sheet of water, they are compelled to construct a rude raft for the occasion. Their arms and hunting implements also indicate an inferior degree of civilization. The womera, or throwing stick, which enables the natives of Port Jackson to cast their spears with such amazing force and precision, is not used by them. Their spears, too, instead of being made with the bulrush, and only pointed with hard wood, are composed entirely of it, and are consequently more ponderous. In using them they grasp the center; but they neither throw them so far nor so dexterously as the natives of the parent colony. This circumstance is the more fortunate, as they maintain the most rancorous and inflexible hatred and hostility towards the colonists. This deep rooted enmity, however, does not arise so much from the ferocious nature of these savages, as from the inconsiderate and unpardonable conduct of our countrymen shortly after the foundation of the settlement on the river Derwent. At first the natives evinced the most friendly disposition towards the new comers; and would probably have been actuated by the same amicable feeling to this day, had not the military officer entrusted with the command, directed a discharge of grape and canister shot to be made among a large body who were approaching, as he imagined, with hostile designs; but as it has since been believed with much greater probability, merely from motives of curiosity and friendship. The havoc occasioned among them by this murderous discharge, was dreadful; and since then all communication with them has

ceased, and the spirit of animosity and revenge, which this unmerited and atrocious act of barbarity has engendered, has been fostered and aggravated to the highest pitch by the incessant rencontres which have subsequently taken place between them and the settlers. These, wherever and whenever an occasion offers, destroy as many of them as possible, and they in their turn never let slip an opportunity of retaliating on their blood-thirsty butchers. Fortunately, however, for the colonists, they have seldom or never been known to act on the offensive, except when they have met some of their persecutors singly. Two persons armed with muskets may traverse the island from one end to the other in the most perfect safety.

Van Diemen's Land has not so discouraging and repulsive an appearance from the coast as New Holland. Many fine tracts of land are found on the very borders of the sea, and the interior is almost invariably possessed of a soil admirably adapted to all the purposes of civilized man. This island is upon the whole mountainous, and consequently abounds in streams. On the summits of many of the mountains there are large lakes, some of which are the sources of considerable rivers. Of these the Derwent, Huon, and Tamar, rank in the first class.

There is perhaps no island in the world of the same size which can boast of so many fine harbours: the best are the Derwent, Port Davy, Macquarie Harbour, Port Dalrymple, and Oyster Bay: the first is on its southern side, the second and third on its western, the fourth on its northern, and the fifth on its eastern, so that it has excellent harbours in every direction. This circumstance cannot fail to be productive of the most beneficial effects, and will most materially assist the future march of colonization.

There is almost a perfect resemblance between the animal and vegetable kingdoms of this island and of New Holland. In their animal kingdoms in particular, there is scarcely any variation. The native dog, indeed, is unknown here; but there is an animal of the panther tribe in its stead, which, though not found in such numbers as the native dog is in New Holland, commits dreadful havoc among the flocks. It is true that its ravages are not so frequent; but when they happen they are more extensive. This animal is of considerable size, and has been known in some few instances, to measure six feet and a half from the tip of the nose to the extremity of the tail; still it

is cowardly, and by no means formidable to man: unless, indeed, when taken by surprise, it invariably flies his approach.

In the feathered tribes of the two islands, there is scarcely any diversity; of this the wattle bird, which is about the size of a snipe, and considered a very great delicacy, is the only instance which I can cite.

Like New Holland it has many varieties of poisonous reptiles, but they are neither so venomous nor so numerous as in that island.

Its rivers and seas too, abound with the same species of fish. Oysters are found in much greater perfection, though not in greater abundance. The rocks that border the coasts and harbours are literally covered with muscles, as the rocks at Port Jackson are with oysters.

There is not so perfect a resemblance in the vegetable kingdoms of the two islands; but still the dissimilarity, where it exists, is chiefly confined to their minor productions. In the trees of the forest there is scarcely any difference. Van Diemen's Land wants the cedar, mahogany, and rose wood; but it has very good substitutes for them in the black wood and Huon pine, which is a species of the yew tree, and remarkable for its strong odoriferous scent and extreme durability.

The principal mineralogical productions of this island are, iron, copper, alum, coals, slate, limestone, asbestos, and basaltes; all of which, with the exception of copper, are to be had in the greatest abundance.

HOBART TOWN.

Hobart Town, which is the seat of the Lieutenant-Governor of Van Diemen's Land, stands nine miles up the river Derwent. It was founded only fifteen years since, and indeed the rudeness of its appearance sufficiently indicates the recency of its origin. The houses are in general of the meanest description, seldom exceeding one story in height, and being for the most part weather-boarded without, and lathed and plastered within. Even the government house is of very bad construction. The residences, indeed, of many individuals far surpass it. The population may be estimated at about one thousand souls.

This town is built principally on two hills, between which there is a fine stream of excellent water, that issues from the Table Mountain, and falls into Sullivan's Cove. On this stream a flour mill has been erected, and there is sufficient fall in it for the erection of two or three more. There are also within a short distance of the town, several other streams which originate in the same mountain, and are equally well adapted to similar purposes. This is an advantage not possessed by the inhabitants of Port Jackson; since there is not in any of the cultivated districts to the eastward of the Blue Mountains a single run of water which can be pronounced in every respect eligible for the erection of mills. Windmills are in consequence almost exclusively used for grinding corn in Sydney; but in the inland towns and districts, the colonists are in a great measure obliged to have recourse to hand mills, as the winds during the greater part of the year, are not of sufficient force to penetrate the forest and set mills in motion.

The elevation of the Table Mountain, which is so called from the great resemblance it bears to the mountain of the same name at the Cape of Good Hope, has not been determined; but it is generally estimated at about six thousand feet above the level of the sea. During three-fourths of the year it is covered with snow, and the same violent gusts of wind blow from it as from this, its mountain name-sake; but no gathering clouds on its summit give notice of the approaching storm. The fiery appearance, however, of the heavens, affords a sufficient warning to the inhabitants of the country. These blasts are happily confined to the precincts of the mountain, and seldom last above three hours; but nothing can exceed their violence for the time. In the year 1810, I happened to be on board of a vessel which was bound to Hobart Town: in consequence of the winds proving scanty, we were obliged to anchor during the night in D'Entrecasteaux's Channel. The following morning we got under weigh, expecting that the sea breeze would set in by the time the anchor was hove up. The seamen had no sooner effected this and set all sail, than we were assailed with one of these mountain hurricanes. In an instant the vessel was on her beam-ends, and in another, had not all the sheets and halyards been let go, she would either have upset or carried away her masts. The moment the sails were clued up we brought to again; and as we were in a harbour perfectly land-locked and very narrow, the vessel easily rode out this blast. It only lasted about two

hours; but the sea breeze did not succeed it that day. The next morning, however, it set in as usual.

During the continuance of this mountain tornado, the waters of the harbour were terribly agitated, and taken up in the same manner as dust is collected by what are called whirlwinds in this country. So great indeed was its fury, that it required us to hold on by the ropes with all our force, in order to enable us to keep our footing.

The harbour at and conducting to the river Derwent, yields to none in the world; perhaps surpasses every other. There are two entrances to this river, which are separated by Pitt's Island; one is termed D'Entrecasteaux's Channel, the other, Storm Bay. D'Entrecasteaux's Channel, from Point Collins up to Hobart Town, a distance, following the course of the water, of thirty-seven miles, is one continued harbour, varying in breadth from eight to two miles, and in depth from thirty to four fathoms. The river Derwent itself has three fathoms water for eleven miles above the town, and is consequently navigable thus far for vessels of the largest burthen. Reckoning therefore from Point Collins, there is a line of harbour in D'Entrecasteaux's Channel and the Derwent, together of forty-eight miles, completely land-locked, and affording the best anchorage the whole way.

The entrance, however, by Storm Bay, does not offer the same advantages; for it is twenty-two miles broad from Maria's Islands to Penguin Island, and completely exposed to the winds from south to south-east. This bay consequently does not afford the same excellent anchorage as D'Entrecasteaux's Channel. It contains, however, some few nooks, in which vessels may take shelter in case of necessity. The best of these is Adventure Bay, which is shut in from any winds that can blow directly from the ocean, but is nevertheless exposed to the north-east winds, which have a reach of twenty miles from the opposite side of the bay. There is consequently, when these winds prevail, a considerable swell here; but the force of the sea is in a great measure broken by Penguin Island; and vessels having good anchors and cables have nothing to fear.

Storm Bay, besides thus forming one of the entrances to the river Derwent, leads to another very good harbour, called North Bay. This harbour is about sixteen miles long, and in some places six miles and a half broad. The

greater part of it is perfectly land-locked, and affords excellent anchorage in from two to fifteen fathoms water. That part in particular called Norfolk Bay, forms a very spacious harbour of itself, being about three miles in breadth and nine in length. This bay, besides being better sheltered than the rest of the harbours, contains the greatest depth of water, having in no place less than four fathoms.

All the bays and harbours which have been just described, abound with right whale at a particular season of the year. These leviathans of the deep quit the boisterous ocean, and seek the more tranquil waters of these harbours, when they are on the point of calving. This happens in November, and they remain there with their young between two and three months. During this period there are generally every year a few of the colonial craft employed in the whale fishery; but the duties which are levied in this country on all oils procured in vessels not having a British register, amount to a prohibition, and completely prevent the colonists from prosecuting this fishery further than is necessary for their own consumption, and for the supply of the East India market. Between two and three hundred tons annually suffice for both these purposes.

The whales frequently go up the river Derwent as far as the town; and it is no uncommon sight for its inhabitants to behold the whole method of taking them, from the moment they are harpooned until they are finally killed by the frequent application of the lance. This sight indeed has been occasionally witnessed by the inhabitants of Sydney; since it has sometimes occurred that a stray fish has entered the harbour of Port Jackson, while some of the South Sea whalers have been lying there, and that these have lowered their boats and killed it.

All the bays and harbours in Van Diemen's Land, and most of those likewise which are in Bass's Straits, and on the southern coast of New Holland, abound with these fish at the same season. If the colonists, therefore, were not thus restricted from this fishery, it would soon become an immense source of wealth to them; and I have no doubt that they would be enabled to export many thousand tons of oil annually to this country. But it is in vain that nature has been thus lavish of her bounties to them; in vain do their seas and harbours invite them to embark in these inexhaustible

channels of wealth and enterprize. Their government, that government which ought to be the foremost in developing their nascent efforts, and fostering them to maturity, is itself the first to check their growth and impede their advancement. What a miserly system of legislation is it, which thus locks up from its own subjects, a fund of riches that might administer to the wants, and contribute to the happiness of thousands! What barbarous tantalization to compel them to thirst in the midst of the waters of abundance!

PORT DALRYMPLE.

This port, which was discovered by Flinders, in 1798, lies thirty degrees E. S. E. of Three Hammock Island. The town of Launceston stands about thirty miles from its entrance, at the junction of the North Esk, and the South with the river Tamar. It is little more than an inconsiderable village, the houses in general being of the humblest description. Its population is between three and four hundred souls. The tide reaches nine or ten miles up the river Esk, and the produce of the farms within that distance, may be sent down to the town in boats. But the North Esk descends from a range of mountains, by a cataract immediately into the river Tamar, and is consequently altogether inaccessible to navigation.

The Tamar has sufficient depth of water as far as Launceston, for vessels of a hundred and fifty tons burthen; but the navigation of this river is very intricate, by reason of the banks and shallows with which it abounds, and it has been at length prudently resolved to remove the seat of government nearer the entrance of Port Dalrymple. A town called George Town, has been for the last three years in a state of active preparation; and it is probable that the commandant, and indeed the entire civil and military establishments* of this settlement, have by this time removed to it. In this case the greater part of the population of Launceston will soon follow. This desertion of its inhabitants will considerably diminish the value of landed property in that town, and consequently be productive of great loss to them; but there can be no doubt that the change of the seat of government will in the event materially contribute to the prosperity of the settlement in general. This abandonment, therefore, or rather intended abandonment of the old town, has been dictated by the soundest principles of policy and justice; but

although the equity of the maxim that the interests of the few should cede to the good of the many, is incontrovertible, it is nevertheless to be hoped, that some means will be contrived of indemnifying the inhabitants of Launceston for the great injury which they will suffer from the removal of the seat of government to George Town.

Within a few miles of Launceston, there is the most amazing abundance of iron. Literally speaking, there are whole mountains of this ore, which is so remarkably rich, that it has been found to yield seventy per cent. of pure metal. These mines have not yet been worked; the population, indeed, of the settlement would not allow it; but there can be no doubt that they will at no very remote period become a source of considerable wealth to its inhabitants.

There is a communication by land between Launceston and Hobart Town, which are about one hundred and thirty miles distant from each other in a straight line, and about one hundred and sixty, following the windings of the route at present frequented. No regular road has been constructed between these towns, but the numerous carts and droves of cattle and sheep, which are constantly passing from one to the other, have rendered the track sufficiently distinct and plain. In fact, the making a road is a matter of very great ease, both here and in Port Jackson. The person whoever he may be that wants to establish a cart-road to any place, marks the trees in the direction he wishes it to take, and these marks serve as a guide to all such as require to travel on it. In a very short time the tracks of the horses and carts that have passed along it become visible, the grass is gradually trod down, and finally disappears, and thus a road is formed; not, indeed, so good as one of the usual construction, but which answers all the purposes of those who have occasion to make use of it. Wherever there happens to be a stream, or river that is not fordable, it is customary to cut down two or three trees in some spot on its banks, where it is seen that they will reach to the other side of it. Across these, the boughs that are lopped off themselves, or smaller trees felled for the purpose, are laid close together, and over all a sufficient covering of earth.

Of this description are all the roads and bridges in Van Diemen's Land, and many of them, even in Port Jackson; but in this respect it will be recollected

that the latter is much in advance of the former. The reason why the settlements on this island are so much behind the parent colony, is not to be traced so much to the greater recency of their origin, as to the circumstance of their inhabitants being for the most part established along the banks of navigable waters. At Port Dalrymple, the majority of the settlers have fixed themselves on the banks of the North Esk, within the navigable reach of that river. The Derwent too, it has been seen, is navigable for vessels of the largest burden for twenty miles from its entrance. A little higher up, indeed, there are falls in it which interrupt its navigation; but it is hardly yet colonized beyond these falls, and whenever that shall be the case, it may be easily rendered navigable for boats by the help of ferries for a considerable distance further. Such of the agriculturists as have not settled on the banks of this river, have selected their farms in the district of Pitt Water; which extends along the northern side of that spacious harbour, called "North Bay." These have consequently the same facilities as those on the banks of the Derwent for sending their produce to market by water, and they naturally prefer this, the cheapest mode of conveyance. It may, therefore, be perceived that the superior advantages which are thus presented by an inland navigation, are the main causes why the construction of regular roads has been so much neglected in these settlements. So far, indeed, is this want of roads from being an inconvenience to the inhabitants of them, that the facilities afforded by this inland navigation for the transport of all sorts of agricultural produce to market, is the principal point of superiority which they can claim over their brethren at Port Jackson.

ADMINISTRATION OF JUSTICE.

In the two settlements on this island, there is but one court of justice established by charter. This is termed the Lieutenant-Governor's Court, and consists of the deputy judge advocate, and two of the respectable inhabitants appointed from time to time by the lieutenant-governor. The jurisdiction of this court is purely civil, and only extends to pleas where the sum at issue does not exceed £50; but no appeal lies from its decisions. All causes for a higher amount, and all criminal offences beyond the cognizance of the bench of magistrates, are removed, the former before the Supreme Court, and the latter before the Court of Criminal Judicature at Port Jackson.

STATE OF DEFENCE, ETC.

These settlements are in a very bad state of defence, having but two companies of troops for the garrison and protection of them both. They have consequently been infested for many years past, by a banditti of run-away convicts, who have endangered the person and property of every one that has evinced himself hostile to their enormities. These wretches, who are known in the colony by the name of bush-rangers, even went so far as to write threatening letters to the lieutenant-governor and the magistracy. In this horrible state of anarchy a simultaneous feeling of insecurity and dread, naturally pervaded the whole of the inhabitants; and the most respectable part of the agricultural body with one accord betook themselves to the towns, as the only certain means of preserving their lives, gladly abandoning their property to prevent the much greater sacrifice with which the defence of it would have been attended. There is no species of outrage and atrocity, in which these marauders did not indulge: murders, incendiaries, and robberies were their ordinary amusements, and have been for many years past the leading events in the annals of these unfortunate settlements. Every measure that could be devised was taken for the capture and punishment of these wretches. They were repeatedly outlawed, and the most alluring rewards were set upon their heads; but the insufficiency of the military force, the extent of the island, their superior local knowledge, and the abundance of game, which enabled them to find an easy subsistence, and rendered them independent, except for an occasional supply of ammunition, with which some unknown persons were base enough to furnish them in exchange for their ill acquired booty; all these circumstances conspired to baffle for many years every attempt that was made for their apprehension. This long impunity served only to increase their cruelty and temerity; and it was at last deemed expedient by Lieutenant Governor Davy to declare the whole island under the operation of martial law. This vigorous exertion of authority was zealously seconded by the respectable inhabitants, many of whom joined the military in the pursuit of these miscreants, and fortunately succeeded by their joint exertions in apprehending the most daring of their ringleaders, who were instantly tried by a court martial and hanged in chains. This terrible, though necessary example, was followed by a proclamation offering a general amnesty to all the rest of these delinquents who should surrender

themselves before a certain day; excepting, however, such of them as had been guilty of murder. The proclamation had the desired effect: all who were not excluded by their crimes availed themselves of the pardon thus offered them. But strange to say, they were allowed to remain in the island; and whether they were enamoured of the licentious life they had been so long leading, or whether they distrusted the sincerity of the oblivion promised them, and became apprehensive of eventual punishment, in a few months afterwards they again betook themselves to the woods, and rejoined those who had been excluded from the amnesty. After this, they rivalled their former atrocities, and a general feeling of consternation was again excited among the well disposed part of the community. And here, as it may not be uninteresting to many of my readers to be acquainted with some of the specific outrages of these monsters, I subjoin the following extracts from the Sydney Gazette of the 25th Jan. 1817.

The accounts of robberies by the banditti of bush-rangers on Van Diemen's Land, presents a melancholy picture of the distresses to which the more respectable classes of inhabitants are constantly exposed from the daring acts of those infamous marauders, who are divided into small parties, and are designated by the name of the principal ruffian at their head, of whom one Michael Howe appears to be the most alert in depredation. The accounts received by the Kangaroo, which commence from the beginning of November, state that on the 7th of that month, the house and premises of Mr. David Rose at Port Dalrymple, were attacked and plundered of a considerable property, by Peter Sefton and his gang. The delinquents were pursued by the commandant at the head of a strong detachment of the 46th regiment; but returned after a five days hunt through the woods, without being able to discover the villains, among whom is stated to have been a free man, named Denis M'Caig, who went from hence to Port Dalrymple in the Brothers.

On the night of the 17th of November, the premises of Mr. Thomas Hayes, at Bagdad, were attacked at a time when Mr. Stocker and wife, and Mr. Andrew Whitehead (the former on their route from Hobart Town to Port Dalrymple, with a cart containing a large and valuable property) had unfortunately put up at the house for the night. Michael Howe was the chief of this banditti, which consisted of eight others. The property of which they plundered Mr. and Mrs. Stocker on this occasion, was upwards of £300 value, among which were two kegs of spirits. One of these, a member of the gang wantonly wasted, by firing a pistol-ball through the head of the keg, which contained eleven gallons. They set their watches by Mr. Whitehead's, which they afterwards returned; but took Mr. Stocker's away with their other plunder. Mr. Wade, chief constable of Hobart Town, had stopped with the others at Mr. Hayes's; but hearing a noise, which he considered to denote the approach of bush-rangers, he prudently attended to the admonition, and escaped their fury, which it was concluded would have fallen heavily upon him, as they are at variance with all conditions in life that are inimical to their crimes. On the morning of the 2d instant, Mr. William Maum, of Hobart Town, sustained the loss of three stacks of wheat by fire at his farm at Clarence Plains, owing to the act of an incendiary.

On the 14th of November a large body, consisting of fourteen men and two women, were unwelcomely fallen in with by a single man on horseback, at Scantling's Plains. Howe and Geary were the most conspicuous; they compelled him to bear testimony to the swearing in of their whole party, to abide by some resolutions dictated in a written paper, which one of them finished writing in the traveller's presence. After a detention of about three quarters of an hour, he was suffered to proceed under strong injunctions to declare what he had been an eye-witness of; and to desire Mr. Humphrey, the magistrate, and Mr. Wade, the chief constable, to take care of themselves, as they were bent on taking their lives, as well as to prevent them from growing grain, or keeping goods of any kind. And by the information of a person upon oath, it appears that they had about the same period, forced away two government servants from their habitations, to a distant place, on which the crimes of these wretches have stamped the appellation of murderer's plains, (by themselves facetiously called *the tallow-chandler's shop*) where they kept them to work three days in rendering down beef-fat. How they could afterwards appropriate so great a quantity of rendered fat and suet, is truly a question worthy to be demanded; for it is far more likely it should be taken off their hands by persons in or near the settlements, who are leagued with them, in the way of bartering one commodity for another, than that the bush-rangers should either keep it for their own use, or bestow so much trouble on the preparation of an article that would soon spoil in their hands. The cattle that were in this instance so devoted, were the property of Stones and Tray, who declare that out of three hundred head, one hundred and forty have lately disappeared".

All the outrages above enumerated, it will be seen, were perpetrated within the short period of ten days; and these settlements continued the scene of similar enormities until the July following, an interval of nearly eight months. On the serious injury which the industrious and deserving of all classes, must have experienced in that time, from the inability of the government to afford them protection, it would be useless here to dilate. It must be evident, that such extremes of anarchy could not be of any long duration; and that one or other of these two events became inevitable; either that the exertions and enterprizes of the colonists should be brought to a stand, or that these disturbers of the general tranquillity, should suffer condign punishment. Fortunately the cause of public justice triumphed, and the majority of these monsters either fell victims to common distrust, or to the violated laws of their country. And here, after detailing some few of their excesses, I cannot refrain from giving in turn the account of the measures that led to their discomfiture and apprehension, as extracted from the Sydney Gazette of the 4th October, 1817.

A meeting of public officers and principal inhabitants and settlers, was convened at Hobart Town, by sanction of his honour, Lieutenant-Governor Sorrel, (the successor of Colonel Davy) on the 5th of July, for the purpose of considering the most effectual measures for suppressing the banditti; when the utmost alacrity manifested itself to support the views of government in promoting that desirable object, and a liberal subscription was immediately entered into for the

purpose. The following proclamation was immediately afterwards issued by the Lieutenant-Governor.

Whereas, the armed banditti, who have for a considerable time infested the interior of this island, did on the 10th ultimo, make an attack upon the store at George Town, which being left unprotected, they plundered, taking away two boats, which they afterwards cast ashore at the entrance of Port Dalrymple; and whereas, the principal leader in the outrages which have been committed by this band of robbers, is Peter Geary, a deserter from his Majesty's 73d regiment, charged also with murder and various other offences; and whereas, the undermentioned offenders have been concerned with the said Peter Geary in most of these enormities; the following rewards will be paid to any person or persons, who shall apprehend these offenders, or any of them:

Peter Geary--One Hundred Guineas.

Peter Septon, John Jones, Richard Collyer--Eighty Guineas each.

Thomas Coine, Brown or Brune, a Frenchman--Fifty Guineas each.

And whereas, George Watts, a prisoner, who absented himself from the Coal River, previous to the expiration of his sentence, and who stands charged with various robberies and crimes, is now at large: it is hereby declared, that a reward of eighty guineas will be paid to any person or persons, who shall apprehend the said George Watts.

And all magistrates and commanders of military stations, and parties, and all constables and others of his majesty's subjects, are enjoined to use their utmost efforts to apprehend the criminals above named.

On the 10th of July, a division of the banditti proceeded to George Town, and seizing upon the government boats, induced five of the working people to abscond with them; upon representation whereof to the Lieutenant-Governor, a proclamation was issued requiring the return of those persons, under the assurance of forgiveness, if so returning within twenty days, from the consideration that the settlement of George Town had been for some days without command or controul; the causes of which will be found in our supplement of this day; wherein Mr. Superintendent Leith, has, in his testimony upon the murder of the chief constable of the settlement, declared his necessary absence to Launceston at that express period.

The gang of bush-rangers appeared in the vicinity of Black Brush on Saturday, and were tracked on the following morning by Serjeant M'Carthy, of the 46th, with his party. On Monday the bush-rangers were at a house at Tea-tree Brush, where they had dined, and about three o'clock Serjeant M'Carthy with his party came up. The bush-rangers ran out of the house into the woods, and being eleven in number, and well covered by timber and ground, the eight soldiers could not close with them. After a good deal of firing, Geary the leader was wounded, and fell; two others were also wounded. The knapsacks of the whole and their dogs were taken. Geary died the same night, and his corpse was brought into town on Tuesday, as were the two wounded men.

The remaining eight bush-rangers were seen in the neighbourhood of the Coal River on Wednesday; but, as they must have been destitute of provisions and ammunition, sanguine hopes were entertained of their speedy fall.

Dennis Currie and Matthew Kiegan, two of the original bush-rangers, surrendered on the Monday following.

On Wednesday, a coroner's inquest was held on the body of James Geary, who died of the wound received in the affair at Tea-tree Brush. Verdict, Homicide in furtherance of public justice.

Jones, a principal of the banditti, was shot in the beginning of August, in the neighbourhood of Swanport, which is on the eastern shore. For some days they had not been heard of; but by the extraordinary exertions of Serjeant M'Carthy and his party of the 46th regiment, were tracked and overtaken at the above place; on which occasion Jones was killed on the spot by a ball through the head. A prisoner of the name of Holmes was by the bush-ranger's fire, wounded in two places, but we do not hear mortally.

On the Sunday evening after the above affair, some of the villains effected a robbery at Clarence Plains; but became so excessively intemperate from intoxication as to quarrel among themselves; the consequence was, that another of the gang of the name of Rollards, having been most severely bruised and beaten by his associates fell into the hands of a settler, and was by him taken a prisoner into Hobart Town. White and Johnson, two others of the gang, were apprehended by Serjeant M'Carthy's party, on Thursday the 14th of August, being conducted to their haunts by a native woman, distinguished by the name of Black Mary, and another girl.

After the above successes in reducing the number of these persons, some of them still continued out, on the 16th of August, as appears from a report published: of the old bush-rangers, Septon, Collyer, Coine, and Brune, also Watts, who kept separate from the rest, and Michael Howe, who had before delivered himself up, and after remaining some weeks in Hobart Town, took again to the woods, from a dread, as was imagined, of ultimately being called to answer for his former offences. At this period also, there were two absentees from George Town, Port Dalrymple; a number of the working hands having gone from that settlement shortly before, all of whom had returned to their duty but these two. White, Rollards, and Peck, were about this time under a reward of sixty guineas for their apprehension, for an attempt to commit a robbery at Clarence Plains: Peck was a freeman, the other two prisoners.

By the 6th of September, nearly the whole of the absentees of whatever description had either surrendered or been apprehended; and upon this day a proclamation was issued offering the following rewards: for the apprehension of Michael Howe, one hundred guineas; for George Watts, eighty guineas; and for Brune, the Frenchman, fifty guineas; and in consequence of these prompt and efficacious arrangements, additional captures had been made, which placed it nearly beyond a doubt that Howe is almost, if not the only individual of the desperate gangs now at large.

This latter assertion, however, does not appear to have been correct; for in a Sydney Gazette of the 25th of October, of the same year, we have the following account of the apprehension and surrender of some others of this banditti, and of an unsuccessful attempt to take Michael Howe, which will tend to elucidate the desperate character of this ruffian.

Several persons have arrived as witnesses on the prosecution of offenders transmitted for trial by the Pilot; two of whom are charged with wilful murder, viz. Richard Collyer, as a principal in the atrocious murder of the late William Carlisle and James O'Berne, who were shot by a banditti of bush-rangers at the settlement of New Norfolk, on the 24th of April, 1815; the particulars whereof were published in the Sydney Gazette of the 20th of the following May. The

other prisoner for murder is John Hilliard, who was also one of the banditti of bush-rangers; but being desirous of giving himself up, determined previously by force or guile, to achieve some exploit, that might place the sincerity of his contrition beyond doubt. Accident soon brought the above Collyer, together with Peter Septon, another of the banditti, within his power. He attacked and killed Septon, and wounded Collyer, who nevertheless got away, but was soon apprehended. It is for the killing of Septon, he is therefore to be tried. Four of the prisoners sent by this vessel are for sheep stealing. Another of the late banditti, George Watts, is come up also, but under no criminal charge, as we are informed, he having been desperately wounded by Michael Howe, in an attempt assisted by William Drew, to take him into Hobart Town a prisoner; but in which exertion Drew was shot dead by that desperate offender, and the survivor Watts nearly killed also.

I have been thus copious in extracts from the Sydney Gazette, to shew the lamentable state of danger and anarchy in which the colonists on Van Diemen's Land have been kept by an inconsiderable banditti; who, from the imbecility of the local government, have been enabled to continue for many years in a triumphant career of violence and impunity. This iniquitous and formidable association may, indeed, be considered as crushed for the moment, although the most desperate member of it is still at large. But what pledge have the well disposed part of the inhabitants, that a band equally atrocious will not again spring up, and endanger the general peace and security? What guarantee, in fact, have they that this very ruffian, the soul and center of the late combination, will not serve as a rallying point to the profligate, and again collect around him a circle of robbers and murderers as desperate and bloody as the miscreants who have been annihilated? And can the pursuits of industry quietly proceed under the harassing dread which this constant liability to outrage and depredation must inspire? There is no principle less controvertible than that the subject has the same claims on the government for support and protection, as they have on him, for obedience and fidelity. The compact is as binding on the one party, as on the other; and it is really discreditable to the established character of this country, that any part of its dominions should have continued for so long a period, the scene of such flagrant enormities, merely from the want of a sufficient military force to ensure the due administration of the laws, and to maintain the public tranquillity.

CLIMATE, ETC.

The climate of this island is equally healthy, and much more congenial to the European constitution, than that of Port Jackson. The north-west winds, which are there productive of such violent variations of temperature, are here unknown; and neither the summers, nor winters, are subject to any great extremes of heat, or cold. The frosts, indeed, are much more severe, and of much longer duration; and the mountains with which this island abounds, are covered with snow during the greater part of the year; but in the vallies it never lingers on the ground more than a few hours. Upon an average, the mean difference of temperature, between these settlements and those on New Holland, (I speak of such as are to the eastward of the Blue Mountains; for the country to the westward of them, it has been already stated, is equally cold with any part of Van Diemen's Land,) may be estimated at ten degrees of Fahrenheit, at all seasons of the year.

The prevailing diseases are the same as at Port Jackson: i. e. phthisis, and dysentery; but the former is not so common. Rheumatic complaints, however, which are scarcely known there, exist here to a considerable extent.

SOIL, ETC.

In this island, as in New Holland, there is every diversity of soil, but certainly in proportion to the surface of the two countries, this contains, comparatively, much less of an indifferent quality. Large tracts of land perfectly free from timber or underwood, and covered with the most luxuriant herbage, are to be found in all directions; but more particularly in the environs of Port Dalrymple. This sort of land is *invariably* of the very *best description*, and *millions* of acres still remain *unappropriated*, which are capable of being instantly converted to all the purposes of husbandry. *There the colonist has no expence to incur in clearing his farm: he is not compelled to a great preliminary out-lay of capital, before he can expect a considerable return; he has only to set fire to the grass, to prepare his land for the immediate reception of the plough-share; so that, if he but possess a good team of horses, or oxen, with a set of harness, and a couple of substantial ploughs, he has the main requisites for commencing an agricultural establishment, and for ensuring a comfortable subsistence for himself and family.*

To this great superiority which these southern settlements may claim over the parent colony, may be superadded two other items of distinction, which are perhaps of equal magnitude and importance. First, The rivers here have sufficient fall in them to prevent any excessive accumulation of water, from violent or continued rains; and are consequently free from those awful and destructive inundations to which all its rivers are perpetually subject. Here, therefore, the industrious colonist may settle on the banks of a navigable river, and enjoy all the advantages of sending his produce to market by water, without running the constant hazard of having the fruits of his labour, the golden promise of the year, swept away in an hour by a capricious and domineering element. Secondly, The seasons are more regular and defined, and those great droughts which have been so frequent at Port Jackson, are altogether unknown. In the years 1813, 1814, and 1815, when the whole face of the country there was literally burnt up, and vegetation completely at a stand still from the want of rain, an abundant supply of it fell here, and the harvests, in consequence, were never more productive. Indeed, since these settlements were first established, a period of fifteen years, the crops have never sustained any serious detriment from an insufficiency of rain; whereas, in the parent colony, there have been in the thirty-one years that have elapsed since its foundation, I may venture to say, half a dozen dearths, occasioned by drought, and at least as many arising from floods.

The circumstance, therefore, of Van Diemen's Land being thus exempt from those calamitous consequences, which are so frequent in New Holland, from a superabundance of rain in the one instance, and a deficiency of it in the other, is a most important point of consideration, for all such as hesitate in their choice betwixt the two countries; and is well worthy the most serious attention of those who are desirous of emigrating to one or the other of them, with a view to become mere agriculturists.

In the system of agriculture pursued in the two colonies, there is no difference, save that the Indian corn, or maize, is not cultivated here, because the climate is too cold to bring this grain to maturity. Barley and oats, however, arrive at much greater perfection, and afford the inhabitants a substitute, although by no means an equivalent, for this highly valuable product. The wheat, too, which is raised here, is of much superior description to the wheat grown in any of the districts at Port Jackson, and

will always command in the Sydney market, a difference of price sufficiently great to pay for the additional cost of transport. The average produce, also, of land here, is greater, although it does not exceed, perhaps not equal the produce of the rich flooded lands on the banks of the Hawkesbury and Nepean. A gentleman who resided many years at Port Dalrymple, estimates the average produce of the crops at that settlement as follows: Wheat, thirty bushels per acre; barley, forty-five bushels per ditto; oats, he does not know, but say sixty bushels per ditto. This estimate is not at all calculated to impress the English farmer with as favourable an opinion of the fertility of this settlement as it merits; but if he only witnessed the slovenly mode of tillage which is practised there, he would be surprised not that the average produce of the crops is so small, but that it is so great. If the same land had the benefit of the system of agriculture that prevails throughout the county of Norfolk, it may be safely asserted that its produce would be doubled. The land on the upper banks of the river Derwent and at Pitt-water, is equally fertile; but the average produce of the crops on the whole of the cultivated districts belonging to this settlement, is at least one-fifth less than at Port Dalrymple.

These settlements do not contain either such a variety or abundance of fruit as the parent colony. The superior coldness of their climate sufficiently accounts for the former deficiency, and the greater recency of their establishment for the latter. The orange, citron, guava, loquat, pomegranate, and many other fruits which attain the greatest perfection at Port Jackson, cannot be produced here at all without having recourse to artificial means; while many more, as the peach, nectarine, grape, etc. only arrive at a very inferior degree of maturity. On the other hand, as has been already noticed, the apple, currant, gooseberry, and indeed all those fruits for which the climate of the parent colony is too warm, are raised here without difficulty.

The system of rearing and fattening cattle is perfectly analogous to that which is pursued at Port Jackson. The natural grasses afford an abundance of pasturage at all seasons of the year, and no provision of winter provender, in the shape either of hay or artificial food, is made by the settler for his cattle; yet, notwithstanding this palpable omission, and the greater length and severity of the winters, all manner of stock attain there a much larger size than at Port Jackson. Oxen from three to four years old average

here about 700 lbs. and wethers from two to three years old, from 80 to 90 lbs.; while there oxen of the same age, do not average more than 500 lbs. and wethers not more than 40 lbs. At Port Dalrymple it is no uncommon occurrence for yearly lambs to weigh from 100 to 120 lbs. and for three year old wethers to weigh 150 lbs. and upwards; but this great disproportion of weight arises in some measure from the greater part of the sheep at this settlement, having become, from constant crossing, nearly of the pure Teeswater breed. Still the superior richness of the natural pastures in these southern settlements, is without doubt the main cause of the increased weight at which both sheep and cattle arrive; since there is both a kindlier and larger breed of cattle at Port Jackson, which nevertheless, neither weighs as heavy, nor affords as much suet as the cattle there. This is an incontrovertible proof that the natural grasses possess much more nutritive and fattening qualities in this colony than in the other; and the superior clearness of the country is quite sufficient to account for this circumstance, without taking into the estimate the additional fact, that up to a certain parallel of latitude, to which neither the one nor the other of the countries in question extends, the superior adaptation of the colder climate for the rearing and fattening of stock, is quite unquestionable.

The price of provisions is about on a par in the two colonies, or if there be any difference, it is somewhat lower here. Horses three or four years back were considerably dearer than at Port Jackson; but large importations of them have been made in consequence, and it is probable that their value is before this time completely equalized.

The wages of ordinary labourers are at least thirty per cent. higher, and of mechanics, fifty per cent. higher than in the parent colony; a disproportion solely attributable to the very unequal and injudicious distribution that has been made of the convicts.

The progress made by these settlements in manufactures, is too inconsiderable to deserve notice, further than as it affords a striking proof in how much more flourishing and prosperous a condition they are than the parent colony.

The commerce carried on by the colonists is of the same nature as that which is maintained by their brethren at Port Jackson. Like these, they have

no staple export to offer in exchange for the various commodities which they import from foreign countries, and are obliged principally to rely on the expenditure of the government for the means of procuring them. Their annual income may be taken as follows:

Money expended by the government for the pay and subsistence of the civil and military, and for the support of such of the convicts as are victualled from the king's stores,	£30,000
Money expended by foreign shipping,	3,000
Wheat, etc. exported to Port Jackson,	4,000
Exports collected by the merchants of the settlement,	5,000
Sundries,	2,000

Total,	£44,000

The duties collected in these southern settlements, are exactly on the same scale as at Port Jackson, and amount to about £5,000 annually, inclusive of the per centage allowed the collectors of them.

A general Statement of the Land in Cultivation, etc. the Quantities of Stock, etc. as accounted for at the General Muster in New South Wales, taken by His Excellency Governor Macquarie, and Deputy Commissary General Allan, commencing the 6th October, and finally closing the 25th November, 1817, inclusive; with an exact Account of the same at Van Diemen's Land.

Acres in Wheat	18,462
Ground prepared for Maize	11,714
Barley	856½
Oats	156¾
Pease and Beans	204¼
Potatoes	559
Garden and Orchard	863
Cleared ground	47,564¼

Total held	235,003 ¹ / ₄
Horses	3,072
Horned cattle	44,753
Sheep	170,920
Hogs	17,842
Bushels of wheat	24,05 [sic]
Bushels of Maize	1,506

N. B. Total Number of Inhabitants in the Colony, including Van Diemen's Land, 20,379.

PART II.

OPERATION OF THE EXISTING SYSTEM OF GOVERNMENT IN THE COLONY FOR THE LAST FIFTEEN YEARS.

It is generally considered a matter of astonishment that the colony of New South Wales, situated as it is, in a climate equal to that of the finest parts of France, of Spain, and of Italy, and possessing a soil of unbounded fertility, should have made so little progress towards prosperity and independence. The causes, however, which have contributed to its retardment, are the same, as have been attended with similar effects in all ages. Not only the records of the years that are no more, but the experience also of the present day, concur in proving that the prosperity of nations is not so much the result of the fertility of their soil, and the benignity of their climate, as of the wisdom and policy of their institutions. Decadence, poverty, wretchedness, and vice, have been the invariable attendants of bad governments; as prosperity, wealth, happiness, and virtue, have been of good ones. Rome, once the glory of the world; now a bye-word among the nations: once the seat of civilization, of affluence, and of power; now the abode of superstition, poverty, and weakness, is a lasting monument of the truth of this assertion. Her greatness was founded on freedom, and rose with her consulate; her decadence may be said to have commenced with her first emperor, and was completed under his vicious and despotic dynasty: her climate and soil still remain; but the freedom which raised her to the empire of the world has passed away with her institutions.

If we search still further back into antiquity, we shall find that all the great nations which have at various times preponderated over their neighbours, attained their utmost force and vigour, during the period of their greatest freedom and virtue; and that their decadence and ultimate annihilation were the work of a succession of vicious and tyrannical rulers. The empires of Persia and of Greece, were successively established by the superior freedom and virtue of their citizens; and it was only when the institutions, which

were the source of this freedom and virtue, were no longer revered and enforced, that each in its turn became the prey of a freer and more virtuous people.

The experience of modern times is still more conclusive on this subject; because no part of the chain of events which have contributed to the aggrandisement or impair of existing nations, lies hid in the mist of ages. If we regard the unprecedented wealth and power of our own country, we shall be convinced that her present pre-eminent position is not so much the effect of her soil and climate, since in these respects she is confessedly behind many of the nations of Europe, as of the superior freedom of her laws, which have engendered her a freer, more virtuous, and more warlike race of people. It is to her superior polity alone that she is indebted for a dominion, unparalleled in the history of the world; and it is to its rigid maintenance and enforcement that she must look for its durability.

While England has been thus assiduously attentive to her own immediate internal prosperity, she has not in general been neglectful of those external possessions, which she has gradually acquired by colonization, by conquest, or by cession. On the most distant branches of her empire, she has engrafted, as far as circumstances would in general admit, those institutions which have been the main cause of her own internal happiness and prosperity. In the West Indies, in Canada, and lately in the Ionian Islands, she has introduced the elective franchise, and established that mixed counterpoising form of government, whose three component parts, though essentially different in their natures, so admirably coalesce and form one combined harmonious whole. It has, in fact, been one of the leading maxims of her political conduct, and undoubtedly one of the chief causes of her present greatness, to attach the people who have been embodied into her empire, or who have emigrated from her shores only to colonise new countries, and thus to extend her limits and increase her resources, by an equality of rights and privileges with her subjects at home. The navigation act, indeed, militates in some degree, against the liberal view here taken of her colonial policy; but the existence of this single act, which, however its wisdom may be at present canvassed, there can be no doubt has proved the basis of her commercial and maritime ascendancy, will not invalidate the claim to liberality, of which her colonial system is in other respects

deserving. The conduct of her government has undoubtedly been in most instances liberal and enlightened; and if they have occasionally deviated from their ordinary enlarged policy of establishing the representative system, and leaving to the colonies, themselves, the liberty of framing laws adapted to their several circumstances and wants, it has been principally in those cases where the ancient inveterate habits of the people, their difference of religion, and inferior civilization, have rendered such deviations unavoidable. India furnishes the principal example of such exception to her general policy; yet, even in her remote possessions in that country, the sixty millions who are subject to her sway, enjoy a security of person and property unknown to them while under the government of their native princes. It is on this amelioration in their condition, and not on the strength and number of her armies, that her dominion in that part of the world is founded; and after all, what government is so stable as that which is bottomed on opinion, and depends for its existence on general utility, and the consent of the governed? Dominion may, indeed, be acquired, and continued by force and terror; but if it have no other props to support it, it is at best but precarious, and must, sooner or later, fall, either by the resistance of those whom it would hold in subjection, or by undermining their moral and physical energies, and thus rendering them unfit even for the vile purposes of despotism itself.

The colony of New South Wales, is, I believe, the only one of our possessions exclusively inhabited by Englishmen, in which there is not at least the shadow of a free government, as it possesses neither a council, a house of assembly, nor even the privilege of trial by jury. And although it must be confessed that the strange ingredients of which this colony was formed, did not, at the epoch of its foundation, warrant a participation of these important privileges, it will be my endeavour in this essay to prove that the withholding of them up to the present period, has been the sole cause why it has not realized the expectations which its founders were led to form of its capabilities.

It is not difficult to conceive that the same causes, which in the lapse of centuries have sufficed to undermine and eventually ingulph vast empires, should be able to impede the progress of smaller communities, whether they be kingdoms, states, or colonies. Arbitrary governments, indeed, are so

generally admitted to impair the moral and physical energies of a people, that it would be superfluous to enter into an elaborate disquisition, in order to demonstrate the truth of a position, which has been confirmed by the experience of ages. Whoever is convinced that he has no rights, no possessions that are sacred and inviolable, is a slave, and devoid of that noble feeling of independence which is essential to the dignity of his nature, and the due discharge of his functions. This noble assurance that he is in the path of duty and security, so long as he refrain from the violation of those laws which may have been framed for the good of the community of which he is a member, is the main spring of all industry and improvement. But this dignified feeling cannot exist in any society which is subject to the arbitrary will of an individual; and although the governor of this colony does not exactly possess the unlimited authority of an eastern despot, since he may be ultimately made accountable to his sovereign and the laws, for the abuse of the power delegated to him, I may be allowed to ask, should he invade the property, and violate the personal liberty of those whom he ought to govern with justice and impartiality, where are the oppressed to seek for retribution? Is it in this country, situated at sixteen thousand miles from the seat of his injustice and oppression? To tell a poor man that he may obtain redress in the court of King's Bench, what is it but a cruel mockery, calculated to render the pang more poignant, which it would pretend to alleviate?

I am not here amusing myself with the supposition of contingencies that may never occur. I am alluding to outrages that have been actually perpetrated, and of which the bare recital would fill the minds of a British jury with the liveliest sentiments of compassion and sympathy for the oppressed, and of horror and indignation against the oppressor. Leaseholds cancelled, houses demolished without the smallest compensation, on the plea of public utility, but in reality from motives of private hatred and revenge; freemen imprisoned on arbitrary warrants issued without reference to the magistracy, and even publicly flogged in the same illegal and oppressive manner: such were the events that crowded the government of a wretch, whom it would be as superfluous to name, as it is needless to hold him up to the execration of posterity* If such an immortality were, as it appears to have been, the object of his pursuit, he has completely attained it. Almost at his very offset in life, he acquired a notoriety which has increased

through all the subsequent sinuosities of his career. Not content with pushing the discipline of the service to which he belonged, in itself sufficiently severe, to its extreme verge, by an excess of vexatious brutality, he goaded into mutiny a crew of noble-minded fellows, the greater part of whom it has been since discovered, pined away their existence on a desolate island, lost to their country and themselves, the sad victims of an unavailing remorse. Yet there is one of them still living, who has since fully evinced his devotedness for his country's glory, and has been deservedly raised to that elevated rank in her service, which but for him many more might have lived to attain. Despised by his equals in his profession, and detested by his inferiors, he was contradistinguished from other worthy officers of the same name, by prefixing to his *that* of the vessel which was the scene of this act of insubordination, in the event the grave of many a noble spirit, that might otherwise have proved an honour to themselves and a credit to their country. The brutal tyranny that characterised his conduct on this occasion, would have alone sufficed to brand him with the imputation of "coward," had it been even unconnected with the many subsequent acts of oppression which have stamped his career, and of which it is to be hoped for the prevention of future monsters, that the infamy will long survive the records. The 26th of January, 1808, the memorable day when, by the spontaneous impulse of a united colony, he was arrested; and fortunate for the cause of humanity is it that he was then arrested, for ever** in the perpetration of the most atrocious outrages that ever disgraced the representative of a free government, has substantiated his claim to this character beyond the possibility of doubt. Dreading the resentment of the people whom he had so often and so wantonly oppressed, and having on his back that uniform which was never so dishonoured before, he skulked under a servant's bed in an obscure chamber of his house, but was at length discovered in this disgraceful hole, and conducted pale, trembling, and covered with flue,*** before the officer who had commanded his arrest; nor could this gentleman's repeated assurances that no violence should be offered his person, convince him for a considerable time that his life was in safety from the vengeance of the populace: so conscious was he of the enormity of his conduct, and of the justice of an immediate and exemplary retaliation.

[* The following anecdote, for the authenticity of which I pledge myself, will afford a better illustration of this monster's character, than whole pages of general declamation and invective. At the period of his government cattle were very scarce in the colony, and the stockholders were

very tenacious of allowing their cows to be milked, from the injury which it did the calves. Milk was in consequence a great rarity; but as the governor, naturally enough, did not choose to forego any of the good things of this life, particularly whenever it was in his option to obtain them without any expence, he had always a number of cattle from the government herds, to furnish a supply of it for his household. The surplus he generously distributed among his favourites. One of these was a gentleman belonging to the medical staff, who used in common with all those permitted the same indulgence, to send his servant daily for his share of this precious fluid. This unfortunate wight happened to go one morning a little too late; and whether the person charged with the distribution of this milk had been a little too liberal in his donations to such of the gentlemen's servants as had attended in due time, or whether the cows did not give their usual quantity that morning, there was not a drop left for him on his arrival. Not reflecting that this disappointment was occasioned by his own negligence, he ventured to make some remarks, such as "he did not know why his master should not have his share as well as another gentleman, etc. etc." which proved so highly disagreeable to the feelings of the great man who administered this highly important office, that he immediately went and complained to the still greater man who had invested him with it. This august personage not only feelingly participated in the insult which had been offered his faithful domestic, but also vowed that he should have the most ample satisfaction. He accordingly ordered the complainant to send the offending party into his presence on the following morning; strictly enjoining him before hand, to take especial care that he should remain ignorant of the chastisement which was in petto for him. The next morning when the poor fellow came as usual for his master's quota of milk, he was told by the great man whom he had the day before unwittingly offended, that the governor desired to speak to him. Wondering that so distinguished a personage should even know that so humble a being as himself was in existence, and at a loss to conjecture what could be his gracious will and pleasure, he was ushered trembling into his dread presence. In an instant his alarms were quieted. The governor told him with a condescending smile, that as the chief constable's house was in his way home, he had merely sent for him to be the bearer of a letter to that person, from a desire to spare his dragoon the trouble of carrying it. The poor fellow, of course, delivered the letter with all haste, little imagining what were its contents. When the chief constable perused it, he ordered out the triangles; the poor wretch was instantly tied up to them, and in a stupor of surprise and consternation underwent the punishment, (whether twenty-five or fifty lashes I am not sure) which was ordered to be given him, without any explanation till after its infliction, of the reasons why he received it. Was not this a refinement of cruelty worthy the most atrocious monster of antiquity?]

[** When I wrote this part of the present work the person to whom it has reference was living; and the only alteration which I have made in it since his death, has been the necessary changes in the tenses of the verbs. My assertions have been scrupulously regulated by truth; but I am still aware that they might have been pronounced libellous in a court of justice; and I have been advised by some of my friends to cancel them, on the ground that the recollection of injuries should not be prolonged beyond the grave. The applicability, however, of this principle to private resentments is not more evident, than its inapplicability to public. The tomb which ought to be the goal of the one, is the starting-post of the other. It is the legitimate province, nay, more, one of the most sacred duties of the annalist to speak of public characters after their deaths, with that severity of reprobation or of praise, to which their conduct in public life may have entitled them. Have not all impartial biographers and historians acted on this principle? And shall I be deterred from following so just and salutary an example? If when death has set his seal upon a man's actions, and when the evil which he has committed is irremediable, the voice of censure is still to be silent, when, I may ask, ought it to be heard? Had such an ill-judged forbearance been practised by historians, would the world have known that any tyrants, except those who may

exist at the present epoch, or who may have existed within the reach of memory or of tradition, ever infested the earth? Would not the enormities of the Dionysii, of Caligula, and of Nero, have been long since forgotten? And would not many of those princes who have merited and obtained the appellations of "great," of "good," and of "just," have become as atrocious monsters as *these* were, but from the dread of being held up as objects of similar execration to posterity? The tyrant, indeed, whose conduct I would stamp with merited detestation, moved, fortunately for the interests of mankind, in a humbler sphere, and therefore, his atrocities have a greater tendency to sink into premature oblivion. But is it a less sacred duty to take all such steps as may be calculated to deter his successors from treading in his footsteps; because they will only have *thousands* to trample upon instead of *millions*? Ought not oppression in every community, whether great or small, to be discouraged by every possible means? And what means are so likely to effect this end, and to prevent these secondary tyrants from sneaking out of the pages of record and recollection, as to project their memories red-hot from the sun of public indignation, with a long fiery train of inextinguishable ignominy, which may serve to point out their tracks; and to render them for ever glaring objects of dread and execration, not only to the planet of which they may have proved the bane, but to the whole system encircled by their orbits? In persevering, therefore, in the remarks which I made on this man's actions when he was living, it is my conscientious belief that I have only acquitted myself of an imperative duty; and that I should have been guilty of a gross dereliction of it, had I done otherwise. On this conviction, unalloyed by any baser impulse, I rest the defence of my conduct; should there be any of my readers, who may be inclined to view it in the same unjustifiable light as it is regarded by some few of my friends.]

[*** See Lieutenant-Colonel Johnstone's court-martial.]

The instance of this man's conduct, is, I am willing to allow, an aggravated one, and such as it is to be hoped for the honour of our species would be rarely repeated. That it has occurred is, however, sufficient to demonstrate the impropriety of confiding unlimited power to any individual in future. The mere possession, indeed, of such vast authority, is calculated to vitiate the heart, and to engender tyranny; nor are examples wanting in history of persons, who though models of virtue and moderation in private stations, yet became the most bloody and atrocious tyrants on their elevation to supreme power. So great, indeed, is the fallibility of human nature, that the very best of us are apt to deviate from that just mean, in the adherence to which consists virtue. All governments, therefore, should provide against this capital defect; they should be so constituted as not only to have in view what should happen, but also what might; possibilities should be contemplated as well as probabilities. The power to do good should if possible be unlimited: the ability to do evil, followed with the highest responsibility, and restrained by a moral certainty of punishment. An authority such as the governor of this colony possesses, might be tolerated under a despotic government; but it is a disgrace to one that piques itself on its freedom. What plea can be urged for encouraging excesses in our

possessions abroad, that would be visited with condign punishment in our courts at home? Are those who quit the habitations of their fathers, to extend the limits and resources of the empire, deserving of no better recompence than a total suspension of the rights and liberties which their ancestors have bequeathed them? Are they on their arrival in these remote shores, to meet with no one of the institutions, which they have been taught to cherish and to reverence? If the want, indeed, of these institutions, of which so many centuries have attested the wisdom, had as yet been productive of no evil, there might be some excuse offered for the withholding of them; but after such a scandalous abuse of authority, the colonists expected, and had a right to expect, that no subsequent governor would have been appointed without the intervention of some controlling power, which, while it should tend to strengthen the executive in the due discharge of its functions, might at the same time protect the subject in the legitimate exercise and enjoyment of his private and personal rights. Never was there a period since the foundation of the colony, when the impolicy of its present form of government was so strikingly manifest; and never, perhaps, will there be an occasion, when the establishment of a house of assembly, and of trial by jury, would have been hailed with such enthusiastic joy and gratitude: and accordingly the disappointment of the colonists was extreme, when on the arrival of Governor Macquarie, it was found that the same unwise and unconstitutional power, which had been the cause of the late confusion and anarchy was continued in all its pristine vigor; and that he was uncontrolled even by the creation of a council.

I would here have it most distinctly understood that I do not mean to cast the slightest imputation on the conduct of this gentleman, whom his majesty's ministers selected with so much discrimination in this delicate and embarrassing conjuncture. The manner in which he has discharged, during a period of more than nine years, the important functions confided to him, has completely justified the high opinion that was formed of his moderation and ability. He has fully proved that he had no need of any controlling power,* to keep him in the path of honour and duty; and has raised the colony, by his single prudence and discretion, to as high a pitch of prosperity, as it perhaps could have attained, in so short a period, under such a paralyzing form of government. But it has not been in his power to benefit the colony to the extent which he has contemplated and desired; many of the projects

which he has submitted to the consideration of his majesty's ministers, have not obtained their approval. It would appear, indeed, that the very parent, to whom this strange unconstitutional monster owes its birth and existence, is distrustful of her hideous progeny; and that by way of securing the people whom she has suffered it to govern against the unlimited devastations which it might be tempted to commit, she has prohibited it from moving out of certain bounds, without her previous concurrence and authority. The wisdom of this precaution has been sufficiently manifested by the terrible excesses which it has committed within the sphere of this circumscribed jurisdiction. If its conduct, with the possession of this imperfect degree of liberty has been atrocious, it cannot be difficult to conceive to what lengths an unlimited power of action might have tempted it to proceed. Still there can be no doubt that this state of restraint, on the one hand so salutary and provident, has on the other occasioned much injury, and prevented the adoption of many measures of the highest urgency and importance to the welfare of the colony. Among these the failure of Governor Macquarie's attempt to procure the sanction of his majesty's ministers for the erection of distilleries, is perhaps the most justly to be deplored.

[* Since I wrote this encomium on Governor Macquarie's administration, a petition from some few individuals, complaining of and enumerating several acts of oppression, said to have been committed towards them by this gentleman, has been presented to the House of Commons by Mr. Brougham. The honourable and learned member did not, however, choose to pledge himself for the correctness of the allegations set forth in this petition; and therefore, until they are substantiated, the gentleman whose conduct has been thus impeached, ought to be considered as innocent of the charges preferred against him. If the event, however, should prove that they are founded in truth, the fact will only afford an additional proof of the demoralizing influence of arbitrary authority on the minds of those who possess it, and of the impolicy of suffering the present form of government to continue in force a single hour beyond the period necessary for its supercession. Never was there a more humane and upright man than Governor Macquarie; and if the power with which he has been for so many years intrusted, has indeed at length propelled him beyond the bounds of moderation and justice, it may be safely asserted that there are but very few men in existence whom it would not have tempted to commit a similar indiscretion.]

From the period* at which this colony was able to raise a sufficiency of grain for its consumption, the adoption of this measure has been imperatively called for by the wants and circumstances of its inhabitants; and it is to so palpable an omission, that the constant succession of abundance and scarcity, which, to the astonishment of many inquiring persons, has for the last fifteen years alternately prevailed there, is mainly

ascribable. So long as the necessities of the government were greater than the means of the colonists to administer to them, the productive powers of this settlement developed themselves with a degree of rapidity which furnishes the surest criterion of its fertility and importance. But from the moment this impulse was checked, from the instant the supply exceeded the demand, the colony may be said to have continued stationary, with respect to its agriculture; producing in favourable seasons, somewhat more than enough grain for its consumption, but in unfavourable ones, whether arising from drought, or flood, falling so greatly deficient in its supply, that recourse has been invariably had to India, in order to guarantee its inhabitants from the horrors of famine, which have so often stared them in the face; and to which, but for such salutary precaution, the majority of them must have long ago fallen victims. These dreadful deficiencies have been the natural and inevitable result of a want of market; since no person will expend his time and means in producing that which will not ensure him an adequate return for his pains. So long, therefore, as other channels of industry, yielding a more certain compensation for labour, were open, the colonist would naturally prefer such more profitable occupation, to the comparatively precarious and unproductive culture of his land; and it was accordingly found, that many, who had till then devoted their sole attention to agriculture, abandoned at this period all tillage but such as was necessary for the support of their households, and employed the funds which they had acquired by the former successful cultivation of their farms, in the purchase and rearing of cattle, which continued a certain lucrative employment, long after agricultural produce had become of a depreciated and precarious value. The reason why these two branches of husbandry did not keep pace in this as in other countries, is obvious, from the remoteness of its situation, which rendered the conveyance of cattle thither so extremely difficult and expensive, that but a very limited supply of them was furnished, in comparison with its necessities. The increase, therefore, of these cattle could only be proportionate to their number; while no bounds were as yet assigned to the extension of agriculture, but, on the contrary, the whole combined energies of the colonists directed to this single channel, by the great demand which existed for their produce. Not but that the rearing of cattle was from the commencement equally, and indeed far more profitable than the cultivation of the land; but their exorbitant price excluded all but a few great capitalists from embarking in so profitable an undertaking; while,

on the contrary, a stock of provisions with a few axes and hoes, and a good pair of hands to wield them, were the principal requisites for an agricultural establishment; and, indeed, in the early period of this settlement, all these essentials were supplied the colonists by the liberality of the government, till sufficient time had elapsed for the application of the produce of their farms to their own support.

[* This epoch may be dated so far back as 1804: the harvest of that year was so abundant, and the surplus of grain so extensive, that no sale could be had for more than one half of the crop. During the greater part of the following year, wheat sold at prices scarcely sufficient to cover the expence of reaping, thrashing, and carrying it to market; pigs and other stock were fed upon it; and these two years of such extraordinary abundance involved the whole agricultural body in the greatest distress; grain was then their only property, and it was of so little value that it was invariably rejected by their creditors in payment of their debts. The consequence was that it was wasted and neglected in the most shocking manner; scarcely any person would give it house room, and had the harvest of the following year proved equally abundant, the majority of the settlers must have abandoned their farms, and sought for other employment. Fortunately, however, for the agricultural interests, the great flood of 1806 intervened to prevent the impending desertion; the old and the new stocks on the banks of the Hawkesbury and Nepean were all swept away, and thus for a few years afterwards the supply of grain was pretty nearly kept on a level with the demand for it.]

But to return to the epoch when the supply of corn became too great for the demand, and when, as has been already noticed, some part of those who till then had been exclusively engaged in agriculture, turned their attention to the more beneficial occupation of rearing cattle; still the secession of these, who formed but a very inconsiderable member of the agricultural body, in consequence of the enormous price of cattle even at that period, and the great capital which it consequently required to become a stock-holder to any extent, afforded but a very trivial relief to those who adhered from necessity to their original employment. In this conjuncture, therefore, many of the next richer class abandoned their farms, and with the funds which they were enabled to collect, set up shops or public-houses in Sydney. This town was at that time the more favourable to such undertakings, in consequence of the brisk commerce carried on with China, by means of American and India-built vessels, that were in part owned by the colonial merchants, and procured sandal wood in the Feejee Islands, at a trifling expense, which they carried direct to China, and bartered for return cargoes of considerable value. The Seal Islands too, which were discovered to the southward of the colony, furnished about the same period, an extensive and lucrative employment for the colonial craft, and contributed not less than

the sandal wood trade to the flourishing condition of this port. It was also about this time that the valuable whale fisheries, which the adjacent seas afford, were first attempted; but repeated experiment has proved that the duties which are levied, as well in this country as in the colony, on oil procured in colonial vessels, amount to a complete prohibition. Many of the merchants, whose enterprising spirit prompted them to repeated efforts, in order to bear up against the overwhelming weight of these duties, have found to their cost, that they are an insuperable obstacle to the successful prosecution of these fisheries, which would otherwise prove an inexhaustible source of wealth to the colony, and provide a permanent outlet for its redundant population. These two branches of commerce, so long as they were followed, afforded a support to great numbers of the colonists, and rendered the shock which the agricultural body had sustained, less sensible and alarming. I say these two, because the third has never been prosecuted but with loss; and has, in fact, proved a vortex which has devoured a great part of the profits which the other two yielded. For some years, however, these two channels have been so completely drained, that they are only at present pursued by desperate adventurers, who seldom or never obtain a return commensurate with the risk they run, and the capital they employ. But even during the period of their utmost productiveness, the number of persons who were immediately engaged in them, or who abandoned the plough to place themselves behind the counter, was far from providing a remedy for the disease of the agricultural body: because in the former instance these two branches of commerce were only capable of affording employment to a limited population; and in the latter a capital was necessary, not so great indeed as had been required to enter successfully on the grazing system, but yet far more considerable than it was in the ability of the majority of the colonists to raise. By these migrations, therefore, the pressure and embarrassment of the agricultural body, which by this time had gradually lost the richest and most respectable portion of its members, was but little, if indeed at all alleviated; and some other expedient became everyday more and more necessary to be adopted by those who remained. In this exigency many abandoned their farms altogether, and hired themselves as servants to such richer individuals as had occasion for their services; while others, and undoubtedly the greater part of them, cultivated but a small portion of their land, and afterwards travelled in search of labour till harvest time, at which period they returned, reaped, threshed, and

disposed of their crops, and after recultivating the same spot, sought, during the rest of the year, employment as before, wherever it could be found. This is the mode of life which a great number of the poor settlers pursue to this day.

But the effect of these entire, or partial secessions from the agricultural body, was not so extensively beneficial as might at first be imagined. All this time the population was in a state of rapid progression, both from the daily influx of people from without, and from the amazing fecundity of the colonists within. The distress, therefore, of the colony continued increasing in proportion to its increasing population. And although it may appear strange, that while it was a subject of such notoriety, that the settlers were already too numerous for the occasions of the colony, fresh volunteers should crowd to enrol themselves under their banners; this surprise will cease when it is stated, that the settling of new lands was for many years a matter of traffic between the government and the colonists, by which, as it is natural to conclude, the former were no great gainers. It was their policy, and undoubtedly necessary in the early stages of the settlement, and even at present under proper restrictions, to encourage the extension of agriculture generally, but more particularly in the inland districts, that are not subject to flood; and to this end it was customary to support new settlers with their wives, families, and servants, for eighteen months, at the expense of the crown. The natural consequence was, that all who had become free, either by the expiration of their servitude, by conditional emancipation, or by absolute pardon, and who had no means of support, embraced this offer of the government, which assured them a subsistence that enabled them to seek at their leisure for a more lucrative occupation elsewhere. Nor are these poor creatures who thus profited by the liberality of the government with an intention to abuse it, to be too harshly condemned: still less so are those who, arriving strangers in the colony, and having in most instances wives and families, the support of whom in inactivity would be daily consuming their little all, embraced this the only immediate mode of subsistence that occurred to them. These people, as soon as the helping hand of the government was withdrawn, and it became incumbent on them to depend on their own proper resources, would be immediately subject to the same privation and misery which pressed on their body, and would consequently be under the necessity of resorting to the same expedients for

relief. The great increase which has taken place of late years to the cleared lands in the colony, has been the result of this system, and not the gradual progressive operation of a flourishing agriculture. This assertion I consider fully borne out by a comparison between the quantity of land cleared, and the quantity in cultivation. By the last return from the colony, taken so late as November, 1817, it appears that there are 47,564 acres of cleared land, out of which only 32,814 are cropped; 14,750 acres, therefore, (or nearly one-half of what is in cultivation) are lying waste: a circumstance which can only be accounted for in this manner, since the system of fallowing land is not in practice. It must therefore be evident, that the clearing of so great a portion of land over and above what is required by the situation and wants of the colonists, must have been effected by unnatural means. The increase of produce has not, indeed, outstepped the growth of population, but it has kept pace with it, and all the cleared land which is not employed in the raising of this produce, has evidently been a useless expenditure of labour.

Thus this copious afflux of new colonists into the uninhabited districts in the interior, which had hitherto been exclusively occupied by the flocks and herds of the graziers, did not produce that permanent advantage which the enormous expense incurred by the government in their outfit, ought to have insured. At the same time it was of the most undoubted injury to the stockholders, by preventing them from allowing their cattle to roam at large during the night, from the danger of trespass and poundage, which the indiscriminate dispersion of small agricultural establishments over the whole face of the country, without fences of any description to protect them, every where occasioned. To be sure, the colonists will have derived this very material advantage from the great quantity of cleared land, now lying waste; that whenever the pernicious policy, which has paralysed their energies, and blasted the general prosperity, shall be relinquished, and a judicious system of encouragement substituted in its stead, they will instantly be prepared to profit by the capabilities which the wisdom and justice of the parent government shall have at length afforded them.

But the future increase in the cleared lands will not be proportioned to the past, because directions have of late been transmitted from this country, to allow future colonists only six months provisions from the king's stores, for themselves and their households, instead of eighteen months, as heretofore.

This very material diminution in the measure of encouragement held out to future colonization, will clearly be attended with a threefold operation. It will be a grievous disadvantage to such respectable persons as emigrate from this country, with a real intention, but with funds scarcely adequate to a permanent settlement in the colony; it will still further discourage the existing agriculturist and grazier, by lessening the demand of the government for their produce; and it will increase the general embarrassment, both by narrowing this channel of employment, which was supplied by the liberality of the government, and by curtailing the means of the colonists at large to provide labour for that part of the population, which will be thus turned loose on them twelvemonths sooner than usual.

To the credit of the present governor it must be allowed that he has done all that a benevolent heart and a sagacious head could dictate, to counteract the growing distress and misery. He has exhausted all the means in his power to give employment to the large portion of unoccupied labour, which it has not been within the compass of individual enterprize to absorb. He has effected the greatest improvements in the capital, by enlarging and straightening the streets, and by erecting various public edifices of the highest utility and ornament. The same superintending hand is visible throughout all the inferior towns and townships, many of which indeed are of his own foundation. He has made highways to every cultivated district, thus affording the inhabitants of them the greatest facilities for the cheap and expeditious conveyance of their produce to market. In fine, throughout every part of the colony and its dependent settlements at the Derwent and Port Dalrymple, he has effected improvements which will long continue monuments of the wisdom and liberality of their author. But it cannot be denied, however beneficial these and other improvements of the same nature which are in progress may be, either with respect to their immediate or more remote consequences, that they are but mere temporary sources of alleviation, whose benignant supply will cease with the discharge of the great body of workmen whom they at present maintain in activity. This, indeed, as well as all the other expedients which I have already enumerated, as having been practised in order to find outlets for the superabundant labour, have been productive of no permanent result.

This assertion is satisfactorily substantiated by the present unnatural efforts of the colonists in the establishment of various manufactories, particularly those of cloth and hats. I say unnatural, because in the common course of things, the origin of such establishments ought to be coeval only with an entire occupation of the soil, and redundancy of population. And this chiefly for two reasons: because a greater capital is required in their foundation, and a greater degree of skill and dexterity in their developement. It is on this account that in Canada, and our colonies in the West Indies, which are in a great measure left to the guidance of their native legislatures, and which it is therefore to be presumed, adopt that line of policy at once most consistent with their own interests, and with those of the parent country, since in the persons of her representatives, she approves or annuls their proceedings, we find that manufactures have been altogether neglected, while their agriculture and plantations, while, in fine, the exportation of raw materials, whether the natural or artificial productions of these colonies, has been promoted in every possible manner. That this is the system which ought to have been pursued, we have a still more forcible proof in the instance of the United States of America, and of many of the ancient nations of Europe; which, unfettered by any dependence whatever on any foreign power, and having consequently adopted that policy, which has been found the most consistent with their respective interests, have made but very little progress in manufactures, and are therefore still under the necessity of having recourse for manufactured commodities to other countries. If then the promotion of agriculture be more politic in many independent states, which have not yet attained the same maturity of growth and civilization, that characterize the principal manufacturing nations of the world, by how much more prudent must the encouragement of it be in a dependent colony like this; possessed as it is of all the requisites for an unlimited extension of its agriculture in the fertility of its soil, the benignity of its climate, and the extent of its territory, and wanting all the essentials for the production of manufactures, skill, capital, and population?

The existing state of things, therefore, is not only contrary to the welfare of the colony itself, but also in diametrical opposition to the interests of the parent country. A great manufacturing nation herself, it is her undoubted policy, and that which on every occasion I believe but the present she has pursued, to augment in her colonies, at one and the same time, the

consumption of her own *manufactures*, and the growth of such productions as she has found essential to her own use, or to the supply of other nations. The toleration, therefore, of a system so averse to her acknowledged interests, can only be attributed to ignorance, or inadvertence. But it is not in the forcible abolition of these manufactories, created by necessity, and still rendered indispensable by the same irresistible law, that the condition of the colony is to be ameliorated or redressed. So long as the same pernicious disabilities which have already reduced the colonists to beggary and despair, and rendered unavailing the resources of a country that might rival in the number and value of its exports, the most favoured of the globe are enforced, this manufacturing system is a lamentable but necessary evil. After putting it out of their power to purchase the more costly clothing of the mother country, it would be an intolerable exercise of authority to prevent them from having recourse to the homely products of their own industry and ingenuity. Under existing circumstances, indeed, there is no alternative between permitting them the use of their own manufactures, and compelling them to go naked, or to clothe themselves like the aborigines of the country in the skins of animals. There is but one remedy for the disease of the colony: it is to give due encouragement to agriculture, and to promote the growth of exportable commodities, which its inhabitants may offer in exchange for the productions of other countries. The manufacturing system which has begun to take root, will then wither away of its own accord; since it will then be the least productive manner in which capital and labour can be employed.

Happy would it have been for the colonists, if these repeated efforts, these distressing and embarrassing expedients to supply their wants, had been the only injurious consequences resulting from the stagnation of agriculture. The day when their wretched situation shall have at length awakened the commiseration of the parent country, would then have witnessed the term and bounds of their sufferings. Alas! far different will be the case. Like a ruined merchant, who would defer, to the utmost length, the disgrace of bankruptcy, in the daily hope of some prosperous adventure to retrieve his fortune and restore his credit, the settlers have gone on contracting debts, which have accumulated with the increasing embarrassments of the community. The engagements of the majority of the cultivators, thus swelled in a few years to a bulk, which they had no longer any chance of

reducing: pressed on all sides by their creditors, the mortgage or sale of their farms became inevitable; and even these sacrifices have, in general, been far from cancelling their bonds; so that they not only have ceased to be proprietors, but also still continue debtors to a large amount. Their creditors, in many instances, a set of rapacious, unprincipled dealers, availing themselves of the power which the law would give them over the personal liberty of these, their debtors, immediately took that advantage of their own commanding position, which might have been expected from their characters. They engaged, or more properly speaking, constrained, these poor wretches to cultivate as tenants, the same soil which lately belonged to them, and exacted from them in return, a rent too exorbitant to be paid. Every succeeding year, therefore, has but tended to increase their obligations, and they are, at present, identified with the soil, and reduced to all intents and purposes, except in name, to as complete a state of vassalage as the serfs of Russia. If they should be in need of any trifling supply, it is to their proprietors, and to them only, that they dare have recourse, though they would be able to obtain the same articles a hundred per cent. cheaper elsewhere. To their granaries the whole produce of their industry is conveyed: and, in spite of all their toil and privation, far from discharging their original debts, they find themselves every day more deeply involved. The more they struggle, the more complicated and firm becomes their entanglement. Lamentable as undoubtedly must be such a hopeless state of servitude, it still appears to them preferable to the precincts of a prison. They respire the free invigorating air of their plains, and can still traverse them at their option, or at least when the season arrives which closes their daily task. But this privilege, it must be confessed, is purchased at its uttermost value. We have philanthropists among us, who justly commiserate the condition of that unoffending race of people, who dragged from the scenes of their nativity, and the habitations of their fathers, have been consigned by a gang of merciless kidnappers to perpetual slavery themselves, and to the still more intolerable necessity of bequeathing an existence of similar endurance and degradation to their offspring. After years of strenuous indefatigable exertion these friends of humanity, these noble champions of liberty have succeeded, if not in emancipating those, who had already been consigned to this unmerited doom, at least in preventing the further extension of this infernal traffic. Would it not be an effort worthy the same philanthropy, which has thus secured the protection

and deliverance of unoffending Africa, to procure the emancipation of suffering Australasia? to raise her from the abject state of poverty, slavery, and degradation, to which she is so fast sinking, and to present her a constitution, which may gradually conduct her to freedom, prosperity, and happiness?

It must be admitted that this state of slavery, so galling to the subjects of a free country, has been in some measure imposed on the colonists by their own imprudent extravagance. Already but too much inclined by their early habits of irregularity to licentious indulgence, the prosperous state of their affairs during the first fifteen years after the foundation of the settlement, presented the strongest inducements to a revival of their ancient propensities, which had been repressed, but not subdued. Imagining that the same unlimited market, which was then offered for their produce, would always continue, they only thought of consuming the fruits of their industry; not doubting that the same fields, which thus lavishly administered to the gratification of their desires, would amply suffice for the more moderate enjoyments of their offspring. But when once their produce began to exceed the demand of the government, and when in a short time afterwards from the want of due encouragement, all the various avenues of industry that lay open were successively filled, and the means of occupation either greatly circumscribed, or entirely exhausted, these people, so long habituated to unrestrained indulgence, found it difficult to support that privation, which became incumbent on their condition; and in order to procure those luxuries of which they so severely felt the want, exhausted their credit, and ended by alienating their possessions. There can be but little doubt if the colonists, instead of expending, had providently accumulated the money which they so profusely acquired during the period of their agricultural prosperity, that their actual situation would have been far preferable; for, though the gradual retrogradation, which I should imagine it must at present be sufficiently evident, that the colony has been undergoing for these last fifteen years, would by this time have greatly diminished, if not have totally absorbed their former savings, still their lands would have remained to them, nor would they have been reduced to that state of vassalage and misery, which they are this day enduring. Lamentable therefore, as is their condition, the consideration that it has thus far been occasioned by their own imprudence, is apt to detract from that

unbounded commiseration which it would otherwise excite: if, on the other hand, we do not reflect in extenuation of their thoughtlessness and extravagance, that their former increased means of indulgence, were the result of their industry; that this industry was in the first instance called into activity by the encouragement of the government; that it has since been paralysed by a concatenation of unwise and unjust disabilities imposed by the same power; and that consequently their present wretched and degraded situation is not so much to be ascribed to their former improvidence as to the actual impolicy and injustice of their rulers. If we furthermore consider the short period in which this great change in their circumstances has been effected, we shall feel convinced that so sudden a transition from affluence to poverty could not be patiently endured, and that every method of rendering so unexpected and galling a burthen more supportable, would be naturally and inevitably resorted to. To prove still more satisfactorily that this state of slavery to which so large a proportion of the original settlers are reduced, has not been so much the result of their own imprudence as of the impolicy of their government, numerous instances might be adduced of persons, not indeed skilled in the arts of husbandry, whose habits have always been regular and moderate, who have been for many years stockholders as well as agriculturists, and who, notwithstanding this two-fold advantage, aided by an undeviating economy, have been unable to keep themselves free from the embarrassments in which the bare cultivators of the soil are so generally involved. To what end then, has their frugality been directed, if a few years more will engulph their possessions, and reduce them to the same state of vassalage and degradation, to which their less provident brethren are already subjected? They have, indeed, in the prospective some short period of unexpired freedom; but I doubt much whether the gradual approach of inevitable slavery be scarcely more enviable than slavery itself.

The great concussion which the agricultural interests thus sustained at the epoch when the productive powers of the colony exceeded the consumptive, and the continued shocks to which they have been exposed ever since, have not unfortunately affected the agricultural prosperity alone, but have shaken to the foundation the commercial edifice also. Unluckily both the agricultural and commercial classes seem to have been alike ignorant of the death-blow which had been struck at their welfare. The settler continued in

the same career of thoughtless extravagance which his circumstances when they were even in their most flourishing state had scarcely permitted, and the merchant went on without hesitation, advancing him goods in the hope of extricating his old customer from difficulties which he only imagined to be of temporary pressure; never for a moment suspecting that they were the forerunners of deeper embarrassment and ultimate ruin. Need I state the consequences. The extended credits which the first merchants thus gave the settlers on the strength of the progressive increase of their produce, rendered them at last unable to fulfil the engagements which they had contracted with British and East India houses, and they were eventually involved in the destruction which had so suddenly overwhelmed the great mass of their debtors, on whom they were necessarily dependent for support. All of them who had been distinguished by their equitable dealings, and by their liberality of conduct, received at this moment so rude a shock in their affairs that they have been unable amidst the increasing decadence of the community at large to re-establish their credit, and after disposing of the scattered wrecks of their fortune, have not only been reduced to penury, but are still indebted to their correspondents in the amount perhaps of £100,000. These gentlemen thus driven from the commercial circle by their liberality, unwillingly inflicted a deadly wound on the credit of the colony. Foreign merchants would no longer have any account dealings with their successors; and generally ever since the commercial intercourse with England and the East Indies has been maintained without any confidence on the part of the merchants of these two countries; the money has been received in one hand, and the goods delivered in the other. This cautious system has given birth to another race of merchants, much more prudent than their predecessors, but also much less serviceable to the colony, and much less adapted to its emergencies. These in their dealings have been forced to observe the same circumspection which had been adopted towards themselves, and have given no credit but to those whose means of payment were unquestionable. As the majority of the colonists have been always in the back ground, since the epoch which I have just described, and have in consequence been unable to produce ready money, a subordinate class of traders, but still superior in their circumstances and the extent of their transactions to those little inferior dealers, who are to be found in all countries, started up, and have since acted as intermediary agents between the importers and the great body of consumers. The object of this class has

been, and continues to be, not so much to realize large fortunes in money, which indeed under existing circumstances would be scarcely possible, as to acquire immense landed possessions: and their system, which, in fact, is the natural consequence of this policy, is to require of the settlers mortgage securities anterior to the supply of such articles as they may be in need of. As they are frequently unable punctually to comply with the conditions of these mortgages, their creditors eagerly embrace the opportunity, whenever it offers, of foreclosing them, and are thus gradually becoming proprietors of the finest estates in the colony; estates which whenever its capabilities shall be called into unrestrained action will ensure them and their posterity fortunes of a colossal magnitude. While this class of traders are thus becoming the most considerable landholders in this settlement, they have not only taken care not to give credit to such an extent as might occasion a diminution in their trading capital, but have even contrived to increase it very materially. This system, therefore, of buying goods, and afterwards selling them at an almost arbitrary profit, the greater part of which is thus converted into landed property, is daily gaining ground, and will infallibly in the end, unless proper measures be speedily taken to counteract it, reduce the great majority of the agricultural body to the same state of vassalage which a large proportion of its members are already enduring. And what renders the increasing wealth and power of the small number who thus profit by the embarrassments of the settlers, and make themselves masters of their persons and properties, still more odious and galling, is the consideration that in most instances they are the least deserving, and yet the only class of the community to whom the present order of things is favourable. While all the rest of the population are groaning under the aggravated pressure of toil, privation, and despair, they are fattening on the surrounding misery, and every day making rapid strides towards the attainment of immense riches, under the propitious shelter of a system which would appear to have been expressly contrived for their especial aggrandisement, at the expence of the freedom, prosperity and happiness of the whole social body besides. Like vultures, that in the midst of combats soar in safety above the destruction raging beneath, but descend at its close and tranquilly devour the mangled carcasses which the exterminating engines of war have laid prostrate for their repast, these men out of the influence of the oppressive disabilities which are overwhelming all but themselves, eagerly watch the progress of the surrounding misery, and

impatiently await its completion; more cruel than vultures, since covered with the aegis that has unnerved the force and paralysed the energies of their neighbours, they introduce themselves into the midst of the havoc of their own species, and prey upon the living victims who are sinking around them.

And here, it may not be inexpedient to reconcile the existence of so much distress, with so large an income, and so small a population as the colony and its dependent settlements are known to possess. The former, it has been seen, may be estimated in round numbers at £170,000, the latter at 20,000 souls: so that if the annual income were equally divided among the entire population, and they were all agriculturists, and could furnish themselves with food, (I make this supposition, because it is at their option to become agriculturists, and it is consequently a legitimate inference, that it is not the interest of such as have not embraced this alteration to do so) they would each have man, woman, and child, 8*l.* 10*s.* yearly for the purchase of articles of foreign growth and manufacture alone. This I am ready to allow, is comparatively a much larger sum than could be appropriated by the inhabitants of this country to similar purposes; and it would therefore appear on the first view, incompatible with the doleful picture of distress which I have drawn. If, however, the remoteness of the colony from England, India, and China, the three principal supplying countries, be duly considered, and the great expence of freight and insurance unavoidably attached to so long a navigation, an expence which in the first of these instances, is augmented in a two-fold degree, by the entire absence of return cargoes; if it be stated that these local disadvantages alone, render it impossible for the importers to dispose of their merchandize for less than fifty per cent. on the prime cost to their immediate purchasers, and that at least three fourths of the population are obliged from the want of ready money, to buy on long credits of these secondary agents, who fashion their prices according to the nature and extent of their customers' embarrassments, sometimes contenting themselves with a second advance of fifty per cent.; but more frequently affixing to their goods a profit of a hundred, a hundred and fifty, and two hundred per cent.: if it be recollected how far these grievous exactions are aggravated by the system of vassalage just described, a system which places all the unfortunate wretches who are reduced to it at the absolute mercy of their rapacious landlords; if the

profligate and improvident habits and disposition of the generality of the colonists be taken into the estimate, and their total disregard of order and economy in their domestic arrangements; but above all, if their unfortunate propensity to the excessive use of spirituous liquors be superadded; a propensity which like Aaron's rod swallows up every other passion, and for the momentary gratification of which they willingly sacrifice every prospect of present enjoyment, and deliberately entail on themselves and their families lasting privation and want; I say if due consideration be given to all these circumstances, it will be no difficult matter to believe in the sad reality of the general wretchedness and penury which I have depicted. But it must be further evident that this equal division of the colonial revenue has been assumed merely by way of exemplification, and that it is a fiction, the realization of which is beyond the extreme verge of possibility: a fiction which never has been and never can be verified. In this colony as in every other community, there is a regular gradation of property, and perhaps there is no country on the face of the earth, except Russia, where it is so partially distributed. If then I have reconciled the probability of the wretched condition of the colonists, with the assumption of an equality of wealth, when there is, in fact, the greatest inequality, it must be evident that the picture which I have drawn, pregnant and glowing as it is with distress, is far from surcharged, and still requires both colouring and expression to convey a perfect representation of the scene.

Of the whole colonial income about £100,000 annually may be considered as arising from the labours of the agricultural body. This is undoubtedly that portion of the colonial wealth which gets into most general circulation; but even *it* is far from undergoing that minute subdivision and universal diffusion which are requisite for the maintenance of a constant internal circulating medium. Created in the first instance by the government in payment of the grain, meat, etc. furnished by the settlers, it is immediately handed over by them to the traders to whom they may be indebted, and from these again passes to the importing merchants, on whom they may be dependent for their supplies of merchandize, who in their turn eventually transmit it to their foreign correspondents. It may consequently be perceived that the purchases and sales which must be incessantly occurring, besides those to which this part of the colonial income is thus devoted, such as the sales of provisions in the markets, the payment of wages, and, in fine,

the infinite transactions to which the wants or the whims of society are eternally giving birth, and to which a common medium of determinate value is essential are but little, if indeed at all facilitated by a sum of money, which after passing through a few hands, disappears from the colony for ever. To prevent, therefore, the interchanges and activity of the community from being brought to a stand, it became necessary to create some other circulating medium; and as the government took no part in this highly important affair, the whole burden of the arrangement fell upon the inhabitants. The arrangement itself was, in consequence, such as might have been expected from their circumstances and situation: the whole of them who had any real, or apparent pretensions to responsibility, became with one accord bankers; issuing small promissory notes to provide for their minuter occasions, merely on the strength of their credit, and frequently in anticipation of their means. This "Colonial currency," as it was termed, soon experienced that depreciation in the market, compared with the government, or sterling money, which it was natural to expect from the doubtful circumstances of many of its issuers. In a short time government money could not be had for it under a discount of fifty per cent.; still the drawers of these promissory notes were compelled by the decisions of the court of civil jurisdiction to pay them at par, whenever they were presented; so that all the persons of real responsibility, who had been induced in the first instance from necessity to adopt this system, withdrew their bills from the market, and naturally preferred purchasing with government money the notes of others at this depreciated rate, to the issuing at the same rate notes of their own, which they would be eventually obliged to take up at par. The consequence was that all the subsequent issuers of these notes were needy adventurers, who possessing little or no property adopted this method of supplying their extravagance, or entering into desperate speculations that could hardly succeed, in violation of every principle of honesty, and at the expence of the industrious and responsible part of the community. This subsequent currency, therefore, encountered a still further depreciation; and when government money could be at all obtained for it, it was only at a discount of 100, 150, and even 200 per cent. Such, however, has been the necessity for a circulating medium of some sort or other, that the public, as if by a general implied consent, without any expressed convention, have permitted the existence and increase of this worthless substitute, and have

thus affixed a kind of nominal value to that which is in reality worth nothing.

To any one, who has not fully considered the difficulty attending the exchange of one commodity for another, and the impossibility of apportioning at all times, what one man may have to dispose of to the exact value of what another man may have to offer in return, an impossibility that would frequently prevent the exchange altogether, and thus subject the parties to mutual inconvenience and distress, the rude system of barter would appear preferable to so vile a common standard of value as the existing currency. Its badness, indeed, has been the means of introducing the system of barter as far as it was practicable; but as the entire introduction of this system would be hardly compatible with the first imperfect elements of society, the civilization of the colonists has imposed a limit to it, and prescribed a necessity for the toleration of the present circulating medium, which nothing but the creation of a better can supersede. Two attempts were made to remedy this evil, but they both in the event proved abortive; the richer class of the inhabitants on these occasions formed combinations and entered into resolutions not to receive in payment the bills of any individuals who had not been admitted into their society. To prevent a recurrence of the loss, which the original responsible issuers of currency had sustained by its depreciation in the market, they affixed to it themselves a specific depreciation, promising in the body of their notes to pay them on demand in government money at a discount, in the first of these instances, of twenty-five per cent., and in the last of fifty per cent. But it must be evident that a currency of this nature, payable on demand, became of equal value with the sterling money of the government, to those who took it at the stipulated depreciation; and it was accordingly no sooner in circulation, than it got into the hands of the importing merchants, and was presented to the drawers for payment. It was thus too good for its intended purpose; and the old worthless currency, which had been for a while proscribed, gradually returned into circulation. The present governor, sensible of the advantage which the colony would derive from its supercession, and from the substitution of another of intrinsic value in its stead, caused ten thousand pounds worth of dollars to be sent from India, and had a piece struck out of the middle of each, to which he affixed by proclamation, the value of fifteen pence, and to the remainder that of five

shillings, making the whole dollar worth six shillings and three pence. This money he caused to be given in payment of the various articles of internal produce received into the king's stores; but as they were exchanged every month, if presented to the commissariat department, for bills on the lords of the treasury, in the same manner as the government receipts had been exchanged previously, they have not realized the hopes of abolishing the currency, with which they were issued. Some few of them, indeed, have from time to time eluded the grasp of the merchants and traders, and got in consequence of the minuteness of their separate value into temporary circulation; but the use of the original currency has neither been superseded nor diminished.

That the colonists should have been thus forced during so long a period, in spite of all their efforts, and contrary to the desire of their government, to tolerate a medium of circulation possessing no intrinsic value whatever, and dependent solely on a general, constrained, and tacit consent for its support and duration, is, I should apprehend, one of the most forcible proofs which it is in the nature of things to adduce, in illustration of their present poverty and wretchedness. It is impossible to offer a more satisfactory demonstration of the inferiority of their means to their necessities. Important under every point of view as is the establishment of a safe currency, such is the irresistible pressure of their debts, so much is their expenditure superior to their revenue, that they can devote no portion of it to the most urgent purpose of domestic economy: the whole is absorbed, and does not suffice to procure those articles of foreign supply, which are absolutely indispensable to civilized life.

By the last intelligence from the colony it appears, indeed, that a company has undertaken the establishment of a colonial bank, and obtained a charter for this purpose from the governor; but I should imagine they cannot possibly succeed in creating a permanent medium of circulation. The constant run that their bills will have on them for payment, in consequence of the imports of the colony being so much greater than its income, will soon occasion them to exchange the whole of their capital for the mortgage securities on which they at present issue it; and although this circumstance will not perhaps detract from the profits of this institution, it will render the toleration of the existing currency, if not of undiminished, still of

indispensable necessity.* The introduction, therefore, of a safe and sufficient medium of circulation may be still pronounced a desideratum, and one of the first importance to the general prosperity of the colonists. The government in their present distressed situation, is perhaps the only power competent to the accomplishment of this beneficial object, and it is to be hoped that they will no longer delay effecting such a great and substantial amelioration.

[* This is an event which the colonists do not appear to anticipate. It is the general belief that the colonial currency has been crushed for ever; but I am greatly mistaken if that vile medium of circulation will not again revive before the expiration of another twelve-month, unless either the capital of the bank be greatly increased, or its operations be in future confined to the discounting of bills at a short date, to the utter exclusion of the system of advancing money on mortgage securities.]

Amidst the numerous deplorable consequences that have been attendant on this constant state of embarrassment, none perhaps is more deeply to be lamented than the great check which this difficulty of finding a profitable occupation for labour has proved to the progress of population. Mr. Malthus, who has immortalized himself by his essay on this branch of political economy, has so satisfactorily shewn that the increase of population is proportioned to the facility of procuring subsistence, and administering to the various wants of a family, that it is quite unnecessary for me to repeat arguments with which every one ought to be familiar, to prove that this colony has not been exempt from the destructive influence of causes whose operation has been steady and invariable in all ages and in all countries. The inference that this difficulty has been a preventive to marriage, and to the consequent progress of population is self-evident: to be understood it only requires to be stated. But the numerical increase of the colony has been checked in a still greater degree, perhaps by the constant returns from its shores which are daily occasioned by the same causes. What inducement, in fact, exists for any person to remain there who has the power of quitting it? Who would voluntarily become an inhabitant of a country where he has no rights, no possessions, that are sacred and inviolable? And where to this insecurity of person and property are superadded the greatest impediments to the extension of industry? A country of this kind, it may be easily imagined, possesses no allurements for those who have ever breathed a freer atmosphere; and it is not to be wondered at, that hundreds of convicts on the expiration of their several

terms of transportation should be continually leaving a country, where the freeman and the slave are alike subjected to the uncontrolled authority of an individual; where the trial by jury is unknown, and an odious military tribunal substituted in its stead; and where there is no representative body to protect them in the enjoyment of their rights, and to secure them either from the imposition of arbitrary and destructive taxes, or from the influence of unjust and impolitic laws.

How far these two great checks to population which I have just mentioned, have operated, may be best ascertained from the last census taken in the colony in the month of November 1817. At that time it appears that the population of all the settlements, whether in New Holland or Van Diemen's Land, amounted only to twenty thousand three hundred and seventy-nine souls. It is not in my power to obtain returns of all the convicts who have been landed at various times in this colony; but as it is now about thirty years since the period of its foundation, very little doubt can be entertained that the total of them must have nearly equalled the amount of the actual population.* The number transported thither for some years past cannot be estimated at less than two thousand annually; yet notwithstanding this vast yearly numerical accession, notwithstanding the unparalleled salubrity of the climate, and the consequent small proportion which the number of deaths bears to the number of births, the population of the colony has been found to advance at a comparatively slow pace. It cannot be supposed that it could ever have been in the intention of the government, that those persons whom the sentence of the law had exiled to these remote shores, should thus be incessantly returning to those scenes, which had witnessed their former irregularities and condemnation. However sincere their reformation, it must be evident that with a blemished character, the difficulty of obtaining employment and procuring an honest livelihood, would be almost insuperable. It has been accordingly found that these unfortunate persons have generally renewed their ancient habits, and ended their career either by falling sacrifices on the scaffold to the often violated laws of their country, or by imposing on the government a necessity for the second, and in many instances for the third time of re-transporting them to this colony, where, if sufficient encouragement and protection had been afforded them in the first instance, they would have gladly remained, and have continued good and useful members of society.

[* This conjecture has been verified by a publication which has lately appeared from the pen of the Honourable Henry Grey Bennet, M. P. intituled, "A Letter to Lord Viscount Sidmouth on the Transportation Laws; the State of the Hulks, and of the Colonies in New South Wales." From this it appears that from May, 1787, to January, 1817, the number of convicts transported thither amounted to seventeen thousand; so that the entire increase which has taken place in the population in the course of thirty years, both from emigration and births, cannot be estimated at more than four thousand souls, so numerous have been the returns of convicts after the expiration of their sentences.]

It is here but candid to confess, that one of the leading causes why so many of this class are continually quitting the colony, has been their desire to rejoin their wives and families. This motive, however, no longer exists; since in a dispatch from the noble secretary of state for the colonial department, to Governor Macquarie, of which the receipt has been for some time past acknowledged, it was directed that "returns should be occasionally sent home of such convicts as may have applied for permission for their wives to join them; and that it should be therein stated whether such persons have the means of maintaining their wives and families, in the event of their being allowed to proceed to the colony." Measures have been already taken to carry the humane intention here manifested by his majesty's government into effect; and many hundreds who would otherwise have quitted the colony, will now remain there, and thus both the permanency of their reformation will be guaranteed, and the march of colonization greatly accelerated. Generous Britain, not more renowned in arts and arms, than in mercy and benevolence; may thy supremacy be coeval with thy humanity! Or if that be impossible; if thou be doomed to undergo that declension and decay, from which no human institutions, no works of man appear to be exempt, may the records of thy philanthropy hold the world in subject awe and admiration, long after the dominion of thy power shall have passed away! May they soften the hearts of future nations, and be a shining sun that shall illuminate both hemispheres, and chase from every region of the earth the black reign of barbarism and cruelty for ever!

While the existing system of government is thus rapidly undermining the general prosperity and freedom, and presenting the greatest checks to the progress of colonization, it is but natural to conclude from the pertinacity with which it is maintained, that it is at least productive of some beneficial results to the power to which it owes its origin and existence. It were a

species of political anomaly to suppose that any order of things diametrically opposite to the interests of the governed, should be persisted in, unless it were attended with some positive advantage to the governors. Ridiculous, however, as in every case perhaps but the present such a supposition would be, it is verified in the instance of this colony; since the system pursued there, is not only destructive of the vital interests of the inhabitants at large, but at the same time, burdensome to this country, and contraventionary of the very intentions with which this settlement was established. This assertion I shall shortly prove, and then leave it to more sagacious politicians than myself, to demonstrate the consistency of what appears to me the most absurd and incongruous paradox that is to be met with in the history of governments. And first that the present system is burdensome to this country, and what is worse, must become every year still more so, is evident from the gradually progressive augmentation which has taken place in the expenditure of this colony. From 1788 to 1797, the total expence was £1,037,230, or £86,435 per annum; from 1798 to 1811, it amounted to £1,634,926, or £116,709 per annum; and from 1812 to 1815, both inclusive, to £793,827, or £198,456 per annum. In 1816, the expence was £193,775 10s. 8¾d. and in 1817 it was £229,152 6s. 3¼d. being nearly treble the annual amount in the year 1797. This estimate, indeed, includes the cost of transportation; and the rapid increase that has taken place of late years in the sum total, has been in a considerable degree occasioned by the great increase in the number of criminals sent out to the colony; but still that there has been a regularly progressive augmentation to the internal expenditure is quite incontrovertible.

It requires no great portion of discernment to foretel that while the present prohibitory system remains in force; while the colony is alike prevented from profiting by its natural productions, and from calling into life the artificial ones of which it is capable, that it must continue an increasing burthen and expence to the power on which it is dependent for support, and which thus unwisely restrains its exertions. If the consideration of the benefits which this country might eventually derive from encouraging the growth and exportation of such products as this colony might furnish; if the prospect of finding at no very remote period in a part of our own dominions, various raw materials essential to the fabrication of some of our staple manufactures, and for which we are at present wholly dependent on

foreigners; if, in fine, the certainty of extending, instead of destroying, a market for the consumption of those manufactures themselves, be not motives of sufficient weight and cogency to draw the attention of his majesty's ministers to the impolitic and destructive order of things, which prevents the accomplishment of these desirable ends; it is at least to be hoped in these times of universal embarrassment, when the cry of distress is resounding from one end of the kingdom to the other, that the desire of effecting a retrenchment in this part of the public expenditure, which has swelled to so enormous an amount, solely from ignorance and mismanagement, will at length excite inquiry, and give rise to a system that will unfetter the colonists, and by gradually enabling them to support themselves, no longer render them an unproductive and increasing burden to this country. It is useless, and indeed absurd, for the government to be sending out incessant injunctions for economy, and to be eternally insisting upon the necessity of effecting retrenchments, which their own impolitic restrictions render impossible. The addition which is annually made to the population of the colony must occasion a corresponding expenditure on the part of the colonial government. The convicts, who are transported thither, were maintained at a great expence while in this country, and cannot be supported without cost there. So long as the avenues to industry and enterprize are closed, it is ridiculous to imagine that the colonists can undertake the maintenance of a body of men, for whose labour they can find no profitable occupation. The expence, therefore, of supporting the great mass of convicts who are constantly arriving in this colony, must necessarily increase in spite of all the exhortations of the government, and all the efforts of the governor, whoever he may be, to carry them into effect. The present governor, indeed, has contrived in some measure to comply with these recommendations of retrenchment with which he has been harrassed; but his obedience has been attended with the adoption of a most pernicious and indefensible system, that of granting too promiscuously tickets of leave to convicts, before sufficient time had elapsed for ascertaining the reality of their reformation, and their title to so important an indulgence. This privilege, which exempts them from the public works, and enables them to seek employment in every direction throughout the colony, it may be perceived, turns loose a set of men, who had been solemnly pronounced to be improper and dangerous members of society; and affords them an unrestrained opportunity of preying upon the

industrious and deserving, and of committing fresh enormities, before they have made the atonement affixed to their original offences, and required not more to uphold the distinction which ought always to be drawn between virtue and vice, than from a due regard to their future welfare and regeneration. It is principally to the introduction of the ticket of leave system that the considerable reductions which have been effected of late years in the expences of the colony are to be ascribed. How far this most pernicious and immoral system has been carried, may be seen by reference to the colonial expenditure for the four years anterior to 1816. In 1812 it amounted to £176,781; in 1813 to £235,597; in 1814 to £231,362; and in 1815 it had fallen to £150,087. In the two following years, indeed, it has been seen that there has been a considerable increase of expenditure; but still such has been the extension of the ticket of leave system that notwithstanding four thousand six hundred and fifty-nine convicts were transported between January, 1812, and January, 1817, the expences of the colony for this latter year were £6445 less than for the year 1813; those of 1817 only amounting to £229,152, while those of the year 1813 were £235,597. This violent and unjustifiable mode of retrenchment, however, has not been put into such extensive practice with impunity: it has been attended with its natural and inevitable results, a proportionate increase of demoralization and crime. The proof of this assertion I shall rest on the following government order:--"Sydney, 30th August, 1817. In consequence of the frequent robberies which have been of late committed between Sydney and Paramatta; his Excellency the Governor deems it expedient earnestly to recommend to persons in general to travel only during the day time, and particularly to those who have the charge of loaded carts, to set out from Sydney and Paramatta respectively so early after sun-rise as to be enabled to reach the place of their destination before sun-set. And with a view to afford all possible protection to travellers, his Excellency directs the principal superintendant of police at Sydney from and after Wednesday the 3d of September next, to order two constables from thence to patrol the road every night between Sydney and Powell's Half-way House; and in like manner the principal magistrate at Paramatta to order two constables from that place to patrol the road every night between Paramatta and Powell's Half-way House. The duty of such constables to commence at sun-set and cease at sun-rise, until further orders. "The magistrates are *particularly enjoined not to grant passes to convicts either having tickets of leave or*

otherwise, excepting on actual duty, or in cases of real emergency where the object is satisfactorily explained to the magistrate." This injunction to the magistrates not to grant the ticket of leave-men passes except under particular circumstances would afford the public very little additional security against their depredations; since their total exemption from public or individual employment, places them out of all restraint except such as may arise from the surveillance of the police, which even in Sydney is badly organized, because not sufficiently numerous, and to which in the interior towns and districts it would be a farce to apply the name of "Police" at all.

I am aware that the governor has been induced to this measure in compliance with positive instructions, rather than in conformity with his own judgment. But a system in such direct violation of every principle of justice, morality, and expediency, can never be long tolerated. Its continuance, in fact, would soon annihilate all industry, and convert the colony into a den of thieves and murderers, unfit for the abode of virtue and honesty, and dangerous to the government itself which had authorized it.--It is an extreme which cannot endure, and which is of so violent a nature that it will beget a remedy for itself, and compel the government to recal into its employment, and reduce under salutary restraint, a set of persons, who ought never to have been freed from it till the expiration of their sentences, or, at most, till they had given the clearest proof of a sincere reformation. This system, therefore, of granting tickets of leave to convicts shortly after their arrival, though undoubtedly attended with a considerable saving to the government, is of too immoral and dangerous a tendency to be carried to any considerable extent; so that the expences of the colony great, unnecessarily great as they are, must infallibly increase with the progress of transportation, so long as the grievous disabilities and impolitic restrictions under which the colonists are groaning, remain unrepealed.

Having thus shewn that this colony has hitherto been an increasing burthen to this country, and that it must necessarily continue so under its present unwise constitution, I proceed in the next place to prove that its existing system of government is also contraventory of the philanthropic intentions which gave rise to its foundation. The principal object which the government of this country had in view was undoubtedly the reformation of

the thousands exiled to these distant shores. The punishment which it thus inflicted, in banishing them from their native country, and separating them from their friends and connexions, was not the end itself, but the means which it employed to effect this humane and laudable purpose. Has then the colony in any one point of view realized this comprehensive and philanthropic scheme of morality and regeneration? It has, indeed, proved a receptacle for those whose crimes rendered them unfit for the community which rejected them from its bosom, and in so far has been of some utility to the public; but have the restraints to which they have been subjected; has the system, in fact, by which they have been governed during their exile, generally revived that morality and virtue, the absence of which propelled them in the first instance to the commission of crime, and will always continue them in the same career of vice and punishment? Have those, who have expiated their original offence, by undergoing the penalty which the law annexed to it, experienced a reformation in their principles and conduct? And are they generally qualified either to return to the country that banished them, or to become good and useful citizens in the one by which they have been adopted; and which, since it has constantly witnessed their deportment, can best appreciate the reality and extent of their merits? The records of the several courts of criminal judicature are the surest criterion by which to judge of this important particular, and will be found decidedly confirmatory of the alarming augmentation of immorality and crime, which distinguishes every succeeding year, and that too in a proportion far exceeding what would be naturally consequent on the increase in the population.

On reference to the Sydney Gazettes for the year 1817, I find that there were in all ninety-two persons tried by the criminal court. The offences with which they were charged were as follow: 1st, For murder eleven; four of whom were convicted and executed: two were adjudged only guilty of manslaughter; and five were acquitted. 2dly, For burglaries, eight, five of whom were capitally convicted, but their sentences afterwards commuted into transportation to the Coal River for life; five were transported thither for fourteen years, one for seven years, and one was acquitted. 3dly, For highway robbery, one, who was transported to Newcastle for fourteen years. 4thly, One incendiary, transported for life. 5thly, One for cutting and maiming, acquitted. 6thly, Nine for cattle stealing; of whom two were

capitally convicted, their sentence afterwards commuted into transportation for life; five were originally sentenced to the same punishment, one transported for fourteen years, and one was acquitted. 6thly, Three for sheep stealing; all capitally convicted, but their sentences commuted into transportation for life. 7thly, Two for horse stealing; one of whom was capitally convicted but not executed, the other sentenced to solitary confinement. 8thly, One for rape, but acquitted. 9thly, Twenty-seven for privately stealing in dwelling and out-houses; two of whom were transported for fourteen years, nine for seven years, one for four years, four for three years, two for two years, one sentenced to solitary confinement, and six acquitted. 10thly, Two for forgery, found guilty, but sentence deferred. 11thly, Two for receiving stolen goods, one of whom was sentenced to the pillory and to four years transportation, and the other to transportation alone for the same period. 12thly, Five for pig stealing; of whom two were transported to Newcastle for fourteen years, one was flogged and put in the pillory, one transported to Newcastle for two years, and one acquitted. Lastly, Nineteen for petty larceny; of whom one was sent to Newcastle for four years, one for three years, fourteen were sentenced to various terms of solitary confinement, and three acquitted.

From this statement, therefore, it appears that during the year 1817, out of the ninety-two persons who were tried for various offences, which it will be seen were for the most part of a heinous nature, no fewer than seventy-three were convicted, fifteen capitally, four of whom were executed, the remaining eleven had their sentences commuted into transportation to the Coal River for life; that there were six others originally sentenced to the same punishment; that there were five transported for fourteen years, ten for seven years, and that the remaining thirty-seven were either transported for terms under seven years, or were punished by solitary confinement. Appalling, however, as this catalogue of crime must be acknowledged, when compared with *that* which could be produced in any other community of similar extent, it would still appear on the first view to argue well in favour of the reformatory influence of this colony: since Governor Bligh in his examination before the committee of the House of Commons, in the year 1812, presented a document purporting to be a list of criminals tried between August, 1806, and August, 1807, from which it appears that one hundred and seventeen* persons were arraigned before the criminal court

during this interval. If we were therefore to abide by the records of the criminal court alone, we should draw the most satisfactory conclusions with respect to the progress of reformation in the morals and habits of the people since that period. The comparison, indeed, between the catalogue of crime in the years 1806 and 1817, would be most gratifying; as notwithstanding that the population of the colony rather more than doubled itself since the former year, the latter presents a decrease in the number of criminals of twenty-five, or in other words, crimes would appear to have diminished in the ratio of about 9/4 to 1. If the records, therefore, of the criminal court were decisive on the subject, it would be impossible not to confess that the system pursued in this colony has fully answered the humane intentions for which it was founded. But unhappily these records are no standard by which to judge of the reformatory tendency of the system. During Governor Bligh's administration, all offenders except those who were charged with the most trifling misdemeanors, were tried by the criminal court. He was a second Draco, who considered the smallest offence deserving of death: and wo to the wretch whom the criminal court doomed to this punishment, for he invariably carried its sentence into execution. His successor, however, has acted on more merciful principles; and, besides, crimes have so rapidly multiplied of late years, that the judge advocate would not have sufficient time for presiding in the two civil courts of which he is the head, were he obliged to dispose of all the culprits that might be arraigned in the criminal court. But it is well known to those who are at all conversant with the state of the colony, that but a very small portion of the offences which are committed there, are now brought under the jurisdiction of this court. The majority of the criminals who are now tried by it are either free persons, or such as have obtained emancipations; i.e. those whom the various governors have made free in the colony, but who are not at liberty to quit it. The benches of magistrates, and the superintendent of police, are delicate of deciding on charges in which the members of these two free classes are implicated; but they dispose of offenders already under the sentence of the law in a summary manner, either by transporting them to the Coal River, by putting them in the gaol gangs, by sending them (if they happen to be females) to the factory, or by simply ordering them corporal punishment, unless they are charged with murder, or some capital felony; and even in this latter case they frequently inflict some summary punishment. With respect to the first of these summary modes of punishment, transportation to

the Coal River, it has already been stated that the population of this settlement amounted in the year 1817, to five hundred and fifty souls: of these not more than one hundred, including the civil and military establishments, and the settlers and their families on the upper banks of the river, were free. The remaining four hundred and fifty, therefore, were persons who had been convicted of crimes either by the criminal court or by the magistracy, and retransported thither for various periods. Those few, it has been seen, who are condemned to this punishment by the criminal court, are for the most part sentenced to long terms of transportation; but as nine-tenths of the criminals at this settlement are sent thither either by the benches of magistrates, or by the superintendent of police, who seldom transport for a longer period than two years, and more frequently for one year, or six months, the population may at a very moderate calculation be considered as undergoing a complete change every two years, or in other words, it may be concluded that two hundred and twenty-five persons are annually transported thither by way of punishment. We must therefore add this number to the culprits convicted before the court of criminal judicature, and we shall then have a total of three hundred and eighteen persons annually convicted of crimes in the colony. This is of itself an alarming sum of criminality; but we must not stop here, since it only conducts us to the second of the summary modes of punishment which I have enumerated; viz. the gaol gangs. There are upon an average about fifty persons in the gaol gang at Sydney, and about the same number in the gaol gangs belonging to the other towns and districts in the colony. These are criminals convicted of smaller offences than those who are transported to the Coal River; they are worked from sunrise to sun-set, and are locked up in the prisons during the night. This mode of punishment is seldom inflicted for a longer term than four months. It may therefore be safely computed that these gaol gangs are changed once in this period, or in other words, that three hundred persons annually pass through this ordeal. This further addition to the formidable catalogue of crimes already made out, increases the total to six hundred and eighteen persons, yet only leads us to the third mode of summary punishment, viz. labour at the factory at Paramatta. The number of women sentenced to this mode of punishment may be averaged at one hundred and fifty, and as the average term of their sentences does not exceed six months, we have a farther number of three hundred to add to the above estimate. This increases it to nine hundred and eighteen persons; but we have still one

other mode of punishment in petto, corporal punishment simply; and I have no doubt that the numbers on whom it is annually inflicted will at least swell the grand total of persons convicted of various criminal offences during the year 1817, either by the criminal courts, by the benches of magistrates, by the superintendent of police, or by the district magistrates to one thousand. We may now draw some sort of a comparison between the amount of crime in the years 1806 and 1817. I should imagine, on the highest calculation, that not more than one hundred persons in addition to those tried by the criminal court during that year, could, from the system then in practice, have been summarily dealt with by the magistracy; but allowing even that there were two hundred, and that the whole number of persons stated by Governor Bligh to have been tried by that court were found guilty, a most improbable supposition, the year 1806 will only then give a total of three hundred and sixteen offenders, i.e. not one third the amount of those who were convicted in the year 1817. Crime therefore has been trebled, while the population has only been doubled, or in other words, the increase of the former has been to the increase of the latter as three to two.

[* Page 42 Appendix to the Report of the House of Commons in 1812.]

What else, indeed, could be expected from a system which is every day enlarging the circle of poverty and distress? Is it within the possibility of belief that people should become more honest as they become more necessitous? That they should scrupulously refrain from making inroads on the possessions of their richer neighbours, while they themselves are suffering under the influence of progressive penury? Under such circumstances it would be the very height of absurdity to expect an increase of virtue and honesty. Wherever it is not within the compass of industry to provide for its wants, a recourse to crime in order to make up the deficiency is inevitable to a certain extent even in a moral country. What then must be the result of this inability in a felon population, long habituated to theft, and naturally predisposed to criminality? In such a community as this, the government are doubly bound to neglect no measures which may be calculated to repress this vicious propensity. If they adopt the contrary line of conduct; if they administer stimulants to vice instead of anodynes; if they, in fact, create incitements to dishonesty too potent even for virtuous misery to withstand, are not *they* the authors of a system thus impregnated

with corruption, virtually the parent of the monstrous litter to which it gives birth? And though according to the inflexible principles of justice, any violation of the property of another is not to be exculpated, humanity will always pity the distressed delinquent, and wish that she had the power of substituting the primary author of the crime in the place of the condemned criminal. How would the world be reformed, if the framers of the unjust and impolitic laws, which are every where the bane of mankind, and the cause of so much misery and vice, were arraigned at the bar of justice, and compelled to answer for all the depravity that might be traced to the demoralizing influence of their measures?

The picture of the colony which I have presented, aggravated as it is, faithfully delineates the different descending gradations by which it has sunk to its present abyss of misery, and is of itself sufficiently demonstrative of the radical defect that there is in its polity, and of the necessity for an alteration in it: nevertheless, it may not be altogether inexpedient to dive a little into futurity, and to view through the mirror of the imagination the further results which the experience of the past may convince us that a perseverance in the same course of restriction and disability will infallibly lead to. It requires not the gift of divination to foresee that the manufacturing system, which has already taken such deep root, and so rapidly shot up towards maturity, will still further confirm and consolidate itself with the increasing poverty of the community. For several years the importation of British manufactures, particularly of cottons, has been comparatively speaking on the decline, in consequence of the competition occasioned by large importations of those articles from India; which though in general of inferior quality, have been more adapted to the circumstances of the colonists from their inferior price. The consumption of hats and woollen cloths has also been diminished, but not to the same considerable extent by the colonial manufactures of the same denomination, which are likewise much inferior to the British, but have the two-fold advantage of being cheaper, and to be obtained for wool, grain, meat, etc. without the intervention of money, which it is generally out of the power of the consumers to furnish.

This system of barter, which has materially favoured their growth, and must necessarily still further encourage and extend it, is not, as might at first be

imagined, prejudicial to the manufacturer; since the wool which he thus receives in exchange for his commodity is the raw material required for its reproduction, and therefore saves him the trouble of seeking it in other quarters; and the meat, grain, etc. are distributed among his workmen at the market prices of the day, and free him from the necessity of paying the full value of their labour in money, which under existing circumstances would most probably be impracticable. The system itself, therefore, seems to have been engendered by events, and to be peculiarly adapted to the present state of poverty and wretchedness, to which the great mass of the colonists are reduced. And although in other countries, and even in this, if its agricultural powers were unfettered, the workmen employed in the fabrication of these manufactures would not perhaps consent to receive this mixed compensation for their labour, yet amidst the actual difficulties of procuring a subsistence, and possessed as they are of trades, for which till lately there was no demand whatever, and for which at the present moment there is far from an active competition, they are not only glad to accept this mode of payment, but would even submit to much harder conditions. We may therefore perceive, that if the manufacturer can sell for ready money as much of this commodity as is requisite to the payment of the residue of their wages, and at the same time equivalent to the profit which he may derive from his concern, it is all that he need absolutely require. This manufacturing system being thus not only suited to the increasing poverty of the community at large, but also favourable to the interests of all the parties concerned in it, whether the proprietors or the workmen, cannot but gain ground. A few years, in fact, will completely put it out of the power of at least seven-eighths of the population to have recourse to the manufactures of this country: the expences of the colony will, indeed, as I have satisfactorily proved, continue to increase, but still only in proportion to the augmentation in the body of convicts and others, maintained at the charge of the government; while, on the contrary, the population of the colony, in spite of all the checks imposed on it, will be extending itself more rapidly within, than by transportation and emigration from without. Its revenue, therefore, will be every year to be divided among a number of competitors increasing much more rapidly than itself. Thus their ability to purchase the more perfect and expensive commodities of this country, will become daily more circumscribed, till at length the use of them will be entirely superseded, or at best confined to the higher orders of society; who,

it is probable, may be induced in the long run both by the growing perfection of their native manufactures, and by patriotism, to abjure the consumption of all goods that may have a tendency to augment the prosperity of their common oppressor. The colonists, in fact, have only to advance a few steps further in the manufacturing system to be completely independent of foreign supply. Already fabricating to a considerable extent their own cloth, the first perhaps of manufactures in utility and importance; already furnishing in a great measure their own hats, leather, soap, candles, and earthenware, they have only to provide their own linen, and to erect iron founderies, to become possessed of all that can be termed strictly necessary to their subsistence and even comfort. And these two objects will doubtless be soon effected by the active agency of the same powerful necessity, which has so rapidly given rise to the various manufactures already mentioned. It is, indeed, rather a matter of surprise than otherwise, that attempts have not been already made to establish manufactories of these two highly important articles; since the colony, on the one hand, is peculiarly adapted to the growth of flax, and on the other abounds, as it has been seen, with iron ore of the richest quality.

To what feelings, then, to what conduct, it may be asked, will this independence in the resources of the colonists, the bitter fruit of so much privation and misery, give birth? Will this, the painful result of so many years' injustice and oppression, tend to strengthen the bond of union between the colony and this country? Or will it not be the crisis that will sever it for ever? England, placed as she is at present on the pinnacle of glory, and reposing in security on the basis of that commercial and maritime greatness, from which the gigantic efforts of united Europe have not been able to remove her, may laugh to scorn the presumption of any colony, however powerful, that might attempt to shake off her authority. Like Jupiter on Olympus, she has only to stretch out her hand and overthrow the united force of all her colonies with the chain to which she has bound their destinies. No one can doubt, that such an attempt would be preposterous at the present moment, nor would the most strenuous advocate for colonial independence, the most violent enemy to the supremacy of this country, dream of its immediate execution. Still let her not lull herself into a false security; let her not measure the forbearance of the colony by its own impotency and insignificance. Despair always begets resources, and

inspires an unnatural vigor. The enmity of the most feeble becomes formidable, when it has justice ranged under its banners, and ought not to be excited without necessity. Besides, is it worthy the character of a nation, who has evinced herself the determined enemy of tyrants, and the avenger of the freedom of the world, to become the oppressor of her own subjects, and that too for the mere sake of oppression, in subversion alike of their interests and of her own? Has she not, and will she not always have *external enemies* enough to contend with, without thus creating, *unnecessarily* creating, *domestic ones*? Let her from the midst of the glory with which she is environed compare her situation, brilliant and imposing as it is, with what it might have been: let her look at the consequences of her former injustice. Is not the most formidable on the list of her enemies, a nation, which might have this day been the most attached and faithful of her friends? A nation which, instead of watching every occasion to circumscribe her power, would, if its rights had been respected, have been still embodied with her empire and confirmatory of her strength? Will this terrible lesson have no influence on the regulation of her future conduct? Will not this dear bought experience teach her wisdom? Or has she yet to learn that the reign of injustice and tyranny involves in its very constitution the germ of its duration and punishment? Let her ask herself, "what would have been the consequence if, during the late war with America, the ports of this colony had been open to the vessels of that nation?" How many hundreds of the valuable captures, which the Americans made in the Indian seas and on the coast of Peru, might have safely awaited there the termination of the war, which were recaptured by her cruisers in view of the ports of their country? How many hundreds of their own vessels, that shared the same fate, would have still belonged to their merchants? And is there no probability, that a perseverance in the present system of injustice and oppression, may on some future occasion, urge the colonists to shake off this intolerable yoke, and throw themselves into the arms of so powerful a protector? May they not by these means acquire independence long before the epoch when they would have obtained it by their own force and maturity? Or at least may they not place themselves under the government of more just and considerate rulers? How would this country repent her folly, if she should thus become the instrument of her own abasement; if she should herself be the cause of establishing a power already the most formidable rival of her

commercial and maritime ascendancy, in the very heart of her most valuable possessions, at the main external source of her wealth and prosperity?

To those who are acquainted with the local situation of this colony; who have traversed the formidable chain of mountains by which it is bounded from north to south; who have viewed the impregnable natural positions, that the only connecting ridge by which a passage into the interior can be effected, every where presents; to those who are aware that this ridge is in many places not more than thirty feet in width, and have beheld the terrific chasms by which it is bounded, chasms inaccessible to the most agile animal of the forest, and that will for ever defy the approach of man; to those, I say, who are acquainted with all these circumstances, the independence of this colony, should it be goaded into rebellion, appears neither so problematical nor remote, as might be otherwise imagined. Of what avail would whole armies prove in these terrible defiles, which only five or six men could approach abreast? What would be the effect of artillery on advancing columns crowded into so narrow a compass? A few minutes exposure to such a dreadful carnage, would annihilate the assailing army; or at best only preserve its scattered remnants from destruction by raising an intervening barrier of the carcasses of its slaughtered martyrs. If the colonists should prudently abandon the defence of the sea-coast, and remove with their flocks and herds into the fertile country behind these impregnable passes, what would the force of England, gigantic as it is, profit her? She might, indeed, if they were unassisted in their efforts by any foreign power, cut off their communication for awhile with the coast; but her armies entirely dependent on external supply, and at so great a distance from the centre of their resources, would gradually moulder away, as well by the incessant operation of a partisan warfare, as by defection to their adversaries, whom her troops would be led to combat only with regret. They would not enter into a war of this description with the same animosity and desire of vengeance that might actuate their leaders. They would behold in their opponents, Britons, or the descendants of Britons, placed in hostile array against them unwillingly, and not from any ancient and inveterate spirit of hatred and rivalry, but from constrained resistance to tyranny, and in vindication of their most sacred and indubitable rights. Nor would they in the midst of their disgust for so unjust and unnatural a contest, behold the beauty and fertility of the country without drawing a comparison between

their condition, and what it would be, were they to quit the ranks of oppression, and become the champions of that independence, which they were destined to repress. Such will be the consequences of the impolitic and oppressive system of government pursued in this colony; such the probable results of the contest to which it must eventually give rise. If I have been unqualified in expressing my reprobation of such unwise and unjust measures; if I have evinced myself the fearless assertor of the rights of my compatriots; and if I have spoke without reserve of the resistance which the violation and suppression of those rights will in the end occasion, I must nevertheless protest against being classed among those who are the sworn enemies of all authority, and who place the happiness of communities in a freedom from those restraints which the wisdom of ages has established, and demonstrated to be salutary and essential. I hope, therefore, that my principles will not be mistaken, and that I shall not be exposed to the hue and cry which have been justly raised against those persons who are inimical to all existing institutions. There is not a more sincere friend to established government and legitimacy than he who mildly advocates the cause of reform, and points out with decency the excrescences that will occasionally rise on the political body, as well from an excess of liberty as of restraint: such a person may prevent anarchy; he can never occasion it.

These are the views by which I have been actuated in writing this essay. If my hopes should be realized, if I should happily be the means of averting the thunder cloud of calamity and destruction which is even now gathering on the horizon of my country, and threatens at no very remote period to burst over its head, and to scatter death and desolation in its bosom, it is all the recompence I seek. If my efforts should unfortunately prove abortive; if I should fail to rouse the friends of peace and humanity to its succour and relief, I shall have experienced a sufficient mortification, without undergoing the additional one of being classed with a band of ruffian levellers, who under the specious pretext of salutary reform seek, like the jacobin revolutionists of France, the subversion of all order, and the substitution in its stead, of a reign of terror, anarchy, and rapine, amidst the horrors of which they may satiate their avarice, and glut their revenge. Let then the purity of my motives be unimpeached, if I should be defeated in the accomplishment of my object. But why should I despair of success, when I have every support that ought to ensure it? Right, reason,

expediency, morality, religion, are all on the side of my oppressed country, and must eventually procure the termination of her sufferings. The disabilities, indeed, under which she has been so long groaning, grounded as they are in no motives of policy, but averse to them *all*, ought rather to be ascribed to inadvertence than design. Engaged as this country has been in a tremendous conflict, on the dubious issue of which her very existence as a nation was staked, she has had little or no leisure for attending to the internal economy of her colonies: in the midst of her own unparalleled sufferings and sacrifices, theirs have been disregarded or forgotten. It is the knowledge of this circumstance that has shed a ray of hope and consolation athwart the gloom which has been thickening year after year around the colony. It is this consideration that has enabled its inhabitants to support burdens which would otherwise have been found intolerable. Let then their just expectations be at length fulfilled, and let them not continue the only portion of the king's subjects, who have no personal reason to rejoice at the happy termination of this long and arduous contest. Their moderation and forbearance under their grievances, have given them an additional claim to redress, scarcely less forcible than the existence of the grievances themselves. Yet already years have elapsed, since the consolidation of general peace and tranquillity, and no attention has been paid to their situation and remonstrances. Already, therefore, the spirit of discontent so long repressed by hope, but reviving with the progress of this unnecessary, this unaccountable delay, has begun to manifest itself, and will soon assume a determinate shape and form. Let the government repress this feeling of hostility, while they have yet the power: a few years further inattention will render it hereditary and rivet it for ever. It is in the tendency of colonies to overstep even legitimate restraint; they will never long wear the fetters of injustice and oppression. I am aware that it is not one of the least difficult proofs of legislative wisdom to frame regulations adapted to each progressive stage of colonization, and that this difficulty increases with the maturity which the colony in question may have attained; but although the treatment of colonies upon their arrival at that degree of ascendancy, when the enforcement of ancient restrictions, founded on the interests, or supposed interests of the parent country, but contraventionary of the prosperity of the colonies themselves, becomes dangerous or impracticable, is, it must be allowed, a point of extreme delicacy and tenderness; there can at no time be any doubt entertained of the propriety of abandoning a system founded

upon error and injustice, and productive of detriment, as well to those who have imposed it, as to those who are suffering under its baneful operation. It is therefore to be hoped that so unwise and unjust a system will no longer be continued; that his majesty's government will at length allow the colonists to use freely the natural productions of their country, and to increase to the utmost its artificial ones; that they will, permit them to call their own energies, their own resources, into life and action, and no longer impoverish them by rendering them the prey of richer colonies, and what is still more absurd and vexatious, of foreigners; that they will, in fine, grant them the free unrestricted enjoyment of those privileges which the bounty of the Creator has extended to them, and which it is not in any human authority to withhold, consistently with the eternal, immutable principles of right and equity.

These privileges consist in the removal of certain agricultural and commercial restraints, which I shall separately enumerate; and in a free government, under the protecting shade of which, the colonists may fearlessly exercise and enjoy their personal and private rights, without molestation or hindrance.

PART III.

VARIOUS ALTERATIONS SUGGESTED IN THE PRESENT POLICY OF THIS COLONY.

Of all the steps that could be taken for the relief of the colony, none certainly would prove of such immediate efficacy, as the creation of distilleries, and the imposition of so high a duty on the importation of spirits from abroad, as would amount to a prohibition. The advantages that would be attendant on this measure may, perhaps, be most forcibly illustrated by a short review of the actual loss which the colonists have sustained during the last fifteen years, from the want of its adoption. The spirits imported during this period may be safely estimated on an average at the annual value of £10,000, amounting in fifteen years to the sum of £150,000: and if we add to this £100,000 more, which it may be calculated that the government have expended in this interval, in the importation of corn, flour, rice, etc. from other countries, we have a grand total of £250,000, that would have been saved to the colony by the erection of distilleries. The application of so large a sum to the immediate encouragement of agriculture, would have imparted life and vigor into the whole community, and would have effectually prevented that increasing poverty, and the black train of evils consequent on it, which I have already depicted. And although from the increased demand for foreign luxuries, which so great an addition to the colonial income would have naturally occasioned, but a small part perhaps of this sum would have eventually continued in general circulation, still the means of the colonists would have at least been brought to a level with their wants; and a sterling circulating medium would have remained sufficient for all the purposes of domestic economy. Under such circumstances there can be little doubt that the active and enterprising spirit of our countrymen would have long since effected the establishment of an export trade, which would have freed the colony from future embarrassment, and the mother country from the enormous expence which she is annually forced to incur in its support. But the continual and amazing fluctuations which have taken place in the price of corn, have been a death-blow to the success of every

effort that has been directed to this most important object. At least but one out of all the numerous attempts that have been made by individuals, (for none have been made by the government,) to raise various articles of export, has realized the expectations of its sagacious author, and promises to become eventually of permanent relief and importance to the colony. But it will be more in the order of the arrangement which I have marked out for myself, to treat of this very important subject hereafter: I recur, therefore, to the conclusion which I was about to draw from the foregoing premises; that to the perfect success of every enterprize of a manual nature, it is essential that the price of provisions in general, but of corn in particular, should be reduced to such a point as to afford a fair profit to the grower; and at the same time that it should not be subject to any such extraordinary rise as to superinduce a proportionate increase in the price of labour. To keep the value of corn in this just mean, it is necessary that the growth of it should be encouraged to a pitch far beyond the sphere of the ordinary demand; and this is to be effected generally in two ways, by augmenting the internal consumption by artificial means, as by breweries, distilleries, etc. and by permitting a free exportation of the surplus. But the colony is at present unable from the smallness of its resources and its remoteness from Europe, the great mart for the surplus corn of other countries, to become a competitor with them in this branch of commerce: it follows, therefore, that the constant abundance of corn indispensable to the establishment and maintenance of an export trade, can only be guaranteed by the enforcement of all such measures as have a tendency to increase internal consumption; and of these I again repeat that the erection of distilleries, etc. is the most easy and the most efficacious.

Independent of this general reasoning, which is equally applicable to all countries, the colony can unhappily furnish particular grounds of argument in the unfortunate localities of its agricultural settlements, which render the adoption of this measure of still more imperative necessity. Allured to the banks of the river Hawkesbury, both by the superiority of the soil, and the facilities which the navigation of this river afforded for the conveyance of produce to market, a circumstance of material advantage even at this moment, but of incalculable importance at a period, when as yet there were few or no cattle for the purposes of land carriage, the first colonists were encouraged by Governor Phillip to establish themselves on this low fertile

tract of country, not so much perhaps from choice as necessity. His successors, influenced in part by the same considerations, followed his example in directing the current of colonization into the same channel, till in the lapse of about fifteen years the whole of the fertile lands on the banks of this river were completely appropriated. Thus unfortunately for the colony, its principal agricultural establishment was formed in a situation subject to the inundations of a river, whose waters frequently rise seventy or eighty feet above its ordinary level.

The present governor, to his lasting honour be it mentioned, has done all that prudence could effect with the limited means confided to him, for the prevention of the calamities invariably consequent on these destructive inundations. He has placed the great mass of the colonists, who have been settled during his administration, in districts that are not subject to flood; thus securing to themselves and the community at large the fruits of their industry. He has also established townships on the high grounds, which generally at the distance of a mile or two from the river border its low fertile banks, and has held out various encouragements, in order to induce the settlers to remove their houses and stacks to them. The richer class have in most instances been alive to their own interests, and have abandoned their ancient abodes on the verge of the river: so that the destruction occasioned by future floods will be infinitely less extensive. But, still, a great part of the poorer class adhere to their ancient habitations, impelled by the double motive of avoiding the cost of carrying their crops to these townships, and from thence back again to the river, in order to send them to market by the boats, which ply on it for this purpose. And to such as have not horses and carts of their own, and would consequently be obliged to hire them, a residence on the banks of the river is a saving of greater magnitude than might be at first imagined.

The greatest obstacle to the complete realization of the governor's project, arises from the extreme poverty of the great body of the settlers, occasioned, as I have already noticed, by the limited and precarious market afforded for their produce. To build a house, however small, is an undertaking in this colony as every where else, which can only be effected with adequate means; and if the colonists do not resort in crowds to these townships, it is not because they are insensible to the advantages which they

would derive from a removal to these seats of security, but because their penury chains them to their present dangerous and miserable hovels, and compels them in spite of their better reason to hold their lives and property on the most precarious of all tenures, the caprice of the elements. But could the governor succeed in this, his project to the utmost, could he induce every settler on the banks of the Hawkesbury to remove to these townships, he would be still far from guaranteeing the colony from the calamitous effects of these inundations; since they are not periodical, like the risings of the Nile, but happen at all times, as well when the crops are in stack as when growing, when they are in the infancy of vegetation, as when they have attained maturity and are fit for the sickle. Some other expedient, therefore, would still be necessary to guard against those inundations which may happen at such disastrous periods; and there is but one that will be found sufficient at all times and under all circumstances. It is to encourage by artificial means, the growth of corn so far beyond what is necessary for the bare purposes of food, that in years of scarcity, whether arising from flood or drought, these artificial channels of consumption may be stopped, and the whole of the corn in the colony appropriated to the supply of the inhabitants. And this encouragement would be amply afforded by the establishment of distilleries; since allowing the colony to require sixty thousand gallons of spirits annually, twenty thousand bushels of grain would be expended in distillation, the whole of which, when necessity required, might be diverted from its ordinary course of consumption, and directed to the purposes of subsistence.

These advantages, great as they must be allowed to be, are not the only ones that would follow the erection of distilleries. This measure would still further promote the prosperity of the agricultural body, by creating in the market a competition with the government for the purchase of grain, and would thus destroy the *maximum*, that has been hitherto arbitrarily assigned as an equivalent for their produce generally, without reference to the state of the crops, whether they have been productive or otherwise. The prejudicial operation of this maximum was noticed in the Report of the Select Committee of the House of Commons made in the year 1812, and the propriety of devising some remedy for this evil strongly enforced; but this recommendation has hitherto been disregarded, from the want, perhaps, of

information sufficiently precise to enable the government of this country to attend to it.

I close the catalogue of arguments which I adduce in support of this measure with the last and most powerful of them all, its beneficial influence on the morality of the rising generation. I do not so much take into calculation its probable bearing on the existing race of colonists, the greater part of whom are and will, perhaps, always be more or less addicted to the pernicious habits contracted in their early days of riot and debauchery, as on their posterity, who will necessarily soon form the majority of this colony, and whose amelioration or reformation all legislative measures should have principally in view. With those the immoderate use of spirituous liquors is a long contracted disease, which it is perhaps past the skill of legislation to cure. It is like an old inveterate ulcer, whose roots have penetrated into the seats of vitality, and are so intimately interwoven with the very principles of existence, that the knife cannot be applied to the extirpation of the one, without occasioning the destruction of the other. But though this gangrene can never be entirely eradicated, the experience of late years has shewn that it may be prevented from increasing, and even considerably reduced. Drunkenness has been observed to be less frequent since the unlimited importation of spirits was permitted, even among that class who were most addicted to this vice during the long period when the importation was in a great measure restricted, the price of liquor exorbitantly enhanced, and the consequent difficulty of obtaining it much more considerable. Great, therefore, as are the present facilities to the indulgence of this propensity, they should be still further extended, and this would be effected by internal distillation; for although the importation of spirits from other countries has been for many years past subject to no restriction, but the payment of a certain duty, which would be equally levied on all spirits made in the colony, still the expence of freight, insurance, etc. would be avoided, the price proportionably abated, and the means of indulgence increased in the same ratio.

The immediate effect of this free circulation of spirits having been so beneficial, we may easily infer what would be its remote consequences; and it is to these, to the gradual developement of moral perfection, that all laws which are framed with a reference to this end, should be directed, and not to

sudden and violent reformatations, which are seldom or never attended with the desired results. It was, indeed, natural to expect that this pernicious drug would be depreciated, in the estimation of its consumers, in exact proportion to its superabundance; and although the removal of all restriction to the importation of spirits, might in its immediate beneficial operation on the morals of the existing generation, so long curtailed in the use of them, and so long habituated to excess, whenever occasion offered, have been a matter of serious speculation, before this experiment was tried, its immediate result has far out-stripped the expectations of its most sanguine supporters. The present influence of this measure having been so satisfactory, there cannot be a doubt that the effect of internal distillation on the morality of future generations will be still more salutary and decisive. It is well known that in the countries that are celebrated for the production of wines and spirits, as France, Spain, Italy, etc. so great is the sobriety of the people, that a drunken person is an object of contempt, and a sight which is but very seldom witnessed. This sobriety, therefore, can only be the consequence of a steady, equable supply, which induces moderate enjoyment, without holding out any temptation to excessive indulgence. And however strange or unaccountable this fact may at first appear, the reason of it may be traced to the nature of man, the same inconsistent creature in all ages and in all countries. Intervening obstacles to enjoyment, far from repressing his desires, serve but to stimulate and inflame them; and so perverse and capricious is he in his conduct, that he despises, or at best holds in but secondary estimation, the real substantial good that is within his grasp; while remote or unattainable objects fire his ambition, and swell into fanciful and preposterous proportions the treacherous illusions of a fertile imagination, which possession alone can dissipate and reduce to their proper standard and value. It is thus that lofty mountains seem to connect themselves with the heavens by enveloping clouds; but stripped of their deceptious covering, they stand reduced to their primitive dimensions, the blue vault towers far above their heads, and the eye sees and defines their just limits and magnitude.

There can be but one objection urged against the establishment of colonial distilleries; that it will deprive the resident merchants in India, from whence by far the greater proportion of spirits is at present imported into the colony, of this branch of commerce. The trade, however, of that country is on too

extensive a scale, to be perceptibly affected by so trifling a restriction, which, in fact, has always existed till within the last five years; as the importation of spirits, till that period, was always subject to limitation, and only permitted by express licence. But were the case otherwise, what right has one portion of the empire to look for aggrandisement at the expense of another? Ought the welfare and happiness of twenty thousand persons to be sacrificed, in order to promote the views of a few interested individuals? If it were politic in his majesty's government to concede any superiority of privilege to any one body of the king's subjects over another, surely a colony composed entirely of Englishmen has reason to expect that such a concession should be made in its favour, and not to its prejudice in favour of a country acquired and in some measure maintained by force, and connected with the parent country by no ties of common origin and affinity, by no congeniality of habit, by no similarity of religion. But the colonists neither expect nor desire any such concessions: they seek the possession and enjoyment of their own indubitable rights; they would not curtail those of others: they neither want to render other colonies tributary to their prosperity, nor to continue, as they have hitherto been, tributary to that of others.

If, on the other hand, we take a hasty survey of the advantages, which I trust it has been satisfactorily proved, would be consequent on internal distillation, never, it will be seen, was there a measure which could adduce in its support more urgent and weighty considerations. It would afford employment, and thus impart fresh health and vigor to the agricultural body, debilitated by long suffering and disease; it would place the means of the colonists on a level with their wants, and by creating a good and sufficient medium of circulation in the place of the present worthless currency, would give rise to other channels of industry, and to the speedy establishment of an export trade. It is the only possible way of insuring the colony against the calamitous effects which have hitherto been invariably attendant on the inundations of the river Hawkesbury; it would lessen the injurious preponderancy of the government in the market, by creating a great competition for the purchase of grain, and would thus prevent the arbitrary imposition on this, the principal production of the colonists, of a maximum that is frequently beneath its just value, and it would improve the morals of the present and of future generations. With these irresistible arguments in

favour of this measure, it must be evident that the cause of justice and morality would be violated by any further unnecessary delay in its adoption.

The next object of internal consumption, to which in my opinion the government ought to direct the attention of the colonists, is the growth of tobacco. The amount of the annual importation of this article from the United States of America and the Brazils, (the two supplying countries) cannot be estimated at less than five thousand pounds. This would be a very material saving to the colony in its present circumstances, and one that might be effected with the greatest ease, and without prejudice to any part of the empire. The only question in this instance is, whether it be more politic that the colony should supply itself, or be dependent on foreigners. There are no contending interests to reconcile, no portion of his majesty's subjects in any part of the globe, who could wish to oppose the imposition of a prohibitory duty on the importation of this article into the colony. And this is the only measure that would be necessary to direct the attention of the settlers to this highly important production, for which it has been found that the climate and soil of the colony are peculiarly adapted. In three years at most, after the adoption of this regulation, the colonists would raise a sufficient quantity of tobacco for their own consumption. It will be an after consideration for the government to take the requisite means to promote the increased growth and exportation of this highly important product to the mother country. The immense advantage that she would derive from possessing in one of her own colonies, an article of such general consumption, and for which she is at present entirely tributary to foreign powers, is too obvious to need illustration, and too considerable not to attract the attention and encouragement of her legislature.

Hemp, flax, and linseed, are also productions to which the climate and soil of the colony, and its dependent settlements at the Derwent and Port Dalrymple are remarkably congenial, and the growth of which might be easily promoted by wise regulations. Yet highly valuable as are all these productions, and altogether dependent as is this country for the amazing quantities of them, which she consumes in her navy, her manufactures, and her commerce, no attempt has been made since the establishment of the colony to direct the attention of its inhabitants to their growth and exportation. The views of the different gentlemen, who have been

successively intrusted with the government, have either never reached so far, or else their means have been inadequate to the accomplishment of these great ends. In embellishing the capital, and erecting various public edifices, of which, however, I do not mean to question the utility, their attention appears to have been chiefly absorbed. It seems never to have come into their contemplation that all these embellishments would have been the natural and inevitable results of the increasing prosperity of the community, but that they could never of themselves either create or promote it. A flourishing agriculture, a thriving commerce, would have equally effected all these objects; but with this material difference, without that enormous expence to this country with which they have been attended. The imposition of small taxes for the promotion of public objects, is no grievance to a people whose prosperity is the work of a wise and considerative government. An impolitic and oppressive one cancels alike the will to make, and the power to levy such contributions; and imposes on itself the necessity of moderating its wants, or of having recourse to foreign channels for their supply. In this instance the great burden of these public undertakings has fallen on this country, nor have they been the most inconsiderable item in the amount of the colonial expenditure. Yet all that has been already lavished, and all that this country may hereafter lavish in prosecution of the same narrow and absurd system, will have but little influence in promoting the real purposes of colonization.

This mania for building, which has always directed the government, has unfortunately communicated itself to the colonists, particularly those who inhabit the various towns, and they are at present in the condition of a man who has a large house, but wants wherewithal to furnish and support it. Their situation would be more enviable, if they had smaller habitations replete with a greater degree of plenty and comfort. The establishment of an export trade, that may enable them to procure in sufficient abundance those foreign commodities which long habit has rendered indispensable to civilized life, is what they desire, and what a wise government would desire also; more especially since the parent colony is a great manufacturing nation, and possesses the power of supplying the commodities in question. Millions more expended in the same improvident manner as heretofore, will not effect this great object; and with half the expence already incurred a politic government would have already accomplished it. Of this assertion

the labours of an individual, who, if on the one hand he has met with some support from the more liberal and enlightened administration of this country, has constantly experienced, on the other, all the opposition which the envy and malevolence of the local government could throw in his way, furnish an indubitable proof.

This gentleman, John Mac Arthur, Esq. formerly a captain in the New South Wales corps, which was afterwards converted into the 102d regiment, embarked more largely from the very commencement of the colony, in the rearing of sheep and cattle, than any other individual. Notwithstanding the very great profits which his extensive flocks and herds yielded him, a circumstance that would have satisfied the ambition, and lulled to sleep the inquiries of a less penetrating mind, he foresaw so long as fifteen years back, what has since been realized, the crisis of general distress and embarrassment, to which the course pursued by the local government, would eventually conduct; and on the occasion of his being unjustly ordered to this country by the then governor, where he soon vindicated himself from the charges imputed to him, he convinced the ministry of the advantages that would accrue to the nation from promoting in the colony the growth of fine wool; and obtained from them a considerable grant of land, and various encouragements besides, in order to enable him to carry this highly important project into execution. Among other indulgences, he procured an order in council permitting him to embark on board the vessel that was to reconvey him to the colony, four Spanish ewes and a ram, which he had purchased out of the king's flocks. With this small beginning he undertook, and in spite of an incessant war waged against him by malignity and misrepresentation, the withholding in some measure of the encouragements ordered by the liberality of his majesty's ministry, and endless other disappointments and vexations that would have damped any ordinary resolution, his efforts have been crowned with the most complete success, and he has at present not less than five thousand sheep, of which the wool from continual crosses with Spanish tups, the progeny of the few sheep purchased by him at the sale of the king's flocks, has become as fine as the best imported from Saxony, and has been found to surpass it in elasticity, a quality highly conducive to the firmness and durability of the cloth. Many gentlemen also of the colony who have large flocks, sensible of the folly of breeding sheep for the mere sake of the carcasses, which in consequence of

the limited population, and unlimited extent of grazing country, have already become of inferior value, and in a short time more will be worth little or nothing, entered some years back on this gentleman's system; and there may, perhaps, be among all the rest of the sheep holders, the same number of fine woolled sheep which he alone possesses. Here then is an exportable article of immense consequence to the colony, and of the highest political importance to this country; an article indispensable to the support of her staple manufacture, and for which she has hitherto been altogether dependent on foreign nations; yet has no attempt but the one I have just alluded to, been made, either by the government of this country, or of the colony, to direct the attention of the sheep-holders to its production; on the contrary, the greatest obstacles have been thrown in the way of this gentleman's success, obstacles which none but the most enthusiastic spirit could have surmounted. Thanks, however, to his invincible perseverance, the dawn of prosperity is at length breaking on the colony. The long stormy night of suffering and misery is drawing to a close; yet a few years, and the sun of peace and plenty will appear on its horizon. But although this event will in the natural course of things soon take place, its approach may be greatly accelerated, or retarded by the wisdom or folly of the government. The colonists, in spite of every impediment they may have to encounter, cannot much longer remain insensible to the advantages which *they* possess, who have already followed the wise example of this gentleman: *these* they will daily behold in the enjoyment of comparative ease and happiness, and in possession of a certain progressive income, exposed to few or no contingencies, and dependent on no man for its extent and duration; while on the other hand, they will find that their own income must not only diminish every year, but also rest for its continuance on the good pleasure of their governor, who, if he should even possess the will, would not want the power to enlarge it to any considerable amount, and who, should he be their enemy, might at any time reduce it to nothing. The manifest superiority, therefore, which the proprietors of fine woolled possess over those of coarse woolled sheep, would alone suffice in the end to draw the attention of all the sheep-holders in the colony to the improvement and perfection of the wool of their flocks. This is happily a much easier task at present than at the period when Mr. Mac Arthur first entered on the system of crossing. At that epoch there were few sheep in the colony, but such as had been introduced from the East Indies, which it is well known are

entirely covered with hair. This race, so disgusting in its appearance to Englishmen, has long since disappeared; nor are there any sheep at present, whose wool could be termed actually coarse: the wool of the Leicester breed is perhaps the coarsest that could any where be found. A few years continual crossing with Spanish tups would consequently suffice to cover all the sheep in the colony with fine wool. Three crosses which under a proper system would occupy about six years, would be sufficient, if the government would employ the means at their disposal, to accomplish this great national object. The number of sheep in the month of November last amounted, as it has already been seen, to 170,920; out of which, as I have just stated, 10,000 are of the pure Spanish breed or nearly: it may therefore be perceived what an immense exportation of this precious article might take place in a few years, under judicious and politic regulations.

No country in the world is perhaps so well adapted to the growth of fine wool as this colony. There is in its climate alone, a peculiar congeniality for the amelioration of wool, which has been found of itself to occasion in a few years, a very perceptible improvement in the fleeces of the coarsest description of sheep. Even the East India breed, entirely covered with hair, produce without being crossed with a finer race a progeny, the superiority of whose fleece over that of the parent stock is visible in every remoter generation. This amazing congeniality of climate is supported by local advantages of equal if not greater importance. For hundreds of miles into the interior, the country has been found to be covered with the richest pasturage, and every where intersected with rivulets of the finest water. A constant succession of hill and dale diversifies the whole face of the country, which is so free from timber, that in many places there are thousands of acres without a tree.

The settlements at the Derwent and Port Dalrymple, though situated in a colder climate, and therefore in all probability not equally congenial to the growth of fine wool, afford the same excellent pasture, and contain in every respect besides, the same facilities for the rearing of Spanish sheep, whose fleeces it is reasonable to expect on comparing the climate of these settlements, with that of Saxony, would not degenerate, if the same system which prevails in that country were followed in the management of sheep in this.

Saxony is situated between the 50th and 51st parallels of north latitude; and Van Diemen's Land, on the northern and southern parts of which these two settlements are formed, between the 41st and 43d degrees of south; so that allowing for the superior coldness of the southern hemisphere, the whole of this island possesses a climate more congenial to the growth of wool, than the finest parts of a country, whose wool exceeds in value that of Spain and Italy. The settlers, however, have not yet opened their eyes to the advantage of having fine woolled flocks, although they have for many years past had but a very limited market for their mutton, and the government there, as at Port Jackson, have made no efforts to turn their attention to this object.

This unaccountable indifference to a matter of such vast political importance, it is to be hoped will at length be followed by a proper degree of attention and encouragement. Among all the various ends proposed by our extended colonial system, none perhaps is more intrinsically worthy the cordial undeviating support of his majesty's government, than the one in question. In twenty years, the extensive exportation which might be effected under proper regulations in this single article, would alone raise the colonists from the point of depression and misery to which they have been reduced, to as high a pitch of affluence and prosperity as is enjoyed by any portion of his majesty's subjects in any quarter of the globe. Before the expiration of that period, I am convinced that they might be enabled to ship for this country, at least a million's worth of fine wool annually; and for the accomplishment of this vast national object, it would not be necessary for this country to expend one far-thing more than is at present *wasted* in prosecution of a system of mere secondary importance, and having little or no bearing on the eventual prosperity of the colony. It is only by establishing this prosperity on a solid basis, by encouraging the growth of exports, until they rise to a level with its imports, that it can be converted from an unproductive and ruinous dependency into a profitable and important appendage. Whenever it shall have attained this point of advancement, whenever it shall have acquired an independence in its resources, then, and not before, will it begin to answer the real ends of all colonization, the extension of the commerce and resources of the empire. Then like some vast river of the ocean, will it pour back its majestic stream into the bosom of its parent flood, and contribute to the circulation and salubrity of its bounteous author.

Among the various remaining articles of export, which the colony is capable of producing, and to which the industry of its inhabitants might be gradually attracted, the last two that I shall specify, are the vine and the olive. These, indeed, with the various productions which I have already named, are capable of such vast extension, as to be fully adequate to absorb all the energies of the colonists for many years to come, whatever may be the increase in their numbers. To mention, therefore, the endless less important productions to which the climate and soil of this colony are equally congenial, would only be to perplex their choice, and to divert, perhaps, their industry into less productive channels. It would be superfluous to dwell upon the happy results that would attend the general introduction and culture of these two productions, both with reference to them as articles of internal consumption and exportation; since it is well known how materially they contribute to the comfort and affluence of the countries which are blessed with them. I shall, therefore, only just mention that the greatest facilities have been lately afforded for their general culture by the same gentleman who first introduced the Spanish sheep into the colony; and that there is only now wanting the fostering hand of the government to occasion their further propagation.

One of the most efficacious measures that could be adopted, as well for their general introduction, as for that of the various other valuable productions before enumerated, would perhaps be the establishment of a colonial plantation, in which a certain number of the most enterprising youths might be instructed in their culture and preparation. This institution might, I am convinced, be founded under a proper system without occasioning any considerable expence. The first step to be taken would of course be the selection of a fit allotment of ground, which ought to be granted to trustees, according to the usual forms of law. These should consist of a certain number of gentlemen of consideration in the colony, who would consent to hold this office as an honorary one, without any view to private emolument, and for the mere sake of promoting the public weal. To place this institution near the capital, Sydney, where the greater part of the land is already located, and besides of a very indifferent quality, ought not, by any means, to be attempted, not only for these reasons, but also because the youth, whom it would be the main object of this institution to train up to economical and laborious pursuits, would run the risk of

contracting the vicious habits, and falling into the excesses of that town; a probability which a removal to a proper distance from that sink of iniquity, would effectually provide against. The most eligible situation, perhaps, for the establishment of this highly important institution would be some fertile spot in the cow pastures, which, as it has been already mentioned, are injudiciously reserved for the use of the wild cattle, notwithstanding that they have nearly disappeared.

The only two individuals who have grants of land in this district are Messrs. Mac Arthur and Davison; and my recommendation that this institution should be formed in the same district, is not more influenced by the fertility of its soil than by the contiguity which it would in this case possess to the former gentleman's estate; a contiguity, which would enable him frequently to visit it, and to afford the director of it such information as could not fail to contribute very materially to its progress and success. It must be quite unnecessary for me to dwell on the importance of confiding the superintendence of such an establishment to some one, who might be duly qualified for the discharge of the duties that would be attached to it. Perhaps the government would act wisely, if my suggestion on this head should be deemed worthy of attention, in selecting for this office an intelligent person from the South of France, who has been accustomed to the culture of the vine and the olive. These with tobacco, hemp, and flax, are the objects to which, I am of opinion the attention of such an institution would be most beneficially applied. And if, as is not improbable, it should be found impracticable to procure a person acquainted with the culture and preparation of all these various productions, it would not be difficult to discover among the colonists themselves men of good character possessing the knowledge in which he might be deficient, and who might be assigned him as assistants, but still placed under his direction and control. The encouragement which I consider should be held out to the director, as well as to his subordinate agents, ought not to consist of stipulated salaries, which might superinduce lethargy, and prevent them from contributing their utmost to the success of the establishment, but of a certain proportion of the clear profits of the concern, after the deduction of all contingent expences. What I conceive this proportion ought to be, I will hereafter specify, as also the manner in which I would distribute the remainder. The subjects which I propose for immediate consideration are: 1st, The manner in which this

institution might be founded; 2dly, The number and description of the candidates to be admitted, with the manner of their occupation; and, lastly, the nature of the encouragement to be accorded them.

The means necessary for this undertaking must be unavoidably supplied by the government. "The Police Fund" is so burdened with charges of one sort or another, that I fear it would prove of itself inadequate to the completion of this measure; although there can be no doubt, that most of the ends to which this fund is at present devoted are of but subordinate utility, and might be very advantageously postponed to the object under consideration. The erection of the different buildings that would be immediately required for the various incipient purposes of this institution, and the supply of its inmates with provisions and the requisite implements of husbandry during the first eighteen months of its establishment, after which period I consider they would be fully able to administer in these respects to their own wants, would be the principal expences to be incurred. About £6000 would suffice for these objects; while, in return, its operation would gradually extend itself to every district, would develope and bring to maturity various exportable commodities, which are as yet lying in embryo, and which this country does not possess in any of her colonies; and, in fine, would be more sensibly felt, and become more extensively beneficial, in proportion to its own progressive march towards perfection.

Secondly, With respect to the number of candidates to be admitted, they ought perhaps, in the first instance, to be limited to fifty, although they might, and indeed ought to be subsequently increased to not fewer than two hundred. More than those in the commencement, before a due degree of order and economy could be introduced, would undoubtedly create confusion and an unnecessary augmentation of expence. Fifty are as many as I conceive could be advantageously occupied for the first two or three years. It must, however, be obvious, that the capability of this institution for the reception and profitable employment of a greater number of pupils, would very materially depend on the director, and be, in a great measure, accelerated or retarded by his ability or incompetency for a due discharge of his duties.

As to the description of these candidates, it would, I consider, be proper that they should consist of young men born in the colony, or who may have come to it with their parents; that they should not exceed eighteen years of age, nor be under fifteen; that they should be of docile tempers and regular habits, which points should be ascertained previously to their admittance; and that their parents or guardians should bind them apprentice for the space of four years to the trustees or directors of this establishment for the time being, during which period they should renounce all control over them whatever.

I will not here pretend to prescribe all the various modes of occupation which it might be proper to allot them; I have already enumerated those productions, the culture of which I conceive might be most advantageously taught and disseminated by means of this institution. Others, however, of equal and perhaps greater utility, may be hereafter suggested by persons more conversant with the situation and interests of the colony, and ought unquestionably, if there be any such, to become identified with those which I have specified. Whatever may be the decision of more competent judges than myself on this subject, I may perhaps confidently venture to recommend, that the pupils should be divided into classes, that each of these should be instructed in a particular sort of culture at a time; and that upon the attainment of a thorough knowledge how to cultivate and prepare any one article, and not before, their attention should be directed to some other, and so on, till the expiration of their several apprenticeships. It would be proper also to allow their parents or guardians the selection of the occupations in which they might wish their children or wards to be instructed, in so far at least, as such occupations might be compatible with any of the purposes of the institution.

And lastly, with reference to the nature and extent of the encouragements to be accorded to the pupils, I would recommend, in order that their energies might be stretched to the greatest possible point of extension, that six eighths of the net annual profits arising from their labours should be set apart, and remain in the hands of the trustees, for their sole use and benefit; and that on their retiring from this institution, the accumulated amount should be equally divided among them, both to secure their successful establishment in life, and to render the knowledge which they may have

severally acquired, of permanent benefit to the community. I would also recommend that the accounts both of the expenditure and profits of the institution should be annually submitted to the trustees for their approval, and afterwards printed and distributed among the pupils, not only for the purpose of provoking inquiry into their accuracy, and obtaining that rectification in case of error, which it might be difficult to effect after the lapse of five years; but also with a view to bring home to their understandings, and to convince them beyond the possibility of doubt, of the benefits which they may have derived from their past labours; a conviction that would prove the most cordial incentive, the most powerful lever which could be applied to their future industry and exertion. I would lastly recommend, that the quantity of land, and indeed that the encouragements of every kind which the government are in the habit of granting to the ordinary class of settlers, should be increased in a two-fold proportion to the pupils of this institution; but as it evidently would not be expedient or equitable that those who might habitually violate the regulations to be made for the good government of this little community, should receive on the one hand an equal recompence with those whose conduct might have always been regular and exemplary, or that they should be deprived on the other of their quota of the emoluments that might accumulate during the period of their apprenticeships, I would suggest, in order to mark that due gradation which in every well regulated society must necessarily exist in the scale of rewards to be accorded to such as may be subordinate or refractory,--industrious, or idle; that these latter encouragements should only be extended in this double ratio to those who might quit the establishment with a certificate of good conduct from the director.

With regard to the allowance to be made the gentleman to whom the directorship might be confided, I should imagine that one eighth of the clear profits arising from the institution, would be a most liberal compensation for his trouble and attention, and that the remaining eighth would be an equally handsome provision for the whole of his assistants: one of whom would be required for the superintendence and instruction of each of the classes into which it might be determined that the pupils should be divided.

Such are the principal measures which are essential to the revival of the agricultural prosperity. I will now briefly notice the various restrictions with which the commercial interests have been not less injudiciously fettered, and the removal of which is of the highest importance to the progress and welfare of the colony. These may be divided into two heads, duties and disabilities; and first, with reference to the duties with which the various articles of export that the colonists possess or procure, have been shackled by the successive governors. The duties in question are enumerated in the following schedule, and are levied upon the undermentioned articles, whether they are intended for home consumption or for exportation, in which latter case it will be seen that some few of them are even doubled.

On		each	ton	of	sandal	wood	
£2	10	0					
On		each	ton	of	pearl	shells	
2	10	0					
On		each	ton	of	beche	la	mer
5	0	0					
On		each	ton	of	sperm	oil	
2	10	0					
On		each	ton	of	black	whale	or other oil
2	0	0					
On		each		fur	seal	skin	
0	0	1½					
On			each		hair	ditto	
0	0	0½					
On			each		kangaroo	ditto	
0	0	0½					
On cedar or other timber from Shoal-haven, or any other part of the coast or harbours of New South Wales (Newcastle excepted, as the duties are already prescribed there) when not supplied by government labourers, for each solid foot -010 For every twenty spars from New Zealand or elsewhere1000							
On timber in log or plank from New Zealand, or elsewhere, for each solid foot							
0	1	0					
For each ton of coals from Newcastle for home consumption							
0	2	6					
Ditto				if		exported	
0	5	0					
For each thousand square feet of timber for home consumption							
3	0	0					
Ditto				if		exported	

That all these duties should be levied on these different articles, in as far as they may be consumed in the colony, may be highly expedient; but that they should be equally levied on exportation, and in two of the most material instances doubled, is so manifestly absurd, that it must be quite superfluous to dilate on the subject. It is a system of policy which it may be safely asserted is unknown in any other part of the world; and nothing but the indubitable certainty of its existence would convince any rational person that it could ever have entered into the contemplation of any one intrusted with the government of a colony. These duties have had the effect which might have been expected from them; they have in most instances amounted to actual prohibitions. Their operation, indeed, has been found so burdensome and oppressive, that the colonial merchants have frequently petitioned the local government for relief; but no attention whatever has been paid to their repeated representations and remonstrances. Had it not been for the duties on coals and timber, some hundred tons of these valuable natural productions would have been exported annually to the Cape of Good Hope and India; since the vessels which have been in the practice of trading between those countries and the colony have always returned in ballast; and the owners or consignees would, therefore, have gladly shipped cargoes of timber or coals, if they could have derived the most minute profit from the freight of them. This observation holds good in a great measure with respect to the various other articles which have been enumerated: the exportation of the whole has been greatly circumscribed by the same ridiculous and vexatious system of impost. It can hardly be credited that the veriest sciolist in political economy could have been guilty of such a palpable deviation from its fundamental principles; but it is still more unaccountable, that a succession of governors should have pertinaciously adhered to a system of finance so absurd and monstrous.

Highly injurious, however, as are the duties which are levied in the colony, they are not nearly so oppressive as those which are levied in this country, on spermaceti, right whale, and elephant oils procured in vessels built in the colony. The duties on the importation of such oil into this country, are £24 18s. 9d. for the first sort, and £8 6s. 3d. for the two last. If we add to these enormous duties those which are levied by the authority of the local

government, it will be perceived that all the spermaceti oil procured by the colonial vessels has to pay a duty of £28 8s. 9d. and all the right whale and elephant oil a duty of £10 6s. 3d. before it can come into competition with the oil of the same description procured in vessels built in the united kingdom. It has, however, been seen, that the colonists, propelled not less by that spirit of enterprize which distinguishes Englishmen in every quarter of the globe, than by the desire of finding profitable employment for that large portion of unoccupied labour, of which I have hastily pointed out the causes and march for the last fifteen years, have frequently attempted, notwithstanding these overwhelming prohibitions, to carry on these fisheries, but always without success; and that the valuable fishery of right whales which the river Derwent affords at a particular season, is now only resorted to, in order to procure the trifling supply of oil which is requisite for the East India market and for internal consumption. All attempts to export oil to this country have been for many years abandoned; since the trade could only be maintained at a dead loss, as the ruinous experience of many of the colonial merchants has abundantly attested. The reason why these enormous duties were imposed on oil procured in the colonial vessels is not generally understood here, but it is universally known in the colony; and the knowledge has materially tended to increase the dissatisfaction which the imposition of such duties would of itself, to a certain extent, have naturally excited. The act which authorizes these duties, is one of those smuggled acts by which, to the disgrace of our legislature, the welfare and happiness of helpless unprotected thousands have been so frequently sacrificed on the shrine of individual avarice or ambition. It originated in a certain great mercantile house extensively concerned in the South Sea fisheries, and could never have been passed, had there been a single person in either house of parliament, at all interested in the prosperity of this colony. This act, indeed, is such a terrible deviation, such a monstrous exception to the usual policy of this country with respect to the fisheries, that it carries with itself the strongest internal evidence of its polluted origin. No such restrictions had ever before been imposed on any of our colonies, as will be sufficiently evident, if we compare the duties which are levied in this country on oils procured in the vessels belonging to the colonies in North America and the West Indies, with those which are levied on oils procured in the vessels fitted out from the united kingdom. These duties are as follow:

*Train oil, the produce of fish, or creatures living in the sea, taken and caught by the crew of a British built vessel, wholly owned by his majesty's subjects, usually residing in Great Britain, Ireland, or the islands of Guernsey, Jersey, Alderney, Sark, or Man, registered and navigated according to law, and imported in any such shipping, per ton
0 8 3¾

[* See Pope's Practical Abridgment of the Laws of Customs and Excise, etc. etc. Title 246.]

Train oil, the produce of fish, or creatures living in the sea, taken and caught on the banks and shores of the island of Newfoundland and parts adjacent, wholly by his majesty's subjects carrying on such fishery from that island, and residing therein, and exported directly from thence in a British built ship or vessel, registered and navigated according to law, per ton
1 4 11¼

Train oil, the produce of fish, or creatures living in the sea, taken and caught wholly by his majesty's subjects, usually residing in any of the Bahama or Bermudas islands, or in any British plantation in North America, and imported in a British built vessel, registered and navigated according to law, per ton
3 6 6

Train oil, the produce of fish, or creatures living in the sea, taken and caught wholly by his majesty's subjects, usually residing in any other British plantation, territory, or settlement, and imported in a British built vessel, registered and navigated according to law, per ton
8 6 3

Spermaceti oil, or head matter, taken and caught by the crew of a British built vessel, wholly owned by his majesty's subjects, usually residing in Great Britain, Ireland, and the islands of Guernsey, Jersey, Alderney, Sark, or Man, registered and navigated according to law, and imported in any such vessel, per ton
0 8 3¾

Spermaceti oil, or head matter, taken and caught on the banks and shores of the island of Newfoundland and parts adjacent,

wholly by his majesty's subjects carrying on such fishery from that island, and residing therein, and imported directly from thence in a British built vessel registered and navigated according to law, per ton
1 4 11¼

Spermaceti oil, or head matter, taken and caught wholly by his majesty's subjects, usually residing in any of the Bahama or Bermudas islands, or in any British plantation in North America, and imported in a British built vessel, registered and navigated according to law, per ton
4 19 9

Spermaceti oil, or head matter, taken and caught wholly by his majesty's subjects, usually residing in any other British plantation, territory, or settlement, and imported in a British built vessel, registered and navigated according to law, per ton
24 18 9

From the foregoing statement it will be perceived that the duty levied on train oil, or spermaceti oil, or head-matter procured by the inhabitants of Newfoundland, is precisely the same, and only three times the amount of *that* which is levied on the same substances procured by British subjects residing in the united kingdom; and that the duty levied on oil, procured by British subjects residing in the Bahama, or Bermudas islands, or in the plantations in North America, is only *eight* times the amount on train oil, and *twelve* times the amount on spermaceti oil or head-matter, of *that* which is levied on the same substances taken by British subjects residing within the united kingdom. While on the other hand, the duty levied on oil procured *in any other colony*; (for mark, the contrivers of this act had sufficient cunning not to particularize the unfortunate colony against which it was levied) is *twenty times greater* on train oil, and oh, *monstrous injustice!* upwards of *sixty times* greater on spermaceti oil, or head-matter, than *that* which is levied on similar substances taken by British subjects residing within the limits of the united kingdom. The duty, therefore, which is payable on train oil procured in vessels belonging to this colony is *nearly seven times* greater than *that* which is payable on the same description of oil taken in vessels belonging to the island of Newfoundland, and *considerably*

more than double that which is payable on it, when taken in vessels belonging to the Bahama or Bermudas islands, or to the plantations in North America; while the duty which is levied on spermaceti oil, or head-matter, procured in vessels belonging to this colony, is *five times* the amount of *that* which is levied on such oil or head-matter, when taken in vessels belonging to the Bahama, or Bermudas islands, or to the plantations in North America; and *twenty times* the amount of *that* which is levied on similar substances when taken in vessels belonging to Newfoundland. This very unequal proportion which the duties levied on these two sorts of oil, if procured by the inhabitants of this colony, bear to each other when compared with the duties which are levied on the same substances if procured by the inhabitants of any of the foregoing colonies or plantations, furnishes an additional proof, were any required, of the correctness of my assertions with respect to the origin of the act by which they were imposed. The house who were the authors of it, could not consistently get the duty on one description of oil raised, without at the same time admitting the necessity for raising the duty on the other; but as they were not interested in the right whale fishery, they were only anxious to prevent the colonists of New South Wales from embarking in the sperm whale fishery; and could they have accomplished this object without running the risk of discovering the covert aim of the act in its progress through parliament, they would have gladly compromised this point with them, and have left the right whale fishery open to them on the same conditions as it was before the enactment of this bill. To have evinced, however, any such tolerant inclination might have betrayed their design, and accordingly the colonists were debarred from both the fisheries; for notwithstanding that regular gradation has by no means been adhered to in the imposition of these duties, which had been previously observed in the scale of the duties levied in the other colonies or plantations, they have in both instances been more than sufficient to constitute actual prohibitions.

That any superiority of privilege whatever should have been conceded by the legislature of this country, in the various acts which have been passed for the encouragement of the fisheries, to British subjects residing within the limits of the united kingdom, is at best a manifest injustice to such of her subjects as inhabit the colonies; but yet so long as this partiality was confined within any reasonable bounds, it would not have excited any considerable feeling of dissatisfaction. That there should, however, be any

gradation in the scale of duties to be levied on any description of merchandise procured or produced in the colonies themselves, is a system which it is impossible to reconcile with any principle of justice or policy. Still so long as this disproportion of impost, however unwise and unjust, did not become so burdensome and oppressive as to confine this branch of commerce, whatever it might be, to the privileged colony or colonies, some palliation might be offered by its advocates for its continuance, although the warmest of them would not be able to attempt its vindication. But that any one colony should be utterly excluded from privileges freely accorded to another, is such a monstrous stretch of tyrannical partiality, that it never could have been deliberately discussed in a free government, and must therefore have been contrived by the secret machinations of private avarice and corruption.

Can any reason be adduced why British subjects residing in one colony, should be excluded from the whale fisheries more than British subjects residing in another? Why vessels built in Canada, Nova Scotia, Newfoundland, or the Bahama islands, should possess a privilege denied to vessels built in New Holland or Van Diemen's Land? The whale fishery is not more contiguous to the inhabitants of the former colonies than to those of the latter; yet every encouragement is afforded for the carrying on of the one, and every obstacle thrown in the way of the successful prosecution of the other. Why such a broad line of distinction is drawn, it is impossible to divine; since the disability which is the consequence of it, is not only not in furtherance of any of the ends contemplated by the navigation act,* but in diametrical opposition to the whole of them. This will be evident if we refer to its preamble, and to a few of its prominent provisions. "Whereas for the increase of shipping and encouragement of the navigation of this nation, wherein under the good providence and protection of God, the wealth, safety, and strength of this kingdom is so much concerned; it is enacted that no goods, or commodities whatsoever, shall be imported into, or exported out of any lands, islands, plantations or territories to his Majesty belonging, or in his possession, or which may hereafter belong unto or be in the possession of his Majesty in Asia, Africa, or America, in any other vessels whatsoever, but in such vessels as do truly and without fraud belong only to the people of England, Ireland, or are of the built of and belonging to any of the said lands, islands, plantations, or territories as the proprietors and right

owners thereof, and whereof the master and three-fourths of the mariners at least are English, under the penalty of the forfeiture and loss of all the goods and commodities which shall be imported into, or exported out of any the aforesaid places, in any other vessel, as also of the vessel with all its tackle," etc. From this, which is the principal clause of the act, it clearly appears that British subjects in whatever part of the empire they may happen to reside, are entitled to precisely the same privileges, and that vessels built in any of her colonies are to all intents and purposes to be deemed of British built, in the same manner and on the same terms and conditions as if they had been built within the limits of the united kingdom, i. e. so long as the master and three fourths of the crew are British subjects. That this admission to a perfect equality of privilege, was and is still the intent not only of the navigation act, but of all the leading acts of navigation which have been passed since, we shall be still further satisfied, if we trace them in their whole progress to the present hour. It will not, however, be necessary to extend our examination either way beyond the great registry act passed in the twenty-sixth year of the reign of his present majesty, cap. 60. "By this act very considerable alteration was made in the whole concern of registering shipping, with a view of securing to ships of the *built* of this country, a preference and superiority which they had not enjoyed so completely before. The plan of regulation then proposed to parliament was the result of an inquiry and deliberation of great length before the committee of Privy Council for the Affairs of Trade and Plantations; and that inquiry was commenced and carried on, and the measure at length decided upon principally by the exertion and perseverance of the late Earl of Liverpool."** What vessels are still deemed in this careful and elaborate revision of the navigation code to be of *British built*, may be seen from the first clause of this act, which ordains "that no vessels *foreign built* (except such vessels as have been, or shall hereafter be taken by any of his Majesty's vessels of war, or by any private, or other vessel, and condemned as lawful prize in any court of admiralty) nor any vessel built or rebuilt upon any foreign-made keel or bottom, in the manner heretofore practised and allowed, although owned by British subjects, and navigated according to law, shall be any longer entitled to any of the privileges or advantages of a *British built ship*, or of a ship owned by British subjects, and all the said privileges and advantages shall hereafter be confined to *such ships only* as are *wholly of the built* of Great Britain or Ireland, Guernsey, Jersey, and the

Isle of Man, or of some of the plantations, islands, or territories in Asia, Africa, or America, which now belong, or at the time of building such vessels did belong, or which *may hereafter belong to* or be in the possession of his Majesty; provided always, that nothing hereinbefore contained shall extend to prohibit such foreign built vessels only as before the 1st of May, 1786, did truly and without fraud wholly belong to any of the people of Great Britain or Ireland, Guernsey, Jersey, and the Isle of Man, or of some of the plantations, etc. etc." Here then we have cited the *two leading clauses* in the *two leading acts* of navigation, and both prove that the objects which this country had in view, were to create nurseries of seamen for her navy, and to secure to her subjects, in whatever part of her extended empire they might reside, the benefit of the carrying trade. The imposition, therefore, of any duties on her subjects in any of her colonies, greater than those which are levied under similar circumstances on her subjects at home, far from being in unison with the liberal and enlightened policy of the navigation laws, is a broad deviation from their fundamental principles, and the creation of an entire system of exclusion, such as the one under consideration is, *a fortiori*, an utter violation of their letter and spirit. That any prohibitory duties of this sort could ever have been enacted, will appear still more surprising, if we look a little further into the policy which this country has pursued with respect to her other fisheries, particularly the cod fishery on the banks of Newfoundland, and parts adjacent. For when by the 15th Charles II. cap. 7. she enlarged the scope of her great navigation act, and to the two main original objects contemplated in this act, viz. the creation of nurseries for seamen, and the securing to her subjects the carrying trade, she superadded a third, viz. that of making herself the *entrepot* for the deposit of all goods and commodities, whether the growth, production, or manufacture of Europe, or of her colonies, it having been foreseen that this alteration in her maritime code would be prejudicial to the cod fisheries, and that it would most materially conduce to their prosperity and extension still to allow salt, provisions, wine, etc. to be imported *directly* from various countries not subject to the dominion of the crown of England into the colonies from whence these fisheries are carried on, this enlarged act,*** after ordaining "that no commodity of the growth, production, or manufacture of Europe shall be imported into any land, island, plantation, colony, territory, or place to his Majesty belonging, or which shall hereafter belong unto, or be in the possession of his Majesty in

Asia, Africa, or America, (Tangier only excepted) but what shall be *bona fide* and without fraud, laden and shipped in England, and in English built shipping, and whereof the master and three fourths of the mariners at least are English, and which shall be carried directly thence to the said lands, islands, plantations, colonies, territories or places, and from no other place whatsoever, any law or usage to the contrary notwithstanding, under the penalty of the loss of all such commodities of the growth, production, or manufacture of Europe, as shall be imported into any of them from any other place by land or by water, and if by water, of the vessel also in which they were imported with her tackle, etc. etc." immediately subjoins:-- "Provided that it shall be lawful to ship and lade in such ships, and so navigated as in the foregoing clause is set down and expressed in any part of Europe, salt for the fisheries of New England and Newfoundland, and to ship and lade in the Madeiras wines of the growth thereof, and to ship and lade in the Western Islands, or Azores, wines of the growth of the said islands, and to ship and take in servants or horses in**** Scotland or Ireland, and to ship or lade in Scotland all sorts of victual, the growth or production of Scotland, and to ship and lade in Ireland all sorts of victual of the growth or production of Ireland, and the same to transport into any of the said lands, islands, plantations, colonies, territories or places." Here then is an instance of a very material deviation from the spirit of the navigation laws for the sole purpose of encouraging a fishery; but who can deny its policy? The legislature in this case had to decide whether they would extend this great national nursery for seamen, or whether they would check its growth by preventing the direct trade between these colonies and Europe, Madeira, the Azores, etc. and by making herself the *entrepot* for the deposit and exchange of all the produce of these fisheries on the one hand, and of the productions of Europe, etc. etc. that were necessary for their extension on the other. The advantages that she would have derived from such a selfish arrangement, she wisely foresaw would be more than counterbalanced by the concomitant detriment which her maritime interests would have sustained from it. And hence this deviation from one of the leading objects of her navigation laws, a deviation which has not only been continued ever since, but even considerably enlarged; for many other places are now included in the direct commerce with these colonies, as will be seen by reference to the 46 Geo. III. c. 116. which recites, "whereas by the laws in force no commodity of the growth, production, or manufacture of

Europe, is allowed to be imported into any place to his Majesty belonging, or which shall hereafter belong unto, or be in the possession of his Majesty in Asia, Africa, or America, but what shall be *bona fide* and without fraud, laden and shipped in Great Britain, or Ireland, except salt for the fisheries of Nova Scotia, Newfoundland and Quebec, which may be laden in any port of Europe, and also except any goods fit and necessary for the fishery in the British colonies or plantations in America, being the growth, produce, or manufacture of Great Britain or Ireland, or of the islands of Guernsey or Jersey, which may be shipped and laden in the said islands respectively by any of the inhabitants thereof, and also except wines of the growth of the Madeiras and the Western Islands, or Azores, which may be laden at those places respectively: and whereas, it may tend to the benefit of the British fisheries, and to the advantage of the commerce and navigation of this country, if permission was given for certain other articles to be shipped for the British colonies in North America, at other places in Europe than those hereinbefore mentioned, under certain regulations and restrictions:" it is therefore enacted that any fruit, wine, oil, salt, or cork, the produce of Europe, may be shipped and laden at Malta, or Gibraltar, for exportation direct to the said plantations in North America, on board any British *built* vessel, owned, navigated, and registered according to law, which shall arrive with the produce of the said fisheries taken and cured by his majesty's subjects carrying on the said fishery from any of the said plantations, or from Great Britain or Ireland.

[* 12 Car. II. chap. 18.]

[** Reeves, second edition, p. 397.]

[*** 15 Charles II. cap. 7.]

[***** England, Ireland and Scotland, since united into one kingdom.]

I have been thus copious in extracts from the navigation laws, to prove that the great leading principles of these laws would not only be in no wise encroached upon by allowing the inhabitants of this colony to carry on the whale fisheries in their own vessels, but also that the duties which were thus clandestinely imposed on oils so procured, have been a flagrant violation of them, and that they are a single isolated exception to a general rule. Nor would the abolition of the duties in question, and the consequent

encouragement of these fisheries, prove injurious to the British merchants at home, as must have been apprehended by those who were the authors of the prohibitory law by which these duties were enacted. Looking, indeed, at the mere situation of the colony, it would not be unnatural to conclude that its contiguity to the sperm whale fisheries, on the coast of New Zealand, New Caledonia, and New Guinea, would give its inhabitants such a decided advantage over the persons carrying on the same fisheries from this country, that these latter would soon be forced to abandon a ruinous competition, and that she would consequently be deprived of the very important benefits which she at present derives from it. The fears, however, which are apt to arise on this view of the subject will be immediately dissipated if it be considered, that the rope, canvas, casks, and gear of every description, necessary for the outfit of the colonial vessels for these fisheries, are furnished by this country, and can never be obtained in the colony under an advance of fifty per cent. on the prime cost; that the sperm oil in the market is unequal to the demand for it, an assertion proved as well by the existing bounties held out by the legislature for the encouragement of these fisheries, as by the enormous wages gained by the seamen employed in them; that these bounties themselves operate as a considerable prohibition to the colonists; and, lastly, that many years must elapse before the colonial fishermen can be properly organized, and rendered as expert as the English. These various disadvantages under which the inhabitants of this colony labour, are all but one of a permanent nature, and it is evident will always more than counterbalance the single local superiority which they possess, and ensure the English merchants a decided advantage in the market;--an advantage which if it will not outstrip all competition, will at least only just permit that salutary opposition which is essential to the prevention of monopoly and to the interests of the public.

It must, I should imagine, by this time be quite obvious, that the removal of the duties in question would be in complete unison with the spirit of the navigation laws, and with that liberal and enlightened policy, which this country has on all other occasions invariably observed, with respect to colonies in parallel circumstances. In establishing, therefore, a precedent, I hope that I have made out a case sufficiently strong to warrant the interference of the legislature. It may not, however, be altogether superfluous, if it be only to point out the injury which this country has

sustained from her past injustice and impolicy, just to glance at the advantages that she would possess in future wars from having an extensive body of seamen at her disposal in the South Pacific Ocean. Hitherto our squadrons in India have been entirely supplied with seamen from this country, and the great mortality which takes place on that station requires this supply to be constantly kept up. It is well known, although fewer actions take place in the Indian seas than perhaps on any other of our maritime stations, that the number of deaths occasioned by the influence of the climate alone are proportionally more considerable than in any other part of the world, with the single exception, I believe, of the coast of Africa. It becomes, therefore, a question of the greatest importance, whether considered in a political or philanthropic point of view, to ascertain if this lamentable expenditure of human life might not be considerably diminished by manning our ships of war in the Indian seas with the inhabitants of New Holland. It is well known that our settlements in this vast island are situated in a climate which forms a mean between the temperature of this country and India. There is consequently every probability, that the persons born in these colonies would be able to support the extreme heats of India much better than Englishmen. Be this, however, as it may, there can be no doubt of the advantage which this country would derive from having a valuable nursery for seamen in a situation, from which her navy in the East might at no very remote period be so easily supplied on all occasions of emergency. This prospect cannot fail to prove an additional motive with the government for the abolition of duties, which, if persevered in, will for ever stifle all commercial enterprize, and debar not only the colonists themselves, but the parent country also from the various important advantages, which I should presume it is now evident that an uncontrolled ability to prosecute these fisheries would infallibly secure to one and the other.

With reference now to the commercial disabilities which have been imposed on this colony: the first impediment, the removal of which may be said to be of any material importance to its mercantile prosperity, is the clause in the East India Company's charter*, which provides, "that it shall not be lawful for any vessel, the registered measurement whereof shall be less than three hundred and fifty tons, other than such vessels as may be employed by the East India Company as packets, to clear out from any port in the united kingdom for any place within the limits of the said company's

charter, or be admitted to entry at any port of the united kingdom from any place within those limits.**" When this act was passed, the pernicious bearing of this clause on the colony was most probably overlooked. It has been found prejudicial in the following respects:--First, The demand for British goods is not sufficiently extensive to absorb cargoes of such magnitude; so that when any such have arrived, they have generally been attended with a loss to the owners, who will probably soon become too wise to continue such a hazardous commerce. Those merchants, indeed, who were in the habit of shipping cargoes in smaller vessels for the colonial market, before the passing of this act, have already abandoned, in a great measure, their connexion within the colony, which is at present chiefly dependent for its supplies of British manufactures, on the captains of the vessels employed in the transportation of convicts. These supplies, therefore, have naturally become unequal and precarious: sometimes being unnecessarily superabundant and cheap, and at other times being so extremely scarce and dear as to be entirely beyond the reach of the great body of the consumers. Such great fluctuations are obviously not more repugnant to the well being and comfort of the colonists themselves than to the mercantile interests of this country.

[* 53 Geo. 3. c. 155.]

[** The colony of New South Wales is within these limits.]

Secondly, The tendency of this act is not less injurious to the colonists with regard to the few articles of export which they are enabled to produce or collect for the British market. These indeed are only three in number, wool, hides, and seal skins, and are at present very inconsiderable in quantity; but the two former articles must necessarily increase every year, and will at length become of great extent and importance. The probable amount of the colonial exports has been already rated at about £28,000, out of which I consider that not more than £15,000 worth is conveyed to this country. The remainder consists of sandal wood, beche la mer, etc. exported principally to China. It may therefore be perceived that the whole of the annual exports of this colony would not suffice for half the freight of a single vessel of the size regulated by the act in question. It happens, in consequence, that the different articles of export which the colonists collect, frequently accumulate in their stores for a year and a half, before it becomes worth the

while of the captain of any of the vessels which frequent the colony, to give them ship-room; and even then they do it as a matter of *favour*, not forgetting, however, to extort an exorbitant return for their *kindness and condescension*. The owners, indeed, of these vessels are so well aware of the inability of the colony to furnish them with cargoes on freight, that they generally manage before their departure, to contract for freights from some of the ports in India; a precaution which increases still more perceptibly the difficulty which the colonists experience in sending their produce to market. It must, therefore, be evident that they suffer a two-fold injury from this act, both as it prevents a regular supply of the colonial markets with British manufactures, and as it impedes the conveyance of their exports to this country. It is to be hoped, then, that this unnecessary and oppressive provision of the act will be revised, and that vessels of any burden will be suffered to trade between this country and the colony, until its increased growth and maturity shall have rendered the revision of obsolete efficacy.

The last disability of serious detriment to the colonists, is that their vessels cannot navigate the seas within the limits of the East India Company's charter. I say *cannot*; because, although since the late renewal of their charter vessels built in this colony are, I should apprehend, entitled to all the privileges of other British built vessels, so long as they are navigated according to law, it has not yet attained sufficient strength to be enabled to build vessels of the burden of three hundred and fifty tons; and if it even possessed this ability, such vessels could only convey the produce of the countries in the Eastern seas, to which the free trade has lately been opened, to certain ports in the united kingdom. The colonists, therefore, are virtually precluded from trading in their own vessels within these limits; a restriction highly injurious to them, and of no benefit whatever to the company. Till within these few years the vessels built at the Cape of Good Hope were subject to a similar restraint; but its useless and oppressive tendency became so glaring, and the restraint itself so obnoxious to the people who were suffering under it, that it was at length removed by an Order in Council, dated 24th September, 1814, which was made by virtue of an act passed so long back as the 49th* year of the reign of his present Majesty. By the 57th Geo. 3. c. 95. this settlement was expressly included, for all the purposes of the act, within the limits of the East India Company's charter. The same reasons that sufficed for granting this privilege in the one

instance, are at least equally conclusive in the other; and it is to be hoped, that the legislature will soon release the colony of New South Wales also from so grievous and unnecessary a restraint. Indeed no new act for this purpose is necessary; for the 57th Geo. 3. c. 1. after reciting, "whereas it is expedient under the present circumstances, that the trade and commerce to and from all islands, colonies, or places, and the territories and dependencies thereof to his Majesty belonging, or in his possession in Africa or Asia, to the eastward of the Cape of Good Hope, excepting only the possessions of the East India Company, should be regulated for a certain time in such manner as shall seem proper to his Majesty in Council, notwithstanding the special provisions of any act or acts of parliament, that may be construed to affect the same," enacts, "that it shall be lawful for his Majesty in Council, by any order to be issued from time to time, to give such directions, and make such regulations touching the trade and commerce to and from the said islands, colonies, or places, and the territories and dependencies thereof, as to his Majesty in Council shall appear most expedient and salutary; any thing contained in any act of parliament now in force relating to his Majesty's colonies and plantations, or any other law or custom to the contrary in any wise notwithstanding." It may, therefore, be perceived that the disability in question might be removed by a simple Order in Council. Whenever his Majesty's government shall have freed the colonists from this useless and cruel prohibition, the following branches of commerce would then be opened to them: First, they would be enabled to transport in their own vessels their coals, timber, spars, flour, meat, etc. to the Cape of Good Hope, the Isle of France, Calcutta, and many other places in the Indian seas, in all of which markets more or less extensive exist for these and various other productions which the colony might furnish; Secondly, they would be enabled to carry directly to Canton the sandal wood, beche la mer, dried seal skins, and in fact all the numerous productions which the surrounding seas and islands afford for the China market, and return freighted with cargoes of tea, silks, nankeens, etc. all of which commodities are in great demand in the colony, and are at present altogether furnished by East India or American merchants, to the great detriment and dissatisfaction of the colonial. And, lastly, they would be enabled in a short time, from the great increase of capital which these important privileges would of themselves occasion, as well as attract from other countries to open the fur trade with the north-west coast of America,

and dispose of the cargoes procured in China; a trade which has hitherto been** exclusively carried on by the Americans and Russians, although the colonists possess a local superiority for the prosecution of this valuable branch of commerce, which would ensure them at least a successful competition with the subjects of those two nations.

[* Cap. 17.]

[** Many attempts have been made by the legislature to encourage British subjects to carry on this commerce from the ports of the united kingdom, but they have in a great measure failed in this object: see Convention with the King of Spain, 33 Geo, 3. c. 52. Indeed, during the period of the Company's exclusive trade with China, it can only be successfully undertaken by persons residing within the limits of their charter.]

Such are the principal alterations in the policy of this colony which appear most essential to its progress and welfare. All these indeed, and many other privileges, which, though of only secondary consideration, would tend like a constant concurrence of small rivulets to swell and enlarge the stream of colonial prosperity, would be the natural consequences of a free representative government. If I have, therefore, gradually ascended from effect to cause, after the manner of experimental philosophy, I have chosen this mode of elucidation, not because it was the only one which offered for the illustration of my subject, but because I consider the inferences to be drawn from it more satisfactory than those to which the opposite mode of reasoning (that of descending from generals to particulars) conducts; because it would be as easy that the abolition of the various grievances which have been enumerated should be coeval with the creation of the free constitution, by which such abolition would be eventually accomplished; and lastly, because the additional tedious delay which would otherwise intervene between the establishment of a colonial legislature, the representation of grievances by which it would be followed, and their consequent removal,--a process that would occupy two years, might be thus avoided; or in other words, the same period of unnecessary endurance and misery spared to the ill fated inhabitants of this colony. In recommending, however, that the government of this country should authorize the immediate adoption of the measures which I have proposed, I do not mean to imply that such authorization alone would be productive of the important results in contemplation. However extensively beneficial in their present and remote effects the privileges thus conferred might prove, they would

nevertheless be unsatisfactory and incomplete, so long as they were unaccompanied with a government competent and willing to watch over and secure their continuance. While it should be in the power of any individual to suspend or annul them, what guarantee, in fact, would exist for their permanence and durability? What solid basis on which the capital and industry, which they might be calculated to elicit, could repose in security?

The confidence, indeed, which an impartial governor might inspire, would most probably, as often as the colony might be blessed with a chief of this description, give a momentary impulse to the activity of the colonists, and create a temporary prosperity among them; but the shortness of his administration will always interrupt the completion of his projects, and the caprice, imbecillity, or injustice of some one or other of his successors, like the blast of the sirocco, wither up the tender shoots of prosperity, which a consistent and protecting government would have nurtured and brought to maturity. The experience of the past has sufficiently evinced the little dependence which is to be placed on the degree of countenance and protection which the system of one governor, however beneficial the prosecution of it might prove, is likely to meet with from *his successor*. It is, indeed, in the nature of man, to prefer his own projects to those of any other: there is a degree of pleasure in striking off from the beaten path, and rambling in the untrodden wilds of speculation and experiment, which is alone sufficient, without the help of bad motives, to account for the diversity of policy, by which the administrations of the various governors have been contra-distinguished. This inherent principle of our nature, so averse to the realization of every beneficial design, which is not capable of immediate development, ought evidently to be counteracted and not encouraged, as it is at present, to the utmost point to which an uncontrolled and ridiculous caprice may choose to indulge it. The existing system of government is, in fact, a woof of inconsistency, from which no great harmonious tissue can proceed. A gentleman is appointed to this important situation: on his arrival in the colony he finds no council, no house of assembly, not even a colonial secretary to assist him: a stranger, and naturally unacquainted with its interests, he is necessarily obliged to have recourse to some person or other for advice: to avoid the appearance of ignorance, which however he cannot but possess, he will not most probably apply to the gentleman whom he supersedes; and he again, from a principle

of delicacy, will not be forward in offering his advice unsolicited: those who had been the assistants, and perhaps able assistants of the latter, will keep aloof, as much out of respect to the gentleman whom they had last served, as from that fear of obtrusion, that feeling of diffidence, which is inherent in persons of real merit and probity; so that it is ten to one but he falls into the hands of the faction who had been the enemies of his predecessor, only perhaps because he had too much honour and integrity to promote their selfish views, at the expence of the public weal. Scarcely, therefore, will this gentleman have quitted the colony, before the whole of the superstructure which he had been rearing will have been pulled down, and another of a different description commenced in its stead. Such has almost invariably been, and such will continue to be the conduct of the actual government; nothing judicious or permanent can ever be expected to proceed from it. How then, it may be asked, can prosperity be expected to flow from sources so precarious and inconstant? Are they calculated to supply that regular equal stream of security and confidence which has been found essential to the progress of improvement? But were the existing system of government essentially conservative in its nature, instead of being virtually destructive, it would still prove inadequate and inefficient. The circumstances and wants of this colony will vary every year, and consequently require either such partial modifications or entire alterations of policy as may be suited to each progressive stage of advancement. Its government, therefore, ought to be so constituted, as not only to possess the power of revising old laws, but also of framing new ones. It ought, in fact, to involve in itself a creative as well as a conservative faculty; a faculty which might enable it to accommodate its measures to every change of situation, and provide an instant remedy for every unforeseen and prejudicial contingency. Nothing short of this will suffice to inspire that confidence which alone can be productive of permanent prosperity. The government of an individual, however respectable he may be, will always engender distrust and cramp exertion. Man is distinguished from the rest of the creation by his circumspection and providence. There must exist a moral probability of reaping before he will venture to sow. This cautious calculating disposition too, is most predominant in those who are in the most easy circumstances: where the liability to incur loss is greatest, the spirit of enterprize is generally most restrained. But this class, which contains the great capitalists of all countries, are precisely those whose

means, if they could be *enticed* into activity, would be productive of the most beneficial results. No soil is so barren, no climate so forbidding, as not to present facilities more or less favourable for the absorption of capital, and the extension of industry. Wherever the tide of improvement is at its height, and a reflux ensues, it is to the impolicy of the government, and not to the sterility of the country, that this retrogradation is to be attributed. Prosperity and happiness belong to no climate, they are indigenous to no soil: they have been known to fly the allurements of the fertile vale, and to nestle on the top of the barren mountain: the plains of Latium could not secure their stay, yet have they freely alit on the snow-capt summits of Helvetia: they have been the faithful companions of freedom in all her wanderings and persecutions: they have never graced the triumphs of injustice and oppression.

I have now hastily sketched the principal incidents which have characterized the march of this colony during the last fifteen years. If I have neglected representing its more early efforts; if I have excluded from view the amazing difficulties and privations with which its immediate founders had to contend; if, in fine, I have altogether omitted in the picture the numerous interesting events that took place during the first fifteen years of its establishment, I have been induced to all these omissions by a conviction, that the existing system of government, if not the most eligible that could have been devised, was at least unproductive of those glaring ill consequences, with which it has subsequently been attended. A singleness of design and a unity of action, could not be deviated from during the period of its infancy by the most ignorant and inexpert bungler in political science. There was a broad path open to its government, which it could not possibly mistake. The colony as yet entirely dependent on external supplies, always precarious from their very nature, but rendered still more so by a tedious, and at that time almost unexplored navigation, would unavoidably turn its whole attention to the single object of raising food, and emancipating itself as soon as possible, from so uncertain and dangerous a dependence. The principle of fear would have sufficed to propel the colonists to a spontaneous application of their strength to the realization of this end, independent of any directing power whatever. It was, therefore, only on the attainment of this most important point, that the impolicy of the present form of government became a matter of speculation, and

subsequently, that it has been demonstrated by its practical result,--the wretched situation to which it has reduced a colony, that might be made, as I have satisfactorily established, one of the most useful and flourishing appendages of the empire. It is at the epoch when the produce of the colonists began to exceed the demand, and when their industry, instead of being encouraged and directed into new channels of profitable occupation, was not only left to its own blind unguided impulse, but also placed under the most impolitic and oppressive restrictions, that I have taken up the pencil, and made a rapid but faithful delineation of the deplorable consequences that have been attendant on a concatenation of injudicious and absurd disabilities, which, though not altogether imposed by its immediate government, would have been easily removed by the more weighty influence of a combined representative legislature. I have therefore throughout the whole of this essay, considered the present government not only responsible for its own impolitic conduct, but also for the existence of those grievances which have been created by a higher authority, and of which it has wanted the will or the power to procure the repeal. I have commenced by glancing at some of the most striking events that ancient history affords, to prove that the prosperity of nations has kept pace with the degree of freedom enjoyed by their citizens, and that their decadence and eventual overthrow have been invariably occasioned by a selfish and overwhelming despotism. Descending to more modern times, and adverting to the condition of existing nations, I have shewn that the unparalleled power and affluence of our own country, which I have selected out of them by way of exemplification, are solely to be attributed to the superior freedom of her laws, which have engendered her a freer, more virtuous, and more warlike race of people. From these striking illustrations, this steady coincidence of cause and effect, deduced from the records of the greatest among ancient and modern empires, I have concluded that every community which has not a free government, is devoid of that security of person and property which has been found to be the chief stimulus to individual exertion, and the only basis on which the social edifice can repose in a solid and durable tranquillity. That the system of government adopted in the colony of New South Wales does not rest on this foundation stone of private right and public prosperity, I have proved from the detestable tyranny and consequent arrest of a governor, whose conduct anterior to his being intrusted with this important charge, it will have been

seen, was such as might have led without any extraordinary powers of discrimination to a prediction of the catastrophe that befel him. The atrocities perpetrated by this monster, and the events to which they gave rise, are sufficient to convince the most incredulous, that the colonists have no guarantee for the undisturbed enjoyment of their rights and liberties, but the impartiality and good pleasure of their governor; and that they have no resource but in rebellion against the unprincipled attacks and unjustifiable inroads of arbitrary power. So radically defective, indeed, is the government to which they are subjected in its very constitution, that it not only holds out, in the uncontrolled authority which it vests in the hands of an individual, the strongest temptations for the exercise of tyranny to those who may habitually possess an overbearing and despotic temperament, but has also a manifest tendency, as history amply attests, to vitiate the heart, and to produce a spirit of injustice and oppression in those who may have been antecedently distinguished by a well regulated and humane disposition. While it is thus, on the one hand, calculated to beget the most monstrous atrocities within the sphere of its jurisdiction, I have shewn that it has not, on the other, been invested by the power to whom it owes its origin and existence with the ability to perform any extended good; and that while it involves in its essence all the elements of destruction, it possesses no one principle of vitality. Of this assertion the administration of Governor Macquarie, who if you may judge from the length of time during which he has held this high office, would appear to possess a greater portion of the confidence of his Majesty's ministers, than any of his predecessors, furnishes an indubitable proof: for relieved as the mind of the reader will have been from the undivided indignation, disgust, and abhorrence, which the excesses committed in the foregoing government cannot fail to excite, by a review of the prudence and moderation by which his career has been contra-distinguished, he will nevertheless have beheld the colony, from the want of privileges, of which this gentleman has not possessed sufficient influence to procure the authorization, sinking in spite of his upholding hand, from a comparative state of affluence and comfort, to the lowest depth of poverty and endurance. He will have seen the colonists checked in their agricultural pursuits, rushing promiscuously into every avenue of internal industry that lay open to them, and afterwards constructing vessels, and not only exploring every known shore within the limits of their territory, in search of sandal wood, but even discovering unknown islands

abounding with seals. He will have viewed them exhausting these temporary sources of relief, and attempting, but obliged to desist by the weight of impolitic imposts, both internal and external, from those inexhaustible fountains of wealth, the valuable whale fisheries that exist in the adjacent seas. He will have beheld them from inability to purchase the more costly commodities of other countries, making the most astonishing exertions in manufactures, and thus impelled by necessity to the adoption of a system not more averse to the interests of the parent country than to their own; and which under a well regulated government, would have been one of the last effects of maturity and civilization. He will have witnessed, notwithstanding these vigorous and unnatural efforts, numbers of them bending every day beneath the pressure of embarrassment, and at length stripped of their lands, and deprived of their freedom, by a set of rapacious and unprincipled dealers, who are gradually rendering themselves masters of the persons and property of the agriculturists; the greater part of whom, if the present system continue a few years longer, will be virtually reduced to a state of bondage, and condemned to minister to the ease and enjoyments of the worthless and the vile. He will have seen that, while the poorer settlers have already in general fallen victims to the unjust and impolitic disabilities with which they are beset, the circle of distress has extended itself from these, the *central body* of the community, to its *circumference*; and that the imports have so constantly preponderated in the balance over the united weight of the income and exports, that the whole wealth of the colony has been continually flowing into foreign countries, for the payment of the necessary commodities furnished by them, leaving no money in circulation for the important purposes of domestic economy, and compelling the colonists by a general, constrained, and tacit convention, to tolerate, as a substitute for a legitimate circulating medium, a currency possessed of no intrinsic value whatever. He will have beheld this rapid torrent of distress forcibly driving back the tide of population, both by the difficulties which it throws in the way of rearing up a family, and by the numerous bodies of freed convicts, whom it propels to a return to their native country, the greater part of whom, more from necessity than choice, are led to a resumption of their ancient habits, in order to procure a subsistence, and either impose on the government the expense of retransporting them to this colony, or end their career of iniquity by falling victims to the vengeance of the laws which they had so often violated. He

will have seen during these continual and violent concussions, by which the whole social edifice has been shaken to the foundation, that the expenditure of the colony has been in a state of the most rapid increase, and that the existing system of government is incompatible with its diminution. He will, in fine, have been satisfied that the immorality and vice which it was the main object of the legislature to repress and extirpate, are making the most alarming progress and extension.

Looking a little beyond these, the actual results of the present order of things, he will find that it is affording the most efficacious assistance and encouragement to the perfection of the manufacturing system, already in a state of considerable advancement, and that a few years more will so greatly circumscribe the means of the colonists, that the majority of them will be entirely excluded from the use of foreign commodities, and compelled to content themselves with the homely products of their own ingenuity; and that thus not only one of the great ends of colonization, the creation of a market for the consumption of the manufactures of the parent country, will be defeated by her own impolitic conduct, but also a spirit of animosity will be engendered by the recollection of the privations and sufferings encountered by the colonists in their tedious and painful march to this unnatural independence in their resources; a spirit which will be handed down from father to son, acquiring in its descent fresh force, and settling at length into an hereditary hatred, which it will no longer be in the power of the government to extinguish, and which will propel them, whenever an opportunity offers, to renounce the control of such unwise and unfeeling masters. Passing from this gloomy picture of vexatious tyranny and unmerited suffering, he will proceed to the more grateful contemplation of the remedies that are proposed as a cure for the present evils, and as a preventive against the future tremendous eruption with which the existing system, a mountainous agglomeration of impolicy and barbarity, is so fatally pregnant. He will be satisfied that the application of the restoratives prescribed, will both reintegrate the agricultural body, now in the last stage of debility and consumption, and impart fresh life and vigour into the commercial, which is equally impaired; and that while the parent country will by these means restore the tone and energies of the colony, she will be contributing in the most effectual manner to her own strength and greatness. He will be persuaded that all these most desirable ends will inevitably

follow the establishment of a free representative government; and that however salutary the adoption of the measures proposed might be, unaccompanied with that internal power of legislation from which they would have eventually proceeded, they would of themselves be utterly inadequate to effect a perfect and permanent cure for the existing evils; and that nothing short of a local legislature, properly constituted, can on the one hand either inspire into capitalists that confidence which is essential to the free unimpeded extension of industry, or be competent on the other, to provide an instant relief for those growing wants, which spring out of the progress of advancement, and are contingent on those changes of circumstances and situation, to which incipient communities are so peculiarly liable. He will, in fine, be convinced even to demonstration, that the erection of a free government in the colony of New South Wales would be a panacea for all its sufferings; that it is the only measure which can ease this country of the enormous burden which it will otherwise entail on her, and save the unspent millions that will be ingulphed, *uselessly* ingulphed, in the devouring vortex of the present system; and that the creation of an export trade of raw materials, and the consequent extended consumption of her manufactures which the proposed change of government would superinduce, is the only way in which she can ever repay herself for the immense expence that she has lavished on this colony, as well during the period of its really helpless infancy, as during the still longer interval of its restrained growth and fictitious imbecillity.

PART IV.

VARIOUS CHANGES PROPOSED IN THE SYSTEM OF GOVERNMENT.

It being thus clear and indubitable that free representative governments are the only foundation on which the prosperity and happiness of communities can safely repose, it only remains to ascertain how far the actual circumstances and situation of this colony are compatible with the concession of so great and important a privilege. At my very offset in this essay, after glancing in a cursory manner at the history of the most celebrated ancient and modern empires, and shewing that their progress kept pace with their freedom, and that their retrogradation is to be dated only from the epoch when they fell under the dominion of arbitrary and ambitious despots, whose successors gradually completed the work of destruction which they had commenced, I was compelled in candour to admit that the heterogeneous ingredients of which this colony was compounded, did not at the period of its foundation, afford his Majesty's government the power, if they had even possessed the will, to establish a free representative system. It is therefore incumbent on me, now that I have demonstrated the beneficial influence which free governments have in promoting the prosperity of communities in general, and have proved that this colony has for many years been languishing in a state of impeded growth, and tottering imbecillity, from the inefficiency of its administration to adopt those measures which are necessary to its revigoration; I say it is incumbent on me to shew that the component parts of this body politic, have undergone such a change since the period of its creation, as will warrant its identification in this respect with other states, and justify the conclusion that such institutions are essential to its welfare as have been found conducive to theirs.

It must be almost superfluous to state, that when this colony was formed, it was composed, with the exception of its civil and military establishments, entirely of convicts. It was consequently impossible that a body of men,

who were all under the sentence of the law, and had been condemned for their crimes to suffer either a temporary suspension, or total deprivation of the civil rights of citizens, could be admitted to exercise one of the most important among the whole of them, the elective franchise; and to have vested this privilege in the civil and military authorities, both of whom then as at present were subject to martial law, and were besides at that time without landed property, the only standard I conceive by which the right either of electing or being elected can in any country be properly regulated, would have been equally improper and absurd. A council indeed might have been appointed, but even an institution of this kind might have clogged the wheels of the government by its opposition, and could have been of but little assistance with its advice; for as it has been already stated, there was but one object to be pursued, and that was to promote by every means the agriculture of the colony, so as to emancipate it as soon as possible from a precarious and dangerous dependence on other countries. Until, therefore, the free inhabitants of the colony had increased to a sufficient number to exercise the elective franchise, and until its productive powers had outstripped its consumptive, and it became necessary either to create new markets for its produce within, or to direct a portion of its strength to the raising of articles for exportation to other countries, the establishment of a free representative government would not have been expedient had it even been practicable.

The period at which the produce of this settlement fairly exceeded the internal demand for it, may, as I have already noticed, be dated so far back as the year 1804, being about sixteen years after the period of its foundation. It has been already seen that the harvests of that and the succeeding year were so abundant, that no sale could be obtained for more than one half of the crop;--that had it not been for a tremendous flood which happened in 1806, the majority of the cultivators must have abandoned their farms, and sought for other occupation;--and that since that period there has fortunately been a succession of floods and droughts, which with the exception of two or three seasons of equal plenty, have kept the productive powers of the colony nearly on a level with its consumptive, or else the situation of the settlers, deplorable as it now is, would have been infinitely more so. How radically defective, then, must be the government of this colony, when what would be calamities of the most serious and afflicting

nature in a well organized community are here blessings! Is it in the nature of things to adduce more weighty arguments in proof of the necessity which has existed since the above period for its supercession? Ought not a government that would have felt the importance, and have possessed the power of creating new channels of consumption for agricultural produce to have been then instituted? This great object, it has been already shewn, could have been in no way so easily accomplished as by the erection of distilleries. To have diverted the attention of any part of the agriculturists from the growth of corn, would have been highly impolitic in a country, where the greatest and most fertile portion of the arable land is subject to such awful inundations. On the contrary, it was and still is expedient, that the whole agricultural energies of the colony should be confined to the production of grain, until the surplus become so great as to leave no chance whatever of these inundations being any longer attended with their former baneful consequences. But this can only be effected by creating a sure and adequate market for this surplus; and whether such market is to be found in the colony, or to be sought for abroad, no power either would have been, or is so fully competent to accomplish this important purpose, as an independent legislature chosen from the midst of the community, whose interests are identified with its own.

With respect to the expediency or even practicability of instituting a body of this nature so long as fourteen years back, I am aware that there exists a great difference of opinion among the respectable class of the colonists themselves. For my own part, however small may have been the number of those from or by whom a colonial legislature could at that time have been formed, I consider of but little moment in solving this great problem. The only question it appears to me to be ascertained, is, whether a legislative assembly, however small the number of whom it might have been composed, and however limited the body of electors by whom it might have been chosen, would not have done its utmost to promote its own interests, or what would have been the same thing, the welfare of the community which it represented. I cannot conceive the possibility of any one's doubting that such would have been its conduct; and in this case what power could have been instituted in the colony that would have been so well calculated to foster its infant efforts, and develope its nascent prosperity, as one that would have been invested with the faculties of legislation; or in other

words, with the authority to enact as a matter of course those measures of which the existing government has not had sufficient influence to procure the authorization.

The expediency, however, of having established a house of assembly in the colony at the period in question, is at this moment, perhaps, rather a matter of curious speculation, than of profitable inquiry. Extensively beneficial, as would in all probability have been its effects, it is nevertheless useless to deplore an omission which cannot now be remedied. Nor has the absence, perhaps, of this important institution been altogether without its advantages. It has at least indisputably proved the inefficiency of the present system of government, and that the colony could not have sunk under any other form of administration whatever, to a lower ebb of poverty and wretchedness, nor have become a heavier and more unproductive burthen to the mother country. The want, therefore, of an internal legislature has combined every consideration that could be adduced in proof of the necessity of changing the present system, and adopting in its stead that form of government which has been found so salutary and efficacious in all countries where it has been established. The only question that remains to be ascertained, is whether the colony is *now* in a state of maturity for the reception of so important a privilege as the elective franchise; and this I conceive will be best answered by a reference to the numerical strength of its free population. At the general muster or census concluded on the 19th of November, 1817, there were found to be in all the various settlements and districts of the colony of New South Wales, and its dependencies, twenty thousand three hundred and twenty-eight souls, of whom sixteen thousand six hundred and sixty-four were in the various towns and districts belonging to Port Jackson. Out of these there were six hundred and ten soldiers, and six thousand two hundred and ninety-seven convicts, leaving a free population, independent of the military, of nine thousand seven hundred and fifty-seven souls. At Newcastle, a settlement about sixty miles to the northward of Port Jackson, there were five hundred and fifty souls, about seventy of whom were free. At the settlements of the Derwent and Port Dalrymple, there were in all three thousand one hundred and fourteen souls, of whom two thousand five hundred and fifty-four were at the former place, and five hundred and sixty at the latter: out of these there were about two hundred soldiers, but the number of free persons I have not been able precisely to discover. As these

settlements, however, include the majority of the colonists and their families, who were removed from Norfolk Island; and as by far the greater proportion of the convicts who have been transported from this country have been sent to Port Jackson, I have no doubt that the number of free persons there, may be safely estimated at three fourths of their entire population, seeing that it is about two thirds of the population of Port Jackson. According to this rate of computation, therefore, the number of free persons in these two settlements, after previously deducting the two hundred military, will amount to about two thousand one hundred and eighty-six souls. It may, consequently, be perceived, that the grand total of the free population of all these various colonies in the latter end of November, 1817, may be safely estimated to have been eleven thousand nine hundred and seventy-three, being an excess of four thousand four hundred and seventy above the number of convicts, or in the proportion of more than three to two.

As the establishment of the legislative assembly in question could not, however, be well effected before the end of the year 1819, it may not be altogether irrelevant to ascertain what will be the probable amount of the free population at that period. The number of births in the colony cannot at present be computed under two thousand annually, since the increase in these various settlements between the month of November, 1816, and the month of November, 1817, is found to have been three thousand two hundred and eighty-nine souls; and the number of convicts transported thither from the first of January, 1816, to the first of January, 1818, was only three thousand one hundred and eight. Allowing, therefore, that one half of these, or one thousand five hundred and fifty-four, were transported to the colony during the year 1817, the increase that took place there, from birth and emigration will have been one thousand seven hundred and thirty-five: to which if we add five hundred, the number of persons that probably quit the colony annually; the actual rate of increase in the free population in the course of the year 1817, may be fixed at two thousand two hundred and thirty-five souls. Of these the surplus above two thousand, is perhaps composed of emigrants, and the remainder of births. If we add to these one thousand more, who it may be safely calculated yearly become free, by pardon or expiration of servitude, we have an annual augmentation to the free population of three thousand two hundred and thirty-five souls: so that

if we take the year 1817, as a standard of computation, and it is evidently a low one, the free population will amount by the end of the year 1819, to at least eighteen thousand four hundred and forty-three souls. This is an elective body much more extensive than is to be found in several of our West India islands, where houses of assembly have been long established. But as this free population is of a mixed description, and composed as well of persons who have been convicts, and have become free either by the expiration of their respective sentences, or by pardon, as of those who have been born in the colony, or have emigrated to it, and have never suffered the penalties of the law, a very delicate question here arises as to the propriety of extending to the first of these classes the privilege of being admitted into the legislative body. There is, I am aware, a party in the colony, by whom the very notion of granting such a privilege to a class of men who have been subject to the lash of the law, would be treated as a chimera pregnant with the most fatal consequences to this infant community. In this, as in most other societies, there is an aristocratic body, which would monopolize all situations of power, dignity and emolument, and put themselves in a posture to domineer alike over the governor and the people. If you consult one of this faction (they deserve no milder appellation) he will tell you that it is dangerous to vest any authority beyond the narrow circle of his own immediate friends. Until the administration of General Macquarie, this body considered themselves possessed of an equal right to the governor's confidence, as if they stood in the same relation to him which the nobility of this country bear to the king, and were *de jure* his hereditary counsellors. Before his government the great body of the people. I mean such as had become free, scarcely possessed any privilege but that of suing and being sued in the courts of civil jurisdiction. The whole power, and nearly the whole property and commerce of the colony, were in the hands of this faction, who with a very few exceptions were composed of the civil and military, and of persons who had belonged to these bodies formerly. And even in those few solitary instances which could be adduced, of persons originally convicts, who were *allowed* to acquire an independence, their prosperity was to be traced to the patronage and protection afforded them by some member of the aristocratic junta, to whom they either acted as agents in the disposal of their merchandize (for it was considered by these gentlemen derogatory to their dignity to keep shop and sell openly) or resorted for the purchase of goods on their own accounts. At the prosperity,

however, and importance of this faction, the present governor has levelled many a deadly blow within these last nine years; but more particularly in prohibiting the military to hold lands, or to be concerned in traffic, in raising to situations of the highest trust and dignity many deserving persons who had been convicts, and in throwing open the ports of the colony to an unlimited importation of all sorts of merchandize. But he has not effected these radical and salutary changes in the colonial policy without having encountered a long and inveterate hostility. Many have been the attempts which this faction have made to vilify his motives and misrepresent his actions; but to every charge of his enemies his unshaken integrity and unwearied zeal for the conscientious discharge of his duties have proved a sufficient refutation. The opinion of this gentleman with respect to the expediency of adopting a liberal system, that may prove an effectual stimulus to reformation and good conduct in those who have unhappily deviated from the path of rectitude, has been expressed unequivocally both in his dispatches, and in the prominent measures of his government, and will deservedly carry with it more weight than the whole collected opposition which I anticipate from those who have been his opponents and calumniators. The covert aim of these men is to convert the ignominy of the great body of the people into an hereditary deformity. They would hand it down from father to son, and raise an eternal barrier of separation between their offspring, and the offspring of the unfortunate convict. They would establish distinctions which may serve hereafter to divide the colonists into *castes*; and although none among them dares publicly avow that future generations should be punished for the crimes of their progenitors, yet such are their private sentiments; and they would have the present race branded with disqualifications, not more for the sake of pampering their own vanity, than with a view to reflect disgrace on the offspring of the disfranchised parent, and thus cast on their own children and descendants that future splendor and importance, which they consider to be their present peculiar and distinguishing characteristics. Short-sighted fools! they foresee not the consequences of their narrow machinations! They know not that they would be sowing the seeds of future discords and commotions, and that by exalting their immediate descendants, they would occasion the eventual degradation and overthrow of their posterity. Such would be the result of their ambition; for it is the curse of injustice that it brings with it sooner or later its own punishment. Happily for the colony the realization of their

projects depends not upon themselves; and his Majesty's ministers will not lend their sanction to schemes of private aggrandizement, which can only be accomplished by the sacrifice of the public good. If these men have not themselves the sagacity to dive into futurity, and to foresee the dangers and contests to which unjust privileges and distinctions must eventually give birth, shall the government be equally blind and improvident? Shall they in the short space of thirty years forget the benevolent designs for which this colony was founded, and convert what was intended as an asylum for repentant vice, not into a house merely of salutary correction, which may moderate with reviving morality and cease entirely with complete reformation, but into a prison of endless torture, where though the sufferings of the body may terminate, the worst species of torture, the endurements and mortifications of the soul, are to end only with existence? Shall a vile faction be allowed to inflict on the unfortunate convict a punishment infinitely greater than that to which he has been sentenced by the violated majesty of the law? Has not a jury of impartial freemen solemnly investigated the case of every individual who has been transported to this colony? And have not the measure and duration of their punishments been apportioned to their respective offences? Is it then for any body of men to assert that the law has been too lenient, and that it is necessary to inflict an ulterior punishment which shall have no termination but in the grave? Shall the unhappy culprit, exiled from his native shore, and severed perhaps for ever from the friends of his youth, the objects of his first and best affections, after years of suffering and atonement, still find no resting place,--no spot where he may hide his shame and endeavour to forget his errors? Shall the finger of scorn and derision be pointed at him wherever he betake himself? And must he for ever wander a recreant and outcast on the face of the earth, seeking in vain some friendly shore, where he may at length be freed from ignominious disabilities, and restored to the long lost enjoyment of equal rights and equal protection with his fellows?

I am aware it may be here urged that these men, if they were to return to this country, could never enjoy the privileges for which I am contending; and that the very same laws, which have fixed the bounds of their corporal punishment have deprived them for ever of the most valuable rights of citizens. To this I reply, that in this country, whither if the whole of the convicts who have been exiled from its shores were to return, they would

form but an inconsiderable portion of the people, all such disqualifications as the law has annexed to conviction in a court of justice, are good policy; because they tend to promote virtue and discountenance vice. But the very same grounds of policy require that such disqualifications should not exist in New South Wales. There the great mass of the people are composed of persons who have been under the operation of the law, and who were transported with the avowed intention of the legislature to effect their reformation. How then is this great philanthropic end to be best attained? Is it by holding out no inducements to good conduct, no distinction between repentant vice and incorrigible enormity? Those who have been convicted of the higher order of offences, and have been in consequence transported for life, are from the very nature of their sentences precluded from ever enjoying the privilege in question, unless, indeed, their very exemplary conduct subsequently induce the governor to extend to them the benefit of the king's pardon. This, however, is an indulgence at present so rarely accorded, that the whole of this class may be in a manner considered as being without the pale of citizenship; and it is therefore such only as have been convicted of crimes to which the law has annexed the minor penalties of seven or fourteen years transportation, who could generally become candidates for a seat in the legislative assembly? How many of this description have been detected in their first offence, in their very offset in the career of criminality? How many ever afterwards deplore their errors in sackcloth and ashes, and conduct themselves in the most correct and unexceptionable manner? And shall no distinction be made between *them* and the still persevering offender whom no inducements can withhold, no punishments deter from the commission of fresh enormities? Shall the *novice* in crime and the *veteran* be placed on the same footing and held in equal estimation? To what end do they profess themselves to be Christians who can maintain such infernal doctrines? How can they reconcile them with that universal charity and good will inculcated in their religion? How can they themselves expect pardon of their God, who would thus withhold oblivion from their repentant fellow creatures? If it be then alike conformable to the principles of Christianity and sound policy, to make a discrimination between the reformed sinner, and the still hardened and abandoned profligate, what incentive to good conduct would prove so efficacious as the prospect of regaining, after years of unimpeachable integrity, all those civil rights which they had forfeited, of becoming once

more privileged to act as jurymen, magistrates, and legislators? Such a possibility would quickly revive the latent sparks of virtue wherever they were not quite extinct, and electrify the mind when all other applications would fail to rouse it from its despondence and lethargy. And shall not this *sole efficacious remedy* be administered, because a set of *interlopers*, persons in no wise connected with the purposes for which this colony was founded, wish to monopolize all the respectable offices of the government, all the functions of emolument, power, and dignity to themselves? Shall the vital interests of the whole community sink before the ambitious projects of a few designing individuals, who have no object in view, but their own personal aggrandizement, and the maintenance of a self-assumed aristocratic importance? And who would build their own and their families' prosperity on the ruins of the social edifice, on the misery and degradation of thousands? But it is useless to enlarge on this topic: ministers will not allow their judgments to be warped by the subtle representations of this faction. In organizing that new constitution for this colony, of which every motive of humanity and policy conspires to demonstrate the necessity, they will be actuated solely by those principles that are best calculated to further the philanthropic and enlightened ends which were contemplated by the legislature at the period of its foundation. The good of the many will not be sacrificed to the sordid views of the few, and no disqualifications will be permitted, but such as are confessedly necessary for the repression of vice, and the promotion of morality and religion.

But, while I am thus contending against the total exclusion of such as may have been convicts from the enjoyment of this great privilege, I would by no means imply that the doors of the legislative assembly should be thrown open to *all indiscriminately* who may *happen* to be *free*. An unrestricted ability to exercise a function of such great confidence and dignity, would superinduce consequences equally fatal with those against which I would guard: in endeavouring to shun one extreme, it behoves us equally to avoid falling into the other. The very principle which *forbids* their *utter inadmissibility* to become legislators, demands that *none* should be able to arrive at that dignity, but those whose conduct during their abode in the colony shall have been *absolutely unimpeachable*. Retrospection should not be pushed *beyond* the period of their *arrival*; but their *subsequent* behaviour should be subjected to the *severest tests*, to the *most rigorous scrutiny*.

Conviction either before a court or a magistrate, for any *offence* of a *criminal nature*, should be a *bar* to their pretensions *for ever*. Crimes committed in this country should be overlooked when followed by *adequate* atonement and *indubitable* reformation; but the *interests* as well of the *rising generation*, as of the *great body* of the *convicts themselves*, require that the *re-convicted* felon, whom neither the *hope* of *distinction* can *reclaim*, nor the *fear* of *punishment* *deter* from a recurrence to his old iniquities, should be branded with the *lasting impressions* of *infamy*, and rendered for *ever afterwards* *incapable* of exercising so respectable and important a function as the one in question.

With respect to the nature and extent of the property to be possessed by the members of the legislative assembly, I am of opinion, that a freehold estate of five hundred acres in any part of the territory of New South Wales, or its dependent settlements on Van Diemen's Land, should be considered a sufficient qualification, and that in the case of electors twenty acres of freehold should give the right of voting at elections for the districts in which such freehold property may be situated; and that either a leasehold of the value of £5 a year, or paying a house rent of £10 a year, that of voting at elections for towns. Excepting conviction, therefore, in this country as a ground of exclusion both as respects the candidates and the constituents, and making the above variation in the standard of their respective qualifications as to property, I think that every cause of rejection which is deemed in Canada of sufficient efficacy to invalidate the claims of either party, should be held of equal force in this colony, not only with persons who may have been convicts, but with all such as may wish either to vote for the return of members, or to become members of the legislative body themselves. In framing, indeed, a constitution for the colony, that of Canada would, I suspect, be upon the whole the best model for imitation; since there is not only a much stronger affinity between the great body of its inhabitants, and those of New South Wales, than exists in any of our other colonies; but every succeeding year will render the approximation of their character and pursuits still more complete.

There is but one topic more connected with the establishment of a house of assembly in this colony, on which I intend to comment; and I notice it not so much with a view to offer fresh arguments in support of the necessity of

this measure, which I consider I have already sufficiently demonstrated, as to state all the prominent reasons which might be adduced on the occasion. It is a fundamental maxim of the British constitution, that no taxes shall be levied on the subject without his consent expressed by his representatives, and yet duties have been exacted in this colony for the last fifteen years, by the mere authority of the various governors. These, it has been seen, are appropriated to various purposes of internal economy, all of great public importance and utility, to which it is but equitable that the colonists should contribute. This system of taxation originated, I believe, with Governor King, but whether with the sanction of his Majesty's ministers, or from his own suggestion I am not able to determine. Since his time I should imagine that not less than two hundred thousand pounds have been levied in this unconstitutional manner; and until the administration of the present governor, those who paid this money had not even the satisfaction of knowing how any part of it was applied. From the secrecy indeed which was observed in the expenditure of this fund, and the rapacious character of his predecessor, many of the colonists suspected that very little of it was appropriated during his time to the purposes for which it was intended. This misapplication of it, however, is but a matter of conjecture; and it was probably to shelter himself from the possibility of falling under a similar imputation, that the present governor has caused quarterly accounts, which are first verified by a committee consisting of the lieutenant governor and the judge advocate, and afterwards examined and approved by himself, to be published for the general information. This custom, however, is a deviation, although it must be confessed a good one, from precedent: and the colonists have no guarantee that his successors will not revert to the same mysterious application of this fund that has been practised by his predecessors. In this case it may be converted into a fruitful source of peculation and plunder, and be at last in a great measure diverted from the public objects for which it was instituted to the satiation of private rapacity, and the colonists become gradually burdened with an overbearing load of taxation, merely for the purpose of enriching their governors. Be this, however, as it may, the illegality of levying money by the authority of any individual, is, I should presume, quite unquestionable; and I have no doubt that if any of the colonists had public spirit enough to resist the payment of these duties, the court of civil jurisdiction would not enforce it; since the decisions of this court are solely founded on acts of parliament. The

magistrates of the colony might indeed take upon themselves to direct the execution of the governor's orders, which authorize the levying of these taxes, but I have doubts, since resistance to these orders would not amount to an act of a criminal nature, and the point at issue would be a mere matter of debt between an individual and the government, whether they even would consent to give such an illegal method of taxation the sanction of their support. At all events an appeal would lie in the shape of a writ of certiorari to the civil court, which could not avoid annulling the judgment of the magistrates, and consequently declaring the governor's conduct unwarranted and illegal. Such an occurrence would evidently be attended with the most prejudicial effects; for not to dwell on the mortification which the governor for the time being would experience at discovering in so disagreeable a way that by treading in the footsteps of his predecessors, he had been exercising a power to which his situation gave him no claim, there can be little doubt that a victory of this nature gained by an individual over the executive would be the signal for the institution of suits against the government for the recovery of all the money that has been levied under such an illegal and arbitrary authority. To prevent the probability of being forced to refund so large a sum of money to the persons or their heirs from whom it has been thus illegally wrested, and to legalize all future levies of duties in the colony, the establishment of a colonial legislature certainly offers the only judicious and constitutional expedient.

I would not that it should be considered from the foregoing remarks that the colonists are averse to taxation. On the contrary, it is my belief that they would cheerfully contribute whatever may be necessary for the promotion of objects *purely colonial*; but they expect, and have a right to do so, that all such objects should be submitted to the consideration and approval of their representatives, and that their money should not be taken out of their pockets, whether they will or not, by the mere *ipse dixit* of a governor. Few are discontented with the present rate of taxation, because it is moderate; and, with the exception of that small part of the colonial revenue which arises from duties on articles of export, may be even considered judicious; inasmuch as the great bulk of the duties falls on luxuries which can be dispensed with, without occasioning any material diminution of comfort and enjoyment. But all are averse to the manner in which these duties are levied; for if they once admit that a governor has the right to exact one

farthing by his single authority, what limits can be afterwards assigned to the exercise of this power? He may on the very same principle tax every article of consumption, and on the plea of public contributions undermine the whole prosperity and happiness of the community. That the different governors have been allowed to prosecute this system without opposition for so many years, could only have arisen from the peculiar constitution of this colony; but its population has now attained a degree of consequence and respectability, which will not much longer tamely permit such an unprecedented deviation from all constitutional authority; and the best way to obviate the unpleasant circumstances of the contest, to which a continuance of the present system must shortly give rise, is to create a body legally endowed with the powers of legislation.

On the expediency of appointing a council, his Majesty's ministers are, I believe, themselves agreed; and I will not, therefore, enter at great length on the subject. The arbitrary and revolting acts, which the want of a controlling body of this nature has already occasioned, furnish the most convincing proof of its necessity. No power, in fact, could be established, which would at one and the same time prove so firm a defence to the subject, and so stable a support to the executive. A council in the colonies bears many points of resemblance to the House of Lords in this country. It forms that just equipoise between the democratic and supreme powers of the state, which has been found not less necessary to repress the licentiousness of the one, than to curb the tyranny of the other. Besides, it at all times provides a remedy for the inexperience or ignorance of governors; and is a sort of nucleus, round which all new bodies may easily agglomerate. Like a handful of veterans in a newly raised regiment, it will be capable of setting in motion the whole machinery of the government, and establishing with the greatest celerity that organization and discipline which are as requisite in administration as in war. There is but one precaution to be observed in the formation of the council: it is to give the members of it an adequate salary, or in other words to insure the independent and conscientious discharge of the duties of their highly important office.

The expediency of appointing a colonial secretary rests in a great measure on the same grounds as that of creating a council. How can a private secretary, whom every new governor is at present under the necessity of

bringing out with him, be capable of entering at once upon the duties of the most complicated and laborious office in the colony? It is evident that a considerable time must unavoidably elapse, before he can acquire, how great soever his abilities, that fund of local information which can alone qualify him for his situation. In the mean while it is ten to one but he becomes the tool of one or other of his clerks, who are for the most part convicts; and thus the principal acts of the governor, which from the confidential nature of his office are necessarily very materially influenced by his advice, may be secretly dictated by persons who possess very little principle or character, and who if they be themselves too insignificant to profit to an extensive degree by the measures of the government, may for a trifling consideration become the agents of richer and more powerful individuals, and the public good be inadvertently sacrificed at the shrine of private avarice or ambition.

The last measure which I consider necessary to the prosperity of this colony is a radical reform in the courts of justice. It has long since been noticed that at the principal settlement and its dependencies, there are five courts, one of criminal and the other four of civil judicature, viz. the criminal court, the governor's court, the supreme court, the court of vice admiralty, the high court of appeals, all of which are held in Sydney, and the lieutenant governor's court, which is held in Hobart Town. The constitution of these various courts has been already explained, and a mere cursory glance at their several jurisdictions, will convince us of the danger and absurdity of their organization. To commence in the order in which I have noticed them, what can be more improper than the constitution of the criminal court? At the time indeed, when this court was instituted, there was a necessity that it should wholly consist of the officers of the colony, since they and convicts were the only two classes of whom it was composed; but even then, what motive existed for excluding the civil officers? Were they either less competent to be members of a court, whose decisions ought to be founded solely on the laws of England, or were they less respectable than the military and naval? The bare appearance of this tribunal has long been odious and revolting to the majority of the colonists. It is disgusting to an Englishman to see a culprit, however heinous may be his offence, arraigned before a court clad in full military costume; nor can it indeed be readily conceived that a body of men, whose principles and habits must have been

materially influenced, if not entirely formed, by a code altogether foreign to the laws of this country, should be able on such occasions to divest themselves of the soldier, and to judge as the citizen. Without meaning to impugn the general impartiality and justice of their decisions, it may be easily imagined that *an individual might happen* to be *traded* before a court, of which *all*, or *part* of the members, might from various causes be *his* enemies. No one has mixed much in military society, without witnessing that *esprit du corps* which is so common in regiments, and which, however much it may contribute to their union and happiness, is, in a community of this nature, of the most dangerous tendency to the individual, against whom its collected fury may be levelled. It must be remembered that this colony is not like a country town from whence a regiment may be removed the moment its conduct becomes obnoxious to the inhabitants. There the regiments necessarily remain for many years, and from this very circumstance, disputes of a much more serious and rancorous nature are apt to arise between the inhabitants and the military, than are known in this country. And this observation applies more particularly to the officers and the superior class of the colonists: since the disputes and contests which take place between the lower orders of the inhabitants and the common soldiery, generally arise on the spur of the moment, and evaporate with the immediate cause of the provocation; while the others are more frequently the effect of cool and deliberate insult, and consequently settle into a fixed and inveterate hostility. Under these circumstances, therefore, it is not to be wondered at, that no person should feel himself in perfect security. The respectability of the higher order of the colonists may indeed shield the generality of them from any likelihood of their being ever arraigned before this tribunal; but still it might happen to them to be traded before a court composed of their bitterest foes, not only on charges of a mixed nature, such as assault, battery, libel, etc. but also on others of a much weightier responsibility. The *probability* of such a contingency would be still further increased if the governor should happen to have imbibed the same spirit of hostility against the accused, which I have supposed actuating the military. For although the present governor, in order to render the administration of justice as unimpeachable as the nature of this court will allow, has invariably appointed the members of it according to the roster furnished by the commanding officer of the regiment, his predecessors did not, I believe, invariably observe the same delicacy, nor is it incumbent on his successors

to imitate his example. Any person therefore, who may unfortunately become obnoxious to the governor and the officers of the regiment, or indeed any part of them, should he be accused of any offence within the pale of the criminal court, might be thus forced to take his trial before his *selected* and *implacable* enemies. In this extremity what could he do to rescue himself from their gripe? He would have no *right* to *challenge* one of them; and if the *sanctity* of an *oath*, and the *dread* of the *future scorn* and *detestation* of mankind, did not *deter* them from the *commission* of a *crying* and *palpable injustice*, his *innocence*, were it as *clear* as the *noon day*, would *avail* him *nothing*, and he must *unavoidably sink*, the *devoted victim* of *foul conspiracy* and *deadly revenge*. I am not sufficiently acquainted with the history of the proceedings of this court from the period of its institution, to shew how far the *whole* or any *part* of this supposed case may have been in any instance verified. That it *may occur* is sufficient to *prove* the *necessity* for changing the constitution of this court, and to *justify* the *general anxiety* which is felt by the colonists for the introduction of that *right*, so dear to the heart of every Englishman, *the trial by jury*. It is this *inestimable privilege alone* which can *insure* them the *tranquil enjoyment* of their *persons* and *property*, and enable them, while *possessed* of *conscious integrity of conduct*, to set at *defiance* the *confederated efforts* of their *enemies*, and to *despise* both the *open attacks* of *power* and the *secret contrivances of malignity*.

The constitution of the governor's court and of the supreme court, is liable to the same objection. They are both composed of the judges, who have each a vote in their respective courts, and of two members specially appointed by the governor: so that none of those causes of challenge which are held sufficient in this country to disqualify a juror, are of any validity in the courts of this colony. In the governor's court, indeed, the two members are to be appointed from among the respectable inhabitants; but, although the governor himself is the only judge of the measure of their respectability, he could not well avoid selecting them out of that class which in case of the introduction of trial by jury, would have a right from their property and character to be summoned as jurymen. In this court, therefore, an individual in a trial with the crown, would have a much greater chance of obtaining justice than in the supreme court; because the two members of it are to be appointed from the magistracy, and might be selected by the governor from

their known zeal and corrupt devotedness to his service. But it is of infinitely greater importance that the decisions of this latter court should be the less exposed of the two to the possibility of bias; because in the former the injury which an individual could sustain from an unjust verdict could only amount to £50, and in the latter it might extend to £3000, and consequently occasion his utter ruin. I limit the injustice which might arise from the very improper constitution of this court to the above sum; because, although it is competent, as I have before stated, to take cognizance of all pleas to any amount whatever, an appeal would lie, from the high court of appeals, whose verdict I here take it for granted, would in all crown causes be confirmatory of the judgment of the inferior court, to the king in council, when the matter in dispute exceeded this sum. Any unjust verdict, therefore, for more than £3000, would of course be reversed in this country; but this is a trifling set-off against the heavy charges to which the court is in other respects liable; since few of the colonists are wealthy enough to be concerned in causes where the matter at issue could attain so great an amount: so that this remedy is quite beyond the reach of the majority of the inhabitants, and they are abandoned to the scourge of oppression, wherever a capricious and overwhelming tyranny may choose to single out its victim. It is highly necessary, therefore, that the constitution of both these courts should undergo an immediate revision, and be so framed as to ensure henceforth the impartial administration of justice to *all*. They are not to be tolerated because they cannot commit a robbery beyond this enormous amount, and because there are some few individuals, whose prosperity is too deeply rooted to be overturned by the malignant fury of vengeful despots. It must be evident that the power of the governor of this colony is sufficiently leviathan, uncontrolled as he is by a council, and possessed as he is of an incontrovertible right to nominate the most obsequious of his creatures as jurymen on all trials, whether of a civil or criminal nature, to endanger the property and life of every individual under his government. Nor should it here be forgotten that there has been a governor who, if the colonists had not arrested him in his iniquitous career of vengeance and despotism, would have hurled death and destruction from one end of the colony to the other. Without the circle of his immediate creatures, with the most favored of whom it is well known that he was in a commercial partnership, every individual who either had attained affluence, or was gradually rising to it, was the object of his hatred or envy. The former he

detested, not more because they had no need of his protection, than from fear they should promulgate to the world his nefarious proceedings; the latter because they were absorbing some portion of that wealth, which he wished should flow wholly into the coffers, the contents of which at the division of the spoil he was to have so large a share of. It does not follow, therefore, because his successor has not imitated his base example, because he has surrounded himself with respectable counsellors and a conscientious magistracy, that we should overlook the possibility that his very successor may undermine the whole superstructure which he has been rearing, and become in every respect as great a monster as the wretch who before drove the colonists to desperation and rebellion. Experience is the beacon of past times set up for the guidance of future; and those who shape their course by it, shall avoid striking on the rocks to which it forbids approach. Woe to the pilot who disregards this friendly admonition, and runs on incredulous of the risk. Soon in the midst of surrounding reefs he shall when too late repent his temerity, and wish, that content with the experience of others he had not authenticated by the shipwreck of his hopes, the folly of his incredulity, and the reality of the danger! It is with governments as with individuals. The institutions which have occasioned anarchy and devastation before, will, if persisted in, produce them again. Vile and detestable as have been the monsters of antiquity, the world still contains their parallels; and if they languish in obscurity, if they have not attained a celebrity equally atrocious, it is because they possess not equal facilities for the display of their real character and propensities. Human nature is still the same, and wherever a field is opened for the growth of tyranny, there that poisonous fungus, a tyrant, will shoot up.

But the encouragement which these courts in general hold out for the indulgence of private animosities, and their consequently imperfect adaptation to the administration of justice, are not the only reasons which may be urged for a change in their present organization. The whole of the inhabitants of the various settlements in Van Diemen's Land, are in a great measure placed without the pale of the law. They have, indeed, what is termed the lieutenant governor's court, but as I have already observed, it can only take cognizance of pleas to the amount of fifty pounds, and possesses no criminal jurisdiction whatever. They are consequently left without any internal protection from the spoliations of lawless ruffians, and in a great

measure from the scarcelyless pernicious depredations of dishonest creditors. For although they may obtain redress in both instances in the courts established at Port Jackson, nothing but an invincible necessity will propel them to seek so distant and expensive a remedy. The consequence is, that scarcely any but delinquents of the very worst cast, as murderers and housebreakers, are ever brought to trial; for notwithstanding all criminal prosecutions are conducted at the cost of the government, and the witnesses are paid their indispensable expenses from the police fund, still, what with the period that elapses in the voyage to Port Jackson, the delays incident to the courts themselves, and the time that the witnesses must generally wait before they can obtain a passage back again, very few of the persons who are constrained to give evidence on such occasions can possibly manage to resume their domestic occupations under three months. This to a set of men, who are for the most part agriculturists, is too serious a sacrifice of private advantage to public duty; and it is not, therefore, to be wondered at that a general disposition should be manifested by the inhabitants of Van Diemen's Land to suffer quietly the depredations that may be committed on their property, rather than incur perhaps the much greater loss attached to the prosecution of the offender. The remedy, which they possess for civil injuries is, indeed, somewhat more palatable, but still far too remote and expensive. The principal reason, indeed, why so many debts and obligations contracted in these settlements, become matter of action before the supreme court at Port Jackson, is to be traced to the satisfaction which results from compelling one who considers himself a privileged plunderer, and at liberty to fatten with impunity on the industrious, to disgorge the wealth of others, which he may have thus sucked. The expence, however, of supporting witnesses at so great a distance from their homes, and the precarious issue of suits in general, induce many creditors to run the risk of voluntary payment at some future period, who would not hesitate to institute actions against their debtors, if there were a competent tribunal within their reach. The want, therefore, of a court possessing an unlimited civil and criminal jurisdiction, is of the most baneful consequence to these infant settlements. It encourages all species of crimes and dishonesty, strikes at the very root of virtue and religion, and cannot but have a most pernicious effect on the morals of the rising generation.

Such are the leading defects in the actual system of jurisprudence established in this colony; and I think it will not be disputed that a more crude and undigested organization of the colonial courts could hardly have been devised. Whether the judges of these courts have made any representations on the subject to his Majesty's government I am not aware; but I should apprehend not, or surely they would have been remodelled ere this after a more perfect design. To effect this highly important object would be a matter of very great ease: it appears to me that the following measures would amply suffice. 1st, The entire abolition of the actual courts of civil and criminal jurisdiction; 2dly, The creation in their stead of one supreme court, consisting of a chief justice and three puisne judges; 3dly. The establishment of trial by jury; and lastly, the creation of a high court of appeals to consist of the governor in council. The sittings of the supreme court should only be held at Sydney, the seat of government; but circuits should be established through-out the different districts of the colony, and of its dependent settlements in Van Diemen's Land, and commissions of assize, of oyer and terminer, and of general gaol delivery should be issued by the governor to the judges at stated periods, and they should determine among themselves their respective circuits. These courts of assize should possess the same power as belongs to similar courts in this country, and in some respects it might be advisable that they should be vested with a still more extensive authority. In the settlements in Van Diemen's Land I am of opinion that no appeal should be allowed from the decisions of the court of assize to the supreme court at Sydney, unless the verdict should exceed three hundred pounds; but it would of course be proper that the judges of this court should possess the power of granting new trials, on the same grounds on *which* such are accorded in this country. In judgments, however, for more than the above sum an appeal to the supreme court should be admitted.

With respect to the civil jurisdiction of the courts of assize in the various districts belonging to Port Jackson, I think it ought to be considerably curtailed, and that their decision should not be final in any instance whatever; because the removal of causes to the supreme court would be attended with a comparatively trifling expense and inconvenience to the parties. From the judgment of this latter court itself, I am of opinion that an appeal should lie in all causes where the damages might be estimated at

more than one thousand pounds to the high court of appeals, and that its decisions should be conclusive in all pleas under the amount of three thousand pounds; but where the matter in dispute exceeded this sum, that an appeal should lie *en dernier resort* to the king in council. If to these courts were added a court of admiralty, possessing both a civil and criminal jurisdiction, the system of jurisprudence would be quite adequate to all the present necessities of the colony; justice would be brought home to the doors of all his Majesty's subjects in these remote and extended settlements; the delay and expence now attendant on civil and criminal prosecutions, would be in a great measure obviated; and the loyal and industrious would be effectually protected, both from the secret depredations of the midnight plunderer, and from the open dishonesty of the unprincipled debtor: hundreds of indolent and profligate persons who now prey in one way or the other on the hard earned savings of thrift and frugality, would be compelled to resort to the pursuits of industry for a subsistence; vice and immorality would be checked, and the wealth, happiness, and virtue of the community at large rapidly flourish and expand.

Of all the changes or modifications which I have thus ventured to recommend in the polity of this colony, the creation of a council, the appointment of a colonial secretary, and these alterations in the system of its jurisprudence, are the only measures which would be attended with an increase of expence. The establishment of a house of assembly, might of course be effected without any cost whatever, and even the remodelling of the courts of justice would be productive of but a very trifling addition to the scale of the civil establishment. The three judges who at present preside in the various courts, might be transferred to the supreme court, which I have recommended to be substituted in their stead; so that the appointment of one new judge is the principal additional expense of which this reorganization of the courts would be productive. It is true that it would be necessary to place all the puisne judges on the same footing in point of salary, and likewise to appoint an attorney general to act in behalf of the crown, but all this might be liberally accomplished for about six thousand pounds per annum. As to the court of admiralty, the chief justice might be appointed to preside in it, whenever circumstances might require it to be held; but this necessity would occur so seldom that no additional salary need be allowed him on this account. A few barristers would be necessary

besides the attorney general, to support the respectability of these courts; but I consider that the practice arising out of them, would be sufficiently extensive to repay a few gentlemen of the bar very liberally for the sacrifices they would make in emigrating to this colony, and that the government need not hold out any pecuniary inducements to effect this object; although it is only four or five years since two attorneys were each allowed £300 per annum by way of encouragement for them to go out and practise in the courts at present established there. Since that time, however, two more have voluntarily gone out to the colony without any salary whatever, and have found that there is sufficient litigation without the assisting liberality of the government. An addition therefore of £6000 per annum to the civil establishment of this colony, would effect the great radical reformation in its polity, of which it has been the main object of this essay to prove the wisdom and necessity; while on the other hand, the savings which this country would derive from the adoption of the various alterations proposed, would be found not only in the almost immediate check which would be imposed on the rapidly increasing expenditure of this colony, but also in the great permanent reduction in it, which would be the eventual consequence. The best means of accomplishing these highly important ends shall be the subject of the following section.

On the Means of reducing the Expences of this Colony.

The establishment of a free constitution in the place of the arbitrary authority of an individual, would superinduce so many privileges of which the colonists have hitherto been debarred, that they would not at first be fully sensible of the nature and extent of their new acquisitions. The great facilities which would be presented to agricultural and commercial enterprize, would not at once be generally perceived, or extensively embraced. Industry, though one of the most active principles of human nature, settles when long restrained into a habit of inertia, which cannot be instantly overcome. When the moulds within which this principle has been long confined, are suddenly removed, it will not of itself rush at once into every new channel in its way, and stop only when it has found its own level. It is not like fluids possessed of an inherent elasticity and tendency to motion, but requires a directing impulse to set and continue it in activity, and its activity will then only be in proportion to the power and energy

applied. It is not, therefore, to be expected, because the great fundamental changes which I have recommended in the polity of this colony would if adopted, immediately create new sources of profitable occupation, and completely unfetter the long restrained industry and enterprise of its inhabitants, that they are at once to take full advantage of their situation. There is a timidity in man, which though not sufficient to curb the adventurous spirit of his nature, tends materially to check and repress it. This principle alone, therefore, would suffice to prevent the sober and discreet part of the colonists from rushing headlong into the various new avenues of profitable occupation that would be open to them; but there is also in their poverty a still more effectual impediment. Though labour is itself the origin and measure of all wealth, it contributes but little to public or private advantage when left to its own isolated and unconnected efforts. It is only when in a state of union, and when subjected to the controul of a directing intelligence, which can combine its energies, and render them subservient to the attainment of some single end, that it becomes capable of effecting great beneficial results. But this necessary combination of labour can only be maintained by the help of capital; and where such capital does not exist, these great united efforts, the effect of the gradual accumulation of wealth, and the main cause of the prosperity of all ancient and populous communities, cannot be immediately organized and established. This observation in its reference to this colony, it will be seen, bears more particularly on the commercial privileges of which its inhabitants would thus become possessed. These undoubtedly would not be extensively embraced, until a very considerable accumulation of capital should have arisen from the progress and perfection of agriculture. This and manufactures are therefore the only two immediate channels that remain for the absorption of labour and the development of industry. The latter, I have long since endeavoured to prove would never have occupied any share of the attention of the colonists, had those encouragements which the government had at their disposal, been bestowed on the former. The manufacturing system, now so rapidly gaining ground, has been one of the retributive consequences of the short-sighted and illiberal policy of which this unfortunate colony has been so long the victim, and will cease of itself, whenever the existing impediments to the extension of agriculture shall be removed, for the best of all reasons, because no person will select a less profitable undertaking when a more profitable one, and one requiring less

skill, capital, and assiduity, lies open to him. Agriculture, therefore, as soon as it shall be freed from its present restraints, will afford the readiest and most accessible channel for carrying off the large accumulation of stagnant labour which at present infests this colony. It is this mass of superfluous labourers, for whom there exists only a fictitious demand, and with whom the government are at present obliged to give a bounty in the shape of clothing and provisions, to induce the settlers to accept their services, that constitutes the main source of the great and increasing expenditure of this colony; and it is to this point alone that all radical and comprehensive schemes of retrenchment must be directed. The impoverished condition of the colonists, to which circumstance alone the expences of the government are mainly attributable, arises from the means of employment not keeping pace with the rapid increase in the population, and yet perhaps there is no community in which equal encouragements to industry are to be found. It has already been stated that within the last six years the population of this colony has actually doubled itself, in other words, it has advanced in this respect with a celerity nearly four times as great as the United States of America,--a country whose rapid numerical increase has been a subject of astonishment to the whole world. It may therefore be perceived that this unparalleled augmentation in the population of this colony, must of itself afford an unprecedented stimulus to agriculture;--a stimulus, perhaps, with which the agricultural progress of any other country could not keep pace. It is well known that Poland, which is the greatest corn country in Europe, and whose whole strength is directed to the pursuits of agriculture, does not export more than one month's consumption of grain for its population. America exports somewhat less, but would be able, without doubt, to export somewhat more, if the collected force of its inhabitants were applied to the raising of corn; yet still neither the one nor the other of these countries would be enabled to support such a rapid increase of population as is taking place in this colony. Such, however, is its fertility that the vast encouragement afforded by this unprecedented augmentation in its numbers (who, it must be recollected, are for the most part adults, and not, as in the case of old established societies, infants, and in consequence not gifted with the full powers of consumption,) so prodigious, I say, is its fertility, that there is far from a sufficient demand for labour. The settlements in Van Diemen's Land alone, on the occasion of the flood which took place in the month of March, 1817, at the Hawkesbury river, the principal agricultural

establishment, and where, for the causes I have already explained, the colonists, in most instances, allow their stacks to remain within the influence of these destructive inundations, were able to supply Port Jackson with about twenty thousand bushels of wheat, the whole of which was raised without any probability of a market, and would have perished in the hands of the growers, or at best, have become the food of hogs, had it not been for the great loss of grain occasioned by the overflowing of the above river. It may, therefore, be perceived, that the colonists in Van Diemen's Land raise on the strength of the bare possibility of a flood happening at the principal settlement, very nearly as much corn as is required for their own consumption; and there can be no doubt if their industry was stretched to the utmost point of extension, that they would be enabled to export at least three times as much as they thus casually furnished in the year 1817. The settlements, however, at Port Jackson, cannot pretend to equal fertility of soil, yet even their productive powers are considerably cramped by the want of an adequate market. How this most important object might be effected, and profitable occupation created for all the labour that is now, or may be hereafter disposable in the colony, I have already explained at considerable length; and it is under the presumption that my recommendations on this head will be deemed worthy of adoption, that I shall hereafter submit a plan for gradually diminishing the colonial expenditure.

The readiest way of accomplishing this object would be to abolish at once the system of victualling and clothing the convicts from the king's stores; but this is impracticable and must be done judiciously, and in proportion only to the gradually increasing demand for labour. This mode of retrenchment, indeed, has already been pushed further than circumstances have warranted. The ticket of leave system, by which convicts are permitted to go on their own hands, and administer in any way that they can to their own wants, though first intended as a reward to the really reformed and meritorious convict, has of late years been resorted to as the most efficacious means of lessening the expences of the government. And hence the very end and aim of this colony, the reformation of the lawless gang who are transported to its shores, have been postponed to a paltry saving, unworthy the character of the nation, and subversive in a great measure of the philanthropic intentions with which the legislature were originally actuated. The alarming increase of crime that has taken place within the last

few years, is the re-action of this pernicious and mercenary system, which has already been carried to such an extent as to endanger the lives and property of every honest and well disposed inhabitant of the colony. This system, so injurious of itself, has been powerfully seconded by the lax and indiscriminate manner in which convict servants have been assigned to the various settlers. Being in most instances freed or emancipated convicts themselves, many of them possess but little character, and in fact only accept the different indulgences that are held out to colonization, with a view to the immediate profit which they can derive from them, and without any intention of performing the remote conditions which they tacitly or expressly enter into with the government. So long as their servants are victualled and clothed at the cost of the crown, they in general avail themselves fully of their services, but the moment this great indulgence ceases, they generally compound with them, and in consideration of the performance of a stipulated quantity of labour free of expence, grant them an exemption from their employment for the remainder of the year, and consequently, a licence to prowl about the country, and plunder at every convenient opportunity, the honest and deserving part of the community. And although the present governor has taken every step that could be devised for the suppression of this pernicious practice, yet in consequence of the thinly inhabited state of the colony, and the remoteness of the various agricultural settlements from one another, circumstances which prevent the appointment of proper persons to detect and punish such violations of public orders, his efforts have been in a great degree unavailing. He is well aware of the nature of the disease under which the colony is languishing, but he has not the power to administer the only effectual remedy. Create but a sufficient market for the colonial produce, and labour will then become too valuable to be suffered thus to remain in inactivity. It will then and not before be the interest of the settlers to push their servants' exertions to the utmost. The competition that will then exist for the products of labour, will be the best guarantee for its proper application. The method which I am about to submit for the suppression of this alarming state of anarchy and danger, will, it must be confessed, occasion a very considerable immediate addition of expence; but this is necessary to rectify the great and increasing evils of the ticket of leave system, and to insure the honest and laborious colonist that security of person and property which the injudicious extension, within these few years, of this narrow-minded system has so

greatly endangered. Without the enjoyment of a full and sufficient protection, the colonists, however enlightened may be the future conduct of their government in other respects, will make but a timid and feeble advance in the various departments of internal industry. A certainty of reaping the fruits of their exertions, is indeed an indispensable preliminary to the resumption of those active habits which have been so long paralyzed, and a recurrence to which is the main stock whereon all *shoots* of future retrenchment must be engrafted. Under a hope, therefore, that an internal legislature, which I again insist can alone fully provide for the present and future necessities of this colony will be established, I venture to propose the following plan for eventually diminishing the scale of its expenditure:

First, That the ticket of leave system, except in as far as its continuance may be really essential to the promotion of good conduct in the convicts, should be abolished.

Secondly, That the ticket of leave men, and all the convicts now in the service of individuals, whether victualled and clothed at the expence of the crown or not, should be called in and re-assigned, either to their present masters or to others, and that these should be allowed with them the premium hereafter to be named; but that they should be previously in every instance required to give security to the government, that such convict servants should not on any account be permitted to be absent from their respective employments.

Thirdly, That instead of the present mode of victualling and clothing the convicts from the king's stores, the settlers should be allowed a stipulated premium with them, one fifth less than the actual cost of maintaining them, and that this premium should diminish one fifth yearly from the date of the changes in the colonial polity, which have been recommended.

Fourthly, That the price now directed to be paid convict servants for their extra time, should be reduced from £10 in the men, to £5; and from £7 to £3 10s. in the women: and that this reduction should be subtracted from the amount of the above premium, and carried to the credit of the government.

Fifthly, That all such convicts as may arrive in the colony within the five years next ensuing the above period, other than those who may be required

for the government works, should be in like manner assigned to deserving applicants, with the decreased premium of the year in which they may arrive.

Sixthly, That at the expiration of the above period of five years, the whole of the government works which are now for the most part carried on by convicts, victualled and clothed from the king's stores, should be performed by contract.

Seventhly, That the utmost encouragement should be held out by the government to the emigration of wealthy individuals to the colony; and that with a view to effect this object, not only a passage should be furnished them free of expence in the various transports, which are annually sent thither, but that also the quantity of land to be hereafter granted them, should be increased in proportion to their capital, from eight hundred acres (the present customary grant) up to five thousand.

Lastly, That the unappropriated lands most eligibly situated for the purposes of colonization, should be surveyed and marked out into sections, each containing one square mile, or six hundred and forty acres; that each of these sections should be again subdivided into four parts; that thirty-six of these sections should as in America form a township; that at stated periods the lands so surveyed should be set up to auction, and sold to the best bidder, provided the price offered for them should exceed one dollar per acre; if not, that they should be retained until they could be sold for such price at some subsequent period; that the same credit should be given for the purchase of these lands as is given in America, and the same discount on ready money; and that the amount of such sales should go to the Police Fund, and be employed in defraying the expences of the colony.

The object of the foregoing propositions must be too evident from the preliminary remarks which I have made, to need any extended illustration; nevertheless, it may not be altogether inexpedient to say a few words in further explanation of them to such persons as have bestowed no portion of their attention on the circumstances and situation of this colony. The first, second, and third articles speak for themselves. The remedy here proposed for the alarming evils, which I have so copiously traced to the causes of their origin and continuance, will certainly occasion the government for the

next five years a very great additional expence; but after the most mature reflection on the present impoverished state of this colony, and the deeply rooted habits of idleness and vice, which a fifteen years' deprivation of the most important civil and political rights has occasioned, I can devise none besides that could be applied with any probability of effecting a radical and permanent cure. The arrangement recommended in the third article, I mean the substitution of a premium for the present mode of clothing and victualling the convicts, would be highly favourable to the agricultural interests, both by limiting to the cultivators of the soil, the supply of the food consumed by their servants, and by sparing them the trouble and expence of sending their carts for it to the king's stores, an exemption which would be attended with a considerable saving to such of them as inhabit districts remote from the towns: it would also be a source of economy to the government, by enabling them to make a great reduction in the commissariat department. The only objection I can anticipate to this article, is, that it fixes an arbitrary rate of reduction on the premium to be allowed the settlers with the convicts; and that this rate may prove greater than the advance which the colony may make in the various avenues of internal industry. This may possibly be the case, although I consider the period I have named sufficiently protracted to allow the colonists due time to ascertain the nature and extent of their newly acquired privileges, and to profit by them. If, however, it were practicable, it would certainly be more eligible that they themselves should become the arbiters of the abatement which should annually take place in the premium to be given with the convicts. I do not, however, well know how this desideratum could be effected, unless the grand juries during the circuit of the courts in the different districts, could be empowered to inquire into and determine the increase that may take place in the demand for labour, and regulate the price of it, or in other words the premium to be given with it accordingly. To detract as far as possible from the increased expence which would follow the adoption of the measures recommended in the first, second, and third articles, is the object of the fourth. By making the abatement here proposed in the amount of the wages now directed to be paid by the settlers to their convict servants, and carrying it to the credit of the government, an immediate saving of £5 per man, and £3 10s. per woman would be effected. And if the calculation be accurate that each male convict victualled and clothed at the expence of the crown costs £18, and each female £12 10s. it

will be seen that above one fourth more might be supported by the government in the manner here recommended, and that likewise a fifth might be annually added to the number, without occasioning any increase whatever in the colonial expenditure. The weight too of this mode of retrenchment would not fall on the settler, and by operating as a check to agriculture perhaps prolong the period when the various departments of industry will be enabled to absorb the large mass of labour which is annually regurgitated on the shores of this colony, but on the convicts themselves, to whose reformation indeed, (the primary object of its foundation) it is essential that every incentive to the renewal of their ancient disorderly and profligate habits should be withdrawn. Even with this diminished scale of wages, the situation of the convicts would be far preferable to that of the labouring class in this country. £2 10s. to the men, and £1 10s. to the women, would then remain, independently of their food and clothing, which is surely quite sufficient for the "*menus plaisirs*" of a set of persons who are supposed to be smarting under the lash of the law. Article fifth needs no explanation. Article sixth, contemplates the saving that might be effected in the public works of the government, by exchanging at the expiration of the period, when the bounty to be allowed to settlers with convicts shall cease, the present mode of carrying them on by a body of men, victualled and clothed at the expence of the crown, for the more economical plan of contracting for them with the lowest bidder. I limit the commencement of this method of retrenchment to the above period, because so long as a necessity exists for giving a bounty with convicts, there can be no doubt that it would be judicious for the government to profit as far as possible by the labour of persons whom even in the employment of individuals, they would be in a great measure obliged to support. But the moment this necessity shall cease, it is equally indubitable that a considerable saving might be effected by carrying on the public works by contract. Where a body of fourteen or fifteen hundred convicts are employed under the superintendence of the most active and upright man, there will always be a system of idleness and plunder, which his assiduity will never be able entirely to baffle. Out of the immense number of minor agents on whose intelligence and integrity he would be obliged to place a considerable degree of dependence, it is not readily to be believed, however great may be his activity and discrimination, that he would not be frequently deceived, and that those very men on whom he

most relied to suppress the dishonest inclinations of others, would not themselves occasionally profit by the facilities to plunder and speculation, which the confidence they enjoyed might throw in their way. That such is, and always has been the case in this colony, no person at all conversant with its real state, can have any hesitation in asserting; and consequently that the substitution of contracts in the place of the present mode of conducting the public works, would become a very important source of economy at the period in question. Article the seventh, is intended to encourage emigration to the colony, and to turn to its shores some portion of the immense numbers who are annually withdrawing from this country to the United States of America. It appears almost inexplicable how the government can look on, and behold the thousands who are propelled by various causes to quit their native land, and not make some vigorous efforts, if not to check this strong tide of emigration, at least to divert it to our colonies, where in general it is so much required, and might become of such immense and permanent utility to the empire. It is true that of those who thus abandon the land of their forefathers, many are actuated by political animosities, and could not by any means be induced to settle in any of our colonies. But it is not less certain that there are others, and that the majority are of this class, whom mere distress and inability to provide for the growing wants of their families, unalloyed with any political feelings whatever, most reluctantly drive to seek an asylum in America, and who deeply lament the necessity of betaking themselves to a country where they and their children may one day be compelled to draw their paricidal swords against the mother that gave them birth. It cannot indeed be denied that the government to prevent this horrible alternative, have for a long time held out considerable encouragements to persons emigrating to Canada; but besides that the policy of thus peopling at so considerable an expence a country which in the natural course of events must become an integral member of the American union, is at least questionable, it is well known that three-fourths of those who are thus induced to settle in Canada, end by removing to the United States. The intense severity of the winters, and the unavoidable suspension of the pursuits of agriculture during six months in the year, with the habits and language of the Canadians, so repulsive and annoying to the generality of Englishmen, sufficiently account for this circumstance, without taking into computation the superior advantages of climate and soil which the greater part of the United States is represented as possessing. If

the impolicy, therefore, of encouraging emigration to Canada be disputed, still the inefficiency of the means employed to attain the end contemplated by the government ought to decide them to try some other expedient to prevent so large a stock of British industry and capital from thus adding to the resources of a nation, who is already the most formidable, as she is the most rancorous on the list of our enemies. No measure, perhaps, that could be adopted would tend so effectually to the accomplishment of this object, as holding out the great encouragement specified in this article to all such as may settle in this colony. Possessed as it is of a most salubrious and diversified climate, fertile soil, and unbounded extent of territory, it evidently contains every requisite for the formation of a great and flourishing community; and whenever it shall be blessed with a free government will offer much greater facilities for the development of industry and the acquisition of wealth, than are to be found in the United States. Until the colony, however, shall possess this fundamental privilege, every attempt of the government to divert the current of emigration thither from America must prove in a great measure unavailing. A free constitution is the first want of those who have known the blessings of one; and no prospects of profit to an honourable and independent mind can compensate for its loss. There can be little doubt, therefore, that as soon as this indispensable preliminary to general emigration shall be granted, thousands of persons will embark for this colony, and continue to contribute to the wealth and power of their native country, who would otherwise become citizens of her most formidable and inveterate rival.

The adoption also of the measures here recommended, would have a sensible effect in diminishing the expenditure of this colony; and would amply compensate for any loss which the government might sustain by affording settlers a passage thither, free of expence, in the transports. I commenced this section by an attempt to prove that the great immediate hindrance to the employment of the large mass of unoccupied labour in the various new departments of internal industry that will be created by the establishment of a free government, will arise from the want of capital; and the premium I have recommended to be granted with convicts for the first five years ensuing the proposed change in the colonial polity, is intended to impart an *artificial* vigour into the community, and to allow of that accumulation of wealth, which may afterwards suffice of itself to keep in

solution all the disposable labour of the colony. Every accession, therefore, of capital that may take place, will contribute to swell the colonial stock to that extent which is necessary for the complete occupation of the convicts, and thus become the means of accelerating the period when the government will be entirely emancipated from the necessity of allowing the settlers a bounty with them.

The last article scarcely needs any explanation. Whenever that extensive emigration of capitalists which I confidently anticipate would follow the establishment of a free government shall take place, the sale of the crown lands would evidently become a source of considerable profit, and would go a long way towards defraying the expences of the colony. It would also be the means of bringing numbers of rich speculators thither, who would not think of emigrating even for the increased indulgences which I have recommended in the foregoing article. A man of fortune would then be enabled to vest his money in land to the exact extent that he might desire; whereas at present, he must either be content with the portion assigned him, or else purchase by *dribblets* the *farms* that may become vacant in the vicinity of his estate, and after all perhaps, be annoyed by having the possessions of others in the midst of his own. It is true that individuals, who do not possess sufficient land for the support of their flocks and herds, are allowed to feed them on the unappropriated lands, and can therefore increase their stock to any extent they may please. But the rapid progress of colonization places the crown lands every day at a greater distance from the original settlements, and occasions a constant necessity for receding, so that at last that part of his stock which the farmer cannot feed at home is gradually removed to an inconvenient distance, and no longer can have the benefit of his personal superintendence. With men of capital, therefore, the class of whom it has been seen that the colony is most in need, this sale of the crown lands at half the price which is demanded for land in America, would prove a very powerful stimulus to emigration, and would consequently have a twofold operation in diminishing the expenditure of this colony; viz. by filling the coffers of the Police Fund, and by occasioning that accession of capital, which I have before shewn to be essential before the government can be freed from the burden of supporting the convicts.

On the Advantages which the Colony offers for Emigration.

After the gloomy picture which I have drawn of the actual condition of the colony; after having represented both its agricultural and commercial interests as being already not only in a state of impair, but also of increasing dilapidation and ruin, it may appear somewhat paradoxical that I should attempt to wind up the account with an enumeration of the advantages which it holds out to emigration. If due consideration, however, be given to the nature of the ingredients of which the agricultural body is composed; if it be recollected that it consists principally of persons, who have been since their earliest years habituated to every sort of vice and debauchery; of persons bred up in cities, and unacquainted with the arts of husbandry, who had, therefore, to contend against the combined force of an inveterate propensity to the profligate indulgences of their *ancient* mode of life, and of utter ignorance of the laborious occupations and thrifty arts of their *new*: I say if all these serious impediments to success be impartially weighed, it will be seen that the *anomaly* is rather *apparent* than *real*. Nevertheless I do not mean to imply that this colony or its dependencies, present at this moment any very flattering prospects for the *mere agriculturist*. That the *skilful farmer* would be enabled to obtain an *independent* and *comfortable subsistence* is, however, *indubitable*; and the larger his family, provided they were of sufficient age to afford him an effectual co-operation, the greater would be his chance of a successful establishment. Hundreds of this laborious class of people, who in spite of unremitting toil and frugality, find themselves every day getting behind-hand with the world, would undoubtedly better their condition by emigrating to this colony, if there were only a probability that they would be enabled to go on from day to day as they are doing here. In this country they are at best but *tenants* of the soil they cultivate; whereas there they would be *proprietors*, and the *mere advance* which would be taking place in the value of their farms, would before many years not only render them *independent* but even *wealthy*. Of the truth of this assertion, we shall be fully convinced by referring to the price of land on the banks of the Hawkesbury and Nepean rivers, the only parts which can be said to be even tolerably colonized. It has already been stated that as far as the river Hawkesbury is navigable, the unimproved land is worth five pounds per acre, and improved land double this amount. This land was at first of no value whatever; because in the infancy of societies,

so long as there is an unlimited scope of land of the first quality, which any one may occupy as far as his occasions require, it is evident that there would be no purchasers; since it is absurd to imagine that any one would buy that which he could obtain for nothing. It is only, as Mr. Ricardo has demonstrated, when land of an inferior quality is brought into cultivation, and when the difference in the produce of the two sorts gives the occupier of the one a superiority over the occupier of the other, and renders it as eligible for a person to cultivate land of the first description as a tenant, and to pay the proprietor the difference of produce by way of rent, as to be himself the proprietor of land of the second description; or when the situation of the different appropriated tracts of land does not admit of the conveyance of their produce to market at an equal cost; and thus again gives the owners of those farms which are more contiguous, an advantage over the owners of those which are more remote: I say it is only when societies have made that progress, which begets one or other of these contingencies, or both, that land is of any value whatever. In the course, therefore, of thirty-one years, the tract of land in question, taking the unimproved part as our criterion, since the improvements made in that portion of it, which is in a state of cultivation, may be considered tantamount to the difference in value between the one and the other, has evidently risen to this enormous price, from having been of no worth whatever: or in other words, each acre of land has increased in value during the interval that has elapsed since the foundation of the colony at the rate of 3s. 2 1/2d. per annum; and this too under the most impolitic and oppressive system, to which any colony, perhaps, was ever subjected. How much greater then, will be the future rise in the value of landed property, if, as there is now every reason to hope from the attention which the government are at this moment paying to the state of this colony, the whole of the disabilities under which its inhabitants have been so long groaning, should at length be abandoned? Without taking at all into the estimate the immediate amelioration which a radical change in the polity of this colony, would occasion in the condition of the agricultural body; without depending on the probability that it will soon be in the power of the laborious and frugal settler to rise rapidly to wealth and independence; it must be evident that the mere increase which is yearly taking place in the value of landed property, affords of itself the strongest inducement to emigration; since if it does not hold out to the industrious man the prospect of acquiring immediate wealth, it relieves him from all

apprehensions for his family, should a premature destiny overtake himself. He at least knows that every succeeding year will be augmenting in a rapid manner the value of his farm, and that the same spot which administers to his and their present wants, cannot fail to suffice for their future. This is of itself a most consolatory prospect; it at all events prevents the present good from being embittered with any dread of future evil; it permits the industrious man the tranquil enjoyment of the fruits of his labours, and rescues him from the necessity of hoarding up against the approach of gathering calamity, against the stormy season of impending poverty.

The amelioration, that would take place in the condition of the mere labourer, who should emigrate to this colony, without funds adequate to the formation of an agricultural establishment, would not be so considerable. Still there can be no doubt that the honest and industrious man would always be able to provide for himself and his family a sufficiency of food and clothing; comforts which with his utmost endeavours he can hardly obtain in this country without having recourse to parochial relief. He would, therefore, at all events emancipate himself from this humiliating,--this demoralizing necessity; for although there is confessedly a greater portion of labour in the colony than can at present be maintained in activity, any person who might emigrate thither voluntarily would easily find employment, when those who are, or have been under the operation of the law would seek for it in vain. A good character is a jewel of greater value there than in this country, because it is more difficult to be met with; and consequently all the advantages which it procures its possessor in the one place, it will insure him at least in a two-fold measure in the other.

The colony offers very little encouragement to the manufacturer. The manufacturing interests are not at present in the most prosperous situation; and if the government should, as there is every probability, at length adopt those measures which are called for by every consideration of justice and expediency, a few years will annihilate them entirely. To this class therefore, with reference both to the proprietor and workman, a removal to this colony would undoubtedly be prejudicial.

For the artisan and mechanic, who are skilled in the works of utility, rather than of luxury, there is, as it has been already remarked, no part of the

world, perhaps, which affords an equal chance of success. To any, therefore, who have the means of transporting themselves and families to this colony, the removal would be in the highest degree advantageous. They could not fail to find immediate employment, and receive a more liberal return for their labour, than they would be able to procure elsewhere. The blacksmith, carpenter, cooper, stone-mason, brick-layer, brick-maker, wheel and plough-wright, harness-maker, tanner, shoe-maker, taylor, cabinet-maker, ship-wright, sawyer, etc. etc. would very soon become independent, if they possessed sufficient prudence to save the money which they would earn. For the master artisan and mechanic, the prospect of course is still more cheering; since the labour they would be enabled to command would be proportioned to the extent of their capital.

The advantages, however, which the colony offers to this class of emigrants, *great* as they undoubtedly are, when considered in an isolated point of view, are absolutely of *no weight* when placed in the balance of comparison against those which it offers to the capitalist, who has the means to embark largely in the breeding of fine woolled sheep. It may be safely asserted that of *all the various openings* which the world at this moment affords for the *profitable investment* of money, there is not *one equally inviting* as this *single channel* of *enterprise* offered by the colony. The proof of this assertion I shall rest on a calculation so plain and intelligible, as I hope to be within the scope of the comprehension of all. Before we proceed, however, it is necessary to settle a few points, as the data on which this calculation is to be founded; viz. the value of wool, the weight of the fleece, and the number of sheep to be kept in a flock. With regard to the value of the wool grown in this colony, the last importations of the best quality averaged five shillings and sixpence per pound in the fleece. This was sold last month; [March, 1819] and as the market was at that time overcharged, and as moreover the best description of wool yet produced in this colony, is far from having attained the perfection of which it is capable, and which a few more crosses with the pure breed will undoubtedly effect in it, it may be safely concluded, that this is the lowest price at which this sort of wool will ever be sold. This will be more evident, if we contemplate the gradual rise in value, which the wool from the same gentleman's flocks has been experiencing during the last four years. In 1816, it was sold for 2s. 6d. per pound in the fleece; in March, 1818, for 3s. 6d. per pound; in July,

1818, for 4s. 4*d.* per pound; and in March, 1819, for 5s. 6*d.* per pound in the fleece. For some of this last quantity of wool, properly sorted and washed, Mr. Hurst of Leeds was offered 9s. per pound, and refused it. To take the future average price of wool at 5s. 6*d.* per pound, is, therefore, forming an estimate, which in all probability will fall far short of the truth. However, let this be one of our data; and let us allow three pounds, which is also an estimate equally moderate, as the average weight of each fleece. The weight of a yearling's fleece may be taken at three quarters of a pound, and the value of the wool at 2s. 9*d.* per pound. The number of ewes generally kept in a flock by the best breeders are about 330, and we will suppose that the emigrant has the means of purchasing a flock of this size of the most improved breed: this with a sufficient number of tups may be had for £1000. These points being determined, let us now proceed to our calculation.

[illegible]

	£	s.	d.		£	s.	d.	
Value of stock at the end of the 1st year	1238	12	6					
The original flock of ewes, 10 per cent. being allowed for the casualties of the last year, will only produce this year 297 lambs, $\frac{1}{2}$ wether and $\frac{1}{4}$ ewe lambs, which will be worth at the former rate of valuation	445	0	0					
Increase in the value of the 1st year's lambs, 10s. per head for the wethers, and 20s. for the ewes	222	5	0					
The shearing this year will yield 594 fleeces, or 1782, at 5s. 6d. per lb.	-	-	-	£ s. d.	490	4	0	
Lambs' wool, 297 fleeces, or 222 $\frac{1}{2}$ lbs. at 2s. 9d. per lb.	-	-	-	-	30	12	6 $\frac{1}{2}$	
Expence of two shepherds	-	-	-	100	0	0	-	
Additional hurdles, &c.	-	-	-	40	0	0	-	
Expence of shearing, &c. 44 score 11, 6s. per score	-	-	-	11	2	11	-	
Deduct 7s. 6d. per head for the further deterioration in the ewe flock	1906	7	6	Total expence	£151	2	11	
Deduct 10 per cent. for casualties	111	7	6	Deduct freight, insurance, &c. 2004 lbs.—10 per cent. at the rate 9d. per lb.	-	67	12	4 $\frac{1}{2}$
Net value of stock at the end of this year	1795	0	0	Net value of this year's shearing	-	400	19	9 $\frac{1}{2}$
Ditto, ditto, at the end of last	179	10	0	Deduct expence	-	151	2	11
Profit on stock the second year	1615	10	0	Profit on wool	-	249	16	10 $\frac{1}{2}$
	1238	12	6	Ditto on stock	-	376	17	6
	£370	17	6	Total profit the second year	-	£626	14	4 $\frac{1}{2}$

		THIRD YEAR'S PROFIT.					
		£	s.	d.			
Value of stock at the end of the 2d year		1615	10	0			
The ewe lambs dropped the first year, will be added to the original flock this year. The breeding flock, therefore, will be increased to 401, which will produce as many lambs, $\frac{1}{4}$ wether and $\frac{1}{2}$ ewe, which will be worth at the former rate of valuation		602	0	0			
Increase in the value of the second year's lambs, 10s. per head for the wethers, and 20s. for the ewes		200	9	6			
The shearing this year will yield 802 fleeces, or 2406lbs. of wool, at 5s. 6d. per lb.					£	s.	d.
Lambs' wool, 401 fleeces, or 300 $\frac{1}{4}$ lbs. at 2s. 9d. per lb.							
Expence of shepherds					150	0	0
Additional hurdles, &c.					40	0	0
Expence of shearing 60 score and 3, at 5s. per score					15	1	3
Deterioration in the ewe flock, at 7s. 6d. per head		2417	19	6			
10 per cent. for casualties		2267	11	0			
Net value of stock this year		2040	15	11			
Ditto, last year		1615	10	0			
Profit on stock the third year		£425	5	11			

It would be useless to prosecute this calculation, since any person who may be anxious to ascertain its further results, may easily follow it up himself. It will be seen that with the most liberal allowances for all manner of expenses, casualties and deteriorations, capital invested in this channel will yield the first year an interest of 13½ per cent. besides experiencing itself an increase of nearly 24 per cent.; that the second year it will yield an interest of nearly 25 per cent. besides experiencing itself a further increase of rather more than 37½ per cent.; and that the third year it will yield an interest of nearly 37 per cent. besides experiencing itself an additional increase of about 42½ per cent. or, in other words, money sunk in the rearing of sheep in this colony will, besides paying an interest of about 75½ *per cent.* in the *course of three years, rather more than double itself.* Here then is a mode of investing capital by which the proprietor may insure himself not only an annual interest, the ratio of which would augment every year in the most astonishing progression, but by which the capital itself also would experience an advance still more rapid and extraordinary. Any person, therefore, who has the means of embarking in this speculation, could not fail with common attention to realize a large fortune in a few years. His chance of so doing would be still greater if he should happen to be

acquainted with the management of sheep; but this is by no means an *indispensable* qualification; for such is the fineness of the climate, both in the settlements in New Holland and Van Diemen's Land, that all those precautions which are necessary to be observed in this country, in order to shelter this animal from the inclemency of the seasons, are there, quite superfluous: sheds, indeed, are not only useless, but injurious; the flocks never do so well as when they are continually exposed to the weather. It is only necessary that the folds should be shifted every other day, or if the sheep are kept by night in yards, to take care that *these* are daily swept out.

The extent to which capital might thus be invested is boundless; since if the breeder did not possess as much land as would feed the number of sheep that he might wish to keep, he would only have to send his flocks beyond the limits of colonization, and retire with them as the tide of population approached. His hurdles, and the rude huts or tents of his shepherds, might always be removed with very little difficulty and expense; and if his and his neighbours' flocks should happen to come into contact, such is the immensity of the wilderness which would lie before him, that he might exclaim in the language of Abram to Lot: "Let there be no strife I pray thee between me and thee, and between my herdsmen and thy herds-men; for we be brethren. Is not the whole land before us? Separate thyself I pray thee from me. If thou wilt take the left hand, then I will go to the right; or if thou depart to the right hand, then I will go to the left." Such, should any of these disputes occur, might always be their amicable termination. There is, and will be for ages to come, whatever may be the extent of emigration, more land than can possibly be required. The speculation, therefore, of growing wool can meet with no checks from the want of pasturage in the colony, and it is equally improbable that it can be impeded by the want of a market in this country. It is well known that the Saxon wool cannot be sold under the present prices without loss to the growers. The severity of the climate of Saxony, renders it indispensable for the sheep-holders to take a variety of precautions which are not only useless in this colony, but would even prove highly detrimental to the constitution of this valuable animal. In the former country, the flocks are kept almost invariably in sheds of a very costly construction both by day and night, and are fed almost wholly upon hay; in the latter, they are always better when kept in the open air and fed on the spontaneous herbage of the forest. The mildness of the seasons, therefore,

spares the colonists two immense sources of expence, and will without doubt in the end, enable them to undersell and ruin the Saxon wool growers; since the only point of superiority these latter can pretend to is their greater contiguity to the market, and this, in consequence of the extreme value of the commodity, is of too trifling import to demand consideration. The freight of wool from the colony, has already been reduced to three pence per pound, which is very little more than is paid for the transport of wool from Saxony; and all the other expences, with the exception of insurance, as brokerage, store-room, etc. are precisely the same. Upon these grounds, therefore, I am contented to rest the support of my assertion, that the world does not at present contain so advantageous, and I might also add, so extensive an opening for the investment of capital as the one in question.

With reference to the commercial prospects presented by this colony, they are certainly much more limited, but still of very considerable scope. The extraordinary fluctuations which are incessantly taking place in the prices of all sorts of merchandize, are evidently capable of being turned to great account by a skilful and cool calculator. Any person of this character possessed of sufficient capital to enable him to buy goods when the market should happen to be in a state of depression, and to keep them in his store till the glut should pass by, could not fail to realize a rapid fortune. The only event that could prevent his success, would be an imprudent avidity. If he should be once tempted to go out of his depth, so that he would be compelled to sell whether at gain or loss, in order to make good his payments, he would most probably sink never more to rise. But if he would never speculate beyond the compass of his actual means, he might easily clear fifty per cent. per annum on the amount of his trading capital.

Were I asked to particularize any avenue of industry not strictly included in any of the foregoing general classes, in which persons inclined to emigrate to this colony, might embark with a fair chance of success, I should say that any one who had the means of taking out a steam engine of six or eight-horse-power with the requisite machinery for sawing boards, would make it answer his purposes very well; that a timber merchant also, possessing a capital of three or four thousand pounds, might employ his funds very advantageously by establishing a timber yard; and that a skilful brewer who

could command five thousand pounds and upwards, would succeed either at Sydney or Hobart Town. It would be necessary, however, that he should understand the process of making malt, since there are no regular maltsters yet in the colony, and that he should also grow his own hops.* Until, therefore, he had established a hop plantation sufficient for his concern it would be requisite that he should make arrangements to be supplied with hops from this country. There are already several breweries in New South Wales, but the beer which is made in them is so bad, that many thousand pounds worth of porter and ale imported from this country, is annually consumed in these settlements. This is in some measure occasioned by the inferiority of the barley grown at Port Jackson; but more, I am inclined to believe, by the want of skill in the brewers. If the indifferent quality of the beer, however, be attributable to the badness of the barley, this impediment to success would be removed by emigrating to Van Diemen's Land; since the barley raised in both the settlements in this island is equal to the best produced in this country. I should also say, that the skilful dairyman who could take out with him a capital of from one to two thousand pounds, would do well in any of these settlements, but more particularly in New South Wales. Butter, as it has been already remarked, is still as high as 2s. 6d. per pound, notwithstanding the immense increase which has taken place in the black cattle. The extreme dearness of this article arises principally from the natural grasses not being sufficiently nutritive to keep milch cattle in good heart, and from the colonists not having yet got into the proper method of providing artificial food. Any one, therefore, who would introduce the dairy system practised in this country, could hardly fail of finding his account in it.

[* The hop thrives very well at Port Jackson: there are several flourishing plantations owned by the brewers. This plant has not, I believe, yet been introduced into the southern settlements; but as they bear a much greater affinity to this country in point of climate than Port Jackson, no doubt can be entertained that it might at least be cultivated there with equal certainty of success.]

These various advantages which this colony and its dependencies offer for emigration, have many points of superiority over any to which the United States of America can lay claim; if we even admit the truth of all that the most enthusiastic admirers of that country have written, respecting its flourishing condition. Mr. Birbeck*, whose "Letters," if not "Notes," contain strong marks of an exaggerated anticipation of their resources and

capabilities, has not, though evidently under the influence of feelings quite incompatible with a correct and disinterested judgment, ventured to rate his imaginary maximum of the profit to be derived from farming in the Illinois, (which appears to be the principal magnet of attraction possessed by the United States,) so high as I have proved by a calculation, to which I defy any one to attach the character of hyperbolical, that the investment of capital in the growth of fine wool in this colony will infallibly produce. This too, although certainly the most inviting and extensive channel of enterprize which it contains, is not its only ground of preference: it has many temptations besides for emigration, of which the United States are wholly destitute: among these the following are perhaps the most considerable.

[* See Mr. Cobbett's Letter to Mr. Birbeck on his "Letters from the Illinois."]

First, Any person of respectability upon emigrating to this colony, is given as much land as would cost him four hundred pounds in the United States.

Secondly, He is allowed as many servants as he may require; and the wages which he is bound to pay them, are not one third the amount of the price of labour in America.

Thirdly, He, his family and servants, are victualled at the expence of the government for six months.

These are three considerations of great importance to the emigrant, and quite peculiar to this colony: added to which the value of the produce of this gratuitous land and labour is three times as great as in the Illinois, as will be seen by a comparison of the prices of produce there as given by Messrs. Birbeck and Fearon, and the prices of similar produce as stated in the first part of this work. It is true that there is not the same unlimited market as in America; but it must be evident, that, if the price of labour were even equal, the colonist who could dispose of one third of his crops, would be in a better condition than if he were established in the Illinois, and could find vent for the whole. The market, however, has never been circumscribed to this degree in periods of the greatest abundance; and the immense arrivals of convicts, that have been daily taking place for the last three years, have increased the consumptive powers of the colony so considerably, that there has at most been but a very trifling surplus in the barns of the farmers at the

close of the year. On the other hand, all articles of foreign growth and manufacture are in general much cheaper than in the Illinois, and the other remote parts of the American Union, provided the purchaser has ready money, and is not under the necessity of having recourse to secondary agents for goods on long credit.

Here, then, are many powerful reasons why persons bent on emigration should prefer this colony to America. The only point is whether the latter can throw any weightier arguments into the opposite *scale*. What may be urged on the other side of the question, may, I apprehend, be comprised under these two heads: first, the greater contiguity of the United States to this country, and the consequent ease and cheapness with which emigration thither may be effected; and, secondly, the superiority of their government.

The first of these points merits very little consideration, except in the instance of those who have not the means of choosing between the two countries. If a person only possess the power of removing to that which is the more contiguous, eligibility is out of the question: he is no longer a free agent. But the difference in the cost of emigrating is far from being so considerable as might be imagined on a mere view of their comparative distances from this country. I understand that a gentleman of great experience and respectability in the commercial world, has presented a calculation to the committee of the House of Commons, which is now occupied with an inquiry into the state of this colony, from which it appears that a family, consisting of a man, his wife and two children, with five tons for their accommodation and for the reception of their baggage, might emigrate to the colony for one hundred pounds, inclusive of every contingent expense, provided a sufficient number of families could be collected to freight a ship. The same gentleman calculates that a single man might be taken out thither for thirty pounds.* The difference, therefore, in the mere cost of emigrating to the two places is so trifling, that the superior locality of the one cannot be admitted as any sort of set off against the superior advantages of the other. With respect, however, to the last plea, that has been adduced in favour of emigration to the United States, the superiority which they possess in a free government, it must be admitted, that this is a decisive ground of preference, and a blessing to which the greatest pecuniary advantages cannot be considered a sufficient

counterpoise. And if it be imagined that the present arbitrary system of government is not drawing to a conclusion; if it be apprehended that it has not yet reached its climax of oppression and iniquity, and that it will be enforced until all who are within the sphere of its influence are reduced to a state of moral degradation and infamy, and the colony becomes one vast sty of abomination and depravity; the emigrant will do well to discard from his mind every mercenary consideration, and to turn away with disgust from all prospects of gain; so long as they are only to be realized by entering into so contagious and demoralizing an association. But if he believe that the hour is at hand when the present system is to be abolished; when oppression is to be hurled from the car in which it has driven triumphantly over prostrate justice, virtue, and religion; and when the dominion of right and morality is to be asserted and established; then I have no hesitation in recommending him to give a preference to this colony. In the agonies of approaching dissolution, the efforts of tyranny will be feeble and impotent. Moral corruption, though the inevitable result of a voluntary submission to the will, is not the consequence of an indignant and impatient sufferance of its rule for a season; and the chance of personal injury would be still more precarious and uncertain. Under the most arbitrary governments the vengeance of the despot has seldom been known to extend beyond the circle of his court; his victims have been among the ambitious candidates for power and distinction. The retired pursuits of unobtrusive industry have proved a sanctuary, which has remained inviolate in all ages.

[* See a calculation in the Appendix made by an eminent merchant in the city; from which it appears that a single man, on the ration allowed sailors on board of a king's ship, might be conveyed to the colony at a still cheaper rate.]

**"The lifted axe, the agonizing wheel,
Luke's iron crown, and Damien's bed of steel,
To men remote from pow'r but rarely known,
Leave reason, faith, and conscience all our own."**

APPENDIX.

Civil Establishment, and Public Institutions in the Territory of New South Wales and its Dependencies.

Seat of Government, Sydney.

Captain General, Governor in Chief, Vice Admiral, and Commander of the Forces, His Excellency Lachlan Macquarie, Esq. Major General in the Army, and Lieutenant Colonel of the 73d Regiment.

Lieutenant Governor--James Erskine, Esq. Lieutenant Colonel of the 48th Regiment.

Aid-de-Camp to his Excellency the Governor, John Watts, Lieutenant in the 46th Regiment.

Major of Brigade--Henry Colden Antill, Captain in the 73d Regiment.

High Court of Appeals.

Judge--His Excellency the Governor in Chief.

Secretary--John Thomas Campbell, Esq.

Clerk--Michael Robinson, Gent.

Door-keeper--Serjeant Charles Whalan, of the 46th Regiment.

Court of Vice Admiralty.

Judge--John Wylde, Esq. L. L. B.

Registrar--John Thomas Campbell, Esq.

Clerk to the Registrar--Mr. Michael Robinson.

Marshal--William Gore, Esq.

Cryer--Mr. Edward Quin.

The Governor's Court.

The Honorable the Judge Advocate and Premier Judge of this Territory--
John Wylde, Esq. L. L. B.

Members--Two Inhabitants of the Territory, specially appointed by Precept
from His Excellency the Governor and Commander of the Forces.

Clerk, and Registrar of the Court--Joshua J. Moore, Gent.

Cryer--Mr. Edward Quin.

And it is to be noted, that this Court has cognizance of all pleas, where the
amount sued for does not exceed 501. sterling (except such pleas as may
arise between party and party, in Van Diemen's Land); and from its
decisions there is no appeal.

The Supreme Court.

The Honorable the Judge--Barron Field, Esq.

Members--Two Magistrates of the Territory, appointed by Precept from His
Excellency the Governor.

Clerk of the Supreme Court--Mr. John Gurner.

Cryer--Mr. Edward Quin.

Solicitors--Mr. Thomas Wylde; Mr. William Henry Moore; Mr. Frederick Garling; Mr. T. S. Amos.

Secretary's Office.

Secretary--John Thomas Campbell, Esq.

Principal Clerk Michael Robinson, Gent.

Second ditto--Mr. Charles Reid.

Assistant Clerks--Mr. James Sumpter; Mr. Thomas Ryan.

Commissariat Staff.

Deputy Commissary General--David Allan, Esq.

Assistant Commissary General--John Palmer, Esq. Parramatta;

Acting Assistant Commissary General--W. Broughton, Esq. Hobart Town;

Deputy Assistant Commissary General--P. G. Hogan, Esq.

Acting Ditto--Thomas Archer, Esq. Port Dalrymple.

Clerks on the Commissariat Staff--Mr. E. Hobson, Parramatta; Mr. A. Allan, Sydney; Mr. R. Fitzgerald, Windsor; Mr. George Johnston, Sydney.

Principal Assistant Clerk--Mr. T. W. Middleton.

Storekeepers--Mr. W. Scott, Sydney; Mr. S. Larken, Parramatta; Mr. John Tucker, Newcastle; Mr. R. Dry, Port Dalrymple; Mr. John Gowen, Liverpool; Mr. John Rayner, Hobart Town.

Assistant Clerks--Mr. John Flood, Mr. E. J. Yates, Mr. John Rickards, Mr. J. Hankinson, Mr. George Smith, Mr. C. Sommers, Mr. N. Edgworth, Mr. C. Bridges, Mr. W. Todhunter, Mr. Richard Walker, Mr. Todd Watson--at Sydney.

Mr. J. Obee, at Parramatta--Mr. B. Rix, at Windsor--Mr. W. Kitchener, Port Dal.--Mr. John Gregory, Hobart Town--Mr. W. Turner, Hobart Town.

Messenger--Thomas Parsons.

Store Assistant--T. Jennings.

Cooper--Edward Hewen.

Provost Marshall's Department.

Provost Marshall--William Gore, Esq.

Clerk--Mr. Henry Hart;

Bailiff and Officer at Sydney--Mr. W. Evans;

Ditto at Windsor, etc.--Mr. Richard Ridge.

Church Establishment.

Principal Chaplain of the Territory--The Rev. Samuel Marsden, Parramatta;

Assistant Chaplain at Sydney--Rev. Wm. Cowper;

Assistant Chaplain at Windsor--Rev. Robert Cartwright;

Assistant Chaplain at Castlereagh--Rev. Henry Fulton;

Assistant Chaplain for Port Dalrymple, but now officiating at Liverpool--Rev. John Youl.

Assistant Chaplain appointed for Liverpool--Rev. Ben. Vale, returned to Europe on leave of absence.

Parish Clerk of St. Philip's, Sydney--Mr. Thomas Taber;

Ditto of St. John's, Parramatta--Mr. John Eyre;

Ditto of the Chapel at Windsor--Mr. Joseph Harpur.

Magistrates.

The Principal Magistrate of the Territory, and Chairman of the Bench of Magistrates at Sydney--The Honorable the Judge Advocate.

Magistrates of the Territory and its Dependencies.

D'Arcy Wentworth, Esq.

John Thomas Campbell, Esquire.

Magistrates of the various Settlements of the Territory.

At Sydney--W. Broughton, Esq. absent at Hobart Town; Simeon Lord, Esq.
Richard Brooks, Esq.

Clerk to the Bench of Magistrates--Joshua John Moore, Gent.

Assistant Clerk--Mr. Ezekiel Wood.

At Parramatta--The Rev. Samuel Marsden; Hannibal M'Arthur, Esq.

At Windsor--William Cox, Esq.

At Wilberforce--Rev. Robert Cartwright;

At Castlereagh--James Mileham, Esq. Rev. Henry Fulton;

At Liverpool--Thomas Moore, Esq.

At Bringelly--Robert Lowe, Esq.

At Hobart Town--Rev. Robert Knopwood, A. M. A. W. H. Humphrey, Esq.
James Gordon, Esq. Francis Williams, Esq. A. F. Kemp, Esq.

At Port Dalrymple--Brevet Major James Stewart, 46th Regiment; Thomas Archer, Esq.

Medical Staff.

Principal Surgeon--D'Arcy Wentworth, Esq.

First Assistant ditto--Mr. James Mileham, at Windsor.

Second ditto ditto--Mr. William Redfern, at Sydney;

Acting ditto ditto--Mr. Wm. Evans, at Newcastle;

Acting ditto ditto--Mr. Major West, at Parramatta;

Acting ditto ditto--Mr. R. W. Owen, at Sydney;

Acting ditto ditto at the Lunatic Asylum, Castle Hill, Mr. Thomas Parmeter.

Assistant at General Hospital--Mr. Henry Cowper.

Surveyors of Crown Lands.

Surveyor General--John Oxley, Esq.

Deputy Surveyor--Mr. James Meehan.

Ditto at Hobart Town--Mr. G. W. Evans.

Collector of Quit-Rents, Mr. James Meehan.

Naval Officer's Department.

Naval Officer--John Piper, Esq.

Assistant to the Naval Officer--Mr. Alfred Thrupp.

Wharfingers--Mr. William Hutchinson; Mr. James Stewart.

Acting Engineer, and Artillery Officer, and Inspector of Government Works--Captain John Gill, 46th Regiment.

Civil Architect--Mr. F. H. Greenway.

Barrack Master--Charles M'Intosh, Esq.

His Majesty's Dock Yard.

Master Boat Builder--Mr. William Cossar.

Book-keeper--Mr. John Fowler.

Harbour Master--Mr. Stephen Milton.

Superintendents.

Of Government Stock--Mr. Rowland Hassall;

Assistant Superintendent of ditto--Mr. Sam. Hassall;

Of the Lunatic Asylum at Castle Hill--Mr. George Sutter;

Of Government Labourers and Cattle, and of Public Works at Windsor--Mr. Richard Fitzgerald;

Of Public Labourers, etc. at Sydney--Mr. William Hutchinson;

Of Carpenters at Parramatta--Mr. Richard Rouse;

Of Bricklayers--Mr. Thomas Legg;

Of Government Mills--Mr. Abraham Hutchinson.

Principal Overseers of Government Stock, under the Orders of the Superintendent.

Mr. Thomas Arkell, and Mr. William Chalker.

Trustees and Commissioners of Turnpike Roads and Highways.

For the Roads from Sydney to Hawkesbury--D'Arcy Wentworth, Simeon Lord, and James Mileham, Esquires;

For the Roads to and from Liverpool, branching out at any of the above--Thomas Moore, Esq.

Inspector of Highways and Bridges--Mr. James Meehan.

Female Orphan Institution.

Patron--His Excellency the Governor.

Patronesses--Mrs. Macquarie; Mrs. Wylde; Mrs. Hannibal M'Arthur.

Committee for the Orphan Fund.

His Honor Lieutenant Governor Erskine;

The Honorable Mr. Judge Advocate Wylde;

The Reverend Samuel Marsden, Principal Chaplain;

The Reverend Wm. Cowper, Assistant Chaplain;

Hannibal M'Arthur, Esq.

Treasurer--Reverend Samuel Marsden;

Master of the School--Mr. William Hosking;

Matron--Mrs. Hosking.

Institution for the Civilization, Care, and Education of the Aborigines or Black Natives of New South Wales.

Patron, the Governor; Patroness, Mrs. Macquarie.

Committee.

1. His Honor Lieutenant Governor Erskine, President. 2. The Honorable Mr. Judge Advocate Wylde;--3. J. T. Campbell, Esq.--4. D. Wentworth, Esq.--5. William Redfern, Esq.--6. H. M'Arthur, Esq.--7. The Rev. Wm. Cowper;--8. The Rev. Hen. Fulton;--9. Mr. Rowland Hassall.

Secretary and Treasurer of the Institution--John Thomas Campbell, Esq.

Schoolmaster--

Masters of the Public Schools throughout the Territory.

At Sydney--Mr. Thomas Bowden;

At Liverpool--Mr. Robert Keeves;

At Parramatta--Mr. John Eyre;

At Windsor--Mr. Joseph Harpur;

At Richmond--Mr. Matthew Hughes;

At Kissing Point--Mr. James Cooper;

At Wilberforce--Mr. M. P. Thompson;

At Newcastle--Mr. H. Rainsforth.

Police Establishment at Sydney.

Committee of the Police Fund.

The Lieutenant Governor; the Judge Advocate.

Treasurer--D'Arcy Wentworth, Esq.

Superintendent of Police--D'Arcy Wentworth, Esq.

Assistant to the Superintendent--Mr. Robert Jones.

Principal Clerk in the Police Office . . .

Assistant Clerk--Mr. Ezekiel Wood.

Six District Constables, and 50 Constables in Ordinary;

Chief Constable at Sydney--Mr. John Redman;

Ditto ditto at Parramatta--Mr. Francis Oakes;

Ditto ditto at Windsor--Mr. John Howe.

Keeper of the County Gaol at Sydney--Mr. John Jaques.

Clerk to ditto--George Jubb.

Coroner--Mr. J. W. Lewin.

Ditto for Windsor, and the Districts on the Banks of the Hawkesbury--Mr. Thomas Hobby.

Bank of New South Wales.

President--J. T. Campbell, Esq.

Directors--D'Arcy Wentworth, Esq.--John Harris, Esq.--Thomas Wylde, Esq.--William Redfern, Esq.--William Gore, Esq.--Robert Jenkins, Esq.

Secretary and Cashier--Mr. E. S. Hall.

Principal Accountant--Mr. R. Campbell, junior.

Printing Office.

Government Printer--Mr. George Howe.

Post Office.

Post Master--Mr. Isaac Nichols.

Deputy at Hobart Town--Mr. James Mitchell.

Licensed Auctioneers and Appraisers.

At Sydney--Mr. Simeon Lord; Mr. David Bevan.

At Parramatta--Mr. Richard Rouse; Mr. Francis Oakes.

At Windsor--Mr. John Howe.

Clerk of the Market at Sydney--Mr. Miles Fieldgate.

Clerk of the Market and Fair at Parramatta--Mr. Francis Oakes.

N. B. These Fairs are held half-yearly; viz. the second Thursday in March, and the first Thursday in October

Marine Establishment.

His Majesty's Colonial Cutter Mermaid, employed in surveying the Coast, Lieutenant Philip Parker King, R. N. Commander.

His Majesty's Colonial Brig Elizabeth Henrietta--Mr. Thomas Whyte, Master.

His Majesty's Colonial Brig Lady Nelson, at present undergoing repair--Mr. David Smith, Master.

Harbour Pilots.

At Port Jackson--Mr. Robert Mason; Mr. Robert Murray.

At Hunter's River--Robert Whitmore.

Newcastle.

Commandant--Captain Wallis, of the 46th Regt.

Acting Assistant Surgeon--Mr. William Evans.

Store-keeper--Mr. John Tucker.

Civil Establishment at Hobart Town.

Lieutenant Governor of the Settlements on Van Diemen's Land--Lieutenant Colonel William Sorrell;

Deputy Judge Advocate--Edward Abbott, Esq.

Chaplain--Reverend R. Knopwood, A. M.

Surgeon--Mr. Edward Luttrell;

Assistant Surgeon--Mr. H. St. John Younge;

Acting Assist. Commissary General--W. Broughton, Esq.

Provost Marshal--Mr. Martin Tims;

Surveyor of Lands--Mr. G. W. Evans;

Inspector of Public Works--Captain Nairn, 46th Regt.;

Naval Officer--Mr. John Beamont;

Store-keeper--Mr. Rayner;

Auctioneer--Mr. Richard Lewis;

Harbour Pilot--Mr. Michael Mansfield;

Two Superintendents, and two Overseers.

Magistrates at Hobart Town.

Reverend R. Knopwood, A. M; Acting Assistant Commissary General Broughton; James Gordon, Esq.; A. W. H. Humphrey, Esq.; Francis Williams, Esq.; A. F. Kemp, Esq.

The Lieutenant Governor's Court, Van Diemen's Land.

Deputy Judge Advocate--Edward Abbott, Esq.;

And two resident Inhabitants, appointed as Members by His Honor the Lieutenant Governor.

Clerk to the Deputy Judge Advocate--Mr. N. Ayres.

And it is by Charter provided, that the present and all future Governors, Lieutenant Governors, the Judge Advocate, Judge of the Supreme Court, and Deputy Judge Advocate, shall be Justices of the Peace throughout the Territory and its Dependencies; and all Places and Settlements therein, with all the Powers possessed by Justices of the Peace in England, within their respective Jurisdiction.

Civil Establishment at Port Dalrymple.

Commandant--Brevet Major James Stewart, 46th Regt.

Assistant Chaplain, now doing duty at Head Quarters, Reverend John Youl;

Surgeon--Mr. Jacob Mountgarret;

Assistant Surgeon--Mr. John Smith;

Superintendent of the Government Herds--David Rose, Esq.

Inspector of Government Public Works--Mr. William Elliot Leith;

Store-keeper--Mr. R. Dry.

Harbour Master.

Master of the Public School--Mr. Thomas M'Queen;

Acting Master Carpenter--Mr. Richard Sydes.

Magistrates--Brevet Major James Stewart, 46th Regt. Thomas Archer, Esq.

Fees and Dues in the Various Offices.

SECRETARY'S OFFICE.--GOVERNOR'S FEES.

For the great seal to every grant, not exceeding 1000 acres
0 5 0
For all grants exceeding 1000 acres, for every 1000 each
grant contains
0 2 6
For a license of occupation
0 5 0

Secretary's Fees.

For every grant, and passing the seal of the province,
if under 100 acres
0 5 0
Between 100 and 500 acres
0 10 0
All above
0 15 0
In grants of land, where the number of proprietors shall
exceed 20, each right
0 2 6
In ditto, where the number of proprietors shall not exceed
20--the same as for grants in proportion to the quantity of
land
For license of occupation of land
0 2 6
For every grant of land from 1000 to 20,000 acres, take for the
first 1000 acres 15s. and for every 1000 acres more, 2s. 6d.

Fees to be taken by the Surveyor General of Lands.

For each grant, not exceeding	40	acres
0 7 6		
Ditto	90	ditto
0 10 0		
Ditto	190	ditto
0 15 0		
Ditto	250	ditto
1 0 0		
Ditto	350	ditto
1 10 0		
Ditto	400	ditto
2 0 0		

Ditto	750	ditto
2 12 6		
Ditto	1000	ditto
3 5 0		
Ditto, on town leases, per foot on street front		
0 0 1		
And on all grants exceeding 1000 acres for each 100 acres		
so		exceeding
0 4 0		

Auditor's Fees.

For	the	auditing	of	every	grant
0 3 4					

Registrar's Fees.

For recording a grant of land, for or under 500 acres	
0 1 3	
For ditto from 500 to 1000 acres	
0 2 6	
For every 100 acres to the amount of 20,000	
0 10 6	
For recording a grant of a township	
1 0 0	

To be received in the Secretary's Office.

On all colonial appointments, and commissions of whatever kind,	
where the official seal is affixed	
5 5 0	
On all special licenses for marriages	
4 4 0	
On the registering of vessels exceeding 40 tons per ton;	
0 1 0	
And to the Principal Clerk	
0 10 0	
For all vessels not exceeding 40 ton's	
2 0 0	
And to the Principal Clerk	
0 10 0	

On affixing official seal to the clearances of vessels of foreign voyages, or fishing, per ton	
0 0 6	
For every person leaving the colony, whereof ls. goes to the Principal Clerk	
0 2 6	
Transcripts of all papers, per folio of 72 words ls. and transcribing Clerk, per ditto, 3d.	
0 1 3	
Licenses for colonial vessels coastwise to the Coal River, Hawkesbury, or elsewhere, not extending to Van Diemen's Land or Bass's Straits, as heretofore to Coal River	
0 5 0	

Fees to the Principal Clerk

On free or conditional pardons, each	
0 5 6	
Certificates and tickets of leave, each	
0 2 8	

N. B.--Six-pence of the free and conditional pardons, and two-pence on certificates and tickets of leave, are to be paid to the Government Printer, as a remuneration for the paper and printing.

On receiving Appeals.

If for the sum of £50, or under, as heretofore	1	1
0		
Upwards of £50, and not exceeding £100	2	2 0
Upwards of £100, and not exceeding 300		3 3
0		
Any sum exceeding £300		5 5
0		
On all Appeals To the Principal Clerk		
0 10 0		
To the Door-keeper		
0 5 0		
Affixing colonial seal to appeals to the King in Council		
5 5 0		
Principal Clerk		
1 0 0		
Transcripts of all papers, per folio of 72 words ls.		

and transcribing Clerk per ditto, 3d.
0 1 3

Naval Office.

Entry for a ship with articles for sale, and in Government service

0 15 0

Ditto, ditto, and not in Government service

1 10 0

Ditto with no articles, ditto ditto

0 15 0

Ditto for all foreign vessels

3 0 0

Permission to wood and water, for every vessel not exceeding

100 tons per register

1 0 0

For every vessel upwards of 100, and not exceeding 200 tons

2 0 0

For every vessel upwards of 200, and not exceeding 300 ditto

3 0 0

For every vessel upwards of 300, and not exceeding 400 ditto

4 0 0

For every vessel upwards of 400, and not exceeding 500 ditto

5 0 0

For every vessel upwards of 500 tons

6 0 0

Ditto to trade

1 1 0

Dues of each bond

0 10 6

Ditto of port clearance

0 5 0

Ditto ditto to the Naval Officer's Clerk

0 2 6

Ditto to Naval Officer's Clerk, for each permit to land

spirits or wine, per cask

0 0 6

For Colonial Vessels

Deeds of entry and clearance to the Hawkesbury

0 4 0

Ditto		ditto		to		Newcastle
0	10	0				
Ditto	to	the fishery	or	settlements	at	the southward
0	10	0				
Ditto		to		Naval	Officer's	Clerk
0	2	0				

King's Dues for Orphans

For	each	ton	of	coals	for	home	consumption
0	2	6					
Ditto				ditto			exported
0	5	0					
For	each	1000	square	feet	of	timber	for home consumption
3	0	0					
Ditto				ditto			exported
6	0	0					

Duties

Ships from any part of the world importing cargoes (the manufactures of Great Britain excepted) to pay a duty of 5 per cent. *ad valorem* on the amount of their respective invoices.

On		every		gallon		of		spirits		landed
0	10	0								
Ditto							wine			ditto
0	0	9								
n			every				pound		of	tobacco
0	0	6								
Wharfage			on		each		bale,		cask,	or package
0	0	6								

The Naval Office to receive 5 per cent. on all duties collected at this port.

Wharfinger's Fees.

On	each	bale,	cask,	or	package,	landed	or	shipped
0	0	3						
Metage			per		ton		on	coals
0	2	6						

Measure of timber, per 1000 feet
 0 2 0

The following duties to be levied and collected by the Naval Officer on the articles hereunder named, upon their arrival and landing, whether for colonial consumption or re-shipment.

On each ton of sandal wood
 2 10 0

On each ton of pearl shells
 2 10 0

On each ton of beech-le-mer
 5 0 0

On each ton of sperm oil (252 gallons)
 2 10 0

On each ton of black whale or other oil
 2 0 0

On each fur seal skin
 0 0 1½

On each hair ditto
 0 0 0½

On each kangaroo ditto
 0 0 0½

On cedar, or other timber, from Shoal Haven, or any other part of the coast or harbours of New South Wales (Newcastle excepted, as the duties are already prescribed there), when not supplied by government labourers, for each solid foot
 0 1 0

For every 20 spars from N. Zealand or elsewhere
 1 0 0

On timber, in log or plank, from New Zealand or elsewhere, for each solid foot
 0 1 0

Gaoler's Fees.

From every debtor on his discharge from each action
 1 0 0

From every sailor confined for being disorderly, for the first night thereof
 0 2 6

For every following night
 0 1 0

From every free person thereof, and person having a ticket of leave, taken up and confined for being disorderly, on the

discharge of the same, each
0 3 0

From every person receiving a certificate of his or her term
of transportation being expired (reference being always had to
the black book in his possession)
0 0 6

Fees to be received by the Chief Constable

On the apprehending and lodging in gaol any sailor who may be
found riotous or disorderly, of constables assisting in the
apprehension

0 2 6

For each night that sailors so apprehended may be confined;
which is to be directed as the foregoing

0 2 6

For the apprehending of deserters or runaway sailors, to be
divided equally among apprehending constables and himself
2 0 0

For serving summonses from the Judge Advocate's Office, for
debts

under 40s. each summons

0 1 0

For the seizure of stills, or other articles prohibited by the
Colonial Regulations, and ordered for distribution among the
seizing Constables, the Chief Constable is to receive an equal
proportion with them.

Surplice Fees.

Marriages by License, Clergyman
3 3 0

Clerk

0 10 6

Sexton

0 5 0

Ditto by Banns, free persons Clergyman

0 10 6

Clerk banns

0 2 0

Clerk marriage

0 3 0

Sexton				marriage
0 10 6				
Christenings,	for	registering	Clerk	
0 1 0				
Churching,	free	persons	only	Clergyman
0 1 0				
			Clerk	
0 0 6				
			Sexton	
0 0 6				
Funerals,	free	persons--	Clergyman	
0 3 0				
			Clerk	
0 1 0				
			Bell	
0 0 6				
		Grave	digger	
0 2 6				

Post Office Charges

Every	letter,	English	or	Foreign
0 0 8				
Every	parcel	not	exceeding	20lbs.
0 1 6				
Every	ditto	if	exceeding	20lbs.
0 3 0				
Every	colonial letter	from any part of the territory		
0 0 4				
Soldiers'	letters,	or those addressed to their wives		
0 0 1				

Market Duties at Sydney.--Grain, etc. lodged in the store to be paid for as follows; viz. wheat or barley 3d. per bushel; maize or oats 2d. per ditto; potatoes 3d. per cwt. and if not sold the same day shall pay store-room rent every succeeding market day the articles continue there, to the clerk, who is not to deliver up such articles until the same be paid.

Market and Fair Duties at Parramatta.

For each horse, mare, gelding, or foal, if sold 0

1	6						
Ditto		ditto,	ditto,	if	not	sold	
0	0	6					
For	each	bull,	cow,	ox,	or	calf,	if sold
0	1	0					
Ditto		ditto,	ditto,	if	not	sold	
0	0	4					
Sheep,	lambs,	or	pigs,	per	score,	if	sold
0	2	0					
Ditto,		ditto,	ditto,	if	not	sold	
0	0	8					
And any number of sheep, lambs, or pigs, under a score,							
for			each				sold
0	0	1½					
Ditto,		ditto,	ditto,	if	not	sold	
0	0	0½					

Ferry across the River Hawkesbury, called Nowland's Ferry:

Tolls		for	each	foot	passenger
0	0	3			
A			saddle		horse
0	1	6			
A					foal
0	0	6			
A		horse		and	chaise
0	2	6			
A	cart	with	1	horse	or two bullocks
0	2	6			
A	ditto	with	2	horses	or 3 bullocks
0	3	0			
A	waggon	with	4	horses	or 6 bullocks
0	4	0			

For horned cattle 1s. per head

For do. if more than 1, and not exceeding 20, 9d. per ditto

For ditto, if upwards of twenty, 6d. per ditto

For sheep 2s. per score, or 7s. 6d. per hundred

For hogs and goats 2d. each, or 2s. per score

Passengers to pass and repass the same day for one payment.

Toll Gates between Sydney and Parramatta:

For	each	head	of	horned	cattle
0	0	2			
For	each	score	of	sheep	or swine

0	0	10					
For			every		single	horse	
0	0	3					
For	every		cart	drawn	by	a single horse or bullock	
0	0	4					
For	every		cart	drawn	by	2 horses or bullocks	
0	0	6					
For	every		cart	drawn	by	3 horses or bullocks	
0	0	9					
For	every		cart	drawn	by	4 horses or bullocks	
0	0	10					
For	every		waggon	drawn	by	2 horses or bullocks	
0	0	10					
For	every		waggon	drawn	by	3 horses or bullocks	
0	1	0					
For	every		waggon	drawn	by	4 horses or bullocks, or more	
0	1	2					
For			every		single	horse chaise	
0	1	0					
For			every		curricule	with two horses	
0	1	6					
For	a		four-wheel	carriage	drawn	by 2 horses	
0	2	0					
For	the		same	drawn	by	three horses	
0	2	6					
For	the		same	drawn	by	four horses	
0	3	0					

N. B. The tolls between Parramatta and Windsor are exactly the same as those between Sydney and Parramatta, only at the former a cart drawn by 4 horses or bullocks is 10d.

Tolls at the New Bridge over the South Creek at Windsor, called Howe Bridge.

For			each		foot	passenger
0	0	2				
Ditto			ditto		single	horse
0	0	6				
Ditto	ditto		ditto,	or	bullock	in draft
0	1	0				
A	cart,		with	2	horses	or bullocks
0	1	2				
For	each		horse	or	bullock	above that number
0	0	2				
Waggons,	or four wheeled carriages with two horses or bullocks					
0	1	6				

For each head of cattle not in draft, under a score
0 0 6
For every score
0 5 0
Ditto ditto per hundred
1 0 0
Ditto ditto sheep, goat, or pig, under a score
0 0 1
Ditto ditto a score
0 1 0

The Governor and Family, the Lieutenant Governor, and all persons on public duty to pass free.

Tolls to be taken at the Ferry across the River Hawkesbury.

(This is Mr. Howe's Ferry).

For each foot passenger
0 0 3
A single horse
0 1 0
A single horse chaise
0 1 6
A chaise with 2 or more horses
0 2 6
A cart with 1 horse or bullock
0 2 6
Each additional horse or bullock
0 0 3
Waggons, or 4 wheeled carriages, with 3 horses or bullocks
0 2 0
Each horse or bullock
0 0 3
Each head of cattle not in draft, under 6
0 0 9
Ditto ditto under 20
0 0 6
Every score
0 7 6
Every sheep, goat, or pig, under a score
0 0 1
Ditto ditto per score
0 1 0
Ditto ditto per hundred
0 4 0

The unweaned young of every kind, half price.

Tolls to be taken at the Bridge over the Chain of Ponds, near Windsor.

For		a		single		horse
0	0	3				
A		cart	and	horse,	or	two
0	0	6				bullocks
Ditto		with		more	than	two
0	0	9				
A		waggon	with	3	horses	or
0	1	0			4	bullocks
Ditto				with		more
0	1	3				
A			single		horse	chaise
0	1	0				
A				four-wheel		carriage
0	1	6				
Horned				cattle,		each
0	0	2				
Sheep			and	pigs,	per	score
0	1	0				

The Colonial Garden.

Potatoes.

For a general winter crop in field or garden, should be planted from the end of January to the end of February, or even the beginning of March, rather than lose the planting; and they will come into use in winter, when cabbages and other vegetables run to seed. The ground should if possible be prepared a month before the planting, and a preference given by the country gardener to new ground, or dry wheat stubble, where the soil is light. The town gardener should keep his ground in a good state by frequent light manuring.

The sets made choice of should be the produce of the last winter crop; and when planted should have a covering of light manure; without which the ground will be impoverished; but with such assistance be improved.

The best potatoes to preserve for sets are of a middle size, as well for profit as security; for if the largest are made use of, there must be a considerable

waste; and those of the dwarf kind should be rejected, from their degeneracy and weakness.

An experienced gardener, who has been a settler here more than twenty years, plants his seed potatoes uncut for the winter crop; his reason for which is, that if they are cut they are likely to perish in the ground, from the rains of March; which will not be the case if put in whole.

In July the ground should be prepared for the summer crop, at which time the winter crop will be fit for digging; in which process every care should be taken to prevent their being bruised; and if possible they should be dug in cloudy weather, to avoid exposure to the sun, which would rot them; whereas if carefully preserved they will keep sound for a length of time; which will be the more desirable, as at this season vegetables are mostly scarce and dear.

In August the planting should be made, or even in September, if necessary; and at the end of the latter, or in October, they will require to be hilled and earthed, and well cleansed from weeds, which must also now and then be done as weeds make their appearance. In the choice of seed for this crop, a middle sized potatoe should be preferred, without any objection to their being cut, as is the customary mode of planting.

Manure.--Fresh stable dung, and litter, or decayed thatch, answers better for manure than that which is very rotten; but if the ground be fresh and light, they will want no manure, and the potatoes be of a better quality, though probably less plentiful.

In October you may also plant potatoes for a latter crop; and this, though perhaps less abundant than that sown in August or the beginning of September, will nevertheless be sufficiently productive to pay well the expence and labour of planting.

The potatoe is so essential and desirable an article of food, that too much care cannot be bestowed in their culture and preservation; for should other crops fall short, this will afford the grower a certain means of supporting his family.

Carrots and Parsnips

For a general crop, may be best sown in December and January. The ground should be dug deep, and broke up very fine. If the soil be light, the seed should be sown on a calm day, and trod in.

Carrots and *Parsnips* may also be planted in July, and also in November. They thrive best in an open situation, or a light sandy soil; and after they come up, should be thinned and set out with a small two inch garden hoe.

Cabbages

For a constant supply may be sown in January, April, May, July, August, October, and early in November, at a time when the ground is in a moist state. The plants sown in April will not run to seed. Care should be taken to set out the plants in a richer and stronger ground than the bed they are taken from; otherwise the crop will be poor. Their first bed should now and then be weeded with the hand, in dry weather, and the freshest and strongest plants removed first. In setting them out, a passage should be allowed between the rows of at least two feet, and in the rows the plants kept eighteen or twenty inches distant from each other, which will allow them a free circulation of air. As they grow up, they should occasionally be earthed up a little, and carefully weeded, as nothing has a more negligent and slovenly appearance than a foul bed of cabbage. In very dry hot weather, their first bed should be watered now and then; after rain they should be set out, but not during its continuance, as it would wash the mould from the roots, and numbers decay without taking root at all in the new bed. Cabbages run to seed in August and September.

A gardener of long experience in the Colony has favored us with the following remarks on the culture of the cabbage: "Although cabbage seed may be here sown with advantage at several times of the year, yet I have of late years confined myself to two sowings only; namely, in January, and as near the middle of May as I could find the weather most favorable, for two general crops. That sown in January comes well in for a winter supply; but must be taken great care of, or will come to nothing; for as January is one of our hottest months, they will require to be shaded from the sun's excessive

heat by boughs, which if closely twined together will continue their shelter even after the leaves are withered; and also, to be watered at least once in every two or three days, until they get pretty strong in the ground. The other crop, sown in May, will come into use early in summer; and do not require any care more than they usually receive."

Turnips

The ground should be prepared in February; and at the latter end of the month some may be planted; for which purpose gentle showery weather is most favourable.

Turnips for a general crop should be sown early in March, and they will be ready for food for sheep in the beginning of May. During their growth they require hoeing once or twice, to thin and keep them clean, if the land be foul.

Turnips for table use may be sown at any time between March and September, or the beginning of November, when absolutely necessary.

Turnips for Sheep.--The ground should be prepared in January and February, by the plough or hoe, harrowing, manuring, and totally cleansing it from all weeds whatever, so that it be brought into the best state possible.

The Seed.--To raise turnip seed properly is an object worthy of the strictest attention. To do this, the bed should be examined carefully when the turnips have attained about a third of their size, and the largest, smoothest, and most healthy taken up and transplanted into a richer bed, in rows a foot wide, and about six inches between the plants that are in the same row.--The seed will be fit to cut the latter end of November.

Cauliflower.

The seed may be sown at any time between November and February; but best in December. Some sow about the middle of May for a summer crop, and this practice is found to answer.

Asparagus.

The seed should be sown in October, in drills, four drills in a bed four feet wide, the ground being first well prepared, and richly manured. At the latter end of April, or beginning of May, the haulm should be cut down within two inches of the bed (though some cut it nearly level), and constantly kept from weeds. The ground should be dug with a three pronged fork, and not with a spade, as the latter will cut the crown of the roots, and destroy the plants. A professed gardener of twenty-three years practice in the colony assures us, that he has now a bed of twenty years standing, which constantly yielded a good crop until the year before last, the failure of which he attributed to the ground being worn out, and therefore set out a fresh bed. In this country it requires a cool soil, and that the beds should not be laid too high, four or five inches being a sufficient height.

Onions.

In March prepare the ground, by breaking it up well, and richly manuring it. At the end of the month, and beginning of April, sow for a light crop of onions for immediate use.

In April prepare for a general crop, which should be sown at the latter end of the month, or beginning of May, to keep them from going to seed. When they grow to a proper size, which will be from the latter end of October to the beginning of November, they should be carefully laid down, so as not to break the tops; for should the tops be broke, and the wet penetrate, the onions will inevitably spoil. When fit to draw, they should be gathered on a fine dry day, and lain under cover, so as not to be at all exposed to the sun.

Pease and Beans of all kinds.

The ground should be prepared in March, by well working and manuring; and at the end of the month, and in April, they may be sown for a spring crop. Some sow from the beginning of March till the middle of June, as occasion may require.

Prepare in August for a latter crop; and

French beans may be as well sown in October as at any other time.

Cucumbers, Pumpkins, and Melons.

The ground should be got ready for these in August, and they should be sown in September.

Radishes.

May be sown when turnips are sown.

Lettuces and Small Sallad

Are sown every month, for a constant supply; but lettuces are best sown in April and November, and small sallads in May, and the latter end of November.

Grass and Clover.

Turnip ground, on which either is intended to be sown, should be cleared, cleaned, and broke up in August, great care being taken to leave no weeds or large clods.

Spinage

Is best sown in March and September.

Brocoli, brown and white

Should be sown the beginning of January, and treated as cabbage sown at that time. Some observe the practice of sowing from November until February, but this is a vague method, and not to be depended on.

Strawberries.

March is the proper season for planting this fruit. The runners and leaves should be all cut close away before they are set, which will strengthen them greatly, and before winter they will have new leaves. If planted in clumps, the fruit will be larger than if suffered to run over the bed; but by the latter method they preserve a more delicate appearance, and are certainly less likely to contract filth.

As soon as planted, a sprinkling of fresh earth should be thrown over the beds, which should be plentifully watered twice or thrice a week, if the season turn out dry; and as the plants require much air, they should be thinned, in order to preserve a free circulation.

When sown in beds, the following mode of treatment should be observed:-- When the bed is well prepared, plant the rows of the large kinds, such as the Chili and Carolina, two feet apart, and allow one foot between each of the plants in the same row. The smaller kinds do not require so much space; eighteen inches between the rows, and eighteen between the plants will be sufficient; but as much greater space may be given as the ground will admit of.

In April all strawberry beds should be well dressed and cleaned, in order to prevent the lodging of insects; and in July they should be gone well over, and have their spring dressing; in doing which the runners must be taken off from the plants, and the weeds cleared away. The ground will then also require to be loosened, and would be much benefited by a layer of fine manure and fresh earth between the rows, as this treatment will strengthen the plants, and produce the largest and finest fruit.

Raspberries

Should also be dressed and cleaned in July.

Grapes.

Begin in April to pinch and prune the vines, which must be cleaned from all cankered and unhealthy leaves or other substances, to preserve them from insects. In July they should also be gone over, and pruned and nailed, where

requisite. All walls and stakes should then be attentively examined, to prevent the harbouring of insects, which will otherwise destroy the young wood and fruit.

Pine Apples.

In the management of Pinery, should gentlemen incline their attention thitherward, the following observances will be useful. In May let them be unplunged, and lain down on their sides, till all their leaves be free from water. Take off all yellow leaves, and suckers, and let these suckers be plunged into fresh pots of earth, and in a fresh bed of heat, by means whereof the Pinery will always be kept full. The spider is their chief enemy, and therefore should not be permitted to harbour near them, as the smallest of the tribe will kill the crown, and destroy the fruit.

Trees of all Kinds

In JANUARY and FEBRUARY should be BUDDED. A competent judge will best inform himself of the proper time for this operation by the ripe appearance of the buds themselves. For this use the practical gardener chooses a small instrument which may be made of bone, with wrappers of worsted, which being elastic, is better than bark, or any other substitute. The tops of the budded stocks are by some left uncut until the August or September following; but a gardener of much experience in the Colony makes it a rule to cut his tops off immediately, as the buds strike much sooner with this practice.

PEACHES and PLUMS are best budded upon their own stocks.

APRICOTS may be budded upon peach stocks.

The ENGLISH MULBERRY upon the cherry; or Cape; and ORANGES will succeed best upon lemons; and all tender trees are better to be budded in summer than in spring.

It may be here proper to observe, for the better information of those who have not given themselves the trouble of dividing the year into seasons, and

which it would indeed be difficult to do by a comparison with those to which in Europe we were accustomed, that the spring months are, *September, October, and November*; the summer months, *December, January, and February*; the autumn months, *March, April, and May*; and the winter months, *June, July, and August*. Hence it is observable, that our wheat harvesting begins in the last of the spring months, November, and is entirely over before the end of summer.

In March, all fruit trees should be examined, and the broken or decayed limbs taken off.

In May, all fruit trees should be pruned, except evergreens, and such branches as are necessary to be taken off cut close to the tree, that the wound may heal the sooner, and thus prevent the tree from injury by rain or dew.

In May, orange trees may be safely transplanted, as well as in

June; which is the general season for transplanting fruit trees: in doing which, the roots should be carefully taken up, and planted as near to the surface as possible, taking care at the same time that the whole be covered, being first spread out like an open hand; after which the covering may be thickened with a little rich manure; and when the hole is filled, the earth about the root should be trodden gently, so as to fix the position of the plant.

June is also the best time for making layers, and planting cuttings from hardy trees.

In July, such fruit trees as were not transplanted in June should be removed, and stocks to bud and graft upon transplanted.

In August, evergreens may be transplanted, in which great care must be observed, as they are very tender; and as their roots will not bear exposure to the sun, they must be so carefully dug round as to admit their being taken up with as large a ball of earth clinging to the root as can be done, in which exact state they always should be fresh planted.

In August, also, the nursery will require to be well gone over and cleaned, and young trees prepared for grafting. Wall fruit and shrubs must be now particularly attended to, in divesting them of every foul or decayed substance.

In this month, also, all gardens should be cleaned and dressed. The gardener ought to be particularly attentive in keeping off weeds and insects, as grubs frequently make their appearance at this time, which very much injure all vegetable productions.

This month also the nursery wants cleaning, and the young trees must be prepared for grafting: the weeds preparatory to which, must be cut down and destroyed, or they will afterwards give much trouble. Decayed branches should likewise be taken from fruit trees; and such trees as appear stunted should have the ground opened about the roots.

SEPTEMBER is a good month for grafting fruit trees, the scions intended for grafts being cut off a fortnight or three weeks before, and the ends which are cut stuck in the ground until wanted for use.

Trees budded at the beginning of the year must now be cut down within about two inches of the bud; this space above the bud being left to tie the young shoots to, to prevent their being broken off by the wind. No shoots should be suffered to grow but the eye that was budded, and all others should be rubbed off as soon as they appear.

OCTOBER.--Young trees that were grafted in September should now be examined, and all the young shoots broken off, but one or two, both from the grafts and stocks:--The clay must be taken off, and the bandages loosened. The ground between the rows of all young trees should also be kept clear of weeds, or they will deprive the trees of a great part of their nourishment.

Apricot and peach trees should be examined this month, and where the fruit appears to be set too thick, which will be mostly the case in prolific seasons, they must be reduced to a moderate quantity. This must nevertheless be done with care, and only such of the fruit as is proper to remain left upon the tree.

In this month the garden should be cleaned all through, and walls and fruit trees well examined, to prevent insects from lodging.

In NOVEMBER such trees as were inoculated the previous summer will want the young shoots tying, either to the top of the stock, or to have a stake driven in near them to tie the shoot to, that they may not be broken off by the wind. All budded and grafted trees will in November want constant attention. All shoots that do not grow from the eye of the bud, or from the graft, must be taken off, that the graft or bud may receive all the nourishment the stock can afford.

In November evergreens may be propagated by layers, from the young shoots of the summer's growth.

In December the same observance is to be attended to with respect to evergreens; and peach trees should now be thinned of their fruit, where it appears too thick.

Observations on some particular Fruit Trees.

The Orange.

In pruning, the knife should be as little used as possible, if you wish them to bear. The southerly winds are very unfavorable to their growth, and parts opened by the knife admit the air, and kill the bloom. This tree is perhaps more infested by ants than any other; and the black contracted appearance of the leaves is much attributed to this insect. From this persuasion, which is pretty general, various methods have been tried to keep them off. Human ordure laid round the boll of the tree will prevent their appearing so long as it retains moisture, but not longer; tar has been applied round both the trunk and branches, and only answered while moist; yet a cure, if the ant be really inimical, is certain to be found, with little trouble, and without expence, in common suds from a wash tub, in which ley has been used. This wash should be laid well about the roots in the evening, when the ants have left the tree, which will be mostly the case, and in wet weather always so, and there need be little apprehension of their return next morning; a woollen bandage, dipped in oil, will also be found a preventative to their ascending

the tree. This application, whenever ants appear, will have the desired effect; but whether these insects are injurious to the tree or not, is to be doubted upon this principle, namely, that the ant, being excessively carnivorous, is instinctively led to the orange tree in quest of the eggs, exuviae, larvae, etc. of some very minute insect, whose eggs are attached to the leaves by a glutinous substance, emitted by themselves in such quantity as to discolour the leaf, the pores of which being thus stopped, it becomes hard and tusk-like, and gradually closes. It seems impossible that this change should be produced by the ant: for if it even attacked or destroyed the blossom, this would not affect the leaves when the tree is not in bloom; and therefore it is rational to conclude that their changed appearance proceeds from some other cause, perhaps from some other insect, perhaps from the assaults of the weather, or some peculiarity in its soil or situation, or from a combination of these and other causes; in exemplification whereof it is worthy to be remarked, that a gardener in the Brickfields planted a number of seed sixteen years ago, all from the same tree; of which forty-four came up, and were all treated with equal care. None shewed fruit until about seven years since; when one produced about two-hundred oranges, and four or five others had from thirty down to ten or a dozen each. The following year the same trees were full; and afterwards others began to bear. This very great disparity in their time of bearing, keeping in mind at the same time that the seeds were from the same tree, all sown at once, and all equally well attended to, would be sufficient to excite astonishment, were we not to make allowance for the various causes that might have tended to accelerate or retard their growth.

The gardener himself says, that the chief of the defaulters were a good deal shaded from the sun by a range of peach trees, which depriving them of a great proportion of the warmth necessary to a fruit which thrives best in the hottest climates, he considers sufficient to occasion all the difference spoken of.

The Apple

Has a great enemy in a minute insect called the Cochineal, owing more, perhaps, to its being nearly of the same colour, than from any resemblance to the Spanish insect of that name. A gentleman who had eight trees that had

for several years borne a delicious apple, had the mortification to find the whole of his trees at once infested by those insects in excessive number; after which they left off bearing, and after failing in many experiments to relieve them, he came unwillingly to the resolution of cutting down the trees. These insects are of a dark red, approaching to a purple, and combine in such numbers on the roots as well as branches, as to shew in protuberated clusters, exhibiting a downy whiteness on the surface. A gardener of the colony, who has attended a good deal to this matter, affirms that a weed called the Churnwort presents a perfect remedy to the disaster; with this weed, the roots, cleared of the earth, and the branches also, he advises to be thoroughly well rubbed.

Victualling one Mess of five Men.

	Beef. Ps.	Pork. Ps.	Flour. lbs.	Plumbs. lbs.	Pease. quarts	Suet. lbs.
Sunday	1	0	$2\frac{1}{2}$	$\frac{1}{2}$	0	$0\frac{1}{2}$
Monday	0	1	0	0	1	0
Tuesday	0	0	5	$\frac{1}{2}$	0	$0\frac{1}{2}$
Wednesday	1	0	$2\frac{1}{2}$	$\frac{1}{2}$	0	$0\frac{1}{2}$
Thursday	0	1	0	0	1	0
Friday	1	0	$2\frac{1}{2}$	$\frac{1}{2}$	0	$0\frac{1}{2}$
Saturday	0	1	0	0	1	0
	<u>3</u>	<u>3</u>	<u>$12\frac{1}{2}$</u>	<u>2</u>	<u>3</u>	<u>2</u>
Say 26 Weeks	78	78	325	52	78	52
<i>£ s. d.</i>						
78 Pieces of Beef, at £8 per 42 pieces, is	-	-	-	-	14	16 0
78 do. do. Pork, at £9 per 53 do.	-	-	-	-	13	10 0
325 lbs. Flour, at	-	-	-	-	6	0 0
52 lbs. Plumbs, at	-	-	-	-	1	10 0
78 quarts Pease, at	-	-	-	-	1	5 0
52 lbs. Suet, at	-	-	-	-	1	5 0
					<u>38</u>	<u>6 0</u>
2½ Tons water butts at 60s.	-	-	-	-	7	10 0
					<u>5</u>	<u>45 16 0</u>
					9	3 2
Say a ship of 500 tons to carry 200 men	-	-	-	-	-	200
					<u>£1831</u>	<u>13 4</u>
Say 500 tons freight at £6 out	-	-	-	-	3000	0 0
					<u>£4831</u>	<u>13 4</u>

200 men at £4831 13s. 4d. is equal to £24 3s. 2d. per man.

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